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**Child Care and Development Fund (CCDF) Plan
for
State/Territory Tennessee**

FFY 2025 – 2027

Version: Initial Plan

Plan Status: Approved as of 2024-11-09 00:37:10 GMT

This Plan describes the Child Care and Development Fund program to be administered by the State or Territory for the period from 10/01/2024 to 9/30/2027, as provided for in the applicable statutes and regulations. The Lead Agency has the flexibility to modify this program at any time, including amending the options selected or described.

For purposes of simplicity and clarity, the specific provisions of applicable laws printed herein are sometimes paraphrases of, or excerpts and incomplete quotations from, the full text. The Lead Agency acknowledges its responsibility to adhere to the applicable laws regardless of these modifications.

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Overview

Introduction

The Child Care and Development Block Grant Act (CCDBG) (42 U.S.C. 9857 *et seq.*), together with section 418 of the Social Security Act (42 U.S.C. 618), authorize the Child Care and Development Fund (CCDF), the primary federal funding source devoted to supporting families with low incomes afford child care and increasing the quality of child care for all children. The CCDF program is administered by the Office of Child Care (OCC) within the Administration for Children and Families (ACF) at the U.S. Department of Health and Human Services and provides resources to State, Territory, and Tribal governments via their designated CCDF Lead Agency.

CCDF plays a vital role in supporting family well-being and child development; facilitating parental employment, training, and education; improving the economic well-being of participating families; and promoting safe high-quality care and learning environments for children when out of their parents' care.

As required by CCDBG, this CCDF Plan serves as the State/Territory Lead Agency's application for a three-year cycle of CCDF funds and is the primary mechanism OCC uses to determine Lead Agency compliance with the requirements of the statute and regulations. CCDF Lead Agencies must comply with the rules set forth in CCDBG and corresponding ACF-issued rules and regulations. The CCDF Plan is a fundamental part of OCC's oversight of CCDF and is designed to align with and complement other oversight mechanisms including administrative and financial data reporting, the monitoring process, error rate reporting, audits, and the annual Quality Progress Report.

Organization of Plan

In their CCDF Plans, State/Territory Lead Agencies must describe how they implement the CCDF program. The Plan is organized into the following sections:

1. CCDF Program Administration
2. Child and Family Eligibility and Enrollment and Continuity of Care
3. Child Care Affordability
4. Parental Choice, Equal Access, Payment Rates, and Payment Practices
5. Health and Safety of Child Care Settings
6. Support for a Skilled, Qualified, and Compensated Child Care Workforce
7. Quality Improvement Activities
8. Lead Agency Coordination and Partnerships to Support Service Delivery
9. Family Outreach and Consumer Education
10. Program Integrity and Accountability

Completing the Plan

This revised Plan aims to capture the most accurate and up-to-date information about how a State/Territory is implementing its CCDF program in compliance with the requirements of CCDF. In responding to plan questions, Lead Agencies should provide concise and specific summaries and/or bullet points as appropriate to the question. Do not insert tables or charts, add attachments, or copy manuals into the Plan. A State/Territory's CCDF Plan is intended to stand on its own with sufficient information to describe how the Lead Agency is implementing its CCDF program without need for added attachments, tables, charts, or State manuals.

OCC recognizes that Lead Agencies use different mechanisms to establish CCDF policies, such as State statute, regulations, administrative rules, policy manuals, or policy issuances. Lead Agencies must submit their CCDF Plan no later than July 1, 2024.

Review and Amendment Process

OCC will review submitted CCDF Plans for completeness and compliance with federal policies. Each Lead Agency will receive a letter approximately 90 days after the Plan is due that includes all Plan non-compliances to be addressed. OCC recognizes that Lead Agencies continue to modify and adapt their programs to address evolving needs and priorities. Lead Agencies must submit amendments to their Plans as they make substantial policy and program changes during the three-year plan cycle, including when addressing non-compliances.

Appendix 1: Implementation Plan

As part of the Plan review process, if OCC identifies any CCDF requirements that are not fully implemented, OCC will communicate a preliminary notice of non-compliance for those requirements via an emailed letter. OCC has created a standardized template for Lead Agencies to submit as their 60-day response to that preliminary notice. This template is found at Appendix 1: Lead Agency Implementation Plan. This required response via the Appendix will help create a shared understanding between OCC and the Lead Agency on which elements of a requirement are unmet, how they are unmet, and the Lead Agency's steps and associated timelines needed to fully implement those unmet elements.

CCDF Plan Submission

CCDF Lead Agencies will submit their Plans electronically through the Child Care Automated Reporting System (CARS). CARS will include all language and questions included in the final CCDF Plan template approved by the Office of Management and Budget (OMB). Note that the format of the questions in CARS could be modified from the Word version of the document to ensure compliance with Section 508 policies regarding accessibility to electronic and information technology for individuals with disabilities.

1 CCDF Program Administration

Strong organizational structures, operational capacity, and partnerships position States and Territories to administer CCDF efficiently, effectively, and collaboratively.

This section identifies the CCDF Lead Agency, CCDF Lead Agency leadership, and the entities and individuals who will participate in the implementation of the program. It also identifies the partners who were consulted to develop the Plan.

1.1 CCDF Leadership

The governor of a State or Territory must designate an agency (which may be an appropriate collaborative agency) or establish a joint interagency office to represent the State or Territory as the Lead Agency. The Lead Agency agrees to administer the program in accordance with applicable federal laws and regulations and the provisions of this Plan, including the assurances and certifications.

1.1.1 Designated Lead Agency

Identify the Lead Agency or joint interagency office designated by the State or Territory. OCC will send official grant correspondence, such as grant awards, grant adjustments, Plan approvals, and disallowance notifications, to the designated contact identified here.

- a. Lead Agency or Joint Interagency Office Information:
 - i. Name of Lead Agency: **Tennessee Department of Human Services**
 - ii. Street Address: **505 Deaderick St**
 - iii. City: **Nashville**
 - iv. State: **Tennessee**
 - v. ZIP Code: **37243**
 - vi. Web Address for Lead Agency: **<https://www.tn.gov/humanservices/>**
- b. Lead Agency or Joint Interagency Official contact information:
 - i. Lead Agency Official First Name: **Clarence H.**
 - ii. Lead Agency Official Last Name: **Carter**
 - iii. Title: **Commissioner**
 - iv. Phone Number: **(615) 313-4700**
 - v. Email Address: **Clarence.H.Carter@tn.gov**

1.1.2 CCDF Administrator

Identify the CCDF Administrator designated by the Lead Agency, the day-to-day contact, or the person with responsibility for administering the State's or Territory's CCDF program. The OCC will send programmatic communications, such as program announcements, program instructions, and data collection instructions, to the designated contact identified here. If there is more than one designated contact with equal or shared responsibility for administering the CCDF program, identify the Co-Administrator or the person with administrative responsibilities and include their contact information.

- a. CCDF Administrator contact information:
 - i. CCDF Administrator First Name: **Jude**

- ii. CCDF Administrator Last Name: **White**
- iii. Title of the CCDF Administrator: **Assistant Commissioner, Child Care and Community Services**
- iv. Phone Number: **(615) 739-4874**
- v. Email Address: **Jude.White@tn.gov**
- b. CCDF Co-Administrator contact information (if applicable):
 - i. CCDF Co-Administrator First Name: **Gwen**
 - ii. CCDF Co-Administrator Last Name: **Laaser**
 - iii. Title of the CCDF Co-Administrator: **Director, Child Care Services**
 - iv. Phone Number: **(615) 313-3893**
 - v. Email Address: **Gwen.Laaser@tn.gov**
 - vi. Description of the Role of the Co-Administrator: **The Co-Administrator is the Director of Child Care Services with the Division of Child Care and Community Services.**

1.2 CCDF Policy Decision Authority

The Lead Agency has broad authority to administer (i.e., establish rules) and operate (i.e., implement activities) the CCDF program through other governmental, non-governmental, or public or private local agencies as long as the Lead Agency retains overall responsibility for the administration of the program. Administrative and implementation responsibilities undertaken by agencies other than the Lead Agency must be governed by written agreements that specify the mutual roles and responsibilities of the Lead Agency and other agencies in meeting the program requirements.

1.2.1 Entity establishing CCDF program rules

Which of the following CCDF program rules and policies are administered (i.e., set or established) at the State or Territory level or local level? Identify whether CCDF program rules and policies are established by the State or Territory (even if operated locally) or whether the CCDF policies or rules are established by local entities, such as counties or workforce boards.

Check one of the following:

- a. ☒ All program rules and policies are set or established by the State or Territory. (If checked, skip to question 1.2.2.)
- b. ☐ Some or all program rules and policies are set or established by local entities or agencies. If checked, indicate which entities establish the following policies. Check all that apply:
 - i. Eligibility rules and policies (e.g., income limits) are set by the:
 - ☐ State or Territory.
 - ☐ Local entity (e.g., counties, workforce boards, early learning coalitions).
 - ☐ Other. Identify the entity and describe the policies the entity can set:

- ii. Sliding-fee scale is set by the:
 - ☐ State or Territory.
 - ☐ Local entity (e.g., counties, workforce boards, early learning coalitions).
 - ☐ Other. Identify the entity and describe the policies the entity can set:
- iii. Payment rates and payment policies are set by the:
 - ☐ State or Territory.
 - ☐ Local entity (e.g., counties, workforce boards, early learning coalitions).
 - ☐ Other. Identify the entity and describe the policies the entity can set:
- iv. Licensing standards and processes are set by the:
 - ☐ State or Territory.
 - ☐ Local entity (e.g., counties, workforce boards, early learning coalitions).
 - ☐ Other. Identify the entity and describe the policies the entity can set:
- v. Standards and monitoring processes for license-exempt providers are set by the:
 - ☐ State or Territory.
 - ☐ Local entity (e.g., counties, workforce boards, early learning coalitions).
 - ☐ Other. Identify the entity and describe the policies the entity can set:
- vi. Quality improvement activities, including QIS, are set by the:
 - ☐ State or Territory.
 - ☐ Local entity (e.g., counties, workforce boards, early learning coalitions).
 - ☐ Other. Identify the entity and describe the policies the entity can set:
- vii. Other. List and describe any other program rules and policies that are set at a level other than the State or Territory level:

1.2.2 Entities implementing CCDF services

The Lead Agency has broad authority to operate (i.e., implement activities) through other agencies, as long as it retains overall responsibility for CCDF. Complete the table below to identify which entity(ies) implements or performs CCDF services.

Check the box(es) to indicate which entity(ies) implement or perform CCDF services.

CCDF Activity	CCDF Lead Agency	TANF Agency	Local Government Agencies	CCR&R	Other
Who conducts eligibility determinations?	☒	☒	☐	☐	☐ Describe:

CCDF Activity	CCDF Lead Agency	TANF Agency	Local Government Agencies	CCR&R	Other
Who assists parents in locating child care (consumer education)?	☒	☒	☐	☒	☐ Describe:
Who issues payments?	☒	☐	☐	☐	☐ Describe:
Who monitors licensed providers?	☒	☐	☐	☐	☐ Describe:
Who monitors license-exempt providers?	☒	☐	☐	☐	☐ Describe:

CCDF Activity	CCDF Lead Agency	TANF Agency	Local Government Agencies	CCR&R	Other
Who operates the quality improvement activities?	[x]	[]	[]	[]	[x] Describe: The Lead Agency collaborates with: • Tennessee Department of Children's Services (TDCS) facilitates child care for children in state custody or protective services; receives referrals and conducts investigations regarding alleged child abuse or neglect. • Tennessee Department of Commerce and Insurance (TDCI) conducts fire inspections of child care facilities. • Tennessee Department of Disability and Aging (TDDA) through the State

CCDF Activity	CCDF Lead Agency	TANF Agency	Local Government Agencies	CCR&R	Other
					Interagency Coordinating Council (SICC) for the Tennessee Early Intervention System (TEIS), a voluntary program that offers therapy and other services to infants and young children with development delays or disabilities. • Tennessee Department of Economic and Community Development (TNECD) supports improving and expanding child care services emphasizing early care and education and industry partnerships. • Tennessee

CCDF Activity	CCDF Lead Agency	TANF Agency	Local Government Agencies	CCR&R	Other
					Department of Education (TDOE) on a variety of early education initiatives that includes but is not limited to provision of child care services and voluntary Pre-K. • Tennessee Department of Finance and Administration (TDF&A) supports processing of payments to child care agencies and contractors. • Tennessee Department of Health (TDH) conducts general environmental, food service, and immunization inspections of child care facilities. • Tennessee

CCDF Activity	CCDF Lead Agency	TANF Agency	Local Government Agencies	CCR&R	Other
					Department of Labor and Workforce Development (TDLWD) collaborates to facilitate child care services for low-income families through employment and training programs; • Tennessee Department of Mental Health and Substance Abuse Services (TDMHSAS) facilitates referrals for a protective services category of child care services for children of individuals participating in an approved TDMHSAS program. • Association of Infant Mental Health in

CCDF Activity	CCDF Lead Agency	TANF Agency	Local Government Agencies	CCR&R	Other
					Tennessee (AIMHITN) provides supports to child care agencies to address mental health needs of infants/young children and families. • The Community Foundation of Middle Tennessee (CFMT) provides access to shared services resources and administers enhancement, establishment, and expansion grants for child care agencies. • Tennessee Child Care Resource and Referral Network (CCR&R) provides

CCDF Activity	CCDF Lead Agency	TANF Agency	Local Government Agencies	CCR&R	Other
					training and technical assistance for child care agency staff, family engagement activities, Child Care WAGES® Tennessee program, family and group home supports and resources, and Tech Goes Home Tennessee program. • Tennessee Early Childhood Training Alliance (TECTA) provides professional development opportunities for child care agency staff. • University of Tennessee Social Work Office of Research and Public Services (SWORPS) supports

CCDF Activity	CCDF Lead Agency	TANF Agency	Local Government Agencies	CCR&R	Other
					technology, data collection, analysis, and reporting, and training evaluation.

1.2.3 Information systems availability

For any activities performed by agencies other than the Lead Agency as reported above in 1.2.1 and 1.2.2, identify the processes the Lead Agency uses to oversee and monitor CCDF administration and implementation activities to retain overall responsibility for the CCDF program.

Check and describe how the Lead Agency includes in its written agreements the required elements. Note: The contents of the written agreement may vary based on the role the agency is asked to assume or type of project but must include, at a minimum, the elements below.

a. Tasks to be performed.

☒ Yes. If yes, describe: **The Lead Agency establishes tasks to be performed using written agreements, e.g., grants, contracts, memoranda of agreement/understanding, etc., with agencies and organizations identified at 1.2.1.**

☐ No. If no, describe:

b. Schedule for completing tasks.

☒ Yes. If yes, describe: **The Lead Agency establishes schedules for completing tasks using written agreements, e.g., grants, contracts, memoranda of agreement/understanding, etc., with agencies and organizations identified at 1.2.1.**

☐ No. If no, describe:

c. Budget which itemizes categorical expenditures in accordance with CCDF requirements.

☒ Yes. If yes, describe: **The Lead Agency establishes budgets consistent with CCDF expenditures and earmarking requirements using written agreements, e.g., grants, contracts, memoranda of agreement/understanding, etc., with agencies and organizations identified at 1.2.1.**

☐ No. If no, describe:

d. Indicators or measures to assess performance of those agencies.

☒ Yes. If yes, describe: **The Lead Agency identifies performance measures using written agreements, e.g., grants, contracts, memoranda of agreement/understanding, etc., with agencies and organizations identified at 1.2.1.**

☐ No. If no, describe:

e. In addition to the written agreements identified above, describe any other monitoring and

auditing processes used to oversee CCDF administration. **Please see responses at 10.1.2 and 10.1.5.**

1.2.4 Certification of shareable information systems.

Does the Lead Agency certify that to the extent practicable and appropriate, any code or software for child care information systems or information technology for which a Lead Agency or other agency expends CCDF funds to develop is made available to other public agencies? This includes public agencies in other States for their use in administering child care or related programs.

☒ Yes.

☐ No. If no, describe:

1.2.5 Confidential and personally identifiable information

Certification of policies to protect confidential and personally identifiable information

Does the Lead Agency certify that it has policies in place related to the use and disclosure of confidential and personally identifiable information about children and families receiving CCDF assistance and child care providers receiving CCDF funds?

☒ Yes.

☐ No. If no, describe:

1.3 Consultation in the Development of the CCDF Plan

The Lead Agency is responsible for developing the CCDF Plan, and consultation with and meaningful input and feedback from a wide range of representatives is critical for CCDF programs to continually adapt to the changing needs of families, child care programs, and the workforce. Consultation involves meeting with or otherwise obtaining input from an appropriate agency in the development of the State or Territory CCDF Plan. As part of the Plan development process, Lead Agencies must consult with the following:

- (1) Appropriate representatives of general-purpose local government. General purpose local governments are defined by the U.S. Census at https://www2.census.gov/govs/cog/g12_org.pdf.
- (2) The State Advisory Council (SAC) on Early Childhood Education and Care (pursuant to 642B(b)(1)(A)(i) of the Head Start Act) or similar coordinating body pursuant to 98.14(a)(1)(vii).
- (3) Tribe(s) or Tribal organization(s) within the State. This consultation should be done in a timely manner and at the option of the Tribe(s) or Tribal organization(s).

1.3.1 Consultation efforts in CCDF Plan development

Describe the Lead Agency's consultation efforts in the development of the CCDF Plan, including how and how often the consultation occurred.

- a. Describe how the Lead Agency consulted with appropriate representatives of general-purpose local government: **The Lead Agency facilitated a virtual focus group to engage with state and local government and community partners in March 2024 to discuss the 2025-27 CCDF State Plan Preprint. The Lead Agency communicated the date, time, and registration link by email to stakeholders, including the Tennessee Association of County Mayors, Tennessee Commission on Children and Youth, Tennessee Development Districts, Tennessee Head Start Collaboration, TANF, Child and Adult Care Food Program, Tennessee Department of Health, Tennessee Department of Education, Tennessee Department of Health, Tennessee Emergency Management Agency, Tennessee Department of Mental Health and Substance Abuse Services, Tennessee State University, University of Tennessee, and Lead Agency Child Care Payment Assistance/Certificate Program and Child and Adult Care Licensing staff. This consultation process resulted in the Lead Agency receiving 33 responses, 32 from licensed child care providers and one from Child Care Resource and Referral, which were considered during development of the draft proposed plan.**
- a. Describe how the Lead Agency consulted with the State Advisory Council or similar coordinating body: **The Lead Agency facilitated a virtual focus group to engage with state and local government and community partners in March 2024 to discuss the 2025-27 CCDF State Plan Preprint. The Lead Agency communicated the date, time, and registration link by email to the Tennessee Young Child Wellness Council (TNYCWC), the designated state advisory council on early childhood care and education for Tennessee that formed in 2013 following the merger of the governor's Early Childhood Advisory Council and the Early Childhood Comprehensive Systems State Action Team. The CCDF Co-Administrator is the Lead Agency representative to and actively participates with the TYCWC. This consultation process resulted in the Lead Agency receiving 33 responses, 32 from licensed child care providers and one from Child Care Resource and Referral, which were considered during development of the draft proposed plan.**
- b. Describe, if applicable, how the Lead Agency consulted with Indian Tribes(s) or Tribal organizations(s) within the State: **N/A.**
- c. Identify other entities, agencies, or organizations consulted on the development of the CCDF Plan (e.g., representatives from the child care workforce, or statewide afterschool networks) and describe those consultation efforts: **The Lead Agency facilitated three (3) virtual focus groups to engage with licensed providers of early care and education in March 2024 to discuss the 2025-27 CCDF State Plan Preprint. The Lead Agency communicated the date, time, and registration link by email to all licensed center and home child care providers. The Lead Agency also facilitated a virtual focus group for state and local government and community partners in March 2024 to discuss the CCDF Plan Preprint. The Lead Agency communicated the date, time, and registration link by email to stakeholders, including the Association of Infant Mental Health in Tennessee (AIMHITN), Childcare Tennessee and the Community Foundation of Middle Tennessee, Tennessee Early Childhood Training Alliance (TECTA), Tennessee Child Care Resource and Referral Network (CCR&R), Prenatal-to-3 Policy Impact Center at Vanderbilt University, Tennessee Association for Children's Early Education (TACEE), Tennesseans for Quality Early Education (TQEE), Tennessee Chambers of Commerce, Tennessee Afterschool Network,**

and Lead Agency Licensing Standards Committee. This consultation process resulted in the Lead Agency receiving 33 responses, 32 from licensed child care providers and one from Child Care Resource and Referral, which were considered during development of the draft proposed plan.

1.3.2 Public hearing process

Lead Agencies must hold at least one public hearing in the State or Territory, with sufficient Statewide or Territory-wide distribution of notice prior to such a hearing to enable the public to comment on the provision of child care services under the CCDF Plan.

Describe the Statewide or Territory-wide public hearing process held to provide the public with an opportunity to comment on the provision of child care services under this Plan.

- i. Date of the public hearing: **5/21/2024**
Reminder: Must be no earlier than January 1, 2024. If more than one public hearing was held, enter one date (e.g., the date of the first hearing, the most recent hearing date, or any hearing date that demonstrates this requirement).
- ii. Date of notice of public hearing: **5/1/2024**
- iii. Was the notice of public hearing posted publicly at least 20 calendar days prior to the date of the public hearing?
[x] Yes.
[] No. If no, describe:
- iv. Describe how the public was notified about the public hearing, including outreach in other languages, information on interpretation services being available, etc. Include specific website links if used to provide notice **The public hearing notice and a draft of the Plan were posted on the Lead Agency website in advance of the public hearings. The public hearing notice included a link to the draft Plan. Information about the posting was sent directly to child care providers and partners by email on May 1, 2024. Information about the public hearing notice was also distributed by the Lead Agency on social media. Additionally, information about development of the Plan was included during focus groups conducted with providers and partners.**
- v. Describe how the approach to the public hearing was inclusive of all geographic regions of the State or Territory: **Two public hearings were conducted virtually on May 21, 2024, one in the afternoon and one in the evening.**
- vi. Describe how the content of the Plan was made available to the public in advance of the public hearing (e.g., the Plan was made available in other languages, in multiple formats, etc.): **The public hearing notice and a draft of the Plan were posted on the Lead Agency website in advance of the public hearings. The public hearing notice included a link to the draft Plan. Information about the posting was sent directly to child care providers and partner by email on May 1, 2024.**
- vii. Describe how the information provided by the public was taken into consideration regarding the provision of child care services under this Plan: **Information collected in response to focus group meetings and public hearings was reviewed**

and considered in developing the content of this Plan.

1.3.3 Public availability of final Plan, amendments, and waivers

Lead Agencies must make the submitted and approved final Plan, any approved Plan amendments, and any approved requests for temporary waivers publicly available on a website.

- a. Provide the website link to where the Plan, any Plan amendments, and waivers (if applicable) are available. Note: A Plan amendment is required if the website address where the Plan is posted changes. **As of October 01, 2024, the State Plan will be posted at <https://www.tn.gov/humanservices/information-and-resources/tdhs-reports-and-information.html>.**
- b. Describe any other strategies that the Lead Agency uses to make submitted and approved CCDF Plan and approved Plan amendments available to the public. Check all that apply and describe the strategies below, including any relevant website links as examples.
 - i. ☐ Working with advisory committees. Describe:
 - ii. ☐ Working with child care resource and referral agencies. Describe:
 - iii. ☐ Providing translation in other languages. Describe:
 - iv. ☒ Sharing through social media (e.g., Facebook, Instagram, email). Describe: **The Lead Agency disseminated information about public hearings using social media.**
 - v. ☒ Providing notification to key constituents (e.g., parent and family groups, provider groups, advocacy groups, foundations, and businesses). Describe: **The Lead Agency posted a draft 2025-27 CCDF State Plan to its website and issued a public hearing notice on May 1, 2024, in advance of the public hearings. The Lead Agency disseminated the notification and a URL to the draft by email to licensed child care providers and community partners on May 1, 2024.**
 - vi. ☒ Working with Statewide afterschool networks or similar coordinating entities for out-of-school time. Describe: **The Lead Agency posted a draft 2025-27 CCDF State Plan to its website and issued a public hearing notice on May 1, 2024, in advance of the public hearings. The Lead Agency disseminated the notification and a URL to the draft by email to licensed child care providers and community partners on May 1, 2024.**
 - vii. ☒ Direct communication with the child care workforce. Describe: **The Lead Agency posted a draft 2025-27 CCDF State Plan to its website and issued a public hearing notice on May 1, 2024, in advance of the public hearings. The Lead Agency disseminated the notification and a URL to the draft by email to licensed child care providers and community partners on May 1, 2024.**
 - viii. ☐ Other. Describe:

2 Child and Family Eligibility and Enrollment and Continuity of Care

Stable and reliable child care arrangements facilitate job stability for parents and healthy development of children. CCDF eligibility and enrollment policies can contribute to these goals. Policies and procedures that create barriers to families accessing CCDF, like inaccessible subsidy

applications and onerous reporting requirements, interrupt a parent's ability to work and may deter eligible families from participating in CCDF.

To address these concerns, Lead Agencies must provide children with a minimum of 12 months between eligibility determinations, limit reporting requirements during the 12-month period, and ensure eligibility determination and redetermination processes do not interrupt a parent's work or school.

In this section, Lead Agencies will identify how they define eligible children and families and how the Lead Agency's eligibility and enrollment policies support access for eligible children and families.

2.1 Reducing Barriers to Family Enrollment and Redetermination

Lead Agency enrollment and redetermination policies may not unduly disrupt parents' employment, education, or job training activities to comply with the Lead Agency's or designated local entity's requirements. Lead Agencies have broad flexibility to design and implement the eligibility practices that reduce barriers to enrollment and redetermination.

Examples include developing strategies to inform families and their providers of an upcoming redetermination and the information that will be required of the family, pre-populating subsidy renewal forms, having parents confirm that the information is accurate, and/or asking only for the information necessary to make an eligibility redetermination. In addition, Lead Agencies can offer a variety of family-friendly methods for submitting documentation for eligibility redetermination that considers the range of needs for families in accessing support (e.g., use of languages other than English, access to transportation, accommodation of parents working non-traditional hours).

2.1.1 Eligibility practices to reduce barriers to enrollment

- a. Does the Lead Agency implement any of the following eligibility practices to reduce barriers at the time of initial eligibility determination? Check all that apply and describe those elements checked.
 - i. ☐ Establishing presumptive eligibility while eligibility is being determined. Describe the policy, including the populations benefiting from the policy, and identify how long the period of presumptive eligibility is:
 - ii. ☒ Leveraging eligibility from other public assistance programs. Describe: **The Tennessee Department of Human Services (TDHS), CCDF Lead Agency, utilizes its One DHS Customer Portal to share information about the availability of other programs and services for which families may be eligible. The One DHS Customer Portal is a self-service website that helps customer to connect to an array of support services aimed at building and empowering strong Tennessee Families in one convenient online location.**

Through the Lead Agency's One DHS Customer Portal, families may apply for, access, and maintain services administered by the Lead Agency for: Child Care Payment Assistance/Certificate Program, Child Support, Families First (TANF), Supplemental Nutrition Assistance Program (SNAP), and Disaster/Relief Assistance (D-SNAP, Emergency Cash Assistance, Pandemic-EBT, etc.). One DHS Portal empowers customers to: Apply for benefits; upload, submit, and view documents

related to services; upload household and contact information, check case status; review case notifications; file appeals; learn about programs and services; and find answers to frequently asked questions. The One DHS Customer Portal may be found at <https://www.tn.gov/humanservices/apply-online-page/one-dhs-customer-portal.html>.

- iii. ☒ Coordinating determinations for children in the same household (while still ensuring each child receives 12 months of eligibility). Describe: **If a child is added during a 12-month eligibility period, the Lead Agency reevaluates the case and all existing children would be extended to align with the newly added child's 12-month eligibility timeframe. The Lead Agency would evaluate changes to eligibility should a family report income exceeding the 85th percentile of SMI.**
 - iv. ☒ Self-assessment screening tools for families. Describe: **The Lead Agency application includes a self-assessment screening tool including an attestation for families experiencing homelessness.**
 - v. ☒ Extended office hours (evenings and/or weekends).
 - vi. ☒ Consultation available via phone.
 - vii. ☐ Other. Describe the Lead Agency policies to process applications efficiently and make timely eligibility determinations:
 - viii. ☐ None.
- b. Does the Lead Agency use an online subsidy application?
- ☒ Yes.
- ☐ No. If no, describe why an online application is impracticable.
- c. Does the Lead Agency use different policies for families receiving TANF assistance?
- ☒ Yes. If yes, describe the policies: **Child care payment assistance eligibility for families participating in Families First, the State's TANF program, is determined based on TANF eligibility requirements. The Lead Agency engages with the State's TANF program during policy development identifying opportunities to mitigate barriers for families to access child care payment assistance.**
- ☐ No.

2.1.2 Preventing disruption of eligibility activities

- a. Identify, where applicable, the Lead Agency's procedures and policies to ensure that parents do not have their employment, education, or job training unduly disrupted to comply with the State's/Territory's or designated local entity's requirements for the redetermination of eligibility. Check all that apply.
- i. ☒ Advance notice to parents of pending redetermination.
 - ii. ☒ Advance notice to providers of pending redetermination.
 - iii. ☒ Pre-populated subsidy renewal form.
 - iv. ☒ Online documentation submission.
 - v. ☐ Cross-program redeterminations.

- vi. ☒ Extended office hours (evenings and/or weekends).
 - vii. ☒ Consultation available via phone.
 - viii. ☐ Leveraging eligibility from other public assistance programs.
 - ix. ☒ Other. Describe: **The Lead Agency allows parents to submit applications and verification via mail, fax, in person, or online; however, a face-to-face meeting is not required.**
- b. Does the Lead Agency use different policies for families receiving TANF assistance?
- ☐ Yes. If yes, describe the policies:
- ☒ No.

2.2 Eligible Children and Families

At eligibility determination or redetermination, children must (1) be younger than age 13; (2) reside with a family whose income does not exceed 85 percent of the State's median income (SMI) for a family of the same size and whose family assets do not exceed \$1,000,000; and (3)(a) reside with a parent or parents who are working or attending a job training or educational program (which can include job search) or (b) receive, or need to receive, protective services as defined by the Lead Agency.

2.2.1 Eligibility criteria: age of children served

Lead Agencies may provide child care assistance for children less than 13 years of age, including continuing to provide assistance to children if they turn 13 during the eligibility period. In addition, Lead Agencies can choose to serve children up to age 19 if those children are unable to care for themselves.

- a. Does your Lead Agency serve the full federally allowable age range of children through age 12?
- ☒ Yes.
- ☐ No. If no, describe the age range of children served and the reason why you made that decision to serve less than the full range of allowable children.
- Note:* Do not include children incapable of self-care or under court supervision, who are reported below in 2.2.1b and 2.2.1c.
- b. Does the Lead Agency extend eligibility for CCDF-funded child care to children ages 13 and older but below age 19 who are physically and/or mentally incapable of self-care?
- ☐ No.
- ☒ Yes.
- i. If yes, the upper age is (may not equal or exceed age 19): **18.00**
 - ii. If yes, provide the Lead Agency definition of physical and/or mental incapacity: **Physical or mental fitness means that an individual is fit for employment and does not suffer from any disability which would prevent his/her being gainfully employed. (A) A child with a disability, as defined in Section 602 of the Individuals with Disabilities Education Act (20 U.S.C. 1401); (B) A child who is eligible for early**

intervention services under Part C of the Individuals with Disabilities Education Act (20 U.S.C. 1431 et seq.); (C) A child who is less than 13 years of age and who is eligible for services under Section 504 of the Rehabilitation Act of 1973 (29 U.S.C. 794); and (D) A child with a disability, as defined by the State.

- c. Does the Lead Agency extend eligibility for CCDF-funded child care to children ages 13 and older but below age 19 who are under court supervision?
- ☐ No.
- ☒ Yes. If yes, and the upper age is (may not equal or exceed age 19): **18.00**
- d. How does the Lead Agency define the following eligibility terms?
- i. **“residing with”: The Lead Agency uses the TANF definition to be eligible to receive child care benefits. A child must live in a place of residence maintained by a specified relative (within the fifth (5th) degree) as his or her home and the home of the child. This same individual must have care and control of the child. A relative is considered to have care and control of a child when he/she has the major responsibility for such parental obligations as day-to-day care, support, supervision, and guidance for the child. The Lead Agency also utilizes the non-TANF definition, which provides as follows: In order for a child to be eligible to receive child care benefits they must be residing with a parent/guardian that meets the following criteria: a biological or adoptive parent, relative, or individual with legal custody to the child who: provides a home for the child; exercises primary responsibility for care/control; is responsible for providing financial support; and is included in the household unit.**
- ii. **“in loco parentis”: The Lead Agency uses the TANF definition of in loco parentis: A caretaker within the fifth (5th) degree of relationship to be eligible for assistance.**

2.2.2 Eligibility criteria: reason for care

Lead Agencies have broad flexibility on the work, training, and educational activities required to qualify for child care assistance. Lead Agencies do not have to set a minimum number of hours for families to qualify for work, training, or educational activities, and there is no requirement to limit authorized child care services strictly based on the work, training, or educational schedule/hours of the parent(s). For example, the Lead Agency can include travel or study time in calculating the amount of needed services.

How does the Lead Agency define the following terms for the purposes of determining CCDF eligibility?

- a. Identify which of the following activities are included in your definition of “working” by checking the boxes below:
- i. ☒ An activity for which a wage or salary is paid.
- ii. ☒ Being self-employed.
- iii. ☐ During a time of emergency or disaster, partnering in essential services.
- iv. ☒ Participating in unpaid activities like student teaching, internships, or practicums.

- v. ☒ Time for meals or breaks.
 - vi. ☒ Time for travel.
 - vii. ☒ Seeking employment or job search.
 - viii. ☒ Other. Describe: **See response at 2.2.2.d.**
- b. Identify which of the following activities are included in your definition of “attending job training” by checking the boxes below:
- i. ☒ Vocational/technical job skills training.
 - ii. ☒ Apprenticeship or internship program or other on-the-job training.
 - iii. ☒ English as a Second Language training.
 - iv. ☒ Adult Basic Education preparation.
 - v. ☒ Participation in employment service activities.
 - vi. ☒ Time for meals and breaks.
 - vii. ☒ Time for travel.
 - viii. ☒ Hours required for associated activities such as study groups, lab experiences.
 - ix. ☒ Time for outside class study or completion of homework.
 - x. ☒ Other. Describe: **See response at 2.2.2.d.**
- c. Identify which of the following diplomas, certificates, degrees, or activities are included in your definition of “attending an educational program” by checking the boxes below:
- i. ☒ Adult High School Diploma or GED.
 - ii. ☒ Certificate programs (12-18 credit hours).
 - iii. ☒ One-year diploma (36 credit hours).
 - iv. ☒ Two-year degree.
 - v. ☒ Four-year degree.
 - vi. ☐ Travel to and from classrooms, labs, or study groups.
 - vii. ☒ Study time.
 - viii. ☒ Hours required for associated activities such as study groups, lab experiences.
 - ix. ☒ Time for outside class study or completion of homework.
 - x. ☐ Applicable meal and break times.
 - xi. ☒ Other. Describe: **See response at 2.2.2.d.**
- d. Does the Lead Agency impose a Lead Agency-defined minimum number of hours of activity for eligibility?
- ☐ No.
 - ☒ Yes.

If yes, describe any Lead Agency-imposed minimum requirement for the following:

[x] Work. Describe: The Lead Agency CCDF Program definition of "working" aligns with Families First, the State's TANF Program. For individuals receiving TANF cash assistance, any TANF-countable activity per the State's Work Verification Plan qualifies as "work" for the purposes of receiving child care payment assistance. The requirement consists of 30 hours per week, including a minimum of 20 hours in Core Activities and 10 hours per week in Core or Non-Core Activities.

For individuals receiving non-TANF child care payment assistance, the parent/guardian must meet at least one (1) of the following work and/or education activities:

Be employed no less than an average of 30 hours per week, enrolled in a post-secondary education activity combined with employment, or enrolled in a full-time post-secondary education program.

- Parent/Guardian enrolled in post-secondary education programs must maintain a full-time student status based on the definition of full-time status by the educational institution.
- Parent/Guardian enrolled in graduate programs may count up to six (6) hours per week toward the work requirement, with verification from the institution. An additional hour for each course up to two (2) hours maximum can be counted as study time for a combined maximum of eight (8) hours per week.
- For one-parent and two-parent households claiming a combination of education and employment may count one (1) study hour for every one (1) credit hour of part-time education. The combination of educational activity hours and employment hours must meet an average of 30 hours per week. Study hours are not counted if the parent is enrolled in full-time education.

In a two-parent household, both parents must meet one (1) of the following criteria:

- Both parents employed at least 30 average hours per week.
- Both parents must be enrolled in full-time education programming.
- One (1) parent employed at least an average of 30 hours per week with the second parent attending a post-secondary education program full-time.
- Both parents must participate in one of the other activities full-time or a combination of both activities equal to an average of 30 hours per week.

Part-Year employees who are paid on a 12-month basis but only actually work for 10 months of a year are not required to have a full-time activity during their "off" months to continue receiving child care payment assistance during those off months. The Lead Agency's policy also applies to those who work 10 months and are paid on a 10-month basis, e.g., school systems, Head Start programs, etc.

In a two-parent household when one (1) parent/guardian is disabled and unable to meet the needs of a child, one (1) parent/guardian is required to be employed at least 30 average hour per week.

Teen parents between the ages of 13 and 19 years of age must be enrolled in or attending middle, high school, or an equivalent thereof, including virtual school or accredited and/or district-approved internet courses.

☒ Job training. Describe: **See response at 2.2.2.d.**

☒ Education. Describe: **See response at 2.2.2.d.**

☒ Combination of allowable activities. Describe: **See response at 2.2.2.d.**

☐ Other. Describe:

- e. Does the Lead Agency allow parents to qualify for CCDF assistance based on education and training without additional work requirements?

☒ Yes.

☐ No. If no, describe the additional work requirements:

- f. Does the Lead Agency extend eligibility to specific populations of children otherwise not eligible by including them in its definition of “children who receive or need to receive protective services?”

Note: A Lead Agency may elect to provide CCDF-funded child care to children in foster care when foster care parents are *not* working or are *not* in education/training activities, but this provision should be included in the Lead Agency’s protective services definition.

☐ No. If no, skip to question 2.2.3.

☒ Yes. If yes, answer the questions below:

Provide the Lead Agency’s definition of “protective services” by checking below the sub-populations of children that are included:

☒ Children in foster care.

☐ Children in kinship care.

☐ Children who are in families under court supervision.

☐ Children who are in families receiving supports or otherwise engaged with a child welfare agency.

☒ Children participating in a Lead Agency’s Early Head Start - Child Care Partnerships program.

☐ Children whose family members are deemed essential workers under a governor-declared state of emergency.

☐ Children experiencing homelessness.

☐ Children whose family has been affected by a natural disaster.

☒ Other. Describe: **The Tennessee Department of Children’s Services (TDCS), the state child welfare agency, determines eligibility for children in protective custody and the Lead Agency functions as the point of entry for children in protective services to receive child care services. The Lead Agency funds child care payment assistance for children in state custody. The Lead Agency funds direct child care**

services for families through its Re-Employment Services and Eligibility Assessment (RESEA) protective services category of care for families referred by the Tennessee Department of Labor and Workforce Development (TDLWD) that are unemployed and actively engaged in job search activities. The Lead Agency funds direct child care services as a protective services category for families participating in licensed mental health/substance abuse and related programs with the Tennessee Department of Mental Health and Substance Abuse Services (TDMHSAS).

- g. Does the Lead Agency waive the income eligibility requirements for cases in which children receive, or need to receive, protective services on a case-by-case basis?
- ☐ No.
- ☒ Yes.
- h. Does the Lead Agency waive the eligible activity (e.g., work, job training, education, etc.) requirements for cases in which children receive, or need to receive, protective services on a case-by-case basis?
- ☐ No.
- ☒ Yes.
- i. Does the Lead Agency use CCDF funds to provide respite care to custodial parents of children in protective services?
- ☒ No.
- ☐ Yes.

2.2.3 Eligibility criteria: deciding entity on family income limits

How are income eligibility limits established?

- ☒ There is a statewide limit with no local variation.
- ☐ There is a statewide limit with local variation. Provide the number of income eligibility tables and describe who sets the limits:
- ☐ Eligibility limits are established locally only. Provide the number of income eligibility tables and describe who sets the limits:
- ☐ Other. Describe:

2.2.4 Initial eligibility: income limits

- a. Complete the appropriate table to describe family income limits.
- i. Complete the table below to provide the statewide maximum income eligibility percent and dollar limit or threshold:

Family Size	100% of SMI (\$/Month)	Maximum Initial Eligibility Limit (or Threshold) %	Maximum Initial Eligibility Limit (or Threshold) \$
1			

Family Size	100% of SMI (\$/Month)	Maximum Initial Eligibility Limit (or Threshold) %	Maximum Initial Eligibility Limit (or Threshold) \$
2	5575.00	85.00	4738.00
3	6886.00	85.00	5853.00
4	8198.00	85.00	6968.00
5	9510.00	85.00	8083.00

- ii. Does the Lead Agency certify that they use other funds if the income eligibility limit percent exceeds 85% SMI?

☒ Not applicable. The Lead Agency does not allow income eligibility limits above 85% SMI.

☐ Yes, the Lead Agency certifies that they use other funds (non-CCDF funds) for families with income that exceeds 85% SMI.

☐ No. The Lead Agency establishes income eligibility limits above SMI and includes CCDF funds to pay for families with income that exceeds 85% SMI. If checked, describe:

- b. Complete the table below if the Lead Agency has local variation in the maximum income eligibility limit. Complete the table for the region/locality with the highest eligibility limit, region/locality with the lowest eligibility limit, and the region/locality that is most populous:

- i. Region/locality with the highest eligibility limit:

Family Size	100% of SMI (\$/Month)	Maximum Initial Eligibility Limit (or Threshold) %	Maximum Initial Eligibility Limit (or Threshold) \$
1			
2			
3			
4			
5			

- ii. Region/locality with the lowest eligibility limit:

Family Size	100% of SMI (\$/Month)	Maximum Initial Eligibility Limit (or Threshold) %	Maximum Initial Eligibility Limit (or Threshold) \$
1			

Family Size	100% of SMI (\$/Month)	Maximum Initial Eligibility Limit (or Threshold) %	Maximum Initial Eligibility Limit (or Threshold) \$
2			
3			
4			
5			

iii. Region/locality that is most populous:

Family Size	100% of SMI (\$/Month)	Maximum Initial Eligibility Limit (or Threshold) %	Maximum Initial Eligibility Limit (or Threshold) \$
1			
2			
3			
4			
5			

iv. Does the Lead Agency certify that they use other funds if the income eligibility limit percent exceeds 85% SMI?

☐ Not applicable. The Lead Agency does not allow income eligibility limits above 85% SMI.

☐ Yes, the Lead Agency certifies that they use other funds (not CCDF funds) for families with income that exceeds 85% SMI.

☐ No. The Lead Agency establishes income eligibility limits above 85% SMI and includes CCDF funds to pay for families with income that exceeds 85% SMI. If checked, describe:

c. How does the Lead Agency define “income” for the purposes of eligibility at the point of initial determination? Check all that apply:

- i. ☒ Gross wages or salary.
- ii. ☐ Disability or unemployment compensation.
- iii. ☐ Workers’ compensation.
- iv. ☐ Spousal support, child support.
- v. ☐ Survivor and retirement benefits.
- vi. ☐ Rent for room within the family’s residence.
- vii. ☐ Pensions or annuities.

- viii. ☐ Inheritance.
 - ix. ☐ Public assistance.
 - x. ☐ Other. Describe:
- d. What is the effective date for these income eligibility limits? **October 01, 2024**
- e. Income limits must be established and reported in terms of current SMI based on the most recent data published by the Bureau of the Census, even if the federal poverty level is used in implementing the program.
- What federal data does the Lead Agency use when reporting the income eligibility limits?
☒ LIHEAP. If checked, provide the publication year of the LIHEAP guideline estimates used by the Lead Agency: **2024**
- ☐ Other. Describe:
- f. Provide the direct URL/website link, if available, for the income eligibility limits.
<https://www.tn.gov/humanservices/for-families/child-care-services/child-care-payment-assistance.html>

2.2.5 Income eligibility: irregular fluctuations in earnings

Lead Agencies must take into account irregular fluctuations in earnings in initial eligibility determination and redetermination processes. The Lead Agency must ensure that temporary increases in income, including temporary increases that can result in a monthly income exceeding 85 percent of SMI from seasonal employment or other temporary work schedules, do not affect eligibility or family co-payments.

Check the processes that the Lead Agency uses to take into account irregular fluctuations in earnings.

- i. ☒ Average the family's earnings over a period of time (e.g., 12 months).
Identify the period of time **Eight (8) weeks.**
- ii. ☒ Request earning statements that are most representative of the family's monthly income.
- iii. ☒ Deduct temporary or irregular increases in wages from the family's standard income level.
- iv. ☒ Other. Describe the other ways the Lead Agency takes into account irregular fluctuations in earnings: **Regular overtime or seasonal income: Regular income may fluctuate from month to month due to overtime occurring on a regular basis. To produce a representative income, the Lead Agency averages income statements for the previous two-month period (8 weeks) consistent with the TANF Program.**

Farm and non-farm self-employment income: Income from farm and non-farm self-employment are typically received on an annual basis to calculate an average monthly income.

Part-Year employment Income: Some individuals have regular employment during

certain months of the year, e.g., employees of school systems, Head Start, etc.. These part-year employees paid on a 12-month basis but only actually work for 10 months of the year. Income from part-year employment is used to calculate an average monthly income.

Predicting income not yet received: It may be necessary for the Lead Agency to estimate income when employment has just begun and eight (8) weeks of pay stubs are not available to determine eligibility. The Lead agency will accept an employer's typed statement on company letterhead with the employer's or human resources representative's signature(s) describing the client's position, wages, and hours.

2.2.6 Family asset limit

- a. When calculating income eligibility, does the Lead Agency ensure each eligible family does not have assets that exceed \$1,000,000?

☒ Yes.

☐ No. If no, describe:

- b. Does the Lead Agency waive the asset limit on a case-by-case basis for families defined as receiving, or in need of, protective services?

☐ No.

☒ Yes. If yes, describe the policy or procedure: **Children and families eligible for categories of care identified as protective services are not evaluated for income or assets.**

2.2.7 Additional eligibility criteria

Aside from the eligibility conditions or rules which have been described in 2.2.1 – 2.2.6, is any additional eligibility criteria applied during:

- a. ☐ Eligibility determination? If checked, describe:

- b. ☐ Eligibility redetermination? If checked, describe:

2.2.8 Documentation of eligibility determination

Lead Agencies must document and verify that children receiving CCDF funds meet eligibility criteria at the time of eligibility determination and redetermination.

Check the information that the Lead Agency documents and verifies at initial determination and redetermination and describe what information is required and how often.

Required at Initial Determination	Required at Redetermination	Description
[x]	[]	Applicant identity. Describe how you verify: Acceptable forms of identification to verify identity, citizenship, and relationships include: birth certificate, Certificate of U.S. Citizenship, Certification of Birth Abroad to a U.S. Citizen, family Bible record, hospital birth record, U.S. Citizen identification (ID) card, court order, declaration of emancipation, DD-214 document or military ID, Driver's License, establishment of refugee/asylum seeker, I-94 Card, Marriage Certificate, military letter or record, Passport, Permanent Resident ID Card, State-issued ID, U.S. Passport, voluntary acknowledgement of paternity, Tennessee Voter Registration Card, or Tennessee Vital Records Information System Management (VRISM). Verification documentation is not required at redetermination for existing children and families receiving care.
[x]	[]	Applicant's relationship to the child. Describe how you verify: For TANF the applicant's relationship to the child is verified at initial determination. Acceptable forms of identification to verify identity, citizenship, and relationships include: birth certificate, Certificate of U.S. Citizenship, Certification of Birth Abroad to a U.S. Citizen, family Bible record, hospital birth record, U.S. Citizen identification (ID) card, court order, declaration of emancipation, DD-214 document or military ID, Driver's License, establishment of refugee/asylum seeker, I-94 Card, Marriage Certificate, military letter or record, Passport, Permanent Resident ID Card, State-issued ID, U.S. Passport, voluntary acknowledgement of paternity, Tennessee Voter Registration Card, or Tennessee Vital Records Information System Management (VRISM). Verification documentation is not required at redetermination for existing children and families receiving care.

Required at Initial Determination	Required at Redetermination	Description
[x]	[]	Child's information for determining eligibility (e.g., identity, age, citizen/immigration status). Describe how you verify: Acceptable forms of identification to verify identity, citizenship, and relationships include: birth certificate, Certificate of U.S. Citizenship, Certification of Birth Abroad to a U.S. Citizen, family Bible record, hospital birth record, U.S. Citizen identification (ID) card, court order, declaration of emancipation, DD-214 document or military ID, Driver's License, establishment of refugee/asylum seeker, I-94 Card, Marriage Certificate, military letter or record, Passport, Permanent Resident ID Card, State-issued ID, U.S. Passport, voluntary acknowledgement of paternity, Tennessee Voter Registration Card, or Tennessee Vital Records Information System Management (VRISM). Verification documentation is not required at redetermination for existing children and families receiving care.
[x]	[x]	Work. Describe how you verify: Income verification based upon check stubs or employer statement or tax documents.
[x]	[x]	Job training or educational program. Describe how you verify: The Lead Agency requires that job training or educational status be verified by a written statement from an educational or vocational institution or with a current class schedule per semester/quarter through which registration and attendance must be verified.
[x]	[x]	Family income. Describe how you verify: For eligibility under the routine child care payment assistance program, income is verified by the Lead Agency every 12 months with current information in the Family Assistance database or through client-provided verification, or through collateral contacts.
[x]	[]	Household composition. Describe how you verify: The following documents may be used by the Lead Agency to verify relationships, whether legal or alleged and for ages of persons: Adoption/legitimation orders, court orders, notarized statements, school records, Social Security Administration award letters, physician statements, family Bible records, birth certificates (original or copies), hospital birth records, juvenile or other court orders, social service agency records, military records, marriage certificate, or TANF eligibility documents. Verification documentation is not required at redetermination for existing children and families receiving care.

Required at Initial Determination	Required at Redetermination	Description
☒	☒	Applicant residence. Describe how you verify: The Lead Agency verifies residence using rent/lease agreements, mortgage receipts, utility bills, or identification.
☐	☐	Other. Describe how you verify: N/A.

2.2.9 Exception to TANF work requirements

Lead Agencies must ensure that families with young children participating in TANF will be informed of their right not to be sanctioned under the TANF work requirement if the custodial parent has a demonstrated inability to obtain child care for a child under age six, in accordance with Section 407(e)(2) of the Social Security Act.

- a. Identify the TANF agency that established these criteria or definitions: **The TANF agency is under the direction of the Lead Agency, the Tennessee Department of Human Services.**
- b. Provide the following definitions established by the TANF agency:
 - i. “Appropriate child care”: **State licensed child care or approved unregulated (unlicensed) child care that meets the need of the child.**
 - ii. “Reasonable distance”: **The distance range as determined on a case-by-case basis that is deemed to not cause any additional barrier/burden to the customer.**
 - iii. “Unsuitability of informal child care”: **Informal child care or "unregulated" child care providers must comply with a health and safety check list and must provide information regarding their criminal background. Certain crimes such as those involving children, violence against another person, or those that are drug related will disqualify a prospective provider. Registers that can be accessed without a fee are checked, such as the Sex Offender Registry.**
 - iv. “Affordable child care arrangements”: **Affordable arrangements are determined by the parent's ability to pay for child care available in their area. Parents/caretakers who are unable to locate and/or pay for care will not be penalized for their inability to perform required work activities due to lack of child care.**
- c. How are parents who receive TANF benefits informed about the exception to the individual penalties associated with the TANF work requirements?
 - i. ☒ In writing
 - ii. ☒ Verbally
 - iii. ☐ Other. Describe:

2.3 Prioritizing Services for Vulnerable Children and Families

Lead Agencies must give priority for child care assistance to children with special needs, families with very low incomes (considering family size), and children experiencing homelessness. A Lead Agency has the flexibility to prioritize other populations of children.

Note: Statute defines children with disabilities, and CCDF rule gives flexibility to Lead Agencies to include vulnerable populations in their definition of children with special needs.

CCDF defines “child experiencing homelessness” as a child who is homeless, as defined in Section 725 of Subtitle VII-B of the McKinney-Vento Act (42 U.S.C. 11434a).

2.3.1 Lead Agency definition of priority groups

Describe how the Lead Agency defines:

- d. **“Children with special needs.” Children with Special needs are defined as: A child with a disability, as defined in section 602 of the Individuals with Disabilities Education Act (20 U.S.C. 1401); A child who is eligible for early intervention services under part C of the Individuals with Disabilities Education Act (20 U.S.C. 1431 et seq.); Child who is less than 13 years of age and who is eligible for services under section 504 of the Rehabilitation Act of 1973 (29 U.S.C 794); and A child with a disability, as defined by the State.**
- e. **“Families with very low incomes.” Families with very low incomes are defined below and may qualify for subsidy assistance in the order presented: Guaranteed subsidy eligible if receiving TANF and Gross income is tested against a Gross Income Standard which is 185% of the Consolidated Need Standard for the appropriate Assistance Unit size, as listed on the Family Assistance Standards Desk Guide. Families transitioning from TANF benefits may be eligible for an eighteen (18) month Transitional Child Care eligibility period and who meet the work requirement and have income that does not exceed 60% of the State Median Income (SMI) guidelines. (Tenn. Code Ann. § 71-3-104). Child-only guardians who have care and control of a relative child receiving TANF benefits may qualify for child care payment assistance and who meet the work requirement as defined by the state and income that does not exceed 60% of the SMI guidelines. (Tenn. Comp. R. & Regs. 1240-01-54-.01). Teen parents who are enrolled in and attending middle or high school and have income for mandatory household members that does not exceed 85% of the SMI guidelines. (Tenn. Comp. R. & Regs. 1240-01-54-.01). Smart Steps Child Care Payment Assistance provides child care support to working families and those pursuing post-secondary education goals and income does not exceed 85% of the SMI guidelines. The Lead Agency waives co-pays for families that fall below 150% of the Federal Poverty Level (FPL).**

2.3.2 Prioritization of child care services

Identify how the Lead Agency will prioritize child care services for the following children and families.

- a. Complete the table below to indicate how the identified populations are prioritized.

Population Prioritized	Prioritize for enrollment in child care services	Serve without placing on waiting list	Waive co-payments as described in 3.3.1	Pay higher rate for access to higher quality care	Use grants or contracts to reserve spots	Other
Children with special needs	☒	☐	☐	☒	☐	☐ Describe:

Population Prioritized	Prioritize for enrollment in child care services	Serve without placing on waiting list	Waive co-payments as described in 3.3.1	Pay higher rate for access to higher quality care	Use grants or contracts to reserve spots	Other
Families with very low incomes	☒	☐	☒	☒	☐	☐ Describe:
Children experiencing homelessness, as defined by CCDF	☒	☐	☐	☒	☐	☐ Describe:
(Optional) Families receiving TANF, those attempting to transition off TANF, and those at risk of becoming dependent on TANF	☒	☐	☒	☒	☐	☐ Describe:

a. Does the Lead Agency define any other priority groups?

☐ No.

☒ Yes. If yes, identify the populations prioritized and describe how the Lead Agency prioritizes services: **The following groups are given consideration by the Lead Agency in priority order: Children in Foster Care, Homeless Children, Children with Diagnosed Disability, and Military Status of the Adult Parent, currently active due, i.e., serving full-time, in the U.S. Military or a member of either a National Guard or Military Reserve unit.**

2.3.3 Enrollment and grace period for children experiencing homelessness

Lead Agencies must allow (after an initial eligibility determination) children experiencing homelessness to receive CCDF services while required eligibility documentation is obtained.

Lead Agencies must establish a grace period that allows children experiencing homelessness and children in foster care to receive CCDF assistance while providing their families with a reasonable time to take any necessary actions to comply with State, Territory, or local immunization and other health and safety requirements. The length of such a grace period must be established in consultation with the State, Territorial, or Tribal public health agency.

Note: Any payment for such a child during the grace period may not be considered an error or improper payment.

- a. Describe the strategies to allow CCDF enrollment of children experiencing homelessness while required eligibility documentation is obtained: **Families who meet homelessness criteria may be given an additional 60 calendar days, if needed, to provide any missing verifications for eligibility to the Lead Agency.**

- b. Describe the grace period for each population below and how it allows them to receive CCDF assistance while providing their families with a reasonable time to take any necessary actions to comply with immunization and other health and safety requirements.
 - i. Provide the policy for a grace period for:
 - Children experiencing homelessness: **Families may receive care for up to 60 days without documentation of immunization requirements as defined at Tenn. Comp. R. & Regs. 1240-04-01.**
 - Children who are in foster care: **Families may receive care for up to 60 days without documentation of immunization requirements as defined at Tenn. Comp. R. & Regs. 1240-04-01.**
 - ii. Does the Lead Agency certify that the length of the grace period was established in consultation with the State, Territorial, or Tribal public health agency?
 - ☒ Yes.
 - ☐ No. If no, describe:
- c. Describe how the Lead Agency coordinates with licensing agencies and other relevant State, Territorial, Tribal, and local agencies to provide referrals and support to help families with children receiving services during a grace period comply with immunization and other health and safety requirements: **The Lead Agency is the licensing authority. Exceptions are defined in licensure rules at Tenn. Comp. R. & Regs. 1240-04-01. The Lead Agency contracts with TDH and six (6) regional public health departments with responsibility for immunizations to conduct immunization record audits for child care providers licensed or subject to licensure by the Lead Agency as defined at Tenn. Comp. R. & Regs. 1240-04-01 consistent with statutory and/or regulatory requirements and recommendations by the Centers for Disease Control and Prevention and applicable Tennessee laws.**

2.4 Lead Agency Outreach to Families Experiencing Homelessness, Families with Limited English Proficiency, and Persons with Disabilities

The Lead Agency must conduct outreach and provide services to families with limited English proficiency, families experiencing homelessness, and persons with disabilities.

2.4.1 Families with limited English proficiency and persons with disabilities: outreach and services

- a. Check the strategies the Lead Agency or partners utilize to conduct outreach and provide services to eligible families with limited English proficiency. Check all that apply.
 - i. ☒ Application in languages other than English (application and related documents, brochures, provider notices).
 - ii. ☒ Informational materials in languages other than English.
 - iii. ☒ Website in languages other than English.
 - iv. ☐ Lead Agency accepts applications at local community-based locations.
 - v. ☒ Bilingual caseworkers or translators available.

- vi. ☐ Bilingual outreach workers.
 - vii. ☒ Partnerships with community-based organizations.
 - viii. ☒ Collaboration with Head Start, Early Head Start, or Migrant and Seasonal Head Start.
 - ix. ☐ Home visiting programs.
 - x. ☒ Other. Describe: **The Lead Agency takes reasonable steps to ensure that persons with Limited English Proficiency (LEP) have meaningful access and an equal opportunity to participate in its services, activities, programs, and other benefits. The policy of Lead Agency is to ensure meaningful communication with persons that experience LEP and their authorized representatives. This policy also provides for communication of information contained in vital documents, including but not limited to, applications for benefits, client release forms, and civil rights complaint forms. The Lead Agency contracts with language services to provide interpretation, translation, and other services needed to comply with this policy without cost to the person being served. Language assistance is provided through use of competent bilingual staff, contracts or formal arrangements with organizations providing interpretation or translation services, or technology and telephonic interpretation services. All employees receive notice of this LEP policy and procedure, and staff who may have direct contact with LEP persons are provided effective communication techniques, including the effective use of an interpreter and how to engage such services.**
- b. Check the strategies the Lead Agency or partners utilize to conduct outreach and provide services to eligible families with a person(s) with a disability. Check all that apply.
- i. ☐ Applications and public informational materials available in braille and other communication formats for access by individuals with disabilities.
 - ii. ☒ Websites that are accessible (e.g., Section 508 of the Rehabilitation Act).
 - iii. ☐ Caseworkers with specialized training/experience in working with individuals with disabilities.
 - iv. ☒ Ensuring accessibility of environments and activities for all children.
 - v. ☒ Partnerships with State and local programs and associations focused on disability- related topics and issues.
 - vi. ☒ Partnerships with parent associations, support groups, and parent-to-parent support groups, including the Individuals with Disabilities Education Act (IDEA) federally funded Parent Training and Information Centers.
 - vii. ☒ Partnerships with State and local IDEA Part B, Section 619 and Part C providers and agencies.
 - viii. ☐ Availability and/or access to specialized services (e.g., mental health, behavioral specialists, therapists) to address the needs of all children.
 - ix. ☒ Other. Describe: **The Lead Agency makes reasonable modifications in policies, practices, or procedures when the modifications are necessary to avoid discrimination on the basis of disability, unless the modification would**

fundamentally alter the nature of the service, program, or activity. The Division of Rehabilitation Services is housed in the Lead Agency and coordinates to support the needs of families and children with disabilities. The Lead Agency, through the Division of Rehabilitation Services, takes appropriate steps to ensure that communication with applicants, participants, and members of the public with disabilities are as effective as communications with others. The Division of Rehabilitation Services furnishes appropriate auxiliary aids and services upon request and where necessary to afford an individual with a disability an equal opportunity to participate in, and receive, a service, program, or activity conducted by the Lead Agency.

2.4.2 Families experiencing homelessness: Outreach and technical assistance efforts

- a. Check, where applicable, the procedures used to conduct outreach for children experiencing homelessness and their families.
 - i. ☐ Lead Agency accepts applications at local community-based locations.
 - ii. ☒ Partnerships with community-based organizations.
 - iii. ☒ Partnering with homeless service providers, McKinney-Vento liaisons, and others who work with families experiencing homelessness to provide referrals to child care.
 - iv. ☐ Other. Describe:
- b. The Lead Agency must provide training and technical assistance (TA) to providers and appropriate Lead Agency (or designated entity) staff on identifying and serving children and families experiencing homelessness.
 - i. Describe the Lead Agency's training and TA efforts for providers in identifying and serving children and their families experiencing homelessness. **Tennessee Child Care Resource and Referral Network (CCR&R) provides statewide training and technical assistance to child care providers on identifying and serving children and families experiencing homelessness as defined at section 725 of Subtitle VII-B of the McKinney-Vento Act (42 U.S.C. 11434a). The Lead Agency and CCR&R Family Engagement Quality Coaches provide outreach services to families experiencing homelessness by implementing strategies to increase networks for families through supportive cross-sector collaborations.**
 - ii. Describe the Lead Agency's training and TA efforts for Lead Agency (or designated entity) staff in identifying and serving children and their families experiencing homelessness. **The Lead Agency and its People Operations Learning and Organizational Development team develop ongoing supplemental training for Lead Agency staff in CCDBG and other content areas, including a training entitled Serving Families Experiencing Homeless consistent with the definition of "homeless" at section 725 of Subtitle VII-B of the McKinney-Vento Act (42 U.S.C. 11434a).**

2.5 Promoting Continuity of Care

Lead Agencies must consider children’s development and promote continuity of care when authorizing child care services and must establish a minimum 12-month period for each child, both at the initial eligibility determination and redetermination.

2.5.1 Children’s development

Describe how the Lead Agency’s eligibility, enrollment, reporting, and redetermination policies promote continuity of care in order to support children’s development. **The Lead Agency is committed to promoting early childhood environments that are safe, healthy, and educationally rich. Child Care Payment Assistance/Certificate Program policies and procedures implemented by the Lead Agency are designed and continuously evaluated to streamline access to high-quality child care services by empowering families through parental choice and engagement and supporting consistent, stable, high-quality learning environments for children. For example, families are not required to report temporary changes during the 12-month eligibility period. By providing continuity of care for a child, we are enabling that child to remain in a stable environment, which will lead to positive child development outcomes and better prepare them for school and ongoing educational success.**

2.5.2 Minimum 12-month eligibility

Lead Agencies must establish a minimum 12-month eligibility period for each child, both at the initial eligibility determination and at redetermination to support continuity in child care assistance and reduce barriers to families retaining eligibility. This requirement is:

- Regardless of changes in income, Lead Agencies may not terminate CCDF assistance during the minimum 12-month period if a family has an increase in income that exceeds the Lead Agency’s income eligibility threshold but not the federal threshold of 85 percent of SMI; and
- Regardless of temporary changes in participation in work, training, or educational activities.
 - a. Does the Lead Agency certify that their policies or procedures provide a minimum 12-month eligibility period for each child at initial eligibility determination?
☒ Yes.
☐ No. If no, describe:
 - b. Does the Lead Agency certify that its definition of “temporary change” includes each of the minimum required elements?
 1. Any time-limited absence from work for an employed parent due to such reasons as the need to care for a family member or an illness.
 2. Any interruption in work for a seasonal worker who is not working between regular industry work seasons.
 3. Any student holiday or break for a parent participating in a training or educational program.
 4. Any reduction in work, training, or education hours, as long as the parent is still working or attending a training or educational program.
 5. Any cessation of work or attendance at a training or educational program not listed above. In these cases only, Lead Agencies may establish a period of 3 months or longer.

6. Any change in age, including a child turning 13 years old during the minimum 12-month eligibility period.

7. Any changes in residency within the State or Territory.

☒ Yes.

☐ No. If no, describe:

c. Are the policies different for redetermination?

☒ No.

☐ Yes. If yes, provide the additional/varying policies for redetermination:

2.5.3 Job search and continued assistance

a. Does the Lead Agency consider seeking employment (engaging in a job search) as an eligible activity at initial eligibility determination and/or at the minimum 12-month eligibility redetermination? (Note: If yes, Lead Agencies must provide a minimum of 3 months of job search.) Check all that apply:

i. ☒ Yes. The Lead Agency does consider seeking employment (engaging in a job search) as an eligible activity at initial eligibility determination. If yes, describe: **Engaging in job search is an eligible activity for Families First, Re-Employment Services and Eligibility Assessment (RESEA), and Supplemental Nutrition Assistance Program Employment and Training (SNAP E&T) categories of care. Otherwise, a 30-hour average work week requirement must be met at initial determination to issue a 12-month period of initial eligibility regardless of the length of job search activities.**

ii. ☒ Yes. The Lead Agency does consider seeking employment (engaging in a job search) as an eligible activity at redetermination. If yes, describe: **At redetermination, if the eligible activity hours requirement is not met due to a reduction in work hours or total job loss, 90-day compliance period will begin with the first day of the month following the redetermination month to allow time to regain employment. If activity hours increase to meet the eligible activity hours during that 90-day period, eligibility will continue for the 12-month certificate period.**

iii. ☐ No. The Lead Agency does not consider seeking employment (engaging in a job search) as an eligible activity at initial eligibility determination or redetermination.

b. Does the Lead Agency continue assistance during the minimum 12-month eligibility period when a parent has a non-temporary loss or cessation of eligible activity?

☒ Yes. The Lead Agency continues assistance.

☐ No, the Lead Agency discontinues assistance.

i. If no, describe the Lead Agency's policies for discontinuing assistance due to a parent's non-temporary change:

ii. If no, describe what specific actions/changes trigger the job-search period after each such loss or cessation:

iii. If no, how long is the job-search period where a family can continue assistance

(must be at least 3 months)?

- c. The Lead Agency may discontinue assistance prior to the next minimum 12-month redetermination in the limited circumstances listed below. Check and provide the policy for all circumstances in which the Lead Agency chooses to discontinue assistance prior to the next minimum 12-month redetermination:

- i. ☐ Not applicable.
- ii. ☒ Excessive unexplained absences despite multiple attempts by the Lead Agency or designated entity to contact the family and provider, including the prior notification of a possible discontinuation of assistance.

Provide the Lead Agency's policy defining the number of unexplained absences identified as excessive: **The Lead Agency may discontinue a child's enrollment with a child care provider upon notification of 20 consecutive absences which triggers an automatic notification to the parent/guardian who must response within 48 hours consistent with Policy 11.35 Child Care Certificate Reimbursement. If no response from the parent/guardian is received by the Lead Agency, the child's enrollment with a child care program will be discontinued; however, the minimum 12-month eligibility period will remain open. Excessive absences do not end eligibility and a child may be enrolled with the same or another child care provider at the family's request.**

- iii. ☒ A change in residency outside of the State or Territory.

Provide the Lead Agency's policy for a change in residency outside the State or Territory: **The Lead Agency may discontinue child care payment assistance prior to the next minimum 12-month redetermination if the parent/guardian moves out of the state consistent with Policy 11.40 Re-Employment Child Care Payment Assistance (RESEA) and Policy 11.42 Department of Mental Health and Substance Abuse Child Care Payment Assistance.**

- iv. ☒ Substantiated fraud or intentional program violations that invalidate prior determinations of eligibility.

Provide the Lead Agency's definition of fraud/intentional program violations that lead to discontinued assistance: **The Lead Agency does not discontinue child care payment assistance in instances of intentional program violations. The Lead Agency recognizes instances of fraud only as may be determined by a court of law.**

2.5.4 Reporting changes during the minimum 12-month eligibility period

Lead Agencies may only require families to report changes that impact a family's eligibility, including only if the family's income exceeds 85 percent of the SMI, taking into account irregular fluctuations in income, or there is a non-temporary change in the parent's work, training, or education status, during the 12-month eligibility period. Lead Agencies may also require families to report that enable the lead agency to contact the family or pay providers, such as a new telephone number or address.

Note: The response below should exclude reporting requirements for a graduated phase-out, which are described in question 2.5.5.

Does the Lead Agency limit what families must report during the 12-month eligibility period to the changes described above?

☒ Yes.

☐ No. If no, describe:

2.5.5 Policies and procedures for graduated phase-out of assistance at redetermination

Lead Agencies that establish initial family income eligibility below 85 percent of SMI must provide a graduated phase-out of assistance for families whose income has increased above the Lead Agency's initial income threshold at the time of redetermination but remains below the federal threshold of 85 percent of SMI.

Lead Agencies that provide a graduated phase-out must implement a two-tiered eligibility threshold, with the second tier of eligibility (used at the time of eligibility redetermination) to be set at:

- (i) 85 percent of SMI for a family of the same size; or,
- (ii) An amount lower than 85 percent of SMI for a family of the same size but above the Lead Agency's initial eligibility threshold that:
 - (A) Takes into account the typical household budget of a family with a low income
 - (B) Provides justification that the second eligibility threshold is:
 - (1) Sufficient to accommodate increases in family income over time that are typical for workers with low incomes and that promote and support family economic stability
 - (2) Reasonably allows a family to continue accessing child care services without unnecessary disruption

At redetermination, a child must be considered eligible if their parents are participating in an eligible activity even if their income exceeds the Lead Agency's initial eligibility income limit as long as their income does not exceed the second tier of eligibility. Note that once determined eligible, the child must be considered eligible for a full minimum 12-month eligibility period, even if the parents' income exceeds the second tier of eligibility during the eligibility period, as long as it does not exceed 85 percent of SMI.

A child eligible for services via the graduated phase-out of assistance is considered eligible under the same conditions as other eligible children with the exception of the co-payment restrictions, which do not apply to a graduated phase-out. To help families transition from child care assistance, Lead Agencies may gradually adjust co-payment amounts in proportion to a family's income growth for families whose children are determined eligible under a graduated phase-out. Lead Agencies may require additional reporting on changes in family income but must still ensure that any additional reporting requirements do not constitute an undue burden on families.

Check and describe the option that best identifies the Lead Agency's policies and procedures regarding the graduated phase-out of assistance.

- a. ☐ Not applicable. The Lead Agency sets its initial eligibility threshold at 85 percent of SMI and therefore is not required to provide a graduated phase-out period. (If checked, skip to question 3.1.1.)

- b. ☒ The Lead Agency sets the second tier of eligibility at 85 percent of SMI. If checked, describe the policies and procedures: **The Lead Agency applies a graduated phase-out at redetermination only to its At-Risk Child Only (ARCO) and Transitional Families First (TFF) categories of care. At redetermination, parents/guardians receive a 12-month graduated phase-out period if the income exceeds 60 percent but is under 85 percent of SMI for the household size. If income exceeds 85 percent of SMI, eligibility will be terminated after a 10-day notification.**
 - i. ☒ Lead Agency adjusts the family's co-pay during the graduated phase-out period. If checked, describe how the Lead Agency gradually adjusts co-payment for families under a graduated phase-out period in proportion to a family's income growth. Include information on the percentage or amount of change made in the co-payment during graduated phase-out: **The Lead Agency adjusts a family's co-pay to the maximum co-pay amount for the household at 60 percent SMI during the graduated phase-out period as described at 2.5.5.b.**
 - ii. ☐ Lead Agency requires additional reporting requirements during the graduated phase-out period. If checked, describe:
- c. ☐ The Lead Agency sets the second tier of eligibility at an amount lower than 85 percent of SMI for a family of the same size but above the Lead Agency's initial eligibility threshold. If checked, provide the following information:
 - i. Provide the income level (\$/month) and the percent of SMI for the second tier of eligibility for a family of three:
 - ii. Describe how the second eligibility threshold takes into account the typical household budget of a low-income family:
 - iii. Describe how the second eligibility threshold is sufficient to accommodate increases in family income over time that are typical for low-income workers and that promote and support family economic stability:
 - iv. Describe how the second eligibility threshold reasonably allows a family to continue accessing child care services without unnecessary disruption:
 - v. ☐ Lead Agency adjusts the family's co-pay during the graduated phase-out period. If checked, describe how the Lead Agency gradually adjusts co-payment for families under a graduated phase-out period in proportion to a family's income growth. Include information on the percentage or amount of change made in the co-payment during graduated phase-out:
 - vi. ☐ Lead Agency requires additional reporting requirements during the graduated phase-out period. If checked, describe:

3 Child Care Affordability

CCDF subsidies make child care more affordable for eligible families, providing access to a greater range of child care options that allow parents to work, go to school, or enroll in training and they allow parents to access higher quality care options that better support children's development. CCDF requires some families participating in CCDF to pay an affordable co-payment set by the Lead Agency to cover a part of their care. But co-payments can be a significant and destabilizing financial strain on family budgets and a barrier to parent employment, and the CCDBG Act

requires that the co-payment amount not be a barrier to families participating in CCDF. Lead Agencies may not set parent co-payments above 7% of family income regardless of gradual phase-out policies and regardless of the number of children receiving assistance. Lead Agencies are encouraged to set co-payments much lower than 7% to make child care more affordable for more families and have broad flexibility to waive co-payments for too many participants. Lead Agencies must ensure that the total payment to a child care provider is not reduced because of family's lowered or waived co-payment.

In this section, Lead Agencies will identify how they determine an eligible family's co-payment, the policies in place to waive or ensure co-payments are affordable for families, and how the Lead Agency improves access for children and families in economically and/or socially marginalized communities.

3.1 Family Co-payments

Lead Agencies must establish and periodically revise a sliding-fee scale for families receiving CCDF services that varies based on income and the size of the family to determine each family's contribution (i.e., co-payment) and does not create a barrier to receiving CCDF assistance. In addition to income and the size of the family, the Lead Agency may use other factors as appropriate when determining family contributions/co-payments. Lead Agencies may not use price of care or amount of subsidy payment in determining co-payments. Lead Agencies must ensure that the total payment to a child care provider is not reduced because of family's lowered or waived co-payment.

3.1.1 Family co-payment

Lead Agencies may not charge any family more than 7% of a family's gross income, regardless of the number of children participating in CCDF.

- a. What is the maximum percent of a family's gross income any family could be charged as a co-payment? **Five (5) percent.**
- b. Does the Lead Agency certify that their sliding fee scales are always based on income and family size (regardless of how many different scales they may use)?
☒ Yes.
☐ No. If no, describe:

3.1.2 Sliding fee scale

Provide the CCDF co-payments for eligible families in the table(s) below according to family size for one child in care.

- a. Is the sliding fee scale set statewide?
☒ Yes.
☐ No. If no, describe how the sliding fee scale is set:
- b. Complete the table below. If the sliding fee scale is not set statewide, complete the table for the most populous locality:

	<i>A</i>	<i>B</i>	<i>C</i>	<i>D</i>	<i>E</i>	<i>F</i>
Family Size	Lowest monthly income at initial eligibility where the family is first charged a co-pay (greater than \$0).	What is the monthly co-payment for a family of this size based on the income level in (A)?	What percentage of income is the co-payment in (B)?	Highest monthly income at initial eligibility where a family is charged a co-pay before a family is no longer eligible.	What is the monthly co-payment for a family of this size based on the income level in (D)?	What percentage of income is this co-payment in (E)?
1						
2	2556.00	127.00	5.00	4344.00	217.00	5.00
3	3228.00	161.00	5.00	5367.00	268.00	5.00
4	3901.00	195.00	5.00	6389.00	319.00	5.00
5	4573.00	228.00	5.00	7412.00	370.00	5.00

- c. What is the effective date of the sliding-fee scale(s)? **June 01, 2024**
- d. Provide the link(s) to the sliding-fee scale(s): **<https://www.tn.gov/humanservices/families/child-care-services/child-care-payment-assistance.html>**
- e. Does the Lead Agency allow providers to charge families additional amounts above the required co-payment in instances where the provider's price exceeds the subsidy payment?
- ☐ No.
- ☒ Yes.
- If yes:
- Provide the rationale for the Lead Agency's policy to allow providers to charge families additional amounts above the required co-payment, including a demonstration of how the policy does not provide a barrier and promotes affordability and access for families: **The Lead Agency's policy allows parents the most flexibility when choosing the care that will best meet their needs.**
 - Provide data (including data on the size and frequency of such amounts) on the extent to which CCDF providers charge additional amounts to families: **In May 2021, the Lead Agency conducted a survey of child care providers to collect information about rates, fees, and barriers to participation. Of the 356 respondents, 48.5% indicated charging more than Child Care Payment Assistance/Certificate Program parent co-payments when rates exceed payment assistance amounts. The majority of respondents reported additional fees under \$50 and the most common frequency was weekly. Most common fees were associated with punitive actions, i.e., late pick-up (83.4%), late payment (77.9%), or writing a bad check (68.8%). Registration fees were charged by 64% of respondents.**

3.2 Calculation of Co-Payment

Lead agencies must calculate a family's contribution (or co-payment), taking into account income and family size, and Lead Agencies may choose to consider other factors in their calculation.

3.2.1 Family co-payment calculation

- a. How is the family's contribution calculated, and to whom is it applied? Check if the fee is a dollar amount or if the fee is a percent of income below, and then check all that apply under the selection, as appropriate.

- i. ☐ The fee is a dollar amount and (check all that apply):

☐ The fee is per child, with the same fee for each child.

☐ The fee is per child and is discounted for two or more children.

☐ The fee is per child up to a maximum per family.

☐ No additional fee is charged after a certain number of children.

☐ The fee is per family.

☐ The contribution schedule varies because it is set locally/regionally (as indicated in 1.2.1). Describe:

☐ Other. Describe:

- ii. ☒ The fee is a percent of income and (check all that apply):

☒ The fee is per child, with the same percentage applied for each child.

☐ The fee is per child, and a discounted percentage is applied for two or more children.

☐ The fee is per child up to a maximum per family.

☐ No additional percentage is charged after a certain number of children.

☒ The fee is per family.

☐ The contribution schedule varies because it is set locally/regionally (as indicated in 1.2.1). Describe:

☐ Other. Describe:

- b. Does the Lead Agency use other factors in addition to income and family size to determine each family's co-payment? (Lead Agencies may not use price of care or amount of subsidy payment in determining co-payments).

☐ No.

☒ Yes.

If yes, check and describe those additional factors below:

- i. ☒ Number of hours the child is in care. Describe: **The co-pay fee is calculated on full-time care (care for 20 or more hours per week). If the child is needing only part-time care (care for 19 or less hours per week), the co-pay fee will be half of the calculated full-time fee.**

- ii. ☐ Quality of care (as defined by the Lead Agency). Describe:
- iii. ☐ Other. Describe:
- c. Describe any other policies the Lead Agency uses in the calculation of family co-payment to ensure it does not create a barrier to access. Check all that apply:
 - i. ☒ Base co-payments on only a portion of the family's income. For instance, only consider the family income over the federal poverty level.
 - ii. ☒ Base co-payments on the number of children in the family and reduce a portion of the co-payments as the number of children being served increases.
 - iii. ☐ Other. Describe:

3.3 Waiving Family Co-payment

3.3.1 Waiving family co-payment

The Lead Agency may waive family contributions/co-payments for many families to lower their costs and maximize affordability for families. Lead Agencies have broad flexibility in determining for which families they will waive co-payments.

Does the Lead Agency waive family contributions/co-payments?

☐ No, the Lead Agency does not waive any family contributions/co-payments. (Skip to question 4.1.1.)

☒ Yes. If yes, identify and describe which family contributions/co-payments waived.

- i. ☐ Families with an income at or below 100% of the Federal Poverty Level for families of the same size.
- ii. ☒ Families with an income above 100% but at or below 150% of the Federal Poverty Level for families of the same size.
- iii. ☐ Families experiencing homelessness.
- iv. ☐ Families with children with disabilities.
- v. ☒ Families enrolled in Head Start or Early Head Start.
- vi. ☒ Children in foster care or kinship care, or otherwise receiving or needing to receive protective services. Describe the policy: **The Tennessee Department of Children's Services (TDCS), the state child welfare agency, determines eligibility for children in protective custody and the Lead Agency functions as the point of entry for children in protective services to receive child care services. The Lead Agency funds child care payment assistance for children in state custody.**
- vii. ☐ Families meeting other criteria established by the Lead Agency. Describe the policy:

4 Parental Choice, Equal Access, Payment Rates, and Payment Practices

Core purposes of CCDF are to provide participating parents choice in their child care arrangements and provide their children with equal access to child care compared to those children not

participating in CCDF. CCDF requirements approach equal access and parental choice comprehensively to meet these foundational program goals. Providing access to a full range of child care providers helps ensure that families can choose a child care provider that meets their family's needs. CCDF payment rates and practices must be sufficient to support equal access by allowing child care providers to recruit and retain skilled staff, provide high-quality care, and operate in a sustainable way. Supply-building strategies are also essential.

This section addresses many of the CCDF provisions related to equal access, including access to the full range of providers, payment rates for providers, co-payments for families, payment practices, differential payment rates, and other strategies that support parental choice and access by helping to ensure that child care providers are available to serve children participating in CCDF.

In responding to questions in this section, OCC recognizes that each Lead Agency identifies and defines its own categories and types of care. OCC does not expect Lead Agencies to change their definitions to fit the CCDF-defined categories and types of care. For these questions, provide responses that closely match the CCDF categories of care.

4.1 Access to Full Range of Provider Options

Lead Agencies must provide parents a choice of providers and offer assistance with child care services through a child care certificate (or voucher) or with a child care provider that has a grant or contract for the provision of child care services. Lead Agencies are reminded that policies and procedures should not restrict parental access to any type or category of care or provider (e.g., center care, home care, in-home care, for-profit provider, non-profit provider, or faith-based provider, etc.).

4.1.1 Parent choice

- a. Identify any barriers to provider participation, including barriers related to payment rates and practices, (including for family child care and in-home providers), based on provider feedback, public comment, and reports to the Lead Agency: **The Lead Agency conducted a survey of providers in May 2021 separately from its Market Rate Survey to collect information about rates, barriers to participation, and parent fees. 356 providers participated in the survey. Respondents by agency type: Center (66.5%), Group Home (13.5%), Family Home (14.1%), and School (5.9%). Only 13.9% of providers completing the survey indicated they have experienced a barrier. Common barriers identified by child care providers include subsidy rate not sufficient; limited capacity; amount of paperwork required; and payment practices. These responses informed the Lead Agency as it implemented a new electronic billing and payments system in February 2022. Through this modernized system, administrative burden has been lessened for providers, and payments are issued weekly.**

The Lead Agency incorporated questions to better identify barriers to participation in the Child Care Payment Assistance/Certificate Program in its 2024 Cost of Quality Care survey. The Lead Agency is engaging child care providers about barriers and opportunities to participation through Provider Advisory Groups (PAGs) facilitated by the University of Tennessee Social Work Office of Research and Public Service (SWORPS). The Lead Agency is also exploring development and implementation of survey mechanisms to routinely capture and analyze data to identify potential barriers and opportunities to child care

provider participation in the Child Care Payment Assistance/Certificate Program.

- b. Does the Lead Agency offer child care assistance through vouchers or certificates?
☒ Yes.
☐ No.
- c. Does the Lead Agency offer child care assistance through grants or contracts?
☐ Yes.
☒ No.
- d. Describe how the parent is informed that the child care certificate allows the option to choose from a variety of child care categories, such as private, not-for-profit, faith-based providers; centers; family child care homes; or in-home providers: **The Lead Agency provides consumer education and explains parent's rights and responsibilities when choosing child care. When appropriate, the Lead Agency may refer a parent to the Tennessee Child Care Resource and Referral Network (CCR&R) for additional assistance. Once the parent makes a selection of a child care provider, the Lead Agency directly issues a certificate to the child care provider of choice. A parent participating in the Child Care Payment Assistance/Certificate Program has the choice to use that certificate at any licensed or license-exempt child care provider that has signed a contract and agreed to the terms and conditions to participate in the Child Care Payment Assistance/Certificate Program. (Exception: Non-TANF may only be used at eligible child care providers licensed by the Lead Agency or regulated by the Tennessee Department of Education) or license-exempt Boys & Girls Clubs meeting CCDF requirements. The Lead Agency consistently encourages child care providers to participate in the Child Care Payment Assistance/Certificate Program.**
- e. Describe what information is included on the child care certificate: **The child care certificate contains the Lead Agency Child Care Payment Assistance/Certificate Program contact details, case number, name and address of the parent, demographic information for the parent and child, parent work activity, name and address of the selected child care provider, the start and end date of certificate eligibility, funding eligibility category, and the amount of co-pay, if applicable. Once the parent selects a child care provider, the Lead Agency directly issues a certificate to the child care provider of choice and the parent.**

4.2 Assess Market Rates and Analyze the Cost of Child Care

To establish subsidy payment rates that ensure equal access, Lead Agencies must collect and analyze statistically valid and reliable data and have the option to conduct either a (1) market rate survey (MRS) reflecting variations in the price to parents of child care services by geographic area, type of provider, and age of child, or (2) an ACF pre-approved alternative methodology, such as a cost estimation model, which estimates the cost of care by incorporating both data and assumptions to estimate what expected costs would be incurred by child care providers and parents under different scenarios. All Lead Agencies must analyze the cost of providing child care through a narrow cost analysis or pre-approved alternative methodology.

Prior to conducting the MRS or pre-approved alternative, Lead Agencies must consult with the State Advisory Council on Early Childhood Education and Care (designated or established pursuant

to the Head Start Act (42 U.S.C. 9837b(b)(1)(A)(i)) or similar coordinating body, local child care program administrators, local child care resource and referral agencies, and other appropriate entities; and organizations representing child care caregivers, teachers, and directors. Prior to conducting the MRS or pre-approved alternative methodology, Lead Agencies must consult with the State Advisory Council on Early Childhood Education and Care (designated or established pursuant to the Head Start Act (42 U.S.C. 9837b(b)(1)(A)(i)) or similar coordinating body, local child care program administrators, local child care resource and referral agencies, and other appropriate entities; and organizations representing child care caregivers, teachers, and directors.

Note: Any Lead Agency considering using an alternative methodology instead of a market rate survey to set payment rates, is required to submit a description of its proposed approach to OCC for pre-approval in advance of developing and conducting the alternative methodology. Advance approval is not required if the Lead Agency plans to implement both an MRS and an alternative methodology to set rates at a percentile of the market rate, but a Lead Agency conducting a limited market rate survey and using it to inform their cost model would need pre-approval for this approach. In its request for ACF pre-approval, a Lead Agency must provide details on the following elements of their proposed alternative methodology:

- Overall approach and rationale for using proposed methodology
- Description of stakeholder engagement
- Data collection timeframe (if applicable)
- Description of the data and assumptions included in the methodology, including how these elements will yield valid and reliable results from the model
- Description of how the methodology will capture the universe of providers, and reflect variations by provider type, age of children, geographic location, and quality

4.2.1 Completion of the market rate survey or ACF pre-approved alternative methodology

Did the Lead Agency conduct a statistically valid and reliable MRS or ACF pre-approved alternative methodology to meet the CCDF requirements to assess child care prices and/or costs and determine payment rates? Check only one based on which methodology was used to determine your payment rates.

- a. ☒ Market rate survey.
- i. When were the data gathered (provide a date range; for instance, September – December 2023)? **Data was gathered for the Market Rate Survey (MRS)/Cost of Quality Care Study during April 27-July 03, 2023.**
- b. ☐ ACF pre-approved alternative methodology.
- i. ☐ The alternative methodology was completed.
- ii. ☐ The alternative methodology is in process.

If the alternative methodology was completed:

When were the data gathered and when was the study completed?

Describe any major differences between the pre-approved methodology and the final methodology used to inform payment rates. Include any major changes to stakeholder engagement, data, assumptions or proposed scenarios.

If the alternative methodology is in progress:

Provide a status on the alternative methodology and timeline (i.e., dates when the alternative methodology activities will be conducted, any completed steps to date, anticipated date of completion, and expected date new rates will be in effect using the alternative methodology).

c. Consultation on data collection methodology.

Describe when and how the Lead Agency engaged the following partners and how the consultation informed the development and execution of the MRS or alternative methodology, as appropriate.

- iii. State Advisory Council or similar coordinating body: **Prior to conducting its survey, a draft survey instrument designed to collect data for the MRS/Cost of Quality Care Study was distributed to the Tennessee Young Child Wellness Council, the state's Advisory Council on Early Childhood Education and Care, Lead Agency staff, child care providers licensed by the Lead Agency, the Tennessee Child Care Resource and Referral Network (CCR&R), and other CCDF Quality Child Care Partners. The Lead Agency received 33 responses, and the most common concerns were related to the cost and difficulty of hiring and retaining qualified staff. After consultation, the final survey instrument included questions relating to staff levels, salary levels, and the cost of benefits.**
- iv. Local child care program administrators: **Prior to conducting its survey, a draft survey instrument designed to collect data for the MRS/Cost of Quality Care Study was distributed to the Tennessee Young Child Wellness Council, the state's Advisory Council on Early Childhood Education and Care, Lead Agency staff, child care providers licensed by the Lead Agency, the Tennessee Child Care Resource and Referral Network (CCR&R), and other CCDF Quality Child Care Partners. The Lead Agency received 33 responses, and the most common concerns were related to the cost and difficulty of hiring and retaining qualified staff. After consultation, the final survey instrument included questions relating to staff levels, salary levels, and the cost of benefits.**
- v. Local child care resource and referral agencies: **Prior to conducting its survey, a draft survey instrument designed to collect data for the MRS/Cost of Quality Care Study was distributed to the Tennessee Young Child Wellness Council, the state's Advisory Council on Early Childhood Education and Care, Lead Agency staff, child care providers licensed by the Lead Agency, the Tennessee Child Care Resource and Referral Network (CCR&R), and other CCDF Quality Child Care Partners. The Lead Agency received 33 responses, and the most common concerns were related to the cost and difficulty of hiring and retaining qualified staff. After consultation, the final survey instrument included questions relating to staff levels, salary levels, and the cost of benefits.**
- vi. Organizations representing child care caregivers, teachers, and directors from all settings and serving all ages: **Prior to conducting its survey, a draft survey instrument designed to collect data for the MRS/Cost of Quality Care Study was distributed to the Tennessee Young Child Wellness Council, the state's Advisory Council on Early Childhood Education and Care, Lead Agency staff, child care**

providers licensed by the Lead Agency, the Tennessee Child Care Resource and Referral Network (CCR&R), and other CCDF Quality Child Care Partners. The Lead Agency received 33 responses, and the most common concerns were related to the cost and difficulty of hiring and retaining qualified staff. After consultation, the final survey instrument included questions relating to staff levels, salary levels, and the cost of benefits.

vii. Other. Describe: **Not Applicable.**

d. An MRS must be statistically valid and reliable.

An MRS can use administrative data, such as child care resource and referral data, if it is representative of the market. Please provide the following information about the market rate survey:

i. When was the market rate survey completed? **7/31/2023**

ii. What was the time period for collecting the information (e.g., all of the prices in the survey are collected within a three-month time period)? **The Lead Agency conducts a Market Rate Survey (MRS) and analysis annually to determine maximum payment reimbursement rates for subsidized child care in Tennessee. The market rate data are gathered from an annual reporting survey required of all child care providers licensed by the Lead Agency. MRS data was collected during April 27, 2023, through July 03, 2023.**

iii. Describe how it represented the child care market, including what types of providers were included in the survey: **The MRS utilizes the Lead Agency's exhaustive list of rates reported by child care provider across licensed care types and child age, as well as the proportion of providers' enrollments that are subsidized.**

iv. What databases are used in the survey? Are they from multiple sources, including licensing, resource and referral, and the subsidy program? **The Lead Agency's eLicensing documentation system.**

v. How does the survey use good data collection procedures, regardless of the method for collection (mail, telephone, or web-based survey)? **Child care centers and family and group homes licensed by the Lead Agency received notification of the annual market rate survey to ensure rates were current and accurate. Data from all centers and family and group homes licensed by the Lead Agency at the time of data collection were used to complete the MRS. To minimize the effect of subsidization on market rate calculations, providers with more than half of their enrollments receiving subsidies for child care are excluded from analysis. Multiple fee structures reported by providers, i.e., daily, monthly, etc., are converted to a single, standard weekly rate. In the event more than one rate structure is reported within a single age category by a child care provider, an average weekly rate is computed from the calculated standard weekly rates. Within each provider category, rates are further categorized by age of child (infant through school-age). Part-time rates are also excluded from analysis. After these adjustments are made to the data, the average market rate and ranked percentiles are calculated for two tiers of the market, as well as for the state as a whole. The Top Tier Market is comprised of Tennessee counties that are**

one of the top 20 highest in population or have one of the top 20 highest per capita personal income averages. The Lower Tier Market includes all those counties not in the Top Tier Market. Separating the two markets based on population and personal income captures different conditions faced in each market, and exclusion of heavily subsidized providers minimizes the Lead Agency's influence on percentile and average calculations.

- vi. What is the percent of licensed or regulated child care centers responding to the survey? **100.00**
- vii. What is the percent of licensed or regulated family child care homes responding to the survey? **100.00**
- viii. Describe if the survey conducted in any languages other than English: **The market rate data are gathered from an annual reporting survey using the Lead Agency's eLicensing documentation system; however, the survey may be translated using Google Translate or similar technology services and the Lead Agency also offers free translation or interpretation services.**
- ix. Describe if data were analyzed in a manner to determine price of care per child: **Within each provider category, unweighted rate data is further analyzed by age of child from infants through school-age to calculate an average market rate and ranked percentiles.**
- x. Describe if data were analyzed from a sample of providers and if so, how the sample was weighted: **The market rate data are gathered from an annual reporting survey required of all child care providers licensed by the Lead Agency.**
- e. Price variations reflected.
 The market rate survey data or ACF pre-approved alternative methodology data must reflect variations in child care prices or cost of child care services in specific categories.
 - i. Describe how the market rate survey or pre-approved alternative methodology reflected variation in geographic area (e.g., county, region, urban, rural). Include information on whether parts of the State or Territory were not represented by respondents and include information on how prices or costs could be linked to local geographic areas. **Provider rates used in the MRS reflect variations in the price of care statewide. Rates are analyzed by county to establish a top tier group that includes counties that were either one of the top-20 highest population counties or one of the top-20 highest average per capita personal income counties. The remaining counties are in the second-tier group. Rates for a given county are established according to their respective tier level. This method is preferable to relying on a ranking of the average child care provider rates charged by child care centers. Use of population and personal income rankings allows selection based on measures that are likely correlated with the conditions in each market for child care services, while at the same time it separates the selection criteria from the Lead Agency's influence on the market rates.**
 - ii. Describe how the market rate survey or pre-approved alternative methodology

reflected variation in type of provider (e.g., licensed providers, license-exempt providers, center-based providers, family child care home providers, home based providers). **Rate data for all active child care providers licensed by the Lead Agency are analyzed for three provider categories: child care centers, family child care homes, and group child care homes.**

- iii. Describe how the market rate survey or pre-approved alternative methodology reflected age of child (e.g., infant, toddler, preschool, school-age): **Within each provider category, rate data is further analyzed by age of child from infants through school-age.**
- iv. Describe any other key variations examined by the market rate survey or ACF pre-approved alternative methodology, such as quality level: **Provider rates used in the MRS reflect variations in the price of care statewide. Rates are analyzed by county to establish a top tier group (Top Tier) that includes counties that were either one of the top-20 highest 2021 population counties or one of the top-20 highest 2019-2021 average per capita personal income counties. The remaining counties are in the second-tier group (Lower Tier). Rates for a given county are established according to their respective tier level. This method is preferable to relying on a ranking of the average child care provider rates charged by child care centers. Use of population and personal income rankings allows selection based on measures that are likely correlated with the conditions in each market for child care services, while at the same time it separates the selection criteria from the Lead Agency's influence on the market rates.**

4.2.2 Cost analysis

If a Lead Agency does not complete a cost-based pre-approved alternative methodology, they must analyze the cost of providing child care services through a narrow cost analysis. A narrow cost analysis is a study of what it costs providers to deliver child care at two or more levels of quality: (1) a base level of quality that meets health, safety, staffing, and quality requirements, and (2) one or more higher levels of quality as defined by the Lead Agency. The narrow cost analysis must estimate costs by levels of quality; include relevant variation by provider type, child's age, or location; and analyze the gaps between estimated costs and payment rates to inform payment rate setting. Lead agencies are not required to complete a separate narrow cost analysis if their pre-approved alternative methodology addresses all of the components required in the narrow cost analysis.

Describe how the Lead Agency analyzed the cost of child care through a narrow cost analysis or pre-approved alternative methodology for the FFY 2025–2027 CCDF Plan, including:

- a. How did the Lead Agency conduct a narrow cost analysis (e.g., a cost model, a cost study, existing data or data from the Provider Cost of Quality Calculator)? **The Lead Agency contracted with the Boyd Center for Business and Economic Research at the University of Tennessee to conduct a narrow cost analysis. The Boyd Center designed a survey instrument to collect 2021-22 financial and other operating information. The survey instrument was distributed to the Tennessee Young Child Wellness Council, the state's Advisory Council on Early Childhood Education and Care, Lead Agency staff, child care providers licensed by the Lead Agency, the Tennessee Child Care Resource and Referral Network (CCR&R), and other CCDF Quality Child Care Partners. Following this**

consultation, the final survey instrument included questions relating to staff levels, salary levels, and the cost of benefits.

The Boyd Center collaborated with the University of Tennessee Social Work Office of Research and Public Service to identify a sample and administer the survey. Quotas were developed to ensure adequate representation from child care centers, group homes, and family homes, with different quality ratings, and from rural and urban counties and grand divisions. The target sample for the narrow cost analysis was 300 providers participating voluntarily.

Outreach to providers sampled was provided by the Tennessee Child Care Resource and Referral Network (CCR&R). Data was supplemented by the Provider Cost of Quality Care (PCQC) when survey responses were missing or inaccurate.

- b. In the Lead Agency's analysis, were there any relevant variations by geographic location, category of provider, or age of child? The narrow cost analysis found that child care providers with 3-star quality ratings spend more per child than lower quality providers for both Tier 1 and Tier 2 markets. Providers with 3-star quality ratings spend more per child on salary and benefits (combined) than provider with lower quality ratings, and large and medium-sized centers with 3-star quality ratings generally pay higher salaries and benefits than smaller agencies, though smaller providers may pay themselves with profits and not salary expense.

Total salaries paid to all staff when measured on a per-child basis showed some variation based on ratings, as centers with a 3-star quality rating reported spending about \$4,912 per child versus \$3,964 per child for centers with lower quality ratings. Providers located in urban counties, and higher cost-of-living areas such as in the Nashville metropolitan region, offer higher salaries to attract the needed employees. For expenses other than salary, such as rent, food, and classroom supplies, providers with 3-star quality ratings spend more per child than providers with lower quality ratings. No significant differences in rating by grand division or by tier were found.

Funding gaps were observed for infant and toddler care for center-based providers, regardless of market tier. For example, a 3-Star Tier 1 Center faces a gap between modeled cost per infant of \$43 per week and \$22 per toddler. The narrow cost analysis observed preschool enrollment practice, with lower staffing costs, may help center mitigate funding gaps for infant and toddler care. The analysis did not find any statistically significant correlation between selected spending categories and quality, likely due to the lack of variation in star ratings among the agencies in the sample and in the broader population of Tennessee daycare providers, (i.e., a small share of the sample is rated less than 3 stars).

- c. What assumptions and data did the Lead Agency use to determine the cost of care at the base level of quality (e.g., ratios, group size, staff compensations, staff training, etc.)? Child care providers sampled had to meet basic health and safety standards as required by Lead Agency licensure rules at Tenn. Comp. R. & Regs. 1240-04-01 based upon the category of care provided with a 0-Star base level of quality. All providers participated in the Quality Rating Improvement System (QRIS).

- d. How does the Lead Agency define higher quality and what assumptions and data did the Lead Agency use to determine cost at higher levels of quality (e.g., ratio, group size, staffing levels, staff compensation, professional development requirements)? A Lead Agency can use a quality improvement system or other system of quality indicators (e.g., accreditation, pre-Kindergarten standards, Head Start Program Performance Standards, or State-defined quality measures). **The Lead Agency used the Tennessee Quality Rating Improvement System (QRIS) to define quality levels in the narrow cost analysis, considering 2-Star and 3-Star high quality.**
- e. What is the gap between cost and price, and how did the Lead Agency consider this while setting payment rates? Did the Lead Agency target any rate increases where gaps were the largest or develop any long-term plans to increase rates based on this information? **The analysis did not find any statistically significant correlation between selected spending categories and quality, likely due to the lack of variation in star ratings among the agencies in the sample and in the broader population of Tennessee child care providers, (i.e., a small share of the sample is rated less than 3 stars).**

Funding gaps were observed for infant and toddler care for center-based providers, regardless of market tier. For example, a 3-Star Tier 1 Center faces a gap between modeled cost per infant of \$43 per week and \$22 per toddler. The narrow cost analysis observed preschool enrollment practice, with lower staffing costs, may help center mitigate funding gaps for infant and toddler care.

The Lead Agency will be conducting a cost of care analysis annually to strengthen provider engagement, refine its methodology, improve data quality, and identify potential gaps to inform potential strategies for deploying resources effectively and in ways that improve quality.

4.2.3 Publicly available report on the cost and price of child care

The Lead Agency must prepare a detailed report containing the results of the MRS or ACF pre-approved alternative methodology and include the Narrow Cost Analysis if an ACF pre-approved alternative methodology was not conducted.

The Lead Agency must make this report widely available no later than 30 days after completion of the report, including posting the results on the Lead Agency website. The Lead Agency must describe in the detailed report how the Lead Agency took into consideration the views and comments of the public or stakeholders prior to conducting the MRS or ACF pre-approved alternative methodology.

a. Describe how the Lead Agency made the results of the market rate survey or ACF pre-approved alternative methodology report widely available to the public by responding to the questions below.

- i. Provide the date the report was completed: **9/20/2023**
- ii. Provide the date the report containing results was made widely available (no later than 30 days after the completion of the report): **9/20/2023**
- iii. Provide a link to the website where the report is posted and describe any other strategies the Lead Agency uses to make the detailed report widely available: **<https://www.tn.gov/humanservices/information-and-resources/tdhs-reports-and->**

information.html

- iv. Describe how the Lead Agency considered partner views and comments in the detailed report. Responses should include which partners were engaged and how partner input influenced the market rate survey or alternative methodology: **The Lead Agency distributed its previous 2021 narrow cost analysis with the draft survey instrument to the Tennessee Young Child Wellness Council, the state's Advisory Council on Early Childhood Education and Care, Lead Agency staff, child care providers licensed by the Lead Agency, the Tennessee Child Care Resource and Referral Network (CCR&R), and other CCDF Quality Child Care Partners. Following this consultation, the final survey instrument included questions relating to staff levels, salary levels, and the cost of benefits.**

4.3 Adequate Payment Rates

The Lead Agency must set CCDF subsidy payment rates in accordance with the results of the current MRS or ACF pre-approved alternative methodology and at a level to ensure equal access for eligible families to child care services comparable with those provided to families not receiving CCDF assistance. Lead Agencies are also required to provide a summary of data and facts to demonstrate how payment rates ensure equal access, which means the Lead Agency must also consider the costs of base level care and higher quality care as part of its rate setting. Finally, the Lead Agency must re-evaluate its payment rates at least every 3 years.

The ages and types of care listed in the base payment rate tables are meant to provide a snapshot of the categories of rates and are not intended to be comprehensive of all categories that might exist or to reflect the terms used by the Lead Agency for particular ages. If rates are not statewide, please provide all variations of payment rates when reporting base payment rates below.

Base rates are the lowest, foundational rates before any differentials are added (e.g., for higher quality or other purposes) and must be sufficient to ensure that minimum health, safety, quality, and staffing requirements are covered. These are the rates that will be used to determine compliance with equal access requirements.

4.3.1 Payment rates

- a. Are the payment rates that the Lead Agency is reporting in 4.3.2 set statewide by the Lead Agency?
 - ☒ Yes.
 - i. If yes, check if the Lead Agency:
 - ☐ Sets the same payment rates for the entire State or Territory.
 - ☒ Sets different payment rates for different regions in the State or Territory.
 - ☐ No.
 - ii. If no, identify how many jurisdictions set their own payment rates:
- b. Provide the date the current payment rates became effective (i.e., date of last payment rate update based on most recent MRS or ACF pre-approved alternative methodology as reported in 4.2.1). **10/1/2023**

- c. If the Lead Agency does not publish weekly rates, then how were the rates reported in 4.3.2 or 4.3.3 calculated (e.g., were daily rates multiplied by 5 or monthly rates divided by 4.3)? **N/A.**

4.3.2 Base payment rates

- a. Provide the base payment rates in the tables below. If the Lead Agency completed a market rate survey (MRS), provide the percentiles based on the most recent MRS for the identified categories. If the Lead Agency sets different payment rates for different regions in the State or Territory (and checked 4.3.1aii), provide the rates for the most populous region as well as the region with payment rates set at the lowest percentile. Percentiles are not required if the Lead Agency also conducted an ACF pre-approved alternative methodology but must be reported if the Lead Agency conducted an MRS only.

The preamble to the 2016 final rule states that a benchmark for adequate payment rates is the 75th percentile of the most recent MRS. The 75th percentile benchmark applies to the base rates. The 75th percentile is the number separating the lowest 75 percent of rates from the highest 25 percent. Setting rates at the 75th percentile, while not a requirement, would ensure that eligible families can afford three out of four child care providers. In addition to reporting the 75th percentile in the tables below, the Lead Agency must also report the 50th percentile and 60th percentile for each identified category.

If the Lead Agency conducted an ACF pre-approved alternative methodology, provide the estimated cost of care for the identified categories, as well as the percentage of the cost of care covered by the established payment rate. If the Lead Agency indicated it sets different payment rates for different regions in the State or Territory in 4.3.1.a, provide the estimated cost of care and the percentage of the cost of care covered by the established payment rate for the most populous region as well as the region with rates established at the lowest percent of the cost of care.

For each identified category below, provide the percentage of providers who are receiving the base rate without any add-ons or differential payments.

Provide the full-time weekly base payment rates in the table below. If weekly payment rates are not published, then the Lead Agency will need to calculate its equivalent.

- i. Table 1: Complete if rates are set statewide. If rates are not set statewide, provide rates for most populous region. Percentiles are not required if the Lead Agency also conducted an ACF pre-approved alternative methodology but must be reported if the Lead Agency conducted an

MRS only.

Care Type	Base payment rate (specify unit, e.g., per day, per week, per month)	% of providers receiving Base rate	Full-Time Weekly Base Payment Rate	What is the percentile of the rate? (MRS)	What is the 50th percentile of the rate? (MRS)	What is the 60th percentile of the rate? (MRS)	What is the 75th percentile of the rate? (MRS)	What is the estimated cost of care? (Alternative Methodology)	What percent of the estimated cost of care is the rate?
Center Care for Infants (6 months)	259.00 Per Week	0.00	259.00	60.00	240.00	259.00	288.00		
Family Child Care for Infants (6 months)	180.00 Per Week	0.00	180.00	54.00	175.00	180.00	205.00		
Center Care for Toddlers (18 months)	235.00 Per Week	0.00	235.00	59.00	215.00	235.00	265.00		
Family Child Care for Toddlers (18 months)	175.00 Per Week	0.00	175.00	59.00	167.00	175.00	200.00		
Center Care for Preschoolers (4 years)	205.00 Per Week	0.00	205.00	60.00	191.00	205.00	237.00		
Family Child Care for Preschoolers (4 years)	160.00 Per Week	0.00	160.00	55.00	153.00	160.00	173.00		
Center Care for School-Age (6 years)	119.00 Per Week	0.00	119.00	57.00	102.00	120.00	143.00		
Family Child Care for School-Age (6 years)	125.00 Per Week	0.00	125.00	58.00	108.00	125.00	150.00		

ii. Table 2: Do not complete if rates are set statewide. If rates are not set statewide, provide rates for region with payment rates set at the lowest percentile. Percentiles are not required if the Lead Agency also conducted an ACF pre-approved alternative methodology but must be reported if the Lead Agency conducted an MRS only.

Care Type	Base payment rate (specify unit, e.g., per day, per week, per month)	% of providers receiving Base rate	Full-Time Weekly Base Payment Rate	What is the percentile of the rate? (MRS)	What is the 50th percentile of the rate? (MRS)	What is the 60th percentile of the rate? (MRS)	What is the 75th percentile of the rate? (MRS)	What is the estimated cost of care? (Alternative Methodology)	What percent of the estimated cost of care is the rate?
Center Care for Infants (6 months)	169.00 Per Week	0.00	169.00	61.00	155.00	165.00	180.00		
Family Child Care for Infants (6 months)	133.00 Per Week	0.00	133.00	70.00	125.00	130.00	140.00		
Center Care for Toddlers (18 months)	155.00 Per Week	0.00	155.00	55.00	150.00	155.00	170.00		
Family Child Care for Toddlers (18 months)	126.00 Per Week	0.00	126.00	64.00	120.00	122.00	145.00		
Center Care for Preschoolers (4 years)	148.00 Per Week	0.00	148.00	61.00	140.00	147.00	160.00		
Family Child Care for Preschoolers (4 years)	120.00 Per Week	0.00	120.00	56.00	115.00	120.00	131.00		
Center Care for School-Age (6 years)	110.00 Per Week	0.00	110.00	58.00	100.00	110.00	127.00		
Family Child Care for School-Age (6 years)	120.00 Per Week	0.00	120.00	51.00	112.00	120.00	120.00		

- b. Does the Lead Agency certify that the percentiles reported in the table above are calculated based on their most recent MRS or ACF pre-approved Alternative Methodology?

☒ Yes.

☐ No. If no, what is the year of the MRS or ACF pre-approved alternative methodology that the Lead Agency used? What was the reason for not using the most recent MRS or

ACF pre-approved alternative methodology? Describe:

4.3.3 Tiered rates, differential rates, and add-ons

Lead Agencies may establish tiered rates, differential rates, or add-ons on top of their base rates as a way to increase payment rates for targeted needs (e.g., a higher rate for serving children with special needs).

- a. Does the Lead Agency provide any rate add-ons above the base rate?

☐ Yes. If yes, describe the add-ons, including what they are, who is eligible to receive the add-ons, and how often are they paid:

☒ No.

- b. Has the Lead Agency chosen to implement tiered reimbursement or differential rates?

☒ Yes.

☐ No. Tiered or differential rates are not implemented.

If yes, identify below any tiered or differential rates, and, at a minimum, indicate the process and basis used for determining the tiered rates, including if the rates were based on the MRS or an ACF pre-approved alternative methodology. Check and describe all that apply:

- i. ☒ Differential rate for non-traditional hours. Describe: **Child care providers may receive a 15% differential when providing services for children during non-traditional hours. (The majority of a child's care is offered between the hours of 6:00pm and 6:00am.) Differential rates are determined based upon the base rates established following the MRS.**
- ii. ☒ Differential rate for children with special needs, as defined by the Lead Agency. Describe: **Child care providers may receive a 15% differential when providing services for children with disabilities and special needs. Differential rates are determined based upon the base rates established following the MRS.**
- iii. ☒ Differential rate for infants and toddlers. Note: Do not check if the Lead Agency has a different base rate for infants/toddlers with no separate bonus or add-on. Describe: **Child care providers may receive a 15% differential when providing services for infants and toddlers. Differential rates are determined based upon the base rates established following the MRS.**
- iv. ☐ Differential rate for school-age programs. Note: Do not check if the Lead Agency has a different base rate for school-age children with no separate bonus or add-on. Describe:
- v. ☒ Differential rate for higher quality, as defined by the Lead Agency. Describe: **Child care providers participating in the Tennessee Quality Rating Improvement System (QRIS) are eligible to receive a quality bonus differential based on annual QRIS scores: A composite score of 90 to 100 receives a 20 percent quality bonus differential. A composite score of 80 to 89 receives a 15 percent quality bonus differential. Differential rates are determined based upon the base rates established following the MRS.**

- vi. ☒ Other differential rates or tiered rates. For example, differential rates for geographic area or for type of provider. Describe: **Child care providers that deliver child care services in counties determined child care deserts or distressed counties may receive a 15 percent differential. Differential rates are determined based upon the base rates established following the MRS.**
- vii. If applicable, describe any additional add-on rates that you have besides those identified above.

Does the Lead Agency reduce provider payments if the price the provider charges to private-pay families not participating in CCDF is below the Lead Agency's established payment rate?

☐ Yes. If yes, describe:

☒ No.

4.3.4 Establishing payment rates

Describe how the Lead Agency established payment rates:

- a. What was the Lead Agency's methodology or process for setting the rates or how did the Lead Agency use their data to set rates? **The Lead Agency determines its reimbursement rates for the Child Care Payment Assistance/Certificate Program based on top tier and lower tier counties. Top tier counties are those with the 20 highest average populations and highest per capita incomes as identified by the MRS. The effective date of the Lead Agency's reimbursement rate schedule is applicable to both the general (or base) reimbursement rates and any changes in county tier level that may impact the amount a child care provider within a county may be paid. The Lead Agency implements quality bonus differentials linked to the Tennessee Quality Rating and Improvement System (QRIS) which incentivize standards that exceed minimum licensing requirements and promote demonstration by providers of higher-quality care.**
- b. How did the Lead Agency determine that the rates are adequate to meet health, safety, quality, and staffing requirements under CCDF? **The Lead Agency continuously evaluates its reimbursement rates using Market Rate Surveys and Cost of Quality Care Analyses to ensure child care providers adequately reimbursed to meet or exceed basic health, safety, quality, and staffing CCDF requirements. Recognizing reimbursement rates may be adequate for a basic level of care, the Lead Agency has implemented a series of statewide reimbursement rate increases and introduced several targeted differential incentives above the reimbursement rates during the prior CCDF Plan cycle as described at 4.3.3.b.**
- c. How did the Lead Agency use the cost of care, either from the narrow cost analysis or the ACF pre-approved alternative methodology to inform rate setting, including how using the cost of care promotes the stabilization of child care providers? **The Lead Agency used its narrow cost analysis and market rate survey to implement targeted adjustments so that all reimbursement rates were at least at the 60th Percentile of SMI on October 01, 2023. Recognizing that costs associated with infant and toddler care are higher than other care levels, the Lead Agency implemented a 15 percent infant and toddler care on October 01, 2023.**
- d. How did the Lead Agency account for the cost of higher quality while setting payment rates? **The Lead Agency implements quality bonus differentials linked to the Tennessee**

Quality Rating and Improvement System (QRIS) which incentivize standards that exceed minimum licensing requirements and promote demonstration by providers of higher-quality care. Bonus payments are available for child care providers licensed by the Lead Agency as described at 4.3.3.b.v.

- e. Identify and describe any additional facts (not covered in responses to 4.3.1 – 4.3.3) that the Lead Agency considered in determining its payment rates to ensure equal access. **N/A.**

4.4 Payment Practices to Providers

Lead Agencies must use subsidy payment practices that reflect practices that are generally accepted in the private pay child care market. The Lead Agency must ensure timeliness of payment to child care providers by paying in advance or at the beginning of delivery of child care services. Lead Agencies must also support the fixed cost of child care services based on paying by the child's authorized enrollment, or if impracticable, an alternative approach that will not undermine the stability of child care programs as justified and approved through this Plan.

Lead Agencies must also (1) pay providers based on established part-time or full-time rates rather than paying for hours of service or smaller increments of time, and (2) pay for reasonable, mandatory registration fees that the provider charges to private-paying parents. These policies apply to all provider types unless the Lead Agency can demonstrate that in limited circumstances the policies would not be considered generally-accepted payment practices.

In addition, Lead Agencies must ensure that child care providers receive payment for any services in accordance with a payment agreement or an authorization for services, ensure that child care providers receive prompt notice of changes to a family's eligibility status that could impact payment, and have timely appeal and resolution processes for any payment inaccuracies and disputes.

4.4.1 Prospective and enrollment-based payment practices

Lead Agencies must use payment practices for all CCDF child care providers that reflect generally-accepted payment practices of providers serving private-pay families, including paying providers in advance or at the beginning of the delivery of child care services and paying based on a child's authorized enrollment or an alternative approach for which the Lead Agency must demonstrate paying for a child's authorized enrollment is not practicable and it will not undermine the stability of child care programs. Lead Agencies may only use alternate approaches for subsets of provider types if they can demonstrate that prospective payments and authorized enrollment-based payment are not generally-accepted for a type of child care setting. Describe the Lead Agency payment practices for all CCDF child care providers:

- a. Does the Lead Agency pay all provider types prospectively (i.e., in advance of or at the beginning of the delivery of child care services)?

☐ Yes. If yes, describe:

☒ No, it is not a generally-accepted payment practice for each provider type. If no, describe the provider type not paid prospectively and the data demonstrating it is not a generally-accepted payment practice for that provider type, and describe the Lead Agency's payment practice that ensures timely payment for that provider type: **As The Lead Agency does not pay providers prospectively for any child care provider; instead, as a best practice, the Lead Agency seeks to issue payment within ten (10) business days. The**

Lead Agency has requested a waiver regarding this provision.

- b. Does the Lead Agency pay based on authorized enrollment for all provider types?
- ☒ Yes. The Lead Agency pays all providers by authorized enrollment and payment is not altered based on a child's attendance or the number of absences a child has.
- ☐ No, it is not a generally-accepted practice for each provider type. If no, describe the provider types not paid by authorized enrollment, including the data showing it is not a generally-accepted payment practice for that provider type, and describe how the payment policy accounts for fixed costs:
- ☐ It is impracticable. Describe provider type(s) for which it is impracticable, why it is impracticable, and the alternative approach the Lead Agency uses to delink provider payments from occasional absences, including evidence that the alternative approach will not undermine the stability of child care programs, and thereby accounts for fixed costs:

4.4.2 Other payment practices

Lead Agencies must (1) pay providers based on established part-time or full-time rates rather than paying for hours of service or smaller increments of time, and (2) pay for reasonable, mandatory registration fees that the provider charges to private-paying parents, unless the Lead Agency provides evidence that such practices are not generally-accepted for providers caring for children not participating in CCDF in its State or Territory.

- a. Does the Lead Agency pay all providers on a part-time or full-time basis (rather than paying for hours of service or smaller increments of time)?
- ☒ Yes.
- ☐ No. If no, describe the policies or procedures that are different than paying on a part-time or full-time basis and the Lead Agency's rationale for not paying on a part-time or full-time basis:
- b. Does the Lead Agency pay for reasonable mandatory registration fees that the provider charges to private-paying parents?
- ☒ Yes. If yes, identify the fees the Lead Agency pays for: **The Lead Agency allows for payment of reasonable mandatory registration fees that a provider may charge to private-paying parents. The Lead Agency pays for registration fees up to \$100 two times per year, and also paying of an annual registration fee of up to \$100 annually (if a provider charges such a fee).**
- ☐ No. If no, identify the data and how data were collected to show that paying for fees is not a generally-accepted payment practice:
- c. Describe how the Lead Agency ensures that providers are paid in accordance with a written payment agreement or an authorization for services that includes, at a minimum, information regarding provider payment policies, including rates, schedules, any fees charged to providers, and the dispute-resolution process: **The Lead Agency maintains a contract with each child care provider that participates in the Child Care Payment Assistance/Certificate Program. The contract includes information regarding payment terms and conditions, e.g., payment methodology, payment rates, payment and attendance, payment reductions, deductions, methods of collection of overpayments,**

etc., and the Lead Agency administrative review process facilitating dispute resolution.

- d. Describe how the Lead Agency provides prompt notice to providers regarding any changes to the family's eligibility status that could impact payments, and such a notice is sent no later than the day that the Lead Agency becomes aware that such a change will occur: **Lead Agency staff are trained to provide same-day provider notification of any change(s) to a family's eligibility status that could impact payments.**
- e. Describe the Lead Agency's timely appeal and resolution process for payment inaccuracies and disputes: **The Lead Agency is the final decisionmaker of any payment disputes and can deny payments as defined in among the terms and conditions of the Lead Agency contract to participate in the Child Care Payment Assistance/Certificate Program. The Lead Agency offers a payment dispute resolution process allowing contracting child care providers to request an administrative review related to adverse administrative actions, i.e., disallowed costs, refused payments, or payment reductions, as defined in at Policy 11.36 Provider Requested Child Care Certificate Program Administrative Review. Requests for administrative review must be received in writing by the Lead Agency's Division of Appeals and Hearings no later than 15 calendar days after a date management decision notification is issued. The Division of Appeals and Hearings will acknowledge receipt of the request within five (5) business days. A child care provider has 20 calendar days to provide all supporting written documentation.**
- f. Other. Describe any other payment practices established by the Lead Agency:

4.4.3 Payment practices and parent choice

How do the Lead Agency's payment practices facilitate provider participation in all categories of care? **Lead Agency payment practices ensure timely and dependable reimbursement and reduce barriers for child care providers participating in the Child Care Payment Assistance/Certificate Program.**

4.5 Supply Building

Building a supply of high-quality child care that meets the needs and preferences of parents participating in CCDF is necessary to meet CCDF's core purposes. Lead Agencies must support parent choice by providing some portion of direct services via grants or contracts, including at a minimum for children in underserved geographic areas, infants and toddlers, and children with disabilities.

4.5.1 Child care services available through grants or contracts

Does the Lead Agency provide direct child care services through grants or contracts for child care slots?

☐ Yes, statewide. Describe how the Lead Agency ensures that parents who enroll with a provider who has a grant or contract have choices when selecting a provider:

☐ Yes, in some jurisdictions, but not statewide. Describe how many jurisdictions use grants or contracts for child care slots and how the Lead Agency ensures that parents who enroll with a provider who has a grant or contract have choices when selecting a provider:

☒ No. If no, describe any Lead Agency plans to provide direct child care services through

grants and contracts for child care slots: **The Lead Agency is implementing pilot partnerships with public/government and non-profit organizations to develop and establish locally managed child care administrative hubs that support a network of newly licensed child care providers through its Community Child Care Hub Grants pilot program. This pilot program is intended to increase licensed capacity in child care deserts and for historically underserved populations; lower administrative costs to lessen financial burdens on families; and deliver care that is safe, health, and educationally rich. Current partners with the Lead Agency include Chambliss Center for Children, Porter-Leath, and St. Mary Villa Child Development Center. The Lead Agency has requested a waiver regarding this provision, while awaiting guidance about whether current activities meet compliance.**

If no, skip to question 4.5.2.

- i. If yes, identify the populations of children served through grants or contracts for child care slots (check all that apply). For each population selected, identify the number of slots allocated through grants or contracts for direct service of children receiving CCDF.
 - ☐ Children with disabilities. Number of slots allocated through grants or contracts:
 - ☐ Infants and toddlers. Number of slots allocated through grants or contracts:
 - ☐ Children in underserved geographic areas. Number of slots allocated through grants or contracts:
 - ☐ Children needing non-traditional hour care. Number of slots allocated through grants or contracts:
 - ☐ School-age children. Number of slots allocated through grants or contracts:
 - ☐ Children experiencing homelessness. Number of slots allocated through grants or contracts:
 - ☐ Children in urban areas. Percent of CCDF children served in an average month:
 - ☐ Children in rural areas. Percent of CCDF children served in an average month:
 - ☐ Other populations. If checked, describe:
- ii. If yes, how are rates for slots funded by grants and contracts determined by the Lead Agency?

4.5.2 Care in the child's home (in-home care)

The Lead Agency must allow for in-home care (i.e., care provided in the child's own home) but may limit its use.

Will the Lead Agency limit the use of in-home care in any way?

☒ Yes.

☐ No.

If yes, what limits will the Lead Agency set on the use of in-home care? Check all that apply.

- i. ☐ Restricted based on the minimum number of children in the care of the in-home provider to meet the Fair Labor Standards Act (minimum wage) requirements. Describe:
- ii. ☐ Restricted based on the in-home provider meeting a minimum age requirement. Describe:
- iii. ☐ Restricted based on the hours of care (i.e., certain number of hours, non-traditional work hours). Describe:
- iv. ☒ Restricted to care by relatives. (A relative provider must be at least 18 years of age based on the definition of eligible child care provider.) Describe: **The Lead Agency only permits relative care in circumstances when the child in care resides in the provider's home, i.e., a child or grandchild. The Lead Agency makes available in-home care for non-relatives in the child's home when the child requires special accommodations to meet individual needs. In such instances, these situations would be monitored using the protocols established for Authorized Child Care Professionals.**
- v. ☒ Restricted to care for children with special needs or a medical condition. Describe: **Please see response at 4.5.3.2.iv.**
- vi. ☐ Restricted to in-home providers that meet additional health and safety requirements beyond those required by CCDF. Describe:
- vii. ☐ Other. Describe:

4.5.3 Shortages in the supply of child care

Lead Agencies must identify shortages in the supply of child care providers that meet parents' needs and preferences.

What child care shortages has the Lead Agency identified in the State or Territory, and what is the plan to address the child care shortages?

- a. In infant and toddler programs:
 - i. Data sources used to identify shortages: **The Lead Agency leverages data, including data collected internally, Tennessee Department of Labor and Workforce Development (TDLWD), and U.S. Census estimates among others, to identify underserved care levels.**
 - ii. Method of tracking progress: **The Lead Agency collaborates with other agencies and organizations as well as its CCDF Quality Child Care Partners, including the University of Tennessee Social Work Office of Research and Public Service (SWORPS), to identify, collect, and/or analyze available data that may be used by the Lead Agency to inform strategies to improve infant and toddler programs, supply, and quality gaps. The Lead Agency is exploring the development and implementation of a strategic research plan with SWORPS to identify stronger data collection mechanisms to produce more frequent and reliable analyses to monitor Lead Agency progress, i.e., monitoring licensed capacity (supply) with U.S. Census and other data estimates (demand).**

- iii. What is the plan to address the child care shortages using family child care homes? **The Lead Agency continues to strengthen data availability and data quality on an ongoing basis to identify potential strategies, i.e., initiatives directed to expand the availability of infant and toddler care to fulfill unmet need, develop data-informed policies and services, and deploy resources effectively and in ways that improve both access, affordability, and quality.**
 - iv. What is the plan to address the child care shortages using child care centers? **The Lead Agency continues to strengthen data availability and data quality on an ongoing basis to identify potential strategies, i.e., initiatives directed to expand the availability of infant and toddler care to fulfill unmet need, develop data-informed policies and services, and deploy resources effectively and in ways that improve both access, affordability, and quality.**
- b. In different regions of the State or Territory:
 - i. Data sources used to identify shortages: **The Lead Agency leverages data, including data collected internally, Tennessee Department of Labor and Workforce Development (TDLWD), and U.S. Census estimates among others, to identify underserved geographic areas, e.g., child care deserts.**
 - ii. Method of tracking progress: **The Lead Agency collaborates with other agencies and organizations as well as its CCDF Quality Child Care Partners, including the University of Tennessee Social Work Office of Research and Public Service (SWORPS), to identify, collect, and/or analyze available data that may be used by the Lead Agency to inform strategies to improve programs, supply, and quality gaps geographically. The Lead Agency is exploring the development and implementation of a strategic research plan with SWORPS to identify stronger data collection mechanisms to produce more frequent and reliable analyses to monitor Lead Agency progress, i.e., monitoring licensed capacity (supply) with U.S. Census and other data estimates (demand).**
 - iii. What is the plan to address the child care shortages using family child care homes? **The Lead Agency continues to strengthen data availability and data quality on an ongoing basis to identify potential strategies, i.e., initiatives that emphasize geographically-specific growth of family child care to fulfill unmet need, develop data-informed policies and services, and deploy resources effectively and in ways that improve both access, affordability, and quality.**
 - iv. What is the plan to address the child care shortages using child care centers? **The Lead Agency continues to strengthen data availability and data quality on an ongoing basis to identify potential strategies, i.e., initiatives that emphasize geographically-specific growth of center-based care to fulfill unmet need, develop data-informed policies and services, and deploy resources effectively and in ways that improve both access, affordability, and quality.**
- c. In care for special populations:
 - i. Data sources used to identify shortages: **The Lead Agency leverages data, including data collected internally, Tennessee Department of Labor and Workforce Development (TDLWD), and U.S. Census estimates among others, to identify underserved or special populations.**

- ii. Method of tracking progress: **The Lead Agency collaborates with other agencies and organizations as well as its CCDF Quality Child Care Partners, including the University of Tennessee Social Work Office of Research and Public Service (SWORPS), to identify, collect, and/or analyze available data that may be used by the Lead Agency to inform strategies to improve programs, supply, and quality gaps for identified special populations. The Lead Agency is exploring the development and implementation of a strategic research plan with SWORPS to identify stronger data collection mechanisms to produce more frequent and reliable analyses to monitor Lead Agency progress, i.e., monitoring licensed capacity (supply) with U.S. Census and other data estimates (demand).**
- iii. What is the plan to address the child care shortages using family child care homes? **The Lead Agency continues to strengthen data availability and data quality on an ongoing basis to identify potential strategies, i.e., initiatives that increase capability and capacity to accommodate special populations among family child care to fulfill unmet need, develop data-informed policies and services, and deploy resources effectively and in ways that improve both access, affordability, and quality.**
- iv. What is the plan to address the child care shortages using child care centers? **The Lead Agency continues to strengthen data availability and data quality on an ongoing basis to identify potential strategies, i.e., initiatives that increase the capability and capacity of child care centers to accommodate for special populations and fulfill unmet need, develop data-informed policies and services, and deploy resources effectively and in ways that improve both access, affordability, and quality.**

4.5.4 Strategies to increase the supply of and improve quality of child care

Lead Agencies must develop and implement strategies to increase the supply of and improve the quality of child care services. These strategies must address child care in underserved geographic areas; infants and toddlers; children with disabilities, as defined by the Lead Agency; and children who receive care during non-traditional hours.

How does the Lead Agency identify any gaps in the supply and quality of child care services and what strategies are used to address those gaps for:

- a. Underserved geographic areas. Describe: **The Lead Agency leverages data, including data collected internally, Tennessee Department of Labor and Workforce Development (TDLWD), and U.S. Census estimates among others, to identify underserved geographic areas where demand for care exceeds supply, e.g., child care deserts. The Lead Agency collaborates with other agencies and organizations as well as its CCDF Quality Child Care Partners, including the University of Tennessee Social Work Office of Research and Public Service (SWORPS), to identify, collect, and/or analyze available data that may be used by the Lead Agency to inform strategies that improve the quality and available supply of child care programs based on geographically local or regional needs. The Lead Agency continues to strengthen data availability and data quality on an ongoing basis to identify potential strategies, i.e., initiatives to increase by the Lead Agency's Pre-Licensure team to emphasize growth of child care geographic child care deserts, develop data-informed policies and services, and deploy resources effectively and in ways that strengthen supply**

and quality.

- b. Infants and toddlers. Describe: The Lead Agency leverages data, including data collected internally, Tennessee Department of Labor and Workforce Development (TDLWD), and U.S. Census estimates among others, to identify underserved child populations where demand for infant and toddler care exceeds supply. The Lead Agency collaborates with other agencies and organizations as well as its CCDF Quality Child Care Partners, including the University of Tennessee Social Work Office of Research and Public Service (SWORPS), to identify, collect, and/or analyze available data that may be used by the Lead Agency to inform strategies that improve the quality and available supply of child care programs offering care for infants and toddlers. The Lead Agency continues to strengthen data availability and data quality on an ongoing basis to identify potential strategies, i.e., initiatives that create or expand capacity to care for infants and toddlers among child care providers licensed by the Lead Agency, develop data-informed policies and services, and deploy resources effectively and in ways that strengthen supply and quality.
- c. Children with disabilities. Describe: The Lead Agency leverages data, including data collected internally, Tennessee Department of Labor and Workforce Development (TDLWD), and U.S. Census estimates among others, to identify underserved child populations where demand for specialized care for children with disabilities exceeds supply. The Lead Agency collaborates with other agencies and organizations as well as its CCDF Quality Child Care Partners, including the University of Tennessee Social Work Office of Research and Public Service (SWORPS), to identify, collect, and/or analyze available data that may be used by the Lead Agency to inform strategies that improve the quality and available supply of child care programs offering specialized care for children with disabilities. The Lead Agency continues to strengthen data availability and data quality on an ongoing basis to identify potential strategies, i.e., initiatives that create or expand capability and capacity among child care providers licensed by the Lead Agency to offer specialized care for children with disabilities, develop data-informed policies and services, and deploy resources effectively and in ways that strengthen supply and quality.
- d. Children who receive care during non-traditional hours. Describe: The Lead Agency leverages data, including data collected internally, Tennessee Department of Labor and Workforce Development (TDLWD), and U.S. Census estimates among others, to identify underserved child populations where demand for on-traditional care exceeds supply. The Lead Agency collaborates with other agencies and organizations as well as its CCDF Quality Child Care Partners, including the University of Tennessee Social Work Office of Research and Public Service (SWORPS), to identify, collect, and/or analyze available data that may be used by the Lead Agency to inform strategies that improve the quality and available supply of child care programs offering care for children during non-traditional hours. The Lead Agency continues to strengthen data availability and data quality on an ongoing basis to identify potential strategies, i.e., initiatives by the Lead Agency's Licensing and Pre-Licensure teams to identify child care providers, develop data-informed policies and services, and deploy resources effectively and in ways that strengthen supply and quality.
- e. Other. Specify what population is being focused on to increase supply or improve quality. Describe:

4.5.5 Prioritization of investments in areas of concentrated poverty and unemployment

Lead Agencies must prioritize investments for increasing access to high-quality child care and development services for children of families in areas that have significant concentrations of poverty and unemployment and do not currently have sufficient numbers of such programs.

Describe how the Lead Agency prioritizes increasing access to high-quality child care and development services for children of families in areas that have significant concentrations of poverty and unemployment and that do not have access to high-quality programs. **The Lead Agency is prioritizing investment strategies to increase access to high-quality child care that is safe, healthy, and educationally rich for communities with significant poverty and unemployment, with emphasis on increasing services available for children experiencing homelessness, children with disabilities and special needs, and infants and toddlers. The Lead Agency will implement strategies expanding supply through employee-sponsored child care, initiatives with faith-based organizations, and public-private partnerships.**

Since 2020, the Lead Agency has offered establishment and expansion grants to support newly licensed child care providers. Previously funded with ARP funds, these grants will continue to be offered using CCDF funds. To qualify for an establishment or expansion grant, an applicant must complete certain steps, i.e., attending pre-licensure orientation, obtaining a Federal Employer Identification Number, having necessary business permits, completing initial inspection, a background check, and small business academies, participating in the Child Care Payment Assistance/Certificate Program, etc. Funds from establishment and expansion grants can be used for items that will be important to opening a quality program such as equipment, program enhancements, including supplies, and consultant and coaching services.

The Lead Agency prioritizes growth of licensed family child care providers with emphasis on child care desert and distressed communities collaboratively with the Tennessee Child Care Resource and Referral Network (CCR&R) who administers the Tennessee Family Child Care Network (TFCCN), as well as its other CCDF Quality Child Care Partners, by promoting entrepreneurship, small business ownership opportunities, and the benefits of licensure. CCDF Quality Child Care Partners regularly coordinate and engage the Lead Agency pre-licensing and licensing staff to identify and cultivate potential child care providers and offer assistance with understanding and navigating licensure requirements and processes. Lead Agency pre-licensing staff also served as liaisons to community stakeholders, e.g., local government and employers, to strengthen recognition and understanding for the need of affordable quality child care and partner on developing solutions.

The Lead Agency also offers a 15 percent reimbursement rate differential for child care providers that deliver child care services in counties determined child care deserts or distressed counties.

The Lead Agency is focused on engaging Tennessee employers to invest in their workforce through innovative child care strategies. Through employer and community engagements, options on employer-sponsored child care models are explored including an on-site child care facility, operated by the employer or a third-partner contract, incentivizing the provision of second or third shift with an existing child care agency, contracting with an existing agency, etc. The resources offered can be tailored to develop individualized child care strategies that increase working families' access to high-quality care, promote stability in Tennessee's workforce, and grow the Tennessee economy.

The Lead Agency is making investments with state dollars to grow child care capacity and access in Tennessee through its Non-Profit/Employer Workforce (NEW) Care Partnership Grant pilot program. The pilot program supports partnerships between non-profit organizations and private employers to design and implement strategies that create child care access and capacity to serve the employer's workforce. The NEW Care Partnership pilot seeks to increase licensed capacity particularly in child care deserts and for historically underserved populations; improve financial sustainability of child care providers by leveraging private partnerships; and promote care that is safe, healthy, and educationally rich.

5 Health and Safety of Child Care Settings

Child care health and safety standards and enforcement practices are essential to protect the health and safety of children while out of their parents' care. CCDF provides a minimum threshold for child care health and safety policies and practices but leaves authority to [Lead Agencies](#) to design standards that appropriately protect children's safety and promote nurturing environments that support their healthy growth and development. Lead Agencies should set standards for ratios, group size limits, and provider qualifications that help ensure that the child care environment is conducive to safety and learning and enable caregivers to promote all domains of children's development.

CCDF health and safety standards help set clear expectations for CCDF providers, form the foundation for health and safety training for child care workers, and establish the baseline for monitoring to ensure compliance with health and safety requirements. These health and safety requirements apply to all providers serving children receiving CCDF services – whether the providers are licensed or license-exempt, must be appropriate to the provider setting and age of the children served, must include specific topics and training on those topics, and are subject to monitoring and enforcement procedures by the [Lead Agency](#). CCDF-required annual monitoring and enforcement actions help ensure that CCDF providers are adopting and implementing health and safety requirements.

Through child care licensing, [Lead Agencies](#) set minimum requirements, including health and safety requirements, that child care providers must meet to legally operate in that State or Territory. In some cases, CCDF health and safety requirements may be integrated within the licensing system for licensed providers and may be separate for CCDF providers who are license-exempt.

This section addresses CCDF health and safety requirements, [Lead Agency](#) licensing requirements and exemptions, and comprehensive background checks.

When responding to questions in this section, OCC recognizes that each [Lead Agency](#) identifies and defines its own categories of care. OCC does not expect [Lead Agencies](#) to change their definitions to fit the CCDF-defined categories of care. For these questions, provide responses that best match the CCDF categories of care.

5.1 Licensing Requirements

Each Lead Agency must ensure it has in effect licensing requirements applicable to all child care services provided within the State/Territory (not restricted to providers receiving CCDF funds).

5.1.1 Providers subject to licensing

For each category of care listed below, identify the type of providers subject to licensing and describe the licensing requirements.

- a. Identify the center-based provider types subject to child care licensing: **In Tennessee, an entity that provides care for three (3) or more hours per day for at least five (5) children not related to the primary caregiver must be licensed by the Lead Agency. Lead Agency licensure rules define a child care center at Tenn. Comp. R. & Regs 1240-04-01 as any place or facility operated by any person or entity that provides child care for three (3) or more hours per day for at least thirteen (13) children who are not related to the primary educator.**

Are there other categories of licensed, regulated, or registered center providers the Lead Agency does not categorize as license-exempt?

☒ Yes. If yes, describe: **Drop-in child care center, defined at Tenn. Comp. R. & Regs. 1240-04-01, are a small subcategory of child care centers designed to provide short-term care where attendance for any given child may be short and erratic. Lead Agency licensure rules ensure drop-in centers maintain adequate health, safety and supervision of children in a group setting; but this setting is more a form of regulated casual care in which children are in care for short periods of time. (For example, a child might attend for a few hours one month and not attend again for several weeks or months.) Due to the limited time in care, there is no expectation that children gain any developmental benefit from attending this setting. Due to the nature of care, drop-in centers are not eligible to participate in the Child Care Payment Assistance/Certificate Program.**

☐ No.

- b. Identify the family child care providers subject to licensing: **In Tennessee, an entity that provides care for three (3) or more hours per day for at least five (5) children not related to the primary caregiver must be licensed by the Lead Agency. Lead Agency licensure rules define two forms of family care settings at Tenn. Comp. R. & Regs 1240-04-01:**

Family Child Care Homes are any place or facility which is operated by any person or entity that provides child care for three (3) or more hours per day for at least five (5) children, but not more than seven (7) children who are not related to the primary educator.

Group Child Care Homes are any place or facility operated by any person or entity that provides child care for three (3) or more hours per day for at least eight (8) children who are not related to the primary educator, but not more than twelve (12) children or fifteen (15) children if approved for three (3) additional school-agers.

Are there other categories of regulated or registered family child care providers the Lead Agency does not categorize as license-exempt?

☐ Yes. If yes, describe:

☒ No.

- c. Identify the in-home providers subject to licensing: **In Tennessee, an entity that provides care for three (3) or more hours per day for at least five (5) children not related to the primary caregiver must be licensed by the Lead Agency.**

Are there other categories of regulated or registered in-home providers the Lead Agency does not categorize as license-exempt?

☐ Yes. If yes, describe:

☒ No.

5.1.2 CCDF-eligible providers exempt from licensing

Identify the categories of CCDF-eligible providers who are exempt from licensing requirements, the types of exemptions, and describe how these exemptions do not endanger the health, safety, and development of children. -Relative providers, as defined in CCDF, are addressed in subsection 5.8.

a. License-exempt center-based child care. Describe by answering the questions below.

- i. Identify the categories of CCDF-eligible center-based child care providers who are exempt from licensing requirements. **The Lead Agency identifies child care centers regulated by the Tennessee Department of Education (TDOE) as defined at Tenn. Comp. R. & Regs. 0520-12-01 as CCDF-eligible and exempt from licensing requirements. These programs receive a certificate of approval rather than a license. TDOE is mandated to inspect and approve all programs subject to the State Board's jurisdiction pursuant to Tenn. Code Ann. § 49-1-302 and in accordance with Tenn. Code Ann. §§ 49-1-1101-1109. These programs include:**
- Any public school administered early childhood education programs;
 - Programs operated by private schools as defined by Tenn. Code Ann. § 49-6-3001(c)(3);
 - Child care provided by church affiliated schools as defined by Tenn. Code Ann. § 49-50-801;
 - State-approved Montessori school programs;
 - Before or After School child care programs operated pursuant to Tenn. Code Ann. §§ 49-2-203(b)(11) and 49-6-707;
 - Programs providing center-based early intervention services through Tennessee Early Intervention Services (TEIS); and
 - Child care provided in federally regulated programs, including:
 - o Title I Preschools,
 - o 21st Century Community Learning Centers, and
 - o All school-administered Head Start and Even Start programs.

The Lead Agency identifies Boys and Girls Clubs child care programs as CCDF-eligible and exempt from licensing requirements pursuant to Tenn. Code Ann. § 71-3-503(a)(10):

(A) Any program or facility operated by, or in affiliation with, any Boys and Girls Club that provides care for school-aged children and that holds membership in good standing with Boys and Girls Clubs of America and that is certified as being in compliance with the purposes, procedures, voluntary standards and mandatory requirements of Boys and Girls Clubs of America;

(B) Any such Boys and Girls Club that applies to participate in state or federally funded programs that require child care licensing by the state as a term of eligibility may elect to apply to the department for child care licensing and

regulation. Upon meeting departmental standards, the Boys and Girls Club may be licensed as a child care center/provider;

(C) The department is hereby authorized to grant a waiver from any rule concerning grouping of children and adult/child ratios for child care centers to any Boys and Girls Club that falls within both subdivisions (a)(11)(A) and (a)(10)(A) and (B), and that is providing after-school child care to mixed groups of school-aged children.

Boys and Girls Club child care programs may choose to be licensed by the Lead Agency or regulated by TDOE; however, these providers are the only exempt entities not otherwise regulated that are CCDF-eligible.

- ii. Describe the exemptions based on length of day, threshold on the number of children in care, ages of children in care, or any other factors applicable to the exemption. **Child care for license-exempt child care providers regulated by the Tennessee Department of Education (TDOE) are defined at Tenn. Comp. R. & Regs 0520-12-01, as the provision of supervision, protection, and at a minimum, the basic needs of a child or children for more than three (3) hours a day, but less than twenty-four (24) hours a day.**

The Lead Agency identifies Boys and Girls Clubs child care programs as CCDF-eligible and exempt from licensing requirements pursuant to Tenn. Code Ann. § 71-3-503(a)(10):

(A) Any program or facility operated by, or in affiliation with, any Boys and Girls Club that provides care for school-aged children and that holds membership in good standing with Boys and Girls Clubs of America and that is certified as being in compliance with the purposes, procedures, voluntary standards and mandatory requirements of Boys and Girls Clubs of America;

(B) Any such Boys and Girls Club that applies to participate in state or federally funded programs that require child care licensing by the state as a term of eligibility may elect to apply to the department for child care licensing and regulation. Upon meeting departmental standards, the Boys and Girls Club may be licensed as a child care center/provider;

(C) The department is hereby authorized to grant a waiver from any rule concerning grouping of children and adult/child ratios for child care centers to any Boys and Girls Club that falls within both subdivisions (a)(11)(A) and (a)(10)(A) and (B), and that is providing after-school child care to mixed groups of school-aged children.

- iii. Describe how the exemptions for these CCDF-eligible providers do not endanger the health, safety, and development of children. **Statute requires the rules for approved agencies regulated by the Tennessee Department of Education (TDOE) to be substantially the same as those for child care providers licensed by the Lead Agency. TDOE staff monitor license-exempt child care providers no fewer than two (2) times annually, including annual monitoring of CCDBG requirements for providers contracted with the Lead Agency to participate in the Child Care Payment Assistance/Certificate Program. All applicable CCDBG requirements are outlined in the Child Care Payment Assistance/Certificate Program contract.**

The Boys and Girls Clubs organization structure includes personnel dedicated to

helping Boys and Girls Clubs establish best practices that create and maintain safe settings for the children in their care. Care is also limited to older school-age children and clubs generally have ratio guidelines in the 1:15 to 1:20 range.

The Lead Agency has developed a health and safety monitoring tool for Boys and Girls Clubs that participate in the Child Care Payment Assistance/Certificate Program for compliance with CCDBG requirements. All applicable CCDBG requirements are outlined in the Child Care Payment Assistance/Certificate Program contract.

- b. License-exempt family child care. Describe by answering the questions below.
 - i. Identify the categories of CCDF-eligible family child care providers who are exempt from licensing requirements. **The Lead Agency identifies Authorized Child Care Professionals as CCDF-eligible license-exempt family child care providers, individuals who may care for up to six (6) children (four (4) not related to the individual and up to two (2) additional related children) and who are contracted with the Lead Agency to participate in the Child Care Payment Assistance/Certificate Program as a result of parental choice.**
 - ii. Describe the exemptions based on length of day, threshold on the number of children in care, ages of children in care, or any other factors applicable to the exemption. **The Lead Agency identifies Authorized Child Care Professionals as CCDF-eligible license-exempt family child care providers, individuals who may care for up to six (6) children (four (4) not related to the individual and up to two (2) additional related children) and who are contracted with the Lead Agency to participate in the Child Care Payment Assistance/Certificate Program as a result of parental choice. A maximum of four children approved through the Certificate Program may be enrolled to an Authorized Child Care Professional.**
 - iii. Describe how the exemptions for these CCDF-eligible providers do not endanger the health, safety, and development of children. **The Lead Agency has developed a health and safety monitoring tool for Authorized Child Care Professionals who participate in the Child Care Payment Assistance/Certificate Program for compliance with CCDBG requirements. All applicable CCDBG requirements are outlined in the Child Care Payment Assistance/Certificate Program contract.**
- c. In-home care (care in the child's own home by a non-relative). Describe by answering the questions below.
 - i. Identify the categories of CCDF-eligible in-home care (care in the child's own home by a non- relative) providers who are exempt from licensing requirements. **The Lead Agency only permits relative care in circumstances when the child in care resides in the provider's home, i.e., a child or grandchild. The Lead Agency makes available in-home care for non-relatives in the child's home when the child requires special accommodations to meet individual needs. In such instances, these situations would be monitored using the protocols established for Authorized Professionals.**
 - ii. Describe the exemptions based on length of day, threshold on the number of children in care, ages of children in care, or any other factors applicable to the

exemption. **Please see response at 5.1.2b.ii.**

- iii. Describe how the exemptions for these CCDF-eligible providers do not endanger the health, safety, and development of children. **Please see response at 5.1.2b.ii.**

5.2 Ratios, Group Size, and Qualifications for CCDF Providers

Lead Agencies must have child care standards for providers receiving CCDF funds, appropriate to the type of child care setting involved, that address appropriate staff:child ratios, group size limits for specific age populations, and the required qualifications for providers. Lead Agencies should map their categories of care to the CCDF categories. Exemptions for relative providers will be addressed in subsection 5.8.

5.2.1 Age classifications

Describe how the **Lead Agency** defines the following age classifications (e.g., Infant: 0 – 18 months).

- a. Infant. Describe: **A child who is six (6) weeks through twelve (12) months of age or until ambulation, as defined by Lead Agency licensure rules at Tenn. Comp. R. & Regs 1240-04-01.**
- b. Toddler. Describe: **A child who is thirteen (13) months through thirty (30) months of age, as defined by Lead Agency licensure rules at Tenn. Comp. R. & Regs 1240-04-01.**
- c. Preschool. Describe: **A child who is at least thirty-one (31) months of age and who has not entered kindergarten, as defined by Lead Agency licensure rules at Tenn. Comp. R. & Regs 1240-04-01.**
- d. School-Age. Describe: **A child who has entered kindergarten through seventeen (17) years of age. A child may be considered school-age during the summer immediately preceding their entry into kindergarten, as defined by Lead Agency licensure rules at Tenn. Comp. R. & Regs 1240-04-01.**

5.2.2 Ratio and group size limits

Provide the ratio and group size limits for settings and age groups below.

- a. Licensed CCDF center-based care:
 - i. Infant.
Ratio: **1:4**
Group size: **8**
 - ii. Toddler.
Ratio: **1:6**
Group size: **12**
 - iii. Preschool.
Ratio: **2 years, 1:7; 3 years, 1:9; 4 years, 1:13; and 5 years, 1:16**
Group size: **24 months to 35 months, 14; 3 years, 18; 4 years, 20; and 5**

years, 20.

iv. School-Age.

Ratio: Chart 1: Currently registered and attending school, 1:20

Group size: Chart 1: No maximum size; subject to supervision, ratio, and license capacity as defined by Lead Agency licensure rules at Tenn. Comp. R. & Regs 1240-04-01. When more than twelve (12) children in first grade and above are present, a separate educator, a separate group, and a separate program shall be provided for them.

v. Mixed-Age Groups (if applicable).

Ratio: Chart 2:

6 weeks to 30 months, 1:5; 12 months to 36 months, 1:6; 2 years to 4 years, 1:8; 2½ years to 3 years (or 30 months to 47 months), 1:9; 2 years to 3 years, 1:8; 2½ years to 5 years, 1:11; 2½ years to 12 years, 1:10; 3 years to 4 years, 1:12; 3 years to 5 years, 1:13; 4 years to 6 years, 1:16; 5 years to 12 years, 1:20; 5 years to 11 years (Kindergarten through 5th grade), 1:20; and 11 years to 17 years (6th grade through 12th grade), 1:20

Chart 3: First/last hour and one-half (½) of each day only:

2½ years to 5 years, 1:10; 3 years to 12 years, 1:15; 4 years to 12 years, 1:20; and 13 years to 17 years, 1:20.

Group size: Chart 2:

6 weeks to 30 months, 10; 12 months to 36 months, 12; 2 years to 4 years, 16; 2½ years to 3 years (or 30 months to 47 months), 18; 2 Years to 3 years, 16; 2½ years to 5 years, 20; 2½ years to 12 years, 10; 3 years to 4 years, 22; 3 years to 5 years, 22; 4 years to 6 years, 24; 5 years to 12 years, no maximum; 5 years to 11 years (Kindergarten through 5th grade), no maximum; and 11 years to 17 years (6th grade through 12th grade), no maximum.

Chart 3: First/last hour and one-half (½) of each day only:

2½ years to 5 years, 10; 3 years to 12 years, 15; 4 years to 12 years, 20; and 13 years to 17 years, 20.

b. If different, provide the ratios and group size requirements for the license-exempt center-based providers who receive CCDF funds under the following age groups:

i. ☐ Not applicable. There are no differences in ratios and group size requirements.

ii. Infant: Ratio: 1:4
Group size: 8

iii. Toddler: Ratio: 1:6
Group size: 12

iv. Preschool: Ratio: TDOE Chart 1: Two (2) years old, 1:7; Three (3) years old, 1:9; Four (4) years old, 1:13; and VPK, 619, and PDG, 1:10

Group size: TDOE Chart 1: Two (2) years old, 14; Three (3) years old, 18; Four (4) years old, 20; and VPK, 619, and PDG, 20

- v. School-Age: As defined at Tenn. Comp. R. & Regs. 0520-12-01, a child who is five (5) years of age and enrolled in kindergarten (K) through seventeen (17) years of age. A five (5)-year-old may be classified as a school-age child in the summer immediately preceding the child's fall entry into kindergarten. TDOE ratios for children include elementary school, 1:20; middle school 1:30; and high school, 1:30; with no maximum group sizes.

Statute requires the rules for approved agencies regulated by the Tennessee Department of Education (TDOE) to be substantially the same as those for child care providers licensed by the Lead Agency. TDOE staff monitor license-exempt child care providers no fewer than two (2) times annually, including annual monitoring of CCDBG requirements for providers contracted with the Lead Agency to participate in the Child Care Payment Assistance/Certificate Program. All applicable CCDBG requirements are outlined in the Child Care Payment Assistance/Certificate Program contract.

The Boys and Girls Clubs organization structure includes personnel dedicated to helping Boys and Girls Clubs establish best practices that create and maintain safe settings for the children in their care. Care is limited to school-age children and clubs generally have ratio guidelines in the 1:15 to 1:20 range but may vary by location and/or activity. Ratios recommended by the Boys and Girls Clubs of America are as follows: Drop-in 1:25; Instructional 1:20; Group Clubs 1:15; Teams 1:15; Day Camp 1:10; Day Trips 1:8; Overnight 1:6 (with minimum of 2 adults present); Swimming 1 Lifeguard: 25 Swimmers; Swimming 1 Spotter: 10 Swimmers.

- vi. Mixed-Age Groups: Ratio:
TDOE Chart 2 : Infant through 18 months of age, 1:4; 18 months through 36 months, 1:8; 3 years through 4 years, 1:10; 3 years through 6 years not including first grade children, 1:13.
TDOE Chart 3: Before and After School programs ☐ Infant through 18 months of age, 1:4; 18 months through 36 months, 1:8; 3 years through 4 years, 1:13; and 4 years through kindergarten, 1:16.

Group size:

TDOE Chart 2: Infant through 18 months of age, 8; 18 months through 36 months, 16; 3 years through 4 years, 20; 3 years through 6 years not including first grade children, 24. TDOE Chart 3: Before and After School programs ☐ Infant through 18 months of age, 8; 18 months through 36 months, 16; 3 years through 4 years, 22; and 4 years through kindergarten, 24.

- c. Licensed CCDF family child care home providers:

- i. Infant (if applicable)

Ratio: Family Child Care Home:

Including children related to the primary educator under nine (9) years of age:

- Seven (7) or fewer children; and no more than four under two (2) years, 1:7;
- Seven (7) or fewer children; and five (5) or more under two (2) years, 2:7;
- More than seven (7) or fewer children; and no more than four (4) under two (2) years, 2:7; and
- More than seven (7) children; and five (5) or more under two (2) years, 3:7.

Group Child Care Home:

Including children related to the primary educator under nine (9) years of age:

- 12 to 15 children (any number over age 12 must be school-age); and no more than 12 children three (3) years of age or older, 1:12-1:15;
- 12 to 15 children (any number over age 12 must be school-age); and up to nine (9) children under three (3) years of age; and no more than four (4) present under two (2) years of age, 2:12-2:15; and
- 12 to 15 children (any number over age 12 must be school-age); 10 or more under three (3) years of age, 3:12-3:15.

Group size: Family Child Care Home:

Including children related to the primary educator under nine (9) years of age:

- Seven (7) or fewer children; and no more than four under two (2) years, 1:7;
- Seven (7) or fewer children; and five (5) or more under two (2) years, 2:7;
- More than seven (7) or fewer children; and no more than four (4) under two (2) years, 2:7; and
- More than seven (7) children; and five (5) or more under two (2) years.

Group Child Care Home:

Including children related to the primary educator under nine (9) years of age:

- 12 to 15 children (any number over age 12 must be school-age); and no more than 12 children three (3) years of age or older, 1:12-1:15;
- 12 to 15 children (any number over age 12 must be school-age); and up to nine (9) children under three (3) years of age; and no more than four (4) present under two (2) years of age, 2:12-2:15; and
- 12 to 15 children (any number over age 12 must be school-age); 10 or more under three (3) years of age, 3:12-3:15

ii. Toddler (if applicable)

Ratio: Family Child Care Home:

Including children related to the primary educator under nine (9) years of age:

- Seven (7) or fewer children; and no more than four under two (2) years, 1:7;
- Seven (7) or fewer children; and five (5) or more under two (2) years, 2:7;
- More than seven (7) or fewer children; and no more than four (4) under two (2) years, 2:7; and
- More than seven (7) children; and five (5) or more under two (2) years, 3:7.

Group Child Care Home:

Including children related to the primary educator under nine (9) years of age:

- 12 to 15 children (any number over age 12 must be school-age); and no more than 12 children three (3) years of age or older, 1:12-1:15;
- 12 to 15 children (any number over age 12 must be school-age); and up to nine (9) children under three (3) years of age; and no more than four (4) present under two (2) years of age, 2:12-2:15; and
- 12 to 15 children (any number over age 12 must be school-age); 10 or more under three (3) years of age, 3:12-3:15.

Group size: Family Child Care Home:

Including children related to the primary educator under nine (9) years of age:

- Seven (7) or fewer children; and no more than four under two (2) years, 1:7;
- Seven (7) or fewer children; and five (5) or more under two (2) years, 2:7;
- More than seven (7) or fewer children; and no more than four (4) under two (2) years, 2:7; and
- More than seven (7) children; and five (5) or more under two (2) years.

Group Child Care Home:

Including children related to the primary educator under nine (9) years of age:

- 12 to 15 children (any number over age 12 must be school-age); and no more than 12 children three (3) years of age or older, 1:12-1:15;
- 12 to 15 children (any number over age 12 must be school-age); and up to nine (9) children under three (3) years of age; and no more than four (4) present under two (2) years of age, 2:12-2:15; and
- 12 to 15 children (any number over age 12 must be school-age); 10 or more under three (3) years of age, 3:12-3:15

iii. Preschool (if applicable)

Ratio: Family Child Care Home:

Including children related to the primary educator under nine (9) years of age:

- Seven (7) or fewer children; and no more than four under two (2) years,

1:7;

- Seven (7) or fewer children; and five (5) or more under two (2) years, 2:7;

- More than seven (7) or fewer children; and no more than four (4) under two (2) years, 2:7; and

- More than seven (7) children; and five (5) or more under two (2) years, 3:7.

Group Child Care Home:

Including children related to the primary educator under nine (9) years of age:

- 12 to 15 children (any number over age 12 must be school-age); and no more than 12 children three (3) years of age or older, 1:12-1:15;

- 12 to 15 children (any number over age 12 must be school-age); and up to nine (9) children under three (3) years of age; and no more than four (4) present under two (2) years of age, 2:12-2:15; and

- 12 to 15 children (any number over age 12 must be school-age); 10 or more under three (3) years of age, 3:12-3:15

Group size: Family Child Care Home:

Including children related to the primary educator under nine (9) years of age:

- Seven (7) or fewer children; and no more than four under two (2) years, 1:7;

- Seven (7) or fewer children; and five (5) or more under two (2) years, 2:7;

- More than seven (7) or fewer children; and no more than four (4) under two (2) years, 2:7; and

- More than seven (7) children; and five (5) or more under two (2) years.

Group Child Care Home:

Including children related to the primary educator under nine (9) years of age:

- 12 to 15 children (any number over age 12 must be school-age); and no more than 12 children three (3) years of age or older, 1:12-1:15;

- 12 to 15 children (any number over age 12 must be school-age); and up to nine (9) children under three (3) years of age; and no more than four (4) present under two (2) years of age, 2:12-2:15; and

- 12 to 15 children (any number over age 12 must be school-age); 10 or more under three (3) years of age, 3:12-3:15

iv. **School-Age (if applicable)**

Ratio: Family Child Care Home:

Including children related to the primary educator under nine (9) years of age:

- Seven (7) or fewer children; and no more than four under two (2) years, 1:7;

- Seven (7) or fewer children; and five (5) or more under two (2) years,

2:7;

- More than seven (7) or fewer children; and no more than four (4) under two (2) years, 2:7; and
- More than seven (7) children; and five (5) or more under two (2) years, 3:7.

Group Child Care Home:

Including children related to the primary educator under nine (9) years of age:

- 12 to 15 children (any number over age 12 must be school-age); and no more than 12 children three (3) years of age or older, 1:12-1:15;
- 12 to 15 children (any number over age 12 must be school-age); and up to nine (9) children under three (3) years of age; and no more than four (4) present under two (2) years of age, 2:12-2:15; and
- 12 to 15 children (any number over age 12 must be school-age); 10 or more under three (3) years of age, 3:12-3:15.

Group size: Family Child Care Home:

Including children related to the primary educator under nine (9) years of age:

- Seven (7) or fewer children; and no more than four under two (2) years, 1:7;
- Seven (7) or fewer children; and five (5) or more under two (2) years, 2:7;
- More than seven (7) or fewer children; and no more than four (4) under two (2) years, 2:7; and
- More than seven (7) children; and five (5) or more under two (2) years.

Group Child Care Home:

Including children related to the primary educator under nine (9) years of age:

- 12 to 15 children (any number over age 12 must be school-age); and no more than 12 children three (3) years of age or older, 1:12-1:15;
- 12 to 15 children (any number over age 12 must be school-age); and up to nine (9) children under three (3) years of age; and no more than four (4) present under two (2) years of age, 2:12-2:15; and
- 12 to 15 children (any number over age 12 must be school-age); 10 or more under three (3) years of age, 3:12-3:15

v. **Mixed-Age Groups**

Ratio: Family Child Care Home:

Including children related to the primary educator under nine (9) years of age:

- Seven (7) or fewer children; and no more than four under two (2) years, 1:7;
- Seven (7) or fewer children; and five (5) or more under two (2) years, 2:7;
- More than seven (7) or fewer children; and no more than four (4) under

two (2) years, 2:7; and

- More than seven (7) children; and five (5) or more under two (2) years, 3:7.

Group Child Care Home:

Including children related to the primary educator under nine (9) years of age:

- 12 to 15 children (any number over age 12 must be school-age); and no more than 12 children three (3) years of age or older, 1:12-1:15;
- 12 to 15 children (any number over age 12 must be school-age); and up to nine (9) children under three (3) years of age; and no more than four (4) present under two (2) years of age, 2:12-2:15; and
- 12 to 15 children (any number over age 12 must be school-age); 10 or more under three (3) years of age, 3:12-3:15.

Group size: Family Child Care Home:

Including children related to the primary educator under nine (9) years of age:

- Seven (7) or fewer children; and no more than four under two (2) years, 1:7;
- Seven (7) or fewer children; and five (5) or more under two (2) years, 2:7;
- More than seven (7) or fewer children; and no more than four (4) under two (2) years, 2:7; and
- More than seven (7) children; and five (5) or more under two (2) years.

Group Child Care Home:

Including children related to the primary educator under nine (9) years of age:

- 12 to 15 children (any number over age 12 must be school-age); and no more than 12 children three (3) years of age or older, 1:12-1:15;
- 12 to 15 children (any number over age 12 must be school-age); and up to nine (9) children under three (3) years of age; and no more than four (4) present under two (2) years of age, 2:12-2:15; and
- 12 to 15 children (any number over age 12 must be school-age); 10 or more under three (3) years of age, 3:12-3:15

d. Are any of the responses above different for license-exempt family child care homes?

☐ No.

☒ Yes. If yes, describe how the ratio and group size requirements for license-exempt providers vary by age of children served. **The Lead Agency identifies Authorized Child Care Professionals as CCDF-eligible license-exempt family child care providers, individuals who may care for up to six (6) children (four (4) not related to the individual and up to two (2) additional related children) and who are contracted with the Lead Agency to participate in the Child Care Payment Assistance/Certificate Program as a result of parental choice. The Lead Agency does not proscribe ratio or group size requirements for this category of provider.**

☐ Not applicable. The Lead Agency does not have license-exempt family child care homes.

e. Licensed in-home care (care in the child's own home):

i. Infant (if applicable)

Ratio: The Lead Agency only permits relative care in circumstances when the child in care resides in the provider's home, i.e., a child or grandchild. The Lead Agency makes available in-home care for non-relatives in the child's home when the child requires special accommodations to meet individual needs. In such instances, these situations would be monitored using the protocols established for Authorized Professionals.

The Lead Agency identifies Authorized Child Care Professionals as CCDF-eligible license-exempt family child care providers, individuals who may care for up to six (6) children (four (4) not related to the individual and up to two (2) additional related children) and who are contracted with the Lead Agency to participate in the Child Care Payment Assistance/Certificate Program as a result of parental choice. The Lead Agency does not proscribe ratio or group size requirements for this category of provider.

Group size: The Lead Agency only permits relative care in circumstances when the child in care resides in the provider's home, i.e., a child or grandchild. The Lead Agency makes available in-home care for non-relatives in the child's home when the child requires special accommodations to meet individual needs. In such instances, these situations would be monitored using the protocols established for Authorized Professionals.

The Lead Agency identifies Authorized Child Care Professionals as CCDF-eligible license-exempt family child care providers, individuals who may care for up to six (6) children (four (4) not related to the individual and up to two (2) additional related children) and who are contracted with the Lead Agency to participate in the Child Care Payment Assistance/Certificate Program as a result of parental choice. The Lead Agency does not proscribe ratio or group size requirements for this category of provider.

ii. Toddler (if applicable)

Ratio: The Lead Agency only permits relative care in circumstances when the child in care resides in the provider's home, i.e., a child or grandchild. The Lead Agency makes available in-home care for non-relatives in the child's home when the child requires special accommodations to meet individual needs. In such instances, these situations would be monitored using the protocols established for Authorized Professionals.

The Lead Agency identifies Authorized Child Care Professionals as CCDF-

eligible license-exempt family child care providers, individuals who may care for up to six (6) children (four (4) not related to the individual and up to two (2) additional related children) and who are contracted with the Lead Agency to participate in the Child Care Payment Assistance/Certificate Program as a result of parental choice. The Lead Agency does not proscribe ratio or group size requirements for this category of provider.

Group size: The Lead Agency only permits relative care in circumstances when the child in care resides in the provider's home, i.e., a child or grandchild. The Lead Agency makes available in-home care for non-relatives in the child's home when the child requires special accommodations to meet individual needs. In such instances, these situations would be monitored using the protocols established for Authorized Professionals.

The Lead Agency identifies Authorized Child Care Professionals as CCDF-eligible license-exempt family child care providers, individuals who may care for up to six (6) children (four (4) not related to the individual and up to two (2) additional related children) and who are contracted with the Lead Agency to participate in the Child Care Payment Assistance/Certificate Program as a result of parental choice. The Lead Agency does not proscribe ratio or group size requirements for this category of provider.

iii. Preschool (if applicable)

Ratio: The Lead Agency only permits relative care in circumstances when the child in care resides in the provider's home, i.e., a child or grandchild. The Lead Agency makes available in-home care for non-relatives in the child's home when the child requires special accommodations to meet individual needs. In such instances, these situations would be monitored using the protocols established for Authorized Professionals.

The Lead Agency identifies Authorized Child Care Professionals as CCDF-eligible license-exempt family child care providers, individuals who may care for up to six (6) children (four (4) not related to the individual and up to two (2) additional related children) and who are contracted with the Lead Agency to participate in the Child Care Payment Assistance/Certificate Program as a result of parental choice. The Lead Agency does not proscribe ratio or group size requirements for this category of provider.

Group size: The Lead Agency only permits relative care in circumstances when the child in care resides in the provider's home, i.e., a child or grandchild. The Lead Agency makes available in-home care for non-relatives in the child's home when the child requires special accommodations to meet individual needs. In such instances, these situations would be monitored using the protocols established for

Authorized Professionals.

The Lead Agency identifies Authorized Child Care Professionals as CCDF-eligible license-exempt family child care providers, individuals who may care for up to six (6) children (four (4) not related to the individual and up to two (2) additional related children) and who are contracted with the Lead Agency to participate in the Child Care Payment Assistance/Certificate Program as a result of parental choice. The Lead Agency does not proscribe ratio or group size requirements for this category of provider.

iv. **School-Age (if applicable)**

Ratio: The Lead Agency only permits relative care in circumstances when the child in care resides in the provider's home, i.e., a child or grandchild. The Lead Agency makes available in-home care for non-relatives in the child's home when the child requires special accommodations to meet individual needs. In such instances, these situations would be monitored using the protocols established for Authorized Professionals.

The Lead Agency identifies Authorized Child Care Professionals as CCDF-eligible license-exempt family child care providers, individuals who may care for up to six (6) children (four (4) not related to the individual and up to two (2) additional related children) and who are contracted with the Lead Agency to participate in the Child Care Payment Assistance/Certificate Program as a result of parental choice. The Lead Agency does not proscribe ratio or group size requirements for this category of provider.

Group size: The Lead Agency only permits relative care in circumstances when the child in care resides in the provider's home, i.e., a child or grandchild. The Lead Agency makes available in-home care for non-relatives in the child's home when the child requires special accommodations to meet individual needs. In such instances, these situations would be monitored using the protocols established for Authorized Professionals.

The Lead Agency identifies Authorized Child Care Professionals as CCDF-eligible license-exempt family child care providers, individuals who may care for up to six (6) children (four (4) not related to the individual and up to two (2) additional related children) and who are contracted with the Lead Agency to participate in the Child Care Payment Assistance/Certificate Program as a result of parental choice. The Lead Agency does not proscribe ratio or group size requirements for this category of provider.

v. **Mixed-Age Groups (if applicable)**

Ratio: The Lead Agency only permits relative care in circumstances when the child in care resides in the provider's home, i.e., a child or grandchild.

The Lead Agency makes available in-home care for non-relatives in the child's home when the child requires special accommodations to meet individual needs. In such instances, these situations would be monitored using the protocols established for Authorized Professionals.

The Lead Agency identifies Authorized Child Care Professionals as CCDF-eligible license-exempt family child care providers, individuals who may care for up to six (6) children (four (4) not related to the individual and up to two (2) additional related children) and who are contracted with the Lead Agency to participate in the Child Care Payment Assistance/Certificate Program as a result of parental choice. The Lead Agency does not proscribe ratio or group size requirements for this category of provider.

Group size: The Lead Agency only permits relative care in circumstances when the child in care resides in the provider's home, i.e., a child or grandchild. The Lead Agency makes available in-home care for non-relatives in the child's home when the child requires special accommodations to meet individual needs. In such instances, these situations would be monitored using the protocols established for Authorized Professionals.

The Lead Agency identifies Authorized Child Care Professionals as CCDF-eligible license-exempt family child care providers, individuals who may care for up to six (6) children (four (4) not related to the individual and up to two (2) additional related children) and who are contracted with the Lead Agency to participate in the Child Care Payment Assistance/Certificate Program as a result of parental choice. The Lead Agency does not proscribe ratio or group size requirements for this category of provider.

- f. Are any of the responses above different for license-exempt in-home care?

☒ No.

☐ Yes. If yes, describe how the ratio and group size requirements for license-exempt in-home care vary by age of children served.

5.2.3 Teacher/caregiver qualifications for licensed, regulated, or registered care

Provide the teacher/caregiver qualifications for each category of care.

- a. Licensed center-based care

- i. Describe the teacher qualifications for licensed CCDF center-based care (e.g., degrees, credentials, etc.), including any variations based on the ages of children in care: **Minimum qualifications for educators working in licensed center-based care are defined by Lead Agency licensure rules at Tenn. Comp. R. & Regs 1240-04-01: Center educators must be at least 18 years of age and have a high school diploma or equivalent educational credential if the only educator for a group or to meet group requirements. Drop-In center educators must be at least 18 years of age and have a high school diploma or equivalent educational credential.**

Prior to having contact with children, each new employee shall complete training in the following areas:

1. Shaken baby syndrome/abusive head trauma/child maltreatment; and
2. Pre-service training as recognized by the Department which shall include all federally required components.
3. Sudden Infant Death Syndrome Training (if caring for infants)

Prior to having contact with children, each new employee shall receive orientation in, and have a working knowledge of the following items:

1. Program philosophy and policies;
2. Job description;
3. Emergency health and safety procedures;
4. Behavior management procedures;
5. Detection, reporting, and prevention of child abuse;
6. Procedures for receiving and releasing children;
7. Safe sleep procedures;
8. Meal service and safe food preparation policies;
9. Supervision during high risk activities such as eating and outdoor play;
10. Food allergies;
11. Expectations for communications with parent/guardian;
12. Disease control and health promotion, including childhood obesity and the beneficial health impacts of physical activity;
13. An overview of licensing requirements; and
14. Information on risks of Cytomegalovirus (CMV) to female employees of childbearing age.

- ii. Describe the director qualification for licensed CCDF center-based care, including any variations based on the ages of children in care or the number of staff employed: **Minimum qualifications for directors working in licensed center-based care are defined by Lead Agency licensure rules at Tenn. Comp. R. & Regs 1240-04-01: Center directors must be at least 21 years of age and either have:**
 - Graduated from an accredited 4-year college or be a registered nurse with less than a 4-year degree and one (1) year of full-time experience with children in a group setting; or
 - 36 hours of coursework, at least 30 of which shall be in business management, child or youth development, early childhood education, or a closely related field, or a Tennessee Early Childhood Administrator Credential (TECPAC); and two (2) years of full-time experience with children in a group setting; or
 - High School diploma (or equivalent) and completion of the Tennessee Early Childhood Training Alliance (TECTA) 30-clock hour Administrator Orientation training (or equivalent as may be recognized by the Lead Agency); and four (4) years of full-time experience with children in a group; or,
 - Continuous employment as an on-site child care director or a child care agency owner as of the effective date of these rules.**Center assistant directors must be at least 18 years of age, have a high school diploma or equivalent educational credential, and a minimum of two (2) years of**

experience.

Drop-In center directors must be at least 21 years of age, have a high school diploma or equivalent educational credential, and a minimum of one (1) year of experience.

Prior to having contact with children, each new employee shall complete training in the following areas:

1. Shaken baby syndrome/abusive head trauma/child maltreatment; and
2. Pre-service training as recognized by the Department which shall include all federally required components.
3. Sudden Infant Death Syndrome Training (if caring for infants)

Prior to having contact with children, each new employee shall receive orientation in, and have a working knowledge of the following items:

1. Program philosophy and policies;
2. Job description;
3. Emergency health and safety procedures;
4. Behavior management procedures;
5. Detection, reporting, and prevention of child abuse;
6. Procedures for receiving and releasing children;
7. Safe sleep procedures;
8. Meal service and safe food preparation policies;
9. Supervision during high risk activities such as eating and outdoor play;
10. Food allergies;
11. Expectations for communications with parent/guardian;
12. Disease control and health promotion, including childhood obesity and the beneficial health impacts of physical activity;
13. An overview of licensing requirements; and
14. Information on risks of Cytomegalovirus (CMV) to female employees of childbearing age.

b. Licensed family child care

Describe the provider qualifications for licensed family child care homes, including any variations based on the ages of children in care: **Minimum qualifications for educators working in licensed family-based care are defined by Lead Agency licensure rules at Tenn. Comp. R. & Regs 1240-04-01:**

Family child care home and group child care home primary educators must be at least 18 years of age and have a high school diploma or equivalent educational credential. Family child care home and group child care home Educator assistants must be at least 16 years of age and have no minimum requirements.

Prior to having contact with children, each new employee shall complete training in the following areas:

1. Shaken baby syndrome/abusive head trauma/child maltreatment; and
2. Pre-service training as recognized by the Department which shall include all federally required components.
3. Sudden Infant Death Syndrome Training (if caring for infants)

Prior to having contact with children, each new employee shall receive orientation in, and have a working knowledge of the following items:

1. Program philosophy and policies;
2. Job description;
3. Emergency health and safety procedures;
4. Behavior management procedures;
5. Detection, reporting, and prevention of child abuse;
6. Procedures for receiving and releasing children;
7. Safe sleep procedures;
8. Meal service and safe food preparation policies;
9. Supervision during high risk activities such as eating and outdoor play;
10. Food allergies;
11. Expectations for communications with parent/guardian;
12. Disease control and health promotion, including childhood obesity and the beneficial health impacts of physical activity;
13. An overview of licensing requirements; and
14. Information on risks of Cytomegalovirus (CMV) to female employees of childbearing age.

- c. Licensed, regulated, or registered in-home care (care in the child's own home by a non-relative)

Describe the provider qualifications for licensed, regulated, or registered in-home care providers (care in the child's own home) including any variations based on the ages of children in care: **The Lead Agency only permits relative care in circumstances when the child in care resides in the provider's home, i.e., a child or grandchild. The Lead Agency makes available in-home care for non-relatives in the child's home when the child requires special accommodations to meet individual needs. In such instances, provider qualifications would be consistent with those of Authorized Child Care Professionals. Please see 5.2.4.b.**

5.2.4 Teacher/caregiver qualifications for license-exempt providers

Provide the teacher/provider qualification requirements (for instance, age, high school diploma, specific training, etc.) for the license-exempt providers under the following categories of care:

- a. License-exempt center-based child care. **The License-exempt center-based child care providers regulated by the Tennessee Department of Education (TDOE) are subject to qualifications and requirements as defined at Tenn. Comp. R. & Regs. 0520-12-01. Program directors must be at least 21 years of age and have a high school diploma and four (4) years experience working with school-age students. All other educators must be at least 18 years of age and one (1) staff member in each group must have a high school diploma.**

All new employees shall have orientation and training on the following prior to assuming duties:

1. Abusive head trauma;
2. Emergency preparedness;
3. Health and safety;

4. Developmentally appropriate practice;
5. Effective afterschool programming;
6. Supervision;
7. Parent communication; and
8. Any additional training identified by the Department.

License-exempt Boys and Girls Clubs must ensure educators are in compliance with the purposes, procedures, voluntary standards and mandatory requirements of Boys and Girls Clubs of America.

License-exempt center-based child care program educators contracting to participate in the Child Care Payment Assistance/Certificate Program are required to complete:

1. Shaken baby syndrome/abusive head trauma/child maltreatment;
2. Pre-service training as recognized by the Department which shall include all federally required components.
3. Pediatric or age-appropriate CPR and First Aid training.

License-exempt Boys and Girls Clubs must also ensure at least one (1) person has a current certificate in pediatric or age-appropriate CPR and First Aid at all times. The Lead Agency's contract to participate in the Child Care Payment Assistance/Certificate Program requires completion of at least six (6) additional hours of training annually on CCDBG health and safety topics.

- b. License-exempt home-based child care. The Lead Agency identifies Authorized Child Care Professionals as CCDF-eligible license-exempt family child care providers, individuals who may care for up to six (6) children (four (4) not related to the individual and up to two (2) additional related children) and who are contracted with the Lead Agency to participate in the Child Care Payment Assistance/Certificate Program as a result of parental choice. There are no rules or restrictions regarding providing care for a maximum number of children under a particular age and no specific educational requirements for this category of provider.

Authorized Child Care Professionals contracted with the Lead Agency are required to complete:

1. Shaken baby syndrome/abusive head trauma/child maltreatment;
2. Pre-service training as recognized by the Department which shall include all federally required components.
3. Pediatric or age-appropriate CPR certification and First Aid training prior to approval of an application; and
4. Sudden Infant Death Syndrome Training (if caring for infants)

The Lead Agency's contract to participate in the Child Care Payment Assistance/Certificate Program requires completion of at least six (6) additional hours of training annually on CCDBG health and safety topics

- c. License-exempt in-home care (care in the child's own home). The Lead Agency identifies Authorized Child Care Professionals as CCDF-eligible license-exempt family child care providers, individuals who may care for up to six (6) children, four (4) not related to the

individual and up to two (2) additional related children) and who are contracted with the Lead Agency to participate in the Child Care Payment Assistance/Certificate Program as a result of parental choice. There are no rules or restrictions regarding providing care for a maximum number of children under a particular age and no specific educational requirements for this category of provider.

Authorized Child Care Professionals contracted with the Lead Agency are required to complete:

1. Shaken baby syndrome/abusive head trauma/child maltreatment;
2. Pre-service training as recognized by the Department which shall include all federally required components.
3. Pediatric or age-appropriate CPR certification and First Aid training prior to approval of an application; and
4. Sudden Infant Death Syndrome Training (if caring for infants)

The Lead Agency's contract to participate in the Child Care Payment Assistance/Certificate Program requires completion of at least six (6) additional hours of training annually on CCDBG health and safety topics.

5.3 Health and Safety Standards for CCDF Providers

Lead Agencies must have health and safety standards for providers serving children receiving CCDF assistance relating to the required health and safety topics as appropriate to the provider setting and age of the children served. This requirement is applicable to all child care programs receiving CCDF funds regardless of licensing status (i.e., licensed or license-exempt). The only exception to this requirement is for relative providers, as defined by CCDF. Lead Agencies have the option of exempting certain relatives from any or all CCDF health and safety requirements.

Exemptions for relative providers' standards requirements will be addressed in question 5.8.1.

Describe the following health and safety standards for programs serving children receiving CCDF assistance on the following topics (note that monitoring and enforcement will be addressed in subsection 5.5):

5.3.1 Prevention and control of infectious diseases (including immunizations) health and safety standard

- a. Provide the standards, appropriate to the provider setting and age of children, that address the prevention and control of infectious diseases for the following CCDF-eligible providers:
 - i. All CCDF-eligible licensed center care. Provide the standard: **Standards for child care programs licensed by the Lead Agency that address prevention and control of infectious diseases include: Handwashing shall occur at least at the following times but not limited to: After toileting and diapering, after handling bodily fluids, prior to and after eating, prior to and after food preparation, and routine cleaning and sanitizing of tables, chairs, high chairs and toys that children place in their mouth, dishes and utensils, and the floor. Providers must require proof treatment prior to readmission of a child diagnosed with a communicable disease. Children must be appropriately immunized with limited exceptions for medical reasons or**

religious tenets and practices, and a grace period for children of homeless families. Children who are ill should be isolated until parents are notified and can pick them up.

All child care providers serving children receiving assistance through the Child Care Payment Assistance/Certificate program are required to complete the Before You Begin: New Educator preservice training prior to having contact with children. This training includes standards/expectations for each CCDBG health and safety topic. The expectations for prevention and control of infectious disease include but are not limited to provisions for: Immunizations as a requirement for enrollment; handwashing before food prep, before eating, after assisting children with toileting, etc.; cleaning and sanitizing eating surfaces using a two-step process and cleaning toys; procedures for diapering set-up, near a sink and away from food prep or serving areas and where supervision of other children can be maintained; routine cleaning of bedding, and separation of cribs, cots, and/or mats; handling sick children, recognizing symptoms and how to respond, how to give medications and information on isolating sick children until parents can pick them up in an area that can easily be supervised and sanitized; and time outside to experience fresh air/sunshine.

- ii. All CCDF-eligible licensed family child care homes. Provide the standard: **Standards for child care programs licensed by the Lead Agency that address prevention and control of infectious diseases include: Handwashing shall occur at least at the following times but not limited to: After toileting and diapering, after handling bodily fluids, prior to and after eating, prior to and after food preparation, and routine cleaning and sanitizing of tables, chairs, high chairs and toys that children place in their mouth, dishes and utensils, and the floor. Providers must require proof treatment prior to readmission of a child diagnosed with a communicable disease. Children must be appropriately immunized with limited exceptions for medical reasons or religious tenets and practices, and a grace period for children of homeless families. Children who are ill should be isolated until parents are notified and can pick them up. All child care providers serving children receiving assistance through the Child Care Payment Assistance/Certificate program are required to complete the Before You Begin: New Educator preservice training prior to having contact with children. This training includes standards/expectations for each CCDBG health and safety topic. The expectations for prevention and control of infectious disease include but are not limited to provisions for: Immunizations as a requirement for enrollment; handwashing before food prep, before eating, after assisting children with toileting, etc.; cleaning and sanitizing eating surfaces using a two-step process and cleaning toys; procedures for diapering set-up, near a sink and away from food prep or serving areas and where supervision of other children can be maintained; routine cleaning of bedding, and separation of cribs, cots, and/or mats; handling sick children, recognizing symptoms and how to respond, how to give medications and information on isolating sick children until parents can pick them up in an area that can easily be supervised and sanitized; and time outside to experience fresh air/sunshine.**
- iii. All CCDF-eligible licensed in-home care. Provide the standard:

[x] Not applicable.

- iv. All CCDF-eligible license-exempt center care. Provide the standard: **License-exempt child care providers regulated by the Tennessee Department of Education (TDOE) are subject to Tenn. Comp. R. & Regs 0520-12-01. Statute requires that these standards are substantially the same as those for child care providers licensed by the Lead Agency. Authority over license-exempt providers not regulated by TDOE is limited to the Lead Agency's contract to participate in the Child Care Payment Assistance/Certificate Program. License-exempt center educators are required to complete a specified pre-service training that covers all the health and safety training topics prior to contact with children. License-exempt center educators are also required to complete at least six (6) hours of training in CCDBG health and safety topics annually. The Lead Agency recommends educators cycle through all CCDBG health and safety training topics every three (3) years.**
- v. All CCDF-eligible license-exempt family child care homes. Provide the standard: **The Lead Agency identifies Authorized Child Care Professionals as CCDF-eligible license-exempt family child care providers, individuals who may care for up to six (6) children (four (4) not related to the individual and up to two (2) additional related children) and who are contracted with the Lead Agency to participate in the Child Care Payment Assistance/Certificate Program as a result of parental choice. A maximum of four children approved through the Child Care Payment Assistance/Certificate Program may be enrolled to an Authorized Child Care Professional. License-exempt Authorized Child Care Professionals are required to complete a specified pre-service training that covers all the health and safety training topics prior to contact with children. License-exempt Authorized Child Care Professionals are also required to complete at least six (6) hours of training in CCDBG health and safety topics annually. The Lead Agency recommends educators cycle through all CCDBG health and safety training topics every three (3) years. Observation of standards demonstration are documented during each monitoring inspection.**
- vi. All CCDF-eligible license-exempt in-home care. Provide the standard: **The Lead Agency only permits relative care in circumstances when the child in care resides in the provider's home, i.e., a child or grandchild. The Lead Agency makes available in-home care for non-relatives in the child's home when the child requires special accommodations to meet individual needs. In such instances, these situations would be monitored using the protocols established for Authorized Professionals. Please see 5.3.1.a.v.**
- vii. All CCDF-eligible out-of-school programs (afterschool programs, summer camps, day camps, etc.). Provide the standard: **N/A.**
- b. Provide the standards, appropriate to the provider setting and age of children, that address that children attending child care programs under CCDF are age-appropriately immunized, according to the latest recommendation for childhood immunizations of the respective State public health agency, for the following CCDF-eligible providers:
 - i. All CCDF-eligible licensed center care. Provide the standard: **Standards for child care programs licensed by the Lead Agency that address children attending child**

care programs are age-appropriately immunizations include: Immunizations as a requirement for enrollment as required by the Tennessee Department of Health. Exceptions to immunization record requirements may be made only if: The child's physician or a state or local health department provides a signed and dated statement giving a medical reason why the child should not be given a specified immunization; the child's parent provides a signed written statement that such immunizations conflict with his/her religious tenets and practices; or if care for children of homeless families and/or children in state custody is needed before documentation of immunizations can be confirmed. Care without documentation of immunizations shall not exceed sixty (60) days. Before a school-age child is accepted for care, the center shall have on file a statement from the parent or school that the child's immunizations are current and that his or her health record is on file at the specified school which the child attends.

- ii. All CCDF-eligible licensed family child care homes. Provide the standard: **Standards for child care programs licensed by the Lead Agency that address children attending child care programs are age-appropriately immunizations include: Immunizations as a requirement for enrollment as required by the Tennessee Department of Health. Exceptions to immunization record requirements may be made only if: The child's physician or a state or local health department provides a signed and dated statement giving a medical reason why the child should not be given a specified immunization; the child's parent provides a signed written statement that such immunizations conflict with his/her religious tenets and practices; or if care for children of homeless families and/or children in state custody is needed before documentation of immunizations can be confirmed. Care without documentation of immunizations shall not exceed sixty (60) days. Before a school-age child is accepted for care, the center shall have on file a statement from the parent or school that the child's immunizations are current and that his or her health record is on file at the specified school which the child attends.**
- iii. All CCDF-eligible licensed in-home care. Provide the standard:

☒ Not applicable.
- iv. All CCDF-eligible license-exempt center care. Provide the standard: **License-exempt child care providers regulated by the Tennessee Department of Education (TDOE) are subject to Tenn. Comp. R. & Regs 0520-12-01. Statute requires that these standards are substantially the same as those for child care providers licensed by the Lead Agency. Authority over license-exempt providers not regulated by TDOE is limited to the Lead Agency's contract to participate in the Child Care Payment Assistance/Certificate Program. License-exempt center educators are required to complete a specified pre-service training that covers all the health and safety training topics prior to contact with children. License-exempt center educators are also required to complete at least six (6) hours of training in CCDBG health and safety topics annually. The Lead Agency recommends educators cycle through all CCDBG health and safety training topics every three (3) years.**
- v. All CCDF-eligible license-exempt family child care homes. Provide the standard:

The Lead Agency identifies Authorized Child Care Professionals as CCDF-eligible license-exempt family child care providers, individuals who may care for up to six (6) children (four (4) not related to the individual and up to two (2) additional related children) and who are contracted with the Lead Agency to participate in the Child Care Payment Assistance/Certificate Program as a result of parental choice. A maximum of four children approved through the Child Care Payment Assistance/Certificate Program may be enrolled to an Authorized Child Care Professional. License-exempt Authorized Child Care Professionals are required to complete a specified pre-service training that covers all the health and safety training topics prior to contact with children. License-exempt Authorized Child Care Professionals are also required to complete at least six (6) hours of training in CCDBG health and safety topics annually. The Lead Agency recommends educators cycle through all CCDBG health and safety training topics every three (3) years. Observation of standards demonstration are documented during each monitoring inspection.

- vi. All CCDF-eligible license-exempt in-home care. Provide the standard: **The Lead Agency only permits relative care in circumstances when the child in care resides in the provider's home, i.e., a child or grandchild. The Lead Agency makes available in-home care for non-relatives in the child's home when the child requires special accommodations to meet individual needs. In such instances, these situations would be monitored using the protocols established for Authorized Professionals. Please see 5.3.1.b.v.**
- vii. All CCDF-eligible out-of-school programs (afterschool programs, summer camps, day camps, etc.). Provide the standard: **N/A.**

5.3.2 Prevention of sudden infant death syndrome and the use of safe-sleep practices health and safety standard

Provide the standards, appropriate to the provider setting and age of children, that address the prevention of sudden infant death syndrome and use of safe sleeping practices for the following CCDF-eligible providers:

- i. All CCDF-eligible licensed center care. Provide the standard: **Standards for child care programs licensed by the Lead Agency that address prevention of Sudden Unexpected Infant Death (SUID), including Sudden Infant Death Syndrome (SIDS) require child care providers to follow sleeping practices, including: 1. Infants shall sleep in cribs or play yards with a firm sleep surface with a fitted sheet; 2. No infant shall be allowed to sleep on a sofa, soft mattress, adult bed, in a car seat, in a swing, or in other restraining devices; 3. Infants shall be positioned on their backs for sleeping; 4. Bibs shall be removed prior to placing infants in a crib for sleeping; 5. Soft bedding is prohibited and includes, but is not limited to, pillows, bumper pads, blankets, quilts, comforters, stuffed toys, and other soft items; 6. Mobiles and other toys that attach to any part of the crib are prohibited; 7. It is not necessary to reposition infants once they have demonstrated the ability to turn front to back and back to front independently; 8. Any cribs or other sleeping equipment prohibited by federal product safety regulations shall not be permitted; 9. Infants shall be touched by an educator every fifteen (15) minutes in**

order to check breathing, body temperature and position; 10. If a child appears not to be breathing, the child care agency shall immediately begin CPR and immediately call for emergency medical assistance; 11. The child care agency shall have a written policy describing safe sleep practices and provide a copy of that policy and training to all educators and volunteers assuming infant-caregiving duties; 12. All infant educators shall follow safe sleep procedures; 13. Infants that arrive asleep in car seats or fall asleep in any piece of equipment other than a crib must be immediately removed and placed on their back in a crib; 14. Avoid letting the infant overheat and ensure infants are dressed appropriately for the environment (no greater than 1 layer more than an adult would wear in the same environment); and 15. Any practice that is an exception to these standards shall not be used without written authorization from a physician.

At naptime, after the children have settled down, adult:child ratios for ages thirty-one (31) months and above may be reduced by fifty percent (50%) in each classroom as long as the children are adequately protected and all of the following requirements are met: At least one (1) adult educator shall be awake and supervising the children in each nap room/sleeping area; there are enough adults on the premises so that the adult:child ratio required for children when they are awake shall be met immediately; and ratios for children six (6) weeks through thirty (30) months shall be maintained.

All child care providers serving children receiving assistance through the Child Care Payment Assistance/Certificate program are required to complete the Before You Begin: New Educator preservice training prior to having contact with children.

- ii. All CCDF-eligible licensed family child care homes. Provide the standard: **Standards for child care programs licensed by the Lead Agency that address prevention of Sudden Unexpected Infant Death (SUID), including Sudden Infant Death Syndrome (SIDS) require child care providers to follow sleeping practices, including:** 1. Infants shall sleep in cribs or play yards with a firm sleep surface with a fitted sheet; 2. No infant shall be allowed to sleep on a sofa, soft mattress, adult bed, in a car seat, in a swing, or in other restraining devices; 3. Infants shall be positioned on their backs for sleeping; 4. Bibs shall be removed prior to placing infants in a crib for sleeping; 5. Soft bedding is prohibited and includes, but is not limited to, pillows, bumper pads, blankets, quilts, comforters, stuffed toys, and other soft items; 6. Mobiles and other toys that attach to any part of the crib are prohibited; 7. It is not necessary to reposition infants once they have demonstrated the ability to turn front to back and back to front independently; 8. Any cribs or other sleeping equipment prohibited by federal product safety regulations shall not be permitted; 9. Infants shall be touched by an educator every fifteen (15) minutes in order to check breathing, body temperature and position; 10. If a child appears not to be breathing, the child care agency shall immediately begin CPR and immediately call for emergency medical assistance; 11. The child care agency shall have a written policy describing safe sleep practices and provide a copy of that policy and training to all educators and volunteers assuming infant-caregiving duties; 12. All infant educators shall follow safe sleep procedures; 13. Infants that arrive asleep in car seats or fall asleep in any piece of equipment other than a crib

must be immediately removed and placed on their back in a crib; 14. Avoid letting the infant overheat and ensure infants are dressed appropriately for the environment (no greater than 1 layer more than an adult would wear in the same environment); and 15. Any practice that is an exception to the these standards shall not be used without written authorization from a physician.

At naptime, after the children have settled down, adult:child ratios for ages thirty-one (31) months and above may be reduced by fifty percent (50%) in each classroom as long as the children are adequately protected and all of the following requirements are met: At least one (1) adult educator shall be awake and supervising the children in each nap room/sleeping area; there are enough adults on the premises so that the adult:child ratio required for children when they are awake shall be met immediately; and ratios for children six (6) weeks through thirty (30) months shall be maintained.

All child care providers serving children receiving assistance through the Child Care Payment Assistance/Certificate program are required to complete the Before You Begin: New Educator preservice training prior to having contact with children.

- iii. All CCDF-eligible licensed in-home care. Provide the standard:
☒ Not applicable.
- iv. All CCDF-eligible license-exempt center care. Provide the standard: **Not applicable based on age of children in care of license-exempt child care centers.**
- v. All CCDF-eligible license-exempt family child care homes. Provide the standard: **The Lead Agency identifies Authorized Child Care Professionals as CCDF-eligible license-exempt family child care providers, individuals who may care for up to six (6) children (four (4) not related to the individual and up to two (2) additional related children) and who are contracted with the Lead Agency to participate in the Child Care Payment Assistance/Certificate Program as a result of parental choice. A maximum of four children approved through the Child Care Payment Assistance/Certificate Program may be enrolled to an Authorized Child Care Professional. License-exempt Authorized Child Care Professionals are required to complete a specified pre-service training that covers all the health and safety training topics prior to contact with children. License-exempt Authorized Child Care Professionals are also required to complete at least six (6) hours of training in CCDBG health and safety topics annually. The Lead Agency recommends educators cycle through all CCDBG health and safety training topics every three (3) years. Observation of standards demonstration are documented during each monitoring inspection.**
- vi. All CCDF-eligible license-exempt in-home care. Provide the standard: **The Lead Agency only permits relative care in circumstances when the child in care resides in the provider's home, i.e., a child or grandchild. The Lead Agency makes available in-home care for non-relatives in the child's home when the child requires special accommodations to meet individual needs. In such instances, these situations would be monitored using the protocols established for**

Authorized Professionals. Please see 5.3.2.v.

- vii. All CCDF-eligible out-of-school programs (afterschool programs, summer camps, day camps, etc.). Provide the standard: **N/A.**

5.3.3 Administration of medication, consistent with standards for parental consent health and safety standard

- a. Provide the standards, appropriate to the provider setting and age of children, that address the administration of medication for the following CCDF-eligible providers:
 - i. All CCDF-eligible licensed center care. Provide the standard: **Standards for child care programs licensed by the Lead Agency that address administration of medication include: (a) Receiving Medications. 1. All medications shall be received from the parent/guardian by a designated staff person. 2. The designated staff person(s) shall: (i) Obtain the parent's/guardian's written authorization to administer each medication; (ii) Document that the medicines or drugs are in the original container, are not expired, and are labeled with the child's name; (iii) Document the specific dosage and times the medication is to be administered to the child; and (iv) Document that the parent/guardian has provided the child care agency with instructions on the means and method of administration.**

(b) Administering Medications. 1. All medications shall be administered by a staff person or persons who have received training in medication administration. Online training is available through the American Academy of Pediatrics at no cost. 2. The following documentation shall be maintained in the child's file and a copy provided to the parent/guardian: (i) Medication was administered according to parent/guardian or health care provider instruction, including times and amounts of medications administered; (ii) Any side effects observed; (iii) Name of staff person administering medication to child; and (iv) Unused medication was returned to the parent/guardian. 3. Medication shall never be administered in bottles or infant feeders unless authorized by a physician. Educators shall ensure that medication administered in this way is not accessible to other children.

All child care providers serving children receiving assistance through the Child Care Payment Assistance/Certificate program are required to complete the Before You Begin: New Educator preservice training prior to having contact with children.
 - ii. All CCDF-eligible licensed family child care homes. Provide the standard: **Standards for child care programs licensed by the Lead Agency that address administration of medication include:**

(a) Receiving Medications. 1. All medications shall be received from the parent/guardian by a designated staff person. 2. The designated staff person(s) shall: (i) Obtain the parent's/guardian's written authorization to administer each medication; (ii) Document that the medicines or drugs are in the original container, are not expired, and are labeled with the child's name; (iii) Document the specific dosage and times the medication is to be administered to the child; and (iv) Document that the parent/guardian has provided the child care agency

with instructions on the means and method of administration. (b) Administering Medications. 1. All medications shall be administered by a staff person or persons who have received training in medication administration. Online training is available through the American Academy of Pediatrics at no cost. 2. The following documentation shall be maintained in the child's file and a copy provided to the parent/guardian: (i) Medication was administered according to parent/guardian or health care provider instruction, including times and amounts of medications administered; (ii) Any side effects observed; (iii) Name of staff person administering medication to child; and (iv) Unused medication was returned to the parent/guardian. 3. Medication shall never be administered in bottles or infant feeders unless authorized by a physician. Educators shall ensure that medication administered in this way is not accessible to other children.

All child care providers serving children receiving assistance through the Child Care Payment Assistance/Certificate program are required to complete the Before You Begin: New Educator preservice training prior to having contact with children.

- iii. All CCDF-eligible licensed in-home care. Provide the standard:
☒ Not applicable.
- iv. All CCDF-eligible license-exempt center care. Provide the standard: License-exempt child care providers regulated by the Tennessee Department of Education (TDOE) are subject to Tenn. Comp. R. & Regs 0520-12-01. Statute requires that these standards are substantially the same as those for child care providers licensed by the Lead Agency. Authority over license-exempt providers not regulated by TDOE is limited to the Lead Agency's contract to participate in the Child Care Payment Assistance/Certificate Program. License-exempt center educators are required to complete a specified pre-service training that covers all the health and safety training topics prior to contact with children. License-exempt center educators are also required to complete at least six (6) hours of training in CCDBG health and safety topics annually. The Lead Agency recommends educators cycle through all CCDBG health and safety training topics every three (3) years.
- v. All CCDF-eligible license-exempt family child care homes. Provide the standard: The Lead Agency identifies Authorized Child Care Professionals as CCDF-eligible license-exempt family child care providers, individuals who may care for up to six (6) children (four (4) not related to the individual and up to two (2) additional related children) and who are contracted with the Lead Agency to participate in the Child Care Payment Assistance/Certificate Program as a result of parental choice. A maximum of four children approved through the Child Care Payment Assistance/Certificate Program may be enrolled to an Authorized Child Care Professional. License-exempt Authorized Child Care Professionals are required to complete a specified pre-service training that covers all the health and safety training topics prior to contact with children. License-exempt Authorized Child Care Professionals are also required to complete at least six (6) hours of training in CCDBG health and safety topics annually. The Lead Agency recommends educators cycle through all CCDBG health and safety training topics every three (3) years. Observation of standards demonstration are documented during each

monitoring inspection.

- vi. All CCDF-eligible license-exempt in-home care. Provide the standard: **The Lead Agency only permits relative care in circumstances when the child in care resides in the provider's home, i.e., a child or grandchild. The Lead Agency makes available in-home care for non-relatives in the child's home when the child requires special accommodations to meet individual needs. In such instances, these situations would be monitored using the protocols established for Authorized Professionals. Please see 5.3.3.a.v.**
- vii. All CCDF-eligible out-of-school programs (afterschool programs, summer camps, day camps, etc.). Provide the standard: **N/A.**
- b. Provide the standards, appropriate to the provider setting and age of children, that address obtaining permission from parents to administer medications to children for the following CCDF-eligible providers:
 - i. All CCDF-eligible licensed center care. Provide the standard: **Standards for child care programs licensed by the Lead Agency that address obtaining permission from parents to administer medication to children include:**

Administration of medication must be consistent with standards for parental consent. (a) Receiving Medications. 1. All medications shall be received from the parent/guardian by a designated staff person. 2. The designated staff person(s) shall: (i) Obtain the parent's/guardian's written authorization to administer each medication; (ii) Document that the medicines or drugs are in the original container, are not expired, and are labeled with the child's name; (iii) Document the specific dosage and times the medication is to be administered to the child; and (iv) Document that the parent/guardian has provided the child care agency with instructions on the means and method of administration.

(b) Administering Medications. 1. All medications shall be administered by a staff person or persons who have received training in medication administration. Online training is available through the American Academy of Pediatrics at no cost. 2. The following documentation shall be maintained in the child's file and a copy provided to the parent/guardian: (i) Medication was administered according to parent/guardian or health care provider instruction, including times and amounts of medications administered; (ii) Any side effects observed; (iii) Name of staff person administering medication to child; and (iv) Unused medication was returned to the parent/guardian. 3. Medication shall never be administered in bottles or infant feeders unless authorized by a physician. Educators shall ensure that medication administered in this way is not accessible to other children.

All child care providers serving children receiving assistance through the Child Care Payment Assistance/Certificate program are required to complete the Before You Begin: New Educator preservice training prior to having contact with children.

- ii. All CCDF-eligible licensed family child care homes. Provide the standard: **Standards for child care programs licensed by the Lead Agency that address obtaining permission from parents to administer medication to children include:**

(a) Receiving Medications. 1. All medications shall be received from the parent/guardian by a designated staff person. 2. The designated staff person(s) shall: (i) Obtain the parent's/guardian's written authorization to administer each medication; (ii) Document that the medicines or drugs are in the original container, are not expired, and are labeled with the child's name; (iii) Document the specific dosage and times the medication is to be administered to the child; and (iv) Document that the parent/guardian has provided the child care agency with instructions on the means and method of administration.

(b) Administering Medications. 1. All medications shall be administered by a staff person or persons who have received training in medication administration. Online training is available through the American Academy of Pediatrics at no cost. 2. The following documentation shall be maintained in the child's file and a copy provided to the parent/guardian: (i) Medication was administered according to parent/guardian or health care provider instruction, including times and amounts of medications administered; (ii) Any side effects observed; (iii) Name of staff person administering medication to child; and (iv) Unused medication was returned to the parent/guardian. 3. Medication shall never be administered in bottles or infant feeders unless authorized by a physician. Educators shall ensure that medication administered in this way is not accessible to other children. Administration of medication must be consistent with standards for parental consent.

All child care providers serving children receiving assistance through the Child Care Payment Assistance/Certificate program are required to complete the Before You Begin: New Educator preservice training prior to having contact with children.

iii. All CCDF-eligible licensed in-home care. Provide the standard:

☒ Not applicable.

iv. All CCDF-eligible license-exempt center care. Provide the standard: License-exempt child care providers regulated by the Tennessee Department of Education (TDOE) are subject to Tenn. Comp. R. & Regs 0520-12-01. Statute requires that these standards are substantially the same as those for child care providers licensed by the Lead Agency. Authority over license-exempt providers not regulated by TDOE is limited to the Lead Agency's contract to participate in the Child Care Payment Assistance/Certificate Program. License-exempt center educators are required to complete a specified pre-service training that covers all the health and safety training topics prior to contact with children. License-exempt center educators are also required to complete at least six (6) hours of training in CCDBG health and safety topics annually. The Lead Agency recommends educators cycle through all CCDBG health and safety training topics every three (3) years.

v. All CCDF-eligible license-exempt family child care homes. Provide the standard: The Lead Agency identifies Authorized Child Care Professionals as CCDF-eligible license-exempt family child care providers, individuals who may care for up to six (6) children (four (4) not related to the individual and up to two (2) additional

related children) and who are contracted with the Lead Agency to participate in the Child Care Payment Assistance/Certificate Program as a result of parental choice. A maximum of four children approved through the Child Care Payment Assistance/Certificate Program may be enrolled to an Authorized Child Care Professional. License-exempt Authorized Child Care Professionals are required to complete a specified pre-service training that covers all the health and safety training topics prior to contact with children. License-exempt Authorized Child Care Professionals are also required to complete at least six (6) hours of training in CCDBG health and safety topics annually. The Lead Agency recommends educators cycle through all CCDBG health and safety training topics every three (3) years. Observation of standards demonstration are documented during each monitoring inspection.

- vi. All CCDF-eligible license-exempt in-home care. Provide the standard: **The Lead Agency only permits relative care in circumstances when the child in care resides in the provider's home, i.e., a child or grandchild. The Lead Agency makes available in-home care for non-relatives in the child's home when the child requires special accommodations to meet individual needs. In such instances, these situations would be monitored using the protocols established for Authorized Professionals. Please see 5.3.3.b.v.**
- vii. All CCDF-eligible out-of-school programs (afterschool programs, summer camps, day camps, etc.). Provide the standard: **N/A.**

5.3.4 Prevention of and response to emergencies due to food and allergic reactions health and safety standard

- a. Provide the standards, appropriate to the provider setting and age of children, that address the *prevention* of emergencies due to food and allergic reactions for the following CCDF-eligible providers:
 - i. All CCDF-eligible licensed center care. Provide the standard: **Standards for child care programs licensed by the Lead Agency that address prevention of emergencies due to food and allergic reactions include: Prior to having unsupervised contact with children, each new employee shall receive orientation in, and have a working knowledge of, preventing food and allergic reactions. All child records shall include a written plan of action endorsed by the child's pediatrician or licensed medical provider for a child with life-threatening allergies.**

Additionally: 1. Information about individual children's food allergies shall be posted prominently, both where food is prepared and where food is served. 2. For a child with life-threatening allergies, a written plan of action endorsed by the child's pediatrician or licensed medical provider shall be posted where the educator has immediate access. 3. Any child's food allergies and the accommodations and precautions in place to address food allergies shall be prominently noted. 4. Outline child care agency procedures that reduce cross-contamination of allergenic foods and other inadvertent exposure to allergens for any child with food allergies.

All child care providers serving children receiving assistance through the Child Care Payment Assistance/Certificate program are required to complete the Before You Begin: New Educator preservice training prior to having contact with children.

- ii. All CCDF-eligible licensed family child care homes. Provide the standard: **Standards for child care programs licensed by the Lead Agency that address prevention of emergencies due to food and allergic reactions include: Prior to having unsupervised contact with children, each new employee shall receive orientation in, and have a working knowledge of, preventing food and allergic reactions. All child records shall include a written plan of action endorsed by the child's pediatrician or licensed medical provider for a child with life-threatening allergies.**

Additionally: 1. Information about individual children's food allergies shall be posted prominently, both where food is prepared and where food is served. 2. For a child with life-threatening allergies, a written plan of action endorsed by the child's pediatrician or licensed medical provider shall be posted where the educator has immediate access. 3. Any child's food allergies and the accommodations and precautions in place to address food allergies shall be prominently noted. 4. Outline child care agency procedures that reduce cross-contamination of allergenic foods and other inadvertent exposure to allergens for any child with food allergies.

All child care providers serving children receiving assistance through the Child Care Payment Assistance/Certificate program are required to complete the Before You Begin: New Educator preservice training prior to having contact with children.

- iii. All CCDF-eligible licensed in-home care. Provide the standard:

[x] Not applicable.

- iv. All CCDF-eligible license-exempt center care. Provide the standard: **CCDF-eligible license-exempt center care. Provide the standard: License-exempt child care providers regulated by the Tennessee Department of Education (TDOE) are subject to Tenn. Comp. R. & Regs 0520-12-01. Statute requires that these standards are substantially the same as those for child care providers licensed by the Lead Agency. Authority over license-exempt providers not regulated by TDOE is limited to the Lead Agency's contract to participate in the Child Care Payment Assistance/Certificate Program. License-exempt center educators are required to complete a specified pre-service training that covers all the health and safety training topics prior to contact with children. License-exempt center educators are also required to complete at least six (6) hours of training in CCDBG health and safety topics annually. The Lead Agency recommends educators cycle through all CCDBG health and safety training topics every three (3) years.**
- v. All CCDF-eligible license-exempt family child care homes. Provide the standard: **The Lead Agency identifies Authorized Child Care Professionals as CCDF-eligible license-exempt family child care providers, individuals who may care for up to six (6) children (four (4) not related to the individual and up to two (2) additional related children) and who are contracted with the Lead Agency to participate in the Child Care Payment Assistance/Certificate Program as a result of parental**

choice. A maximum of four children approved through the Child Care Payment Assistance/Certificate Program may be enrolled to an Authorized Child Care Professional. License-exempt Authorized Child Care Professionals are required to complete a specified pre-service training that covers all the health and safety training topics prior to contact with children. License-exempt Authorized Child Care Professionals are also required to complete at least six (6) hours of training in CCDBG health and safety topics annually. The Lead Agency recommends educators cycle through all CCDBG health and safety training topics every three (3) years. Observation of standards demonstration are documented during each monitoring inspection.

- vi. All CCDF-eligible license-exempt in-home care. Provide the standard: **The Lead Agency only permits relative care in circumstances when the child in care resides in the provider's home, i.e., a child or grandchild. The Lead Agency makes available in-home care for non-relatives in the child's home when the child requires special accommodations to meet individual needs. In such instances, these situations would be monitored using the protocols established for Authorized Professionals. Please see 5.3.4.a.v.**
- vii. All CCDF-eligible out-of-school programs (afterschool programs, summer camps, day camps, etc.). Provide the standard: **N/A.**
- b. Provide the standards, appropriate to the provider setting and age of children, that address the *response* to emergencies due to food and allergic reactions for the following CCDF-eligible providers:
 - i. All CCDF-eligible licensed center care. Provide the standard: **Standards for child care programs licensed by the Lead Agency that address responses to emergencies due to food and allergic reactions include: Prior to having unsupervised contact with children, each new employee shall receive orientation in, and have a working knowledge of, preventing food and allergic reactions. All child records shall include a written plan of action endorsed by the child's pediatrician or licensed medical provider for a child with life-threatening allergies. Staff shall have documentation of children's allergies and how to deal with any allergic reaction.**

Additionally: 1. Information about individual children's food allergies shall be posted prominently, both where food is prepared and where food is served. 2. For a child with life-threatening allergies, a written plan of action endorsed by the child's pediatrician or licensed medical provider shall be posted where the educator has immediate access. 3. Any child's food allergies and the accommodations and precautions in place to address food allergies shall be prominently noted. 4. Outline child care agency procedures that reduce cross-contamination of allergenic foods and other inadvertent exposure to allergens for any child with food allergies.

All child care providers serving children receiving assistance through the Child Care Payment Assistance/Certificate program are required to complete the Before You Begin: New Educator preservice training prior to having contact with children.

- ii. All CCDF-eligible licensed family child care homes. Provide the standard: **Prior to having unsupervised contact with children, each new employee shall receive orientation in, and have a working knowledge of, preventing food and allergic reactions. All child records shall include a written plan of action endorsed by the child's pediatrician or licensed medical provider for a child with life-threatening allergies. Staff shall have documentation of children's allergies and how to deal with any allergic reaction.**

Additionally: 1. Information about individual children's food allergies shall be posted prominently, both where food is prepared and where food is served. 2. For a child with life-threatening allergies, a written plan of action endorsed by the child's pediatrician or licensed medical provider shall be posted where the educator has immediate access. 3. Any child's food allergies and the accommodations and precautions in place to address food allergies shall be prominently noted. 4. Outline child care agency procedures that reduce cross-contamination of allergenic foods and other inadvertent exposure to allergens for any child with food allergies.

All child care providers serving children receiving assistance through the Child Care Payment Assistance/Certificate program are required to complete the Before You Begin: New Educator preservice training prior to having contact with children.

- iii. All CCDF-eligible licensed in-home care. Provide the standard::

[x] Not applicable.

- iv. All CCDF-eligible license-exempt center care. Provide the standard: **CCDF-eligible license-exempt center care. Provide the standard: License-exempt child care providers regulated by the Tennessee Department of Education (TDOE) are subject to Tenn. Comp. R. & Regs 0520-12-01. Statute requires that these standards are substantially the same as those for child care providers licensed by the Lead Agency. Authority over license-exempt providers not regulated by TDOE is limited to the Lead Agency's contract to participate in the Child Care Payment Assistance/Certificate Program. License-exempt center educators are required to complete a specified pre-service training that covers all the health and safety training topics prior to contact with children. License-exempt center educators are also required to complete at least six (6) hours of training in CCDBG health and safety topics annually. The Lead Agency recommends educators cycle through all CCDBG health and safety training topics every three (3) years.**

- v. All CCDF-eligible license-exempt family child care homes. Provide the standard: **The Lead Agency identifies Authorized Child Care Professionals as CCDF-eligible license-exempt family child care providers, individuals who may care for up to six (6) children (four (4) not related to the individual and up to two (2) additional related children) and who are contracted with the Lead Agency to participate in the Child Care Payment Assistance/Certificate Program as a result of parental choice. A maximum of four children approved through the Child Care Payment Assistance/Certificate Program may be enrolled to an Authorized Child Care Professional. License-exempt Authorized Child Care Professionals are required to complete a specified pre-service training that covers all the health and safety**

training topics prior to contact with children. License-exempt Authorized Child Care Professionals are also required to complete at least six (6) hours of training in CCDBG health and safety topics annually. The Lead Agency recommends educators cycle through all CCDBG health and safety training topics every three (3) years. Observation of standards demonstration are documented during each monitoring inspection.

- vi. All CCDF-eligible license-exempt in-home care. Provide the standard: **The Lead Agency only permits relative care in circumstances when the child in care resides in the provider's home, i.e., a child or grandchild. The Lead Agency makes available in-home care for non-relatives in the child's home when the child requires special accommodations to meet individual needs. In such instances, these situations would be monitored using the protocols established for Authorized Professionals. Please see 5.3.4.b.v.**
- vii. All CCDF-eligible out-of-school programs (afterschool programs, summer camps, day camps, etc.). Provide the standard: **N/A.**

5.3.5 Building and physical premises safety, including the identification of and protection from hazards, bodies of water, and vehicular traffic health and safety standard

- a. Provide the standards, appropriate to the provider setting and age of children, that address the identification of and protection from building and physical premises hazards for the following CCDF-eligible providers:
 - i. All CCDF-eligible licensed center care. Provide the standard: **Standards for child care programs licensed by the Lead Agency that address identification of and protection from building and physical premises hazards include: General Sanitation and Safety of Building and Grounds. Children shall not be present if an adequate water supply is not available for hand-washing and plumbing is not operating properly. Water Supply. The drinking water supply shall be from a source approved by the health authority having jurisdiction. Drinking water shall be available to all children upon request throughout the day.**

Sewage and Waste Disposal. Children shall not be present if the sewage is not operating. Connection to a public sewage disposal system shall be made where possible. The use of a private sewage disposal system shall have the approval of the local Tennessee Department of Environment and Conservation Division of Ground Water Protection and it shall be operating satisfactorily at all times. All garbage shall be removed from the building daily. All outdoor garbage storage receptacles shall be outside and kept closed. The area surrounding outdoor garbage receptacles shall be kept clean.

Building and Grounds. The building shall be kept clean and maintained in good repair, without unsafe cracks, leaks, or plumbing that is in disrepair. All outside doors and windows of the licensed space shall be in good repair. Adequate natural and/or artificial lighting shall be provided throughout the facility. All rooms used by children shall be maintained at a temperature of between sixty-eight degrees to seventy-eight degrees Fahrenheit (68°F to 78°F) by means of heating, cooling or

ventilation sources approved for use. Children shall not be present if the indoor temperature cannot be maintained between sixty-eight degrees to seventy-eight degrees Fahrenheit (68°F to 78°F). Stoves, hot radiators, steam and hot water pipes, fans, or other potentially hazardous items shall be inaccessible to children. The use of unvented fuel burning heaters is prohibited. The use of portable heaters is prohibited. The building and grounds shall be kept free of broken glass, trash and debris. Grounds, tire swings and containers shall have adequate drainage to prevent standing water that can breed mosquitoes and other insects. Animals shall be: In good health and immunized in accordance with local health authority; free of fleas, ticks and other parasites; contained in a way that does not allow unsupervised access; and kept away from all food storage and preparation or service areas. Cages, fish tanks or other containment devices shall be cleaned regularly. Reptiles and amphibians shall not be kept as pets due to the risk of Salmonella.

All child care providers serving children receiving assistance through the Child Care Payment Assistance/Certificate program are required to complete the Before You Begin: New Educator preservice training prior to having contact with children.

- ii. All CCDF-eligible licensed family child care homes. Provide the standard: **Standards for child care programs licensed by the Lead Agency that address identification of and protection from building and physical premises hazards include: General Sanitation and Safety of Building and Grounds.** Children shall not be present if an adequate water supply is not available for hand-washing and plumbing is not operating properly. Water Supply. The drinking water supply shall be from a source approved by the health authority having jurisdiction. Drinking water shall be available to all children upon request throughout the day.

Sewage and Waste Disposal. Children shall not be present if the sewage is not operating. Connection to a public sewage disposal system shall be made where possible. The use of a private sewage disposal system shall have the approval of the local Tennessee Department of Environment and Conservation Division of Ground Water Protection and it shall be operating satisfactorily at all times. All garbage shall be removed from the building daily. All outdoor garbage storage receptacles shall be outside and kept closed. The area surrounding outdoor garbage receptacles shall be kept clean.

Building and Grounds. The building shall be kept clean and maintained in good repair, without unsafe cracks, leaks, or plumbing that is in disrepair. All outside doors and windows of the licensed space shall be in good repair. Adequate natural and/or artificial lighting shall be provided throughout the facility. All rooms used by children shall be maintained at a temperature of between sixty-eight degrees to seventy-eight degrees Fahrenheit (68°F to 78°F) by means of heating, cooling or ventilation sources approved for use. Children shall not be present if the indoor temperature cannot be maintained between sixty-eight degrees to seventy-eight degrees Fahrenheit (68°F to 78°F). Stoves, hot radiators, steam and hot water pipes, fans, or other potentially hazardous items shall be inaccessible to children. The use of unvented fuel burning heaters is prohibited. The use of portable

heaters is prohibited. The building and grounds shall be kept free of broken glass, trash and debris. Grounds, tire swings and containers shall have adequate drainage to prevent standing water that can breed mosquitoes and other insects. Animals shall be: In good health and immunized in accordance with local health authority; free of fleas, ticks and other parasites; contained in a way that does not allow unsupervised access; and kept away from all food storage and preparation or service areas. Cages, fish tanks or other containment devices shall be cleaned regularly. Reptiles and amphibians shall not be kept as pets due to the risk of Salmonella.

All child care providers serving children receiving assistance through the Child Care Payment Assistance/Certificate program are required to complete the Before You Begin: New Educator preservice training prior to having contact with children.

- iii. All CCDF-eligible licensed in-home care. Provide the standard:

☒ Not applicable.
- iv. All CCDF-eligible license-exempt center care. Provide the standard: **CCDF-eligible license-exempt center care. Provide the standard: License-exempt child care providers regulated by the Tennessee Department of Education (TDOE) are subject to Tenn. Comp. R. & Regs 0520-12-01. Statute requires that these standards are substantially the same as those for child care providers licensed by the Lead Agency. Authority over license-exempt providers not regulated by TDOE is limited to the Lead Agency's contract to participate in the Child Care Payment Assistance/Certificate Program. License-exempt center educators are required to complete a specified pre-service training that covers all the health and safety training topics prior to contact with children. License-exempt center educators are also required to complete at least six (6) hours of training in CCDBG health and safety topics annually. The Lead Agency recommends educators cycle through all CCDBG health and safety training topics every three (3) years.**
- v. All CCDF-eligible license-exempt family child care homes. Provide the standard: **The Lead Agency identifies Authorized Child Care Professionals as CCDF-eligible license-exempt family child care providers, individuals who may care for up to six (6) children (four (4) not related to the individual and up to two (2) additional related children) and who are contracted with the Lead Agency to participate in the Child Care Payment Assistance/Certificate Program as a result of parental choice. A maximum of four children approved through the Child Care Payment Assistance/Certificate Program may be enrolled to an Authorized Child Care Professional. License-exempt Authorized Child Care Professionals are required to complete a specified pre-service training that covers all the health and safety training topics prior to contact with children. License-exempt Authorized Child Care Professionals are also required to complete at least six (6) hours of training in CCDBG health and safety topics annually. The Lead Agency recommends educators cycle through all CCDBG health and safety training topics every three (3) years. Observation of standards demonstration are documented during each monitoring inspection.**
- vi. All CCDF-eligible license-exempt in-home care. Provide the standard: **The Lead**

Agency only permits relative care in circumstances when the child in care resides in the provider's home, i.e., a child or grandchild. The Lead Agency makes available in-home care for non-relatives in the child's home when the child requires special accommodations to meet individual needs. In such instances, these situations would be monitored using the protocols established for Authorized Professionals. Please see 5.3.5.a.v.

- vii. All CCDF-eligible out-of-school programs (afterschool programs, summer camps, day camps, etc.). Provide the standard: **N/A.**
- b. Provide the standards, appropriate to the provider setting and age of children, that address the identification of and protection from bodies of water for the following CCDF-eligible providers:

- i. All CCDF-eligible licensed center care. Provide the standard: **Standards for child care programs licensed by the Lead Agency that address identification of and protection from identification of and protection from bodies of water include:**

Building, Grounds and Pools. Building and grounds shall be kept free of unprotected ponds, wells, cisterns, unused refrigerators and similar hazards. Swimming pools shall be made inaccessible to children through the use of fences and locked gates. Swimming is prohibited in Drop-In Care. Swimming pools and/or wading pools shall not be used without prior approval by the local health department.

All child care providers serving children receiving assistance through the Child Care Payment Assistance/Certificate program are required to complete the Before You Begin: New Educator preservice training prior to having contact with children.

Staff of license-exempt child care providers that participate in the Child Care Payment Assistance/Certificate Program are required to complete a specified pre-service training that covers all the health and safety training topics prior to contact with children. License-exempt provider educators are also required to complete at least 6 hours of training in CCDBG health and safety topics annually and the Lead Agency recommends these educators cycle through all the CCDBG health and safety training topics every three (3) years.

- ii. All CCDF-eligible licensed family child care homes. Provide the standard: **Standards for child care programs licensed by the Lead Agency that address identification of and protection from identification of and protection from bodies of water:**

Building, Grounds and Pools. Building and grounds shall be kept free of unprotected ponds, wells, cisterns, unused refrigerators and similar hazards. Swimming pools shall be made inaccessible to children through the use of fences and locked gates. Swimming is prohibited in Drop-In Care. Swimming pools and/or wading pools shall not be used without prior approval by the local health department.

All child care providers serving children receiving assistance through the Child Care Payment Assistance/Certificate program are required to complete the Before

You Begin: New Educator preservice training prior to having contact with children.

Staff of license-exempt child care providers that participate in the Child Care Payment Assistance/Certificate Program are required to complete a specified pre-service training that covers all the health and safety training topics prior to contact with children. License-exempt provider educators are also required to complete at least 6 hours of training in CCDBG health and safety topics annually and the Lead Agency recommends these educators cycle through all the CCDBG health and safety training topics every three (3) years.

- iii. All CCDF-eligible licensed in-home care. Provide the standard:
☒ Not applicable.
- iv. All CCDF-eligible license-exempt center care. Provide the standard: **CCDF-eligible license-exempt center care. Provide the standard: License-exempt child care providers regulated by the Tennessee Department of Education (TDOE) are subject to Tenn. Comp. R. & Regs 0520-12-01. Statute requires that these standards are substantially the same as those for child care providers licensed by the Lead Agency. Authority over license-exempt providers not regulated by TDOE is limited to the Lead Agency's contract to participate in the Child Care Payment Assistance/Certificate Program. License-exempt center educators are required to complete a specified pre-service training that covers all the health and safety training topics prior to contact with children. License-exempt center educators are also required to complete at least six (6) hours of training in CCDBG health and safety topics annually. The Lead Agency recommends educators cycle through all CCDBG health and safety training topics every three (3) years.**
- v. All CCDF-eligible license-exempt family child care homes. Provide the standard: **The Lead Agency identifies Authorized Child Care Professionals as CCDF-eligible license-exempt family child care providers, individuals who may care for up to six (6) children (four (4) not related to the individual and up to two (2) additional related children) and who are contracted with the Lead Agency to participate in the Child Care Payment Assistance/Certificate Program as a result of parental choice. A maximum of four children approved through the Child Care Payment Assistance/Certificate Program may be enrolled to an Authorized Child Care Professional. License-exempt Authorized Child Care Professionals are required to complete a specified pre-service training that covers all the health and safety training topics prior to contact with children. License-exempt Authorized Child Care Professionals are also required to complete at least six (6) hours of training in CCDBG health and safety topics annually. The Lead Agency recommends educators cycle through all CCDBG health and safety training topics every three (3) years. Observation of standards demonstration are documented during each monitoring inspection.**
- vi. All CCDF-eligible license-exempt in-home care. Provide the standard: **The Lead Agency only permits relative care in circumstances when the child in care resides in the provider's home, i.e., a child or grandchild. The Lead Agency makes available in-home care for non-relatives in the child's home when the child requires special accommodations to meet individual needs. In such instances,**

these situations would be monitored using the protocols established for Authorized Professionals. Please see 5.3.5.b.v.

- vii. All CCDF-eligible out-of-school programs (afterschool programs, summer camps, day camps, etc.). Provide the standard: **N/A.**
- c. Provide the standards, appropriate to the provider setting and age of children, that address the identification of and protection from vehicular traffic hazards for the following CCDF-eligible providers:
 - i. All CCDF-eligible licensed center care. Provide the standard: **Standards for child care programs licensed by the Lead Agency that address identification of and protection from vehicular traffic hazards include requiring outdoor play areas be enclosed by a fence or barrier at least four (4) feet in height. Exception: A child care agency may request the Lead Agency, at its discretion, waive such requirement upon a clear showing that the lack of such fence or barrier poses no apparent or potential risk to children. All child care providers serving children receiving assistance through the Child Care Payment Assistance/Certificate program are required to complete the Before You Begin: New Educator preservice training prior to having contact with children.**
 - ii. All CCDF-eligible licensed family child care homes. Provide the standard: **Standards for child care programs licensed by the Lead Agency that address identification of and protection from vehicular traffic hazards include requiring outdoor play areas be enclosed by a fence or barrier at least four (4) feet in height. Exception: A child care agency may request the Lead Agency, at its discretion, waive such requirement upon a clear showing that the lack of such fence or barrier poses no apparent or potential risk to children. All child care providers serving children receiving assistance through the Child Care Payment Assistance/Certificate program are required to complete the Before You Begin: New Educator preservice training prior to having contact with children.**
 - iii. All CCDF-eligible licensed in-home care. Provide the standard:
[x] Not applicable.
 - iv. All CCDF-eligible license-exempt center care. Provide the standard: **CCDF-eligible license-exempt center care. Provide the standard: License-exempt child care providers regulated by the Tennessee Department of Education (TDOE) are subject to Tenn. Comp. R. & Regs 0520-12-01. Statute requires that these standards are substantially the same as those for child care providers licensed by the Lead Agency. Authority over license-exempt providers not regulated by TDOE is limited to the Lead Agency's contract to participate in the Child Care Payment Assistance/Certificate Program. License-exempt center educators are required to complete a specified pre-service training that covers all the health and safety training topics prior to contact with children. License-exempt center educators are also required to complete at least six (6) hours of training in CCDBG health and safety topics annually. The Lead Agency recommends educators cycle through all CCDBG health and safety training topics every three (3) years.**
 - v. All CCDF-eligible license-exempt family child care homes. Provide the standard: **The Lead Agency identifies Authorized Child Care Professionals as CCDF-eligible**

license-exempt family child care providers, individuals who may care for up to six (6) children (four (4) not related to the individual and up to two (2) additional related children) and who are contracted with the Lead Agency to participate in the Child Care Payment Assistance/Certificate Program as a result of parental choice. A maximum of four children approved through the Child Care Payment Assistance/Certificate Program may be enrolled to an Authorized Child Care Professional. License-exempt Authorized Child Care Professionals are required to complete a specified pre-service training that covers all the health and safety training topics prior to contact with children. License-exempt Authorized Child Care Professionals are also required to complete at least six (6) hours of training in CCDBG health and safety topics annually. The Lead Agency recommends educators cycle through all CCDBG health and safety training topics every three (3) years. Observation of standards demonstration are documented during each monitoring inspection.

- vi. All CCDF-eligible license-exempt in-home care. Provide the standard: **The Lead Agency only permits relative care in circumstances when the child in care resides in the provider's home, i.e., a child or grandchild. The Lead Agency makes available in-home care for non-relatives in the child's home when the child requires special accommodations to meet individual needs. In such instances, these situations would be monitored using the protocols established for Authorized Professionals. Please see 5.3.5.c.v.**
- vii. All CCDF-eligible out-of-school programs (afterschool programs, summer camps, day camps, etc.). Provide the standard: **N/A.**

5.3.6 Prevention of shaken baby syndrome, abusive head trauma, and maltreatment health and safety standard

- a. Provide the standards, appropriate to the provider setting and age of children, that address the prevention of shaken baby syndrome and abusive head trauma and indicate the age of children it applies to for the following CCDF-eligible providers:
 - i. All CCDF-eligible licensed center care. Provide the standard: **Standards for child care programs licensed by the Lead Agency that address prevention of shaken baby syndrome and abusive head trauma include: A child care provider's policies shall include, at a minimum: Shaken baby syndrome/abusive head trauma/child maltreatment, to include: (i) recognizing potential signs and symptoms; (ii) creating strategies for coping with crying, fussing or distraught children; and (iii) understanding the development and vulnerabilities of the brain in infancy and early childhood. All child care providers serving children receiving assistance through the Child Care Payment Assistance/Certificate program are required to complete the Before You Begin: New Educator preservice and Preventing Shaken Baby Syndrome, Abusive Head Trauma, and Child Maltreatment preservice training prior to having contact with children.**
 - ii. All CCDF-eligible licensed family child care homes. Provide the standard: **Standards for child care programs licensed by the Lead Agency that address prevention of shaken baby syndrome and abusive head trauma include: A child care provider's policies shall include, at a minimum: Shaken baby syndrome/abusive head**

trauma/child maltreatment, to include: (i) recognizing potential signs and symptoms; (ii) creating strategies for coping with crying, fussing or distraught children; and (iii) understanding the development and vulnerabilities of the brain in infancy and early childhood. All child care providers serving children receiving assistance through the Child Care Payment Assistance/Certificate program are required to complete the Before You Begin: New Educator preservice and Preventing Shaken Baby Syndrome, Abusive Head Trauma, and Child Maltreatment preservice training prior to having contact with children.

iii. All CCDF-eligible licensed in-home care. Provide the standard:

☒ Not applicable.

iv. All CCDF-eligible license-exempt center care. Provide the standard: **CCDF-eligible license-exempt center care. Provide the standard: License-exempt child care providers regulated by the Tennessee Department of Education (TDOE) are subject to Tenn. Comp. R. & Regs 0520-12-01. Statute requires that these standards are substantially the same as those for child care providers licensed by the Lead Agency. Authority over license-exempt providers not regulated by TDOE is limited to the Lead Agency's contract to participate in the Child Care Payment Assistance/Certificate Program. License-exempt center educators are required to complete a specified pre-service training that covers all the health and safety training topics prior to contact with children. License-exempt center educators are also required to complete at least six (6) hours of training in CCDBG health and safety topics annually. The Lead Agency recommends educators cycle through all CCDBG health and safety training topics every three (3) years.**

v. All CCDF-eligible license-exempt family child care homes. Provide the standard: **The Lead Agency identifies Authorized Child Care Professionals as CCDF-eligible license-exempt family child care providers, individuals who may care for up to six (6) children (four (4) not related to the individual and up to two (2) additional related children) and who are contracted with the Lead Agency to participate in the Child Care Payment Assistance/Certificate Program as a result of parental choice. A maximum of four children approved through the Child Care Payment Assistance/Certificate Program may be enrolled to an Authorized Child Care Professional. License-exempt Authorized Child Care Professionals are required to complete a specified pre-service training that covers all the health and safety training topics prior to contact with children. License-exempt Authorized Child Care Professionals are also required to complete at least six (6) hours of training in CCDBG health and safety topics annually. The Lead Agency recommends educators cycle through all CCDBG health and safety training topics every three (3) years. Observation of standards demonstration are documented during each monitoring inspection.**

vi. All CCDF-eligible license-exempt in-home care. Provide the standard: **The Lead Agency only permits relative care in circumstances when the child in care resides in the provider's home, i.e., a child or grandchild. The Lead Agency makes available in-home care for non-relatives in the child's home when the child requires special accommodations to meet individual needs. In such instances, these situations would be monitored using the protocols established for**

Authorized Professionals. Please see 5.3.6.a.v.

- vii. All CCDF-eligible out-of-school programs (afterschool programs, summer camps, day camps, etc.). Provide the standard: **N/A.**
- b. Provide the standards, appropriate to the provider setting and age of children, that address the prevention of child maltreatment and indicate the age of children it applies to for the following CCDF-eligible providers:
 - i. All CCDF-eligible licensed center care. Provide the standard: **Standards for child care programs licensed by the Lead Agency that address prevention of child maltreatment include: A child care provider's policies shall include, at a minimum: Shaken baby syndrome/abusive head trauma/child maltreatment, to include: (i) recognizing potential signs and symptoms; (ii) creating strategies for coping with crying, fussing or distraught children; and (iii) understanding the development and vulnerabilities of the brain in infancy and early childhood. All child care providers serving children receiving assistance through the Child Care Payment Assistance/Certificate program are required to complete the Before You Begin: New Educator preservice and Preventing Shaken Baby Syndrome, Abusive Head Trauma, and Child Maltreatment preservice training prior to having contact with children.**
 - ii. All CCDF-eligible licensed family child care homes. Provide the standard: **Standards for child care programs licensed by the Lead Agency that address prevention of shaken baby syndrome and abusive head trauma include: A child care provider's policies shall include, at a minimum: Shaken baby syndrome/abusive head trauma/child maltreatment, to include: (i) recognizing potential signs and symptoms; (ii) creating strategies for coping with crying, fussing or distraught children; and (iii) understanding the development and vulnerabilities of the brain in infancy and early childhood. All child care providers serving children receiving assistance through the Child Care Payment Assistance/Certificate program are required to complete the Before You Begin: New Educator preservice and Preventing Shaken Baby Syndrome, Abusive Head Trauma, and Child Maltreatment preservice training prior to having contact with children.**
 - iii. All CCDF-eligible licensed in-home care. Provide the standard:
[x] Not applicable.
 - iv. All CCDF-eligible license-exempt center care. Provide the standard: **CCDF-eligible license-exempt center care. Provide the standard: License-exempt child care providers regulated by the Tennessee Department of Education (TDOE) are subject to Tenn. Comp. R. & Regs 0520-12-01. Statute requires that these standards are substantially the same as those for child care providers licensed by the Lead Agency. Authority over license-exempt providers not regulated by TDOE is limited to the Lead Agency's contract to participate in the Child Care Payment Assistance/Certificate Program. License-exempt center educators are required to complete a specified pre-service training that covers all the health and safety training topics prior to contact with children. License-exempt center educators are also required to complete at least six (6) hours of training in CCDBG health and safety topics annually. The Lead Agency recommends educators cycle through all**

CCDBG health and safety training topics every three (3) years.

- v. All CCDF-eligible license-exempt family child care homes. Provide the standard: **The Lead Agency identifies Authorized Child Care Professionals as CCDF-eligible license-exempt family child care providers, individuals who may care for up to six (6) children (four (4) not related to the individual and up to two (2) additional related children) and who are contracted with the Lead Agency to participate in the Child Care Payment Assistance/Certificate Program as a result of parental choice. A maximum of four children approved through the Child Care Payment Assistance/Certificate Program may be enrolled to an Authorized Child Care Professional. License-exempt Authorized Child Care Professionals are required to complete a specified pre-service training that covers all the health and safety training topics prior to contact with children. License-exempt Authorized Child Care Professionals are also required to complete at least six (6) hours of training in CCDBG health and safety topics annually. The Lead Agency recommends educators cycle through all CCDBG health and safety training topics every three (3) years. Observation of standards demonstration are documented during each monitoring inspection.**
- vi. All CCDF-eligible license-exempt in-home care. Provide the standard: **The Lead Agency only permits relative care in circumstances when the child in care resides in the provider's home, i.e., a child or grandchild. The Lead Agency makes available in-home care for non-relatives in the child's home when the child requires special accommodations to meet individual needs. In such instances, these situations would be monitored using the protocols established for Authorized Professionals. Please see 5.3.6.b.v.**
- vii. All CCDF-eligible out-of-school programs (afterschool programs, summer camps, day camps, etc.). Provide the standard: **N/A.**

5.3.7 Emergency preparedness and response planning standard

Identify by checking below that the emergency preparedness and response planning due to natural disasters and human-caused events standard includes procedures in the following areas:

- i. ☒ Evacuation
- ii. ☒ Relocation
- iii. ☒ Shelter-in-place
- iv. ☒ Lock down
- v. Staff emergency preparedness
 - ☒ Training
 - ☒ Practice drills
- vi. Volunteer emergency preparedness
 - ☒ Training
 - ☒ Practice drills
- vii. ☒ Communication with families

- viii. ☒ Reunification with families
- ix. ☒ Continuity of operations
- x. Accommodation of
 - ☒ Infants
 - ☒ Toddlers
 - ☒ Children with disabilities
 - ☒ Children with chronic medical conditions
- xi. If any of the above are not checked, describe:

5.3.8 Handling and storage of hazardous materials and the appropriate disposal of biocontaminants health and safety standard

- a. Provide the standards, appropriate to the provider setting and age of children, that address the handling and storage of hazardous materials for the following CCDF-eligible providers:
 - i. All CCDF-eligible licensed center care. Provide the standard: **Universal and standard precautions, as defined by the Centers for Disease Control, shall be followed when handling or cleaning bodily fluids. Firearms shall not be permitted on the premises of a child care agency, in any vehicle used to transport children for the child care agency, or in the presence of a child. In a private residence, deadly weapons and potentially hazardous items, such as power tools, are permitted on the premises, but shall be kept locked, out of sight, and inaccessible to children at all times. Firearms kept in a private residence shall be locked and unloaded with ammunition locked up separately. The physical facilities (indoor and outdoor) present no apparent hazards. All child care providers serving children receiving assistance through the Child Care Payment Assistance/Certificate program are required to complete the Before You Begin: New Educator preservice training prior to having contact with children.**
 - ii. All CCDF-eligible licensed family child care homes. Provide the standard: **Universal and standard precautions, as defined by the Centers for Disease Control, shall be followed when handling or cleaning bodily fluids. Firearms shall not be permitted on the premises of a child care agency, in any vehicle used to transport children for the child care agency, or in the presence of a child. In a private residence, deadly weapons and potentially hazardous items, such as power tools, are permitted on the premises, but shall be kept locked, out of sight, and inaccessible to children at all times. Firearms kept in a private residence shall be locked and unloaded with ammunition locked up separately. The physical facilities (indoor and outdoor) present no apparent hazards. All child care providers serving children receiving assistance through the Child Care Payment Assistance/Certificate program are required to complete the Before You Begin: New Educator preservice training prior to having contact with children.**
 - iii. All CCDF-eligible licensed in-home care. Provide the standard:
 - ☒ Not applicable.

- iv. All CCDF-eligible license-exempt center care. Provide the standard: **CCDF-eligible license-exempt center care. Provide the standard: License-exempt child care providers regulated by the Tennessee Department of Education (TDOE) are subject to Tenn. Comp. R. & Regs 0520-12-01. Statute requires that these standards are substantially the same as those for child care providers licensed by the Lead Agency. Authority over license-exempt providers not regulated by TDOE is limited to the Lead Agency's contract to participate in the Child Care Payment Assistance/Certificate Program. License-exempt center educators are required to complete a specified pre-service training that covers all the health and safety training topics prior to contact with children. License-exempt center educators are also required to complete at least six (6) hours of training in CCDBG health and safety topics annually. The Lead Agency recommends educators cycle through all CCDBG health and safety training topics every three (3) years.**
- v. All CCDF-eligible license-exempt family child care homes. Provide the standard: **The Lead Agency identifies Authorized Child Care Professionals as CCDF-eligible license-exempt family child care providers, individuals who may care for up to six (6) children (four (4) not related to the individual and up to two (2) additional related children) and who are contracted with the Lead Agency to participate in the Child Care Payment Assistance/Certificate Program as a result of parental choice. A maximum of four children approved through the Child Care Payment Assistance/Certificate Program may be enrolled to an Authorized Child Care Professional. License-exempt Authorized Child Care Professionals are required to complete a specified pre-service training that covers all the health and safety training topics prior to contact with children. License-exempt Authorized Child Care Professionals are also required to complete at least six (6) hours of training in CCDBG health and safety topics annually. The Lead Agency recommends educators cycle through all CCDBG health and safety training topics every three (3) years. Observation of standards demonstration are documented during each monitoring inspection.**
- vi. All CCDF-eligible license-exempt in-home care. Provide the standard: **The Lead Agency only permits relative care in circumstances when the child in care resides in the provider's home, i.e., a child or grandchild. The Lead Agency makes available in-home care for non-relatives in the child's home when the child requires special accommodations to meet individual needs. In such instances, these situations would be monitored using the protocols established for Authorized Professionals. Please see 5.3.8.a.v.**
- vii. All CCDF-eligible out-of-school programs (afterschool programs, summer camps, day camps, etc.). Provide the standard: **N/A.**
- b. Provide the standards, appropriate to the provider setting and age of children, that address the disposal of bio contaminants for the following CCDF-eligible providers:
 - i. All CCDF-eligible licensed center care. Provide the standard: **Universal and standard precautions, as defined by the Centers for Disease Control, shall be followed when handling or cleaning bodily fluids. Firearms shall not be permitted on the premises of a child care agency, in any vehicle used to transport children for the child care agency, or in the presence of a child. In a private residence,**

deadly weapons and potentially hazardous items, such as power tools, are permitted on the premises, but shall be kept locked, out of sight, and inaccessible to children at all times. Firearms kept in a private residence shall be locked and unloaded with ammunition locked up separately. The physical facilities (indoor and outdoor) present no apparent hazards. All child care providers serving children receiving assistance through the Child Care Payment Assistance/Certificate program are required to complete the Before You Begin: New Educator preservice training prior to having contact with children.

- ii. All CCDF-eligible licensed family child care homes. Provide the standard: **Universal and standard precautions**, as defined by the Centers for Disease Control, shall be followed when handling or cleaning bodily fluids. Firearms shall not be permitted on the premises of a child care agency, in any vehicle used to transport children for the child care agency, or in the presence of a child. In a private residence, deadly weapons and potentially hazardous items, such as power tools, are permitted on the premises, but shall be kept locked, out of sight, and inaccessible to children at all times. Firearms kept in a private residence shall be locked and unloaded with ammunition locked up separately. The physical facilities (indoor and outdoor) present no apparent hazards. All child care providers serving children receiving assistance through the Child Care Payment Assistance/Certificate program are required to complete the Before You Begin: New Educator preservice training prior to having contact with children.
- iii. All CCDF-eligible licensed in-home care. Provide the standard:

☒ Not applicable.
- iv. All CCDF-eligible license-exempt center care. Provide the standard: **CCDF-eligible license-exempt center care**. Provide the standard: License-exempt child care providers regulated by the Tennessee Department of Education (TDOE) are subject to Tenn. Comp. R. & Regs 0520-12-01. Statute requires that these standards are substantially the same as those for child care providers licensed by the Lead Agency. Authority over license-exempt providers not regulated by TDOE is limited to the Lead Agency's contract to participate in the Child Care Payment Assistance/Certificate Program. License-exempt center educators are required to complete a specified pre-service training that covers all the health and safety training topics prior to contact with children. License-exempt center educators are also required to complete at least six (6) hours of training in CCDBG health and safety topics annually. The Lead Agency recommends educators cycle through all CCDBG health and safety training topics every three (3) years.
- v. All CCDF-eligible license-exempt family child care homes. Provide the standard: **The Lead Agency identifies Authorized Child Care Professionals as CCDF-eligible license-exempt family child care providers**, individuals who may care for up to six (6) children (four (4) not related to the individual and up to two (2) additional related children) and who are contracted with the Lead Agency to participate in the Child Care Payment Assistance/Certificate Program as a result of parental choice. A maximum of four children approved through the Child Care Payment Assistance/Certificate Program may be enrolled to an Authorized Child Care Professional. License-exempt Authorized Child Care Professionals are required to

complete a specified pre-service training that covers all the health and safety training topics prior to contact with children. License-exempt Authorized Child Care Professionals are also required to complete at least six (6) hours of training in CCDBG health and safety topics annually. The Lead Agency recommends educators cycle through all CCDBG health and safety training topics every three (3) years. Observation of standards demonstration are documented during each monitoring inspection.

- vi. All CCDF-eligible license-exempt in-home care. Provide the standard: **The Lead Agency only permits relative care in circumstances when the child in care resides in the provider's home, i.e., a child or grandchild. The Lead Agency makes available in-home care for non-relatives in the child's home when the child requires special accommodations to meet individual needs. In such instances, these situations would be monitored using the protocols established for Authorized Professionals. Please see 5.3.8.b.v.**
- vii. All CCDF-eligible out-of-school programs (afterschool programs, summer camps, day camps, etc.). Provide the standard: **N/A.**

5.3.9 Precautions in transporting children health and safety standard

Provide the standards, appropriate to the provider setting and age of children, that address precautions in transporting children for the following CCDF-eligible providers:

- i. All CCDF-eligible licensed center care. Provide the standard: **Standards for child care programs licensed by the Lead Agency that address precautions in transporting children include: (1) Transportation shall comply with all state laws and these rules. (2) Child care agencies shall not transport children without prior written approval by the Department. (3) Prior to providing child care transportation services of any type, directly or by contract, all new and existing child care agencies shall provide a written statement to the Department that includes: (a) Scope of transportation that will be offered; (b) A list and description of the vehicles that will be used, including color, make, and model of vehicle, the license plate number, and provisions for how the child care agency will address emergency situations if the temporary use of alternate vehicles is necessary; (c) Copies of any contracts, agreements or arrangements with any third parties for transportation; and (d) Policies, procedures, and staff training plans to ensure that all transportation staff properly performs all duties related to the following requirements: 1. Child care agencies shall adhere to child-safety restraint requirements set forth in state law; 2. Child care agencies shall account for each child when loading or unloading to ensure that no child is left on a vehicle unattended; 3. Child care agencies shall conduct vehicle emergency evacuation drills quarterly; 4. Use of cell phones and texting devices is prohibited while en route; Exception: Limited use of cell phones and texting devices by vehicle monitors, who are not driving, to communicate with the child care agency or parents, is allowable, but personal calls are prohibited. 5. Child care agencies shall institute plans for emergency communication during transportation; 6. Carrying, possessing, or storing firearms or other weapons in vehicles is prohibited; 7. Routine transportation shall be limited to forty-five (45) minutes each way; (i) An individualized plan may be approved by the Department allowing the child care**

agency to exceed this time frame if signed by the parent/guardian and the child care agency. (ii) Field trip travel time is not limited for school-agers. 8. Child care agencies shall have current documentation of medical and liability insurance as required by law; 9. Child care agencies shall use Department-approved vehicle monitoring devices for all vehicles designed to transport six (6) passengers or more; (i) Exceptions: (I) Vehicles in which all the children being transported are five (5) years of age and in kindergarten, or older, unless any of the children are developmentally or physically disabled or non-ambulatory; (II) Vehicles used exclusively for field trips; or (III) Vehicles used by family or group child care homes.

All child care providers serving children receiving assistance through the Child Care Payment Assistance/Certificate program are required to complete the Before You Begin: New Educator preservice training prior to having contact with children.

- ii. All CCDF-eligible licensed family child care homes. Provide the standard: **Standards for child care programs licensed by the Lead Agency that address precautions in transporting children include:** (1) Transportation shall comply with all state laws and these rules. (2) Child care agencies shall not transport children without prior written approval by the Department. (3) Prior to providing child care transportation services of any type, directly or by contract, all new and existing child care agencies shall provide a written statement to the Department that includes: (a) Scope of transportation that will be offered; (b) A list and description of the vehicles that will be used, including color, make, and model of vehicle, the license plate number, and provisions for how the child care agency will address emergency situations if the temporary use of alternate vehicles is necessary; (c) Copies of any contracts, agreements or arrangements with any third parties for transportation; and (d) Policies, procedures, and staff training plans to ensure that all transportation staff properly performs all duties related to the following requirements: 1. Child care agencies shall adhere to child-safety restraint requirements set forth in state law; 2. Child care agencies shall account for each child when loading or unloading to ensure that no child is left on a vehicle unattended; 3. Child care agencies shall conduct vehicle emergency evacuation drills quarterly; 4. Use of cell phones and texting devices is prohibited while en route; Exception: Limited use of cell phones and texting devices by vehicle monitors, who are not driving, to communicate with the child care agency or parents, is allowable, but personal calls are prohibited. 5. Child care agencies shall institute plans for emergency communication during transportation; 6. Carrying, possessing, or storing firearms or other weapons in vehicles is prohibited; 7. Routine transportation shall be limited to forty-five (45) minutes each way; (i) An individualized plan may be approved by the Department allowing the child care agency to exceed this time frame if signed by the parent/guardian and the child care agency. (ii) Field trip travel time is not limited for school-agers. 8. Child care agencies shall have current documentation of medical and liability insurance as required by law; 9. Child care agencies shall use Department-approved vehicle monitoring devices for all vehicles designed to transport six (6) passengers or more; (i) Exceptions: (I) Vehicles in which all the children being transported are five (5) years of age and in kindergarten, or older, unless any of the children are

developmentally or physically disabled or non-ambulatory; (II) Vehicles used exclusively for field trips; or (III) Vehicles used by family or group child care homes.

All child care providers serving children receiving assistance through the Child Care Payment Assistance/Certificate program are required to complete the Before You Begin: New Educator preservice training prior to having contact with children.

- iii. All CCDF-eligible licensed in-home care. Provide the standard:

☒ Not applicable.
- iv. All CCDF-eligible license-exempt center care. Provide the standard: **CCDF-eligible license-exempt center care. Provide the standard: License-exempt child care providers regulated by the Tennessee Department of Education (TDOE) are subject to Tenn. Comp. R. & Regs 0520-12-01. Statute requires that these standards are substantially the same as those for child care providers licensed by the Lead Agency. Authority over license-exempt providers not regulated by TDOE is limited to the Lead Agency's contract to participate in the Child Care Payment Assistance/Certificate Program. License-exempt center educators are required to complete a specified pre-service training that covers all the health and safety training topics prior to contact with children. License-exempt center educators are also required to complete at least six (6) hours of training in CCDBG health and safety topics annually. The Lead Agency recommends educators cycle through all CCDBG health and safety training topics every three (3) years.**
- v. All CCDF-eligible license-exempt family child care homes. Provide the standard: **The Lead Agency identifies Authorized Child Care Professionals as CCDF-eligible license-exempt family child care providers, individuals who may care for up to six (6) children (four (4) not related to the individual and up to two (2) additional related children) and who are contracted with the Lead Agency to participate in the Child Care Payment Assistance/Certificate Program as a result of parental choice. A maximum of four children approved through the Child Care Payment Assistance/Certificate Program may be enrolled to an Authorized Child Care Professional. License-exempt Authorized Child Care Professionals are required to complete a specified pre-service training that covers all the health and safety training topics prior to contact with children. License-exempt Authorized Child Care Professionals are also required to complete at least six (6) hours of training in CCDBG health and safety topics annually. The Lead Agency recommends educators cycle through all CCDBG health and safety training topics every three (3) years. Observation of standards demonstration are documented during each monitoring inspection.**
- vi. All CCDF-eligible license-exempt in-home care. Provide the standard: **The Lead Agency only permits relative care in circumstances when the child in care resides in the provider's home, i.e., a child or grandchild. The Lead Agency makes available in-home care for non-relatives in the child's home when the child requires special accommodations to meet individual needs. In such instances, these situations would be monitored using the protocols established for Authorized Professionals. Please see 5.3.9.v.**

- vii. All CCDF-eligible out-of-school programs (afterschool programs, summer camps, day camps, etc.). Provide the standard: **N/A**.

5.3.10 Pediatric first aid and pediatric cardiopulmonary resuscitation (CPR) health and safety standard

- a. Provide the standards, appropriate to the provider setting and age of children, that address pediatric first aid for all staff for the following CCDF-eligible providers:
 - i. All CCDF-eligible licensed center care. Provide the standard: **Standards for child care programs licensed by the Lead Agency that address pediatric first aid for all staff include: (9) First Aid. (a) A standard first aid kit, as defined by the current National Health and Safety Performance Standards: Guidelines for Out-of-Home Child Care shall be accessible to all staff, and all staff shall be familiar with its contents and use. (b) All staff shall obtain first aid training within ninety (90) days of employment. At least one staff member who has current certification in first aid from a certifying organization recognized by the Department shall be on-site at all times. 1. The certification shall be applicable to the ages present in the classroom: (i) Infant/Child first aid; and/or (ii) Adult first aid if children over age twelve (12) are present. (c) Current and comprehensive first aid information shall be prominently posted in each area that children use. (d) Extended Care First Aid Requirements. One (1) staff person on duty at all times shall have current certification or the equivalent in first aid from a certifying organization recognized by the Department. All child care providers serving children receiving assistance through the Child Care Payment Assistance/Certificate program are required to complete the Before You Begin: New Educator preservice training prior to having contact with children.**
 - ii. All CCDF-eligible licensed family child care homes. Provide the standard: **Standards for child care programs licensed by the Lead Agency that address pediatric first aid for all staff include: (9) First Aid. (a) A standard first aid kit, as defined by the current National Health and Safety Performance Standards: Guidelines for Out-of-Home Child Care shall be accessible to all staff, and all staff shall be familiar with its contents and use. (b) All staff shall obtain first aid training within ninety (90) days of employment. At least one staff member who has current certification in first aid from a certifying organization recognized by the Department shall be on-site at all times. 1. The certification shall be applicable to the ages present in the classroom: (i) Infant/Child first aid; and/or (ii) Adult first aid if children over age twelve (12) are present. (c) Current and comprehensive first aid information shall be prominently posted in each area that children use. (d) Extended Care First Aid Requirements. One (1) staff person on duty at all times shall have current certification or the equivalent in first aid from a certifying organization recognized by the Department. All child care providers serving children receiving assistance through the Child Care Payment Assistance/Certificate program are required to complete the Before You Begin: New Educator preservice training prior to having contact with children.**
 - iii. All CCDF-eligible licensed in-home care. Provide the standard:
[x] Not applicable.
 - iv. All CCDF-eligible license-exempt center care. Provide the standard: **CCDF-eligible**

license-exempt center care. Provide the standard: License-exempt child care providers regulated by the Tennessee Department of Education (TDOE) are subject to Tenn. Comp. R. & Regs 0520-12-01. Statute requires that these standards are substantially the same as those for child care providers licensed by the Lead Agency. Authority over license-exempt providers not regulated by TDOE is limited to the Lead Agency's contract to participate in the Child Care Payment Assistance/Certificate Program. License-exempt center educators are required to complete a specified pre-service training that covers all the health and safety training topics prior to contact with children. License-exempt center educators are also required to complete at least six (6) hours of training in CCDBG health and safety topics annually. The Lead Agency recommends educators cycle through all CCDBG health and safety training topics every three (3) years.

- v. All CCDF-eligible license-exempt family child care homes. Provide the standard: **The Lead Agency identifies Authorized Child Care Professionals as CCDF-eligible license-exempt family child care providers, individuals who may care for up to six (6) children (four (4) not related to the individual and up to two (2) additional related children) and who are contracted with the Lead Agency to participate in the Child Care Payment Assistance/Certificate Program as a result of parental choice. A maximum of four children approved through the Child Care Payment Assistance/Certificate Program may be enrolled to an Authorized Child Care Professional. License-exempt Authorized Child Care Professionals are required to complete a specified pre-service training that covers all the health and safety training topics prior to contact with children. License-exempt Authorized Child Care Professionals are also required to complete at least six (6) hours of training in CCDBG health and safety topics annually. The Lead Agency recommends educators cycle through all CCDBG health and safety training topics every three (3) years. Observation of standards demonstration are documented during each monitoring inspection.**
- vi. All CCDF-eligible license-exempt in-home care. Provide the standard: **The Lead Agency only permits relative care in circumstances when the child in care resides in the provider's home, i.e., a child or grandchild. The Lead Agency makes available in-home care for non-relatives in the child's home when the child requires special accommodations to meet individual needs. In such instances, these situations would be monitored using the protocols established for Authorized Professionals. Please see 5.3.10.a.v.**
- vii. All CCDF-eligible out-of-school programs (afterschool programs, summer camps, day camps, etc.). Provide the standard: **N/A.**
- b. Provide the standards, appropriate to the provider setting and age of children, that address pediatric cardiopulmonary resuscitation for all staff for the following CCDF-eligible providers:
 - i. All CCDF-eligible licensed center care. Provide the standard: **Standards for child care programs licensed by the Lead Agency that address pediatric cardiopulmonary resuscitation (CPR) for all staff include: (10) Cardiopulmonary Resuscitation (CPR) Requirements. (a) All staff on duty shall receive training in Cardiopulmonary Resuscitation (CPR) as recognized by the Department within**

ninety (90) days of employment. At least one staff member who has certification in CPR from a certifying organization recognized by the Department shall be present on-site at all times. 1. The certification shall be applicable to the ages present in the classroom: (i) Infant/Child CPR; and/or (ii) Adult CPR if children over age twelve (12) are present. All child care providers serving children receiving assistance through the Child Care Payment Assistance/Certificate program are required to complete the Before You Begin: New Educator preservice training prior to having contact with children.

- ii. All CCDF-eligible licensed family child care homes. Provide the standard: **Standards for child care programs licensed by the Lead Agency that address pediatric CPR for all staff include: (10) Cardiopulmonary Resuscitation (CPR) Requirements. (a) All staff on duty shall receive training in Cardiopulmonary Resuscitation (CPR) as recognized by the Department within ninety (90) days of employment. At least one staff member who has certification in CPR from a certifying organization recognized by the Department shall be present on-site at all times. 1. The certification shall be applicable to the ages present in the classroom: (i) Infant/Child CPR; and/or (ii) Adult CPR if children over age twelve (12) are present. All child care providers serving children receiving assistance through the Child Care Payment Assistance/Certificate program are required to complete the Before You Begin: New Educator preservice training prior to having contact with children.**
- iii. All CCDF-eligible licensed in-home care. Provide the standard:

[x] Not applicable.
- iv. All CCDF-eligible license-exempt center care. Provide the standard: **CCDF-eligible license-exempt center care. Provide the standard: License-exempt child care providers regulated by the Tennessee Department of Education (TDOE) are subject to Tenn. Comp. R. & Regs 0520-12-01. Statute requires that these standards are substantially the same as those for child care providers licensed by the Lead Agency. Authority over license-exempt providers not regulated by TDOE is limited to the Lead Agency's contract to participate in the Child Care Payment Assistance/Certificate Program. License-exempt center educators are required to complete a specified pre-service training that covers all the health and safety training topics prior to contact with children. License-exempt center educators are also required to complete at least six (6) hours of training in CCDBG health and safety topics annually. The Lead Agency recommends educators cycle through all CCDBG health and safety training topics every three (3) years.**
- v. All CCDF-eligible license-exempt family child care homes. Provide the standard: **The Lead Agency identifies Authorized Child Care Professionals as CCDF-eligible license-exempt family child care providers, individuals who may care for up to six (6) children (four (4) not related to the individual and up to two (2) additional related children) and who are contracted with the Lead Agency to participate in the Child Care Payment Assistance/Certificate Program as a result of parental choice. A maximum of four children approved through the Child Care Payment Assistance/Certificate Program may be enrolled to an Authorized Child Care Professional. License-exempt Authorized Child Care Professionals are required to complete a specified pre-service training that covers all the health and safety**

training topics prior to contact with children. License-exempt Authorized Child Care Professionals are also required to complete at least six (6) hours of training in CCDBG health and safety topics annually. The Lead Agency recommends educators cycle through all CCDBG health and safety training topics every three (3) years. Observation of standards demonstration are documented during each monitoring inspection.

- vi. All CCDF-eligible license-exempt in-home care. Provide the standard: **The Lead Agency only permits relative care in circumstances when the child in care resides in the provider's home, i.e., a child or grandchild. The Lead Agency makes available in-home care for non-relatives in the child's home when the child requires special accommodations to meet individual needs. In such instances, these situations would be monitored using the protocols established for Authorized Professionals. Please see 5.3.10.b.v.**
- vii. All CCDF-eligible out-of-school programs (afterschool programs, summer camps, day camps, etc.). Provide the standard: **N/A.**

5.3.11 Identification and reporting of child abuse and neglect health and safety standard

- a. Provide the standards, appropriate to the provider setting and age of children, that address the identification of child abuse and neglect for the following CCDF-eligible providers:
 - i. All CCDF-eligible licensed center care. Provide the standard: **Prior to having contact with children, each new employee shall receive orientation in and have a working knowledge of detecting, reporting, and preventing child abuse. Child care providers are required to develop reporting policies that comply with requirements of the Tennessee Department of Children's Services (TDCS), the state's child welfare agency. All staff must complete training on prevention, detection, and reporting of child abuse and neglect training annually.**

All child care providers serving children receiving assistance through the Child Care Payment Assistance/Certificate program are required to complete the Before You Begin: New Educator preservice training prior to having contact with children. This training includes standards/expectations for each CCDBG health and safety topic. The expectations for recognizing child abuse and neglect include but are not limited to clarifying that any person who has contact with children in a professional capacity is a mandated reporter in Tennessee. Any suspicion or knowledge of child abuse and/or neglect must be reported to the Tennessee Department of Children's Services (TDCS), including any instance that may occur at the hand of another staff member.
 - ii. All CCDF-eligible licensed family child care homes. Provide the standard: **Prior to having contact with children, each new employee shall receive orientation in and have a working knowledge of detecting, reporting, and preventing child abuse. Child care providers are required to develop reporting policies that comply with requirements of the Tennessee Department of Children's Services (TDCS), the state's child welfare agency. All staff must complete on prevention, detection, and reporting of child abuse and neglect training annually.**

All child care providers serving children receiving assistance through the Child Care Payment Assistance/Certificate program are required to complete the Before You Begin: New Educator preservice training prior to having contact with children. This training includes standards/expectations for each CCDBG health and safety topic. The expectations for recognizing child abuse and neglect include but are not limited to clarifying that any person who has contact with children in a professional capacity is a mandated reporter in Tennessee. Any suspicion or knowledge of child abuse and/or neglect must be reported to the Tennessee Department of Children's Services (TDCS), including any instance that may occur at the hand of another staff member.

- iii. All CCDF-eligible licensed in-home care. Provide the standard:
☒ Not applicable.
- iv. All CCDF-eligible license-exempt center care. Provide the standard: **CCDF-eligible license-exempt center care. Provide the standard: License-exempt child care providers regulated by the Tennessee Department of Education (TDOE) are subject to Tenn. Comp. R. & Regs 0520-12-01. Statute requires that these standards are substantially the same as those for child care providers licensed by the Lead Agency. Authority over license-exempt providers not regulated by TDOE is limited to the Lead Agency's contract to participate in the Child Care Payment Assistance/Certificate Program. License-exempt center educators are required to complete a specified pre-service training that covers all the health and safety training topics prior to contact with children. License-exempt center educators are also required to complete at least six (6) hours of training in CCDBG health and safety topics annually. The Lead Agency recommends educators cycle through all CCDBG health and safety training topics every three (3) years.**
- v. All CCDF-eligible license-exempt family child care homes. Provide the standard: **The Lead Agency identifies Authorized Child Care Professionals as CCDF-eligible license-exempt family child care providers, individuals who may care for up to six (6) children (four (4) not related to the individual and up to two (2) additional related children) and who are contracted with the Lead Agency to participate in the Child Care Payment Assistance/Certificate Program as a result of parental choice. A maximum of four children approved through the Child Care Payment Assistance/Certificate Program may be enrolled to an Authorized Child Care Professional. License-exempt Authorized Child Care Professionals are required to complete a specified pre-service training that covers all the health and safety training topics prior to contact with children. License-exempt Authorized Child Care Professionals are also required to complete at least six (6) hours of training in CCDBG health and safety topics annually. The Lead Agency recommends educators cycle through all CCDBG health and safety training topics every three (3) years. Observation of standards demonstration are documented during each monitoring inspection.**
- vi. All CCDF-eligible license-exempt in-home care. Provide the standard: **The Lead Agency only permits relative care in circumstances when the child in care resides in the provider's home, i.e., a child or grandchild. The Lead Agency makes**

available in-home care for non-relatives in the child's home when the child requires special accommodations to meet individual needs. In such instances, these situations would be monitored using the protocols established for Authorized Professionals. Please see 5.3.11.a.v.

- vii. All CCDF-eligible out-of-school programs (afterschool programs, summer camps, day camps, etc.). Provide the standard: **N/A.**
- b. Provide your standards, appropriate to the provider setting and age of children, that address the reporting of child abuse and neglect for the following CCDF-eligible providers:
 - i. All CCDF-eligible licensed center care. Provide the standard: **Prior to having contact with children, each new employee shall receive orientation in and have a working knowledge of detecting, reporting, and preventing child abuse. Child care providers are required to develop reporting policies that comply with requirements of the Tennessee Department of Children's Services (TDCS), the state's child welfare agency. All staff must complete training on prevention, detection, and reporting of child abuse and neglect training annually.**

All child care providers serving children receiving assistance through the Child Care Payment Assistance/Certificate program are required to complete the Before You Begin: New Educator preservice training prior to having contact with children. This training includes standards/expectations for each CCDBG health and safety topic. The expectations for recognizing child abuse and neglect include but are not limited to clarifying that any person who has contact with children in a professional capacity is a mandated reporter in Tennessee. Any suspicion or knowledge of child abuse and/or neglect must be reported to the Tennessee Department of Children's Services (TDCS), including any instance that may occur at the hand of another staff member.

- ii. All CCDF-eligible licensed family child care homes. Provide the standard: **Prior to having contact with children, each new employee shall receive orientation in and have a working knowledge of detecting, reporting, and preventing child abuse. Child care providers are required to develop reporting policies that comply with requirements of the Tennessee Department of Children's Services (TDCS), the state's child welfare agency. All staff must complete training on prevention, detection, and reporting of child abuse and neglect training annually.**

All child care providers serving children receiving assistance through the Child Care Payment Assistance/Certificate program are required to complete the Before You Begin: New Educator preservice training prior to having contact with children. This training includes standards/expectations for each CCDBG health and safety topic. The expectations for recognizing child abuse and neglect include but are not limited to clarifying that any person who has contact with children in a professional capacity is a mandated reporter in Tennessee. Any suspicion or knowledge of child abuse and/or neglect must be reported to the Tennessee Department of Children's Services (TDCS), including any instance that may occur at the hand of another staff member.

- iii. All CCDF-eligible licensed in-home care. Provide the standard:

☒ Not applicable.

- iv. All CCDF-eligible license-exempt center care. Provide the standard: **CCDF-eligible license-exempt center care. Provide the standard: License-exempt child care providers regulated by the Tennessee Department of Education (TDOE) are subject to Tenn. Comp. R. & Regs 0520-12-01. Statute requires that these standards are substantially the same as those for child care providers licensed by the Lead Agency. Authority over license-exempt providers not regulated by TDOE is limited to the Lead Agency's contract to participate in the Child Care Payment Assistance/Certificate Program. License-exempt center educators are required to complete a specified pre-service training that covers all the health and safety training topics prior to contact with children. License-exempt center educators are also required to complete at least six (6) hours of training in CCDBG health and safety topics annually. The Lead Agency recommends educators cycle through all CCDBG health and safety training topics every three (3) years.**
- v. All CCDF-eligible license-exempt family child care homes. Provide the standard: **The Lead Agency identifies Authorized Child Care Professionals as CCDF-eligible license-exempt family child care providers, individuals who may care for up to six (6) children (four (4) not related to the individual and up to two (2) additional related children) and who are contracted with the Lead Agency to participate in the Child Care Payment Assistance/Certificate Program as a result of parental choice. A maximum of four children approved through the Child Care Payment Assistance/Certificate Program may be enrolled to an Authorized Child Care Professional. License-exempt Authorized Child Care Professionals are required to complete a specified pre-service training that covers all the health and safety training topics prior to contact with children. License-exempt Authorized Child Care Professionals are also required to complete at least six (6) hours of training in CCDBG health and safety topics annually. The Lead Agency recommends educators cycle through all CCDBG health and safety training topics every three (3) years. Observation of standards demonstration are documented during each monitoring inspection.**
- vi. All CCDF-eligible license-exempt in-home care. Provide the standard: **The Lead Agency only permits relative care in circumstances when the child in care resides in the provider's home, i.e., a child or grandchild. The Lead Agency makes available in-home care for non-relatives in the child's home when the child requires special accommodations to meet individual needs. In such instances, these situations would be monitored using the protocols established for Authorized Professionals. Please see 5.3.11.b.v.**
- vii. All CCDF-eligible out-of-school programs (afterschool programs, summer camps, day camps, etc.). Provide the standard: **N/A.**
- c. Confirm if child care providers must comply with the [Lead Agency's](#) procedures for reporting child abuse and neglect as required by the Child Abuse Prevention and Treatment Act (42 U.S.C. 5106a(b)(2)(B)(i):

☒ Yes, confirmed.

☐ No. If no, describe:

5.3.12 Additional optional standards

In addition to the required health and safety standards, does the Lead Agency require providers to comply with the following optional standards?

☒ Yes.

☐ No. If no, skip to Section 5.4

If yes, describe the standard(s).

- i. Nutrition. Describe: **Standards for child care programs licensed by the Lead Agency that address nutrition include:**

If a food is provided by a licensed child care provider, it must be in accordance with United States Department of Agriculture's (USDA) Child and Adult Care Food (CACFP) program nutritional guidelines. Prior to having contact with children, each new employee shall receive orientation in and have a working knowledge of meal service and safe food preparation policies, including nutritional guidelines. During meal time and snacks, educators must engage children in developmentally appropriate conversation to include nutrition and health eating choices.

All child care providers serving children receiving assistance through the Child Care Payment Assistance/Certificate program are required to complete the Before You Begin: New Educator preservice training prior to having contact with children. This training includes standards/expectations for each CCDBG health and safety topic.

The expectations for nutrition include but are not limited to other ways to promote healthy lifestyles, i.e., providing healthy meals, snacks and encouraging children to make healthy choices; including book and discussions on nutrition and health; and providing resources for families, e.g., USDA CACFP program nutritional guidelines.

- ii. Access to physical activity. Describe: **Standards for child care programs licensed by the Lead Agency that address physical activity include:**
Children of all ages, including infants, who are in care more than three (3) daylight hours, must have a daily opportunity for outdoor play when the

temperature range (adjusted for wind chill and heat index) is between 32° and 95° Fahrenheit, and it is not raining. Specifications for outdoor play and moderate to vigorous indoor or outdoor physical activity include:

- Weather permitting, infants shall be taken outside two to three times per day.
- Toddlers and preschoolers shall have 60 to 90 minutes of outdoor play per day for full-time programs. (Exception: Indoor activity can be increased if adverse weather does not permit outdoor play.)
- Toddlers shall have 60 to 90 minutes of moderate to vigorous physical activity per eight (8) hour day for full-time programs.
- Preschoolers shall have 90 to 120 minutes of moderate to vigorous physical activity per eight (8) hour day for full-time programs.

Children shall be properly dressed, and the length of time outside adjusted according to the weather conditions and the age of the children.

All child care providers serving children receiving assistance through the Child Care Payment Assistance/Certificate program are required to complete the Before You Begin: New Educator preservice training prior to having contact with children. This training includes standards/expectations for each CCDBG health and safety topic. The expectations for physical activity include but are not limited to encouraging movement and exercise for all children through individual activities or, for older children, group games to enjoy; and time outside providing opportunities for children to enjoy fresh air, sunshine, and the change of pace outside play offers.

- iii. Caring for children with special needs. Describe: **Standards for child care programs licensed by the Lead Agency that address caring for children with special needs include:**

Child care providers must consult parents/guardians when developing an individualized care plan to meet the needs of a child with diagnosed disabilities or special needs, including techniques used in the home to ensure the safety ensure health, safety, and well-being. Providers must also maintain a written activity records consisting of daily activities, behavior, and

other information pertinent to the individualized care plan.

All child care providers serving children receiving assistance through the Child Care Payment Assistance/Certificate program are required to complete the Before You Begin: New Educator preservice training prior to having contact with children. This training includes standards/expectations for each CCDBG health and safety topic. The expectations for caring for children with special needs include but are not limited to including children with special needs in aspects of interactions and activities (making modifications as needed); evaluating programs to meet the needs of each child (e.g., making modifications to schedules, spaces, assistive technology, etc.); and providing opportunities for inclusive interactions.

- iv. Any other areas determined necessary to promote child development or to protect children's health and safety. Describe: **N/A.**

5.4 Pre-Service or Orientation Training on Health and Safety Standards

Lead Agencies must have requirements for all caregivers, teachers, and directors at CCDF providers to complete pre-service or orientation training (within 3 months of starting) on all CCDF health and safety standards and child development. The training must be appropriate to the setting and the age of children served. This training must address the required health and safety standards and the content area of child development. Lead Agencies have flexibility in determining the minimum number of training hours to require, and are encouraged to consult with Caring for our Children Basics for best practices.

Exemptions for relative providers' training requirements are addressed in question 5.8.1.

5.4.1 Health and safety pre-service/orientation training requirements

Lead Agencies must certify staff have pre-service or orientation training on each standard that is appropriate to different settings and age groups. Lead Agencies may require pre-service or orientation to be completed before staff can care for children unsupervised. In the table below, check the boxes for which you have training requirements.

	Is this standard addressed in the pre-service or orientation training?	Is the pre-service or orientation training on this standard appropriate to different settings and age groups?	Does the Lead Agency require staff to complete the training before caring for children unsupervised?
a. Prevention and control of infectious diseases	[x]	[x]	[x]

(including immunizations)			
b. SIDS prevention and use of safe sleep practices	[x]	[x]	[x]
c. Administration of medication	[x]	[x]	[x]
d. Prevention and response to food and allergic reactions	[x]	[x]	[x]
e. Building and physical premises safety, including identification of and protection from hazards, bodies of water, and vehicular traffic	[x]	[x]	[x]
f. Prevention of shaken baby syndrome, abusive head trauma and child maltreatment	[x]	[x]	[x]
g. Emergency preparedness and response planning and procedures	[x]	[x]	[x]
h. Handling and storage of hazardous materials and disposal of biocontaminants	[x]	[x]	[x]
i. Appropriate Precautions in transporting children, if applicable	[x]	[x]	[x]
j. Pediatric first aid and pediatric CPR (age-appropriate)	[x]	[x]	[x]
k. Child abuse and neglect recognition and reporting	[x]	[x]	[x]
l. Child development including major domains of cognitive, social, emotional, physical development and	[x]	[x]	[x]

approaches to learning.			
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- m. If the Lead Agency does not certify implementation of all the health and safety pre-service/orientation training requirements for staff in programs serving children receiving CCDF assistance, please describe: **N/A.**
- n. Are there any provider categories to whom the above pre-service or orientation training requirements do not apply?
☒ No
☐ Yes. If yes, describe:

5.5 Monitoring and Enforcement of Licensing and Health and Safety Requirements

5.5.1 Inspections for licensed CCDF providers

Licensing inspectors must perform at least one annual, unannounced inspection of each licensed CCDF provider for compliance with all child care licensing standards, including an inspection for compliance with health and safety and fire standards. Lead Agencies must conduct at least one pre-licensure inspection for compliance with health, safety, and fire standards of each child care provider and facility in the State/Territory.

- a. Licensed CCDF center-based providers
 - i. Does your pre-licensure inspection for licensed center-based providers assess compliance with health standards, safety standards, and fire standards?
☒ Yes.
☐ No. If no, describe:
 - ii. Identify the frequency of annual unannounced inspections for licensed center-based providers addressing compliance with health, safety, and fire standards:
☒ Annually.
☐ More than once a year. If more than once a year, describe:
☐ Other. If other, describe:
 - iii. Does the Lead Agency implement a differential monitoring approach when monitoring licensed center-based providers?
☒ Yes. If yes, describe how the differential monitoring approach is representative of the full complement of health and safety requirements. **For the purpose of generating an annual quality rating improvement system score, monitoring visits shall consist of four (4) quarterly visits each year, three (3) announced and one unannounced, except for programs that are closed during the summer. These agencies will have three (3) quarterly visits and one (1) quarterly visit prior to or just after the three (3) month closure. Unannounced visits, outside of the required unannounced monitoring visit, will be based on complaints and compliance history.**
☐ No. If no, describe:
 - iv. Identify which department or agency is responsible for completing the inspections

for licensed center-based providers. **The Lead Agency is responsible for conducting monitoring inspections of licensed center-based providers. Licensed center-based providers receive an annual fire inspection by the Tennessee Department of Commerce and Insurance State Fire Marshal's Office and/or local fire authority as well as an annual general health and food service (if applicable) inspection by the Tennessee Department of Health Environmental Health Program.**

b. Licensed CCDF family child care providers

- i. Does your pre-licensure inspection for licensed family child care homes assess compliance with health standards, safety standards, and fire standards?

☒ Yes.

☐ No. If no, describe:

- ii. Identify the frequency of annual unannounced inspections for licensed family child care homes addressing compliance with health, safety, and fire standards:

☒ Annually.

☐ More than once a year. If more than once a year, describe:

☐ Other. If other, describe:

- iii. Does the Lead Agency implement a differential monitoring approach when monitoring licensed family child care providers?

☒ Yes. If yes, describe how the differential monitoring approach is representative of the full complement of health and safety requirements. **For the purpose of generating an annual quality rating improvement system score, monitoring visits shall consist of four (4) quarterly visits each year, three (3) announced and one unannounced, except for programs that are closed during the summer. These agencies will have three (3) quarterly visits and one (1) quarterly visit prior to or just after the three (3) month closure. Unannounced visits, outside of the required unannounced monitoring visit, will be based on complaints and compliance history.**

☐ No. If no, describe:

- iv. Identify which department or agency is responsible for completing the inspections for licensed family child care providers. **The Lead Agency is responsible for completing monitoring inspections of licensed family home and group home child care providers. Licensed family home and group home providers receive an annual fire inspection by the Tennessee Department of Commerce and Insurance State Fire Marshal's Office and/or local fire authority as well as an annual general health and food service (if applicable) inspection by the Tennessee Department of Health Environmental Health Program.**

c. Licensed in-home CCDF child care providers

- i. Does your Lead Agency license CCDF in-home child care (care in the child's own home) providers?

☒ No.

☐ Yes. If yes, does your pre-licensure inspection for licensed in-home providers assess compliance with health, safety, and fire standards?

☐ Yes.

☐ No. If no, describe:

- ii. Identify the frequency of annual unannounced inspections for licensed in-home child care providers for compliance with health, safety, and fire standards completed:

☐ Annually.

☐ More than once a year. If more than once a year, describe:

☒ Other. If other, describe: **The Lead Agency does not license CCDF in-home child care providers. The Lead Agency only permits relative care in circumstances when the child in care resides in the provider's home, i.e., a child or grandchild. The Lead Agency makes available in-home care for non-relatives in the child's home when the child requires special accommodations to meet individual needs. In such instances, these situations would be monitored using the protocols established for license-exempt Authorized Professionals. Please see response at 5.5.2.b.ii.**

- iii. Does the Lead Agency implement a differential monitoring approach when monitoring licensed in-home child care providers?

☐ Yes. If yes, describe how the differential monitoring approach is representative of the full complement of health and safety requirements.

☒ No.

- iv. Identify which department or agency is responsible for completing the inspections for licensed in-home providers. **The Lead Agency does not license CCDF in-home child care providers. The Lead Agency only permits relative care in circumstances when the child in care resides in the provider's home, i.e., a child or grandchild. The Lead Agency makes available in-home care for non-relatives in the child's home when the child requires special accommodations to meet individual needs. In such instances, these situations would be monitored using the protocols established for license-exempt Authorized Professionals. Please see response at 5.5.2.b.iii.**

5.5.2 Inspections for license-exempt providers

Licensing inspectors must perform at least one annual monitoring visit of each license-exempt CCDF provider for compliance with health, safety, and fire standards. Inspections for relative providers will be addressed in subsection 5.8.

Describe the policies and practices for the annual monitoring of:

- a. License-exempt CCDF center-based child care providers

- i. Identify the frequency of inspections for compliance with health, safety, and fire standards for license-exempt center-based providers:

☒ Annually.

☐ More than once a year. If more than once a year, describe:

☐ Other. If other, describe:

- ii. Does the Lead Agency implement a differential monitoring approach when monitoring license-exempt center-based providers?

☐ Yes. If yes, describe how the differential monitoring approach is representative of the full complement of health and safety requirements.

☒ No.

- iii. Identify which department or agency is responsible for completing the inspections for license-exempt center-based CCDF providers. **The Tennessee Department of Education (TDOE) is responsible for completing inspections for license-exempt center-based CCDF providers regulated by TDOE. Fire and health inspections for license-exempt center-based school-administered child care are conducted according to TDOE requirements. License-exempt center-based Boys and Girls Clubs providers participating in the Child Care Payment Assistance/Certificate Program are monitored by the Lead Agency. Unannounced visits, outside of the required unannounced monitoring visit, will be based on complaints and compliance history.**

b. License-exempt CCDF family child care providers

- i. Identify the frequency of the inspections of license-exempt family child care providers to determine compliance with health, safety, and fire standards:

☒ Annually.

☐ More than once a year. If more than once a year, describe:

☐ Other. If other, describe:

- ii. Does the Lead Agency implement a differential monitoring approach when monitoring license-exempt family child care providers?

☐ Yes. If yes, describe how the differential monitoring approach is representative of the full complement of health and safety requirements.

☒ No.

- iii. Identify which department or agency is responsible for completing the inspections for license-exempt family child care providers. **The Lead Agency is responsible for completing monitoring inspections of Authorized Child Care Professionals as license-exempt CCDF family child care providers. Unannounced visits, outside of the required unannounced monitoring visit, will be based on complaints and compliance history.**

5.5.3 Inspections for CCDF license-exempt in-home child care providers

Lead Agencies may develop alternate monitoring requirements for care provided in the child's home that are appropriate to the setting. This flexibility cannot be used to bypass the monitoring requirement altogether.

- a. Describe the requirements for the annual monitoring of CCDF license-exempt in-home child care (care in the child's own home) providers, including if monitoring is announced

or unannounced, occurs more frequently than once per year, and if differential monitoring procedures are used. **The Lead Agency only permits relative care in circumstances when the child in care resides in the provider's home, i.e., a child or grandchild. The Lead Agency makes available in-home care for non-relatives in the child's home when the child requires special accommodations to meet individual needs. In such instances, these situations would be monitored using the protocols established for Authorized Professionals. Please see responses at 5.5.2.**

- b. List the entity(ies) in your State/Territory responsible for conducting inspections of license-exempt CCDF in-home child care (care in the child's own home) providers: **The Lead Agency is responsible for completing monitoring inspections of Authorized Child Care Professionals as license-exempt CCDF family child care providers. Unannounced visits, outside of the required unannounced monitoring visit, will be based on complaints and compliance history. Unannounced visits, outside of the required unannounced monitoring visit, will be based on complaints and compliance history.**

5.5.4 Posting monitoring and inspection reports

Lead Agencies must post monitoring and inspection reports on their consumer education website for each licensed and CCDF child care provider, except in cases where the provider is related to all the children in their care. These reports must include the results of required annual monitoring visits and visits due to major substantiated complaints about a provider's failure to comply with health and safety requirements and child care policies. A full report covers everything in the monitoring visit, including areas of compliance and non-compliance. If the Lead Agency does not produce any reports that include areas of compliance, the website must include information about all areas covered by a monitoring visit.

The reports must be in plain language or provide a plain language summary Lead Agency and be timely to ensure that the results of the reports are available and easily understood by parents when they are deciding on a child care provider. Lead Agencies must post at least 3 years of monitoring and inspection reports.

- a. Does the Lead Agency post:
 - i. ☐ Pre-licensing inspection reports for licensed programs.
 - ii. ☒ Full monitoring and inspection reports that include areas of compliance and non-compliance for all non-relative providers eligible to provide CCDF services.
 - iii. ☐ Monitoring and inspection reports that include areas of non-compliance only, with information about all areas covered by a monitoring visit posted separately on the website (e.g., a blank checklist used by monitors) for all non-relative providers eligible to provide CCDF services. If checked, provide a direct URL/website link to the website where a blank checklist is posted:
 - iv. ☐ Other. Describe:
- b. Check if the monitoring and inspection reports and any related plain language summaries include:
 - i. ☒ Date of inspection.
 - ii. ☒ Health and safety violations, including those violations that resulted in fatalities or serious injuries occurring at the provider. Describe how these health

and safety violations are prominently displayed: **Compliance with critical health and safety indicators is prominently displayed at the beginning of each monitoring visit detail.**

- iii. **[x]** Corrective action plans taken by the Lead Agency and/or child care provider. Describe: **A narrative summary of corrective action taken is included when noncompliance is observed along with a date when corrective action must be completed and a date when corrective action was completed.**
- iv. **[x]** A minimum of 3 years of results, where available.
- v. If any of the components above are not selected, please explain:
- c. Lead Agencies must post monitoring and inspection reports and/or any related summaries in a timely manner.
 - i. Provide the direct URL/website link to where the reports are posted:
https://onedhs.tn.gov/csp?id=tn_cc_prv_maps%20
 - ii. Identify the Lead Agency's established timeline for posting monitoring reports and describe how it is timely: **Monitoring and inspection reports are completed on-site by Lead Agency or Tennessee Department of Education (TDOE) staff. Under normal working conditions (with internet access), visit information is recorded in real-time to the Lead Agency's eLicensing documentation system. Monitoring visits must be reviewed and approved typically within seven (7) business days by a Lead Agency supervisor or within ten (10) calendar days by a TDOE supervisor to ensure accuracy and timeliness. Once approved, visit information is immediately available at the Lead Agency's consumer portal. The Lead Agency has requested a waiver regarding this provision to allow for report and design changes and implement technology system changes to its consumer education website related to TDOE regulated agencies that participate in the subsidy program.**
- d. Does the Lead Agency certify that the monitoring and inspection reports or the summaries are in plain language that is understandable to parents and other consumers?
[x] Yes.
[] No. If no, describe:
- e. Does the Lead Agency certify that there is a process for correcting inaccuracies in the monitoring and inspection reports?
[x] Yes.
[] No. If no, describe:
- f. Does the Lead Agency maintain monitoring and inspection reports on the consumer education website?
[x] Yes.
[] No. If no, describe:

5.5.5 Qualifications and training of licensing inspectors

Lead Agencies must ensure that individuals who are hired as licensing inspectors (or qualified monitors designated by the Lead Agency) are qualified to inspect child care providers and facilities

and have received health and safety training appropriate to the provider setting and age of the children served.

Describe how the Lead Agency ensures that licensing inspectors (or qualified monitors designated by the Lead Agency) are qualified and have received training on health and safety requirements that are appropriate to the age of the children in care and the type of provider setting. **The Lead Agency consults the Tennessee Department of Human Resources Division of Classification and Compensation to develop job specifications and knowledge, skills, abilities, and competencies (KSACs) for Licensing Consultants responsible for monitoring licensed child care providers. The Lead Agency delivers a New Employee Academy (NEA) through its People Operations Learning and Organizational Development team to equip Licensing Consultants and supervisors with knowledge and resources needed to be successful. New Lead Agency licensing staff complete the three-week NEA training which includes applicable Lead Agency procedures, policies, rules, and statutes; use of Lead Agency information systems, e.g., the eLicensing documentation system; and fundamental professional skills. People Operations Learning and Organizational Development also offers ongoing and refresher trainings to meet Lead Agency needs.**

Additional training for The Lead Agency staff, including:

- Child and Adult Care Licensing Expulsion and Suspension Policy Statement
- Child Care Services CCDBG Health and Safety Training Requirements Overview
- Child Care Services Cultural Competency
- Child Care Services Obesity in Early Care
- Developmentally Appropriate Practices
- Mandated Child Abuse Reporting
- Serving Families Experiencing Homelessness

5.5.6 Ratio of licensing inspectors

Lead Agencies must ensure the ratio of licensing inspectors to child care providers and facilities in the State/Territory are maintained at a level sufficient to enable the Lead Agency to conduct effective inspections of child care providers and facilities on a timely basis in accordance with federal, State, and local laws.

Provide the ratio of licensing inspectors to child care providers (i.e., number of inspectors per number of child care providers) and facilities in the State/Territory and include how the ratio is sufficient to conduct effective inspections on a timely basis. **Lead Agency staff average caseloads between 20 to 25 cases allowing Licensing Consultants to conduct quarterly monitoring visits as well as required monitoring visits based on complaints and compliance history.**

5.6 Ongoing Health and Safety Training

Lead Agencies must have ongoing training requirements for all caregivers, teachers, and directors of eligible CCDF providers for health and safety standards but have discretion on frequency and training content (e.g., pediatric CPR refresher every year and recertification every 2 years). Lead Agencies have discretion on which health and safety standards are subject to ongoing training. Lead Agencies may exempt relative providers from these requirements.

5.6.1 Required ongoing training of health and safety standards

Describe any required ongoing training of health and safety standards for caregivers, teachers, and directors of the following CCDF eligible provider types.

- a. Licensed child care centers: **Ongoing training requirements for centers licensed by the Lead Agency are defined at Tenn. Comp. R. & Regs. 1240-04-01. Center directors must complete at least 24 hours of training annually or earn credit in one (1) academic course from an accredited academic institution in topics of administration, child development, early childhood education, health and safety, or related fields. Center assistant directors must complete at least 18 hours of training annually. Center educators must complete at least 12 hours of training annually. Drop-in directors must complete at least six (6) hours of training annually. Drop-in educators must complete at least three (3) hours of training annually. Due to the nature of care, drop-in centers are not eligible to participate in the Child Care Payment Assistance/Certificate Program. All licensed child care center staff are required to complete a cycle of training in each CCDBG health and safety training topic every three (3) years. All licensed drop-in child care staff are required to complete a cycle of training in each CCDBG health and safety training topic every four (4) years.**
- b. License-exempt child care centers: **All staff of license-exempt child care centers participating in the Child Care Payment Assistance/Certificate Program are required by the Lead Agency to complete at least six (6) hours of training in CCDBG health and safety training topics annually. The Lead Agency recommends license-exempt child care center staff complete a cycle of training in each CCDBG health and safety training topic every three (3) years.**
- c. Licensed family child care homes: **Ongoing training requirements for family and group child care homes licensed by the Lead Agency are defined at Tenn. Comp. R. & Regs. 1240-04-01. Family and group primary educators must complete 18 hours of training annually. Family and group educators must complete 12 hours of training annually. All licensed family and group child care home staff are required to complete a cycle of training in each CCDBG health and safety training topic every three (3) years.**
- d. License-exempt family child care homes: **All license-exempt family child care home Authorized Child Care Professionals participating in the Child Care Payment Assistance/Certificate Program are required by the Lead Agency to complete at least six (6) hours of training in CCDBG health and safety training topics annually. The Lead Agency recommends Authorized Child Care Professionals complete a cycle of training in each CCDBG health and safety training topic every three (3) years.**
- e. Regulated or registered in-home child care: **Not Applicable.**
- f. Non-regulated or registered in-home child care: **The Lead Agency only permits relative care in circumstances when the child in care resides in the provider's home, i.e., a child or grandchild. The Lead Agency makes available in-home care for non-relatives in the child's home when the child requires special accommodations to meet individual needs. In such instances, these license-exempt providers would be subject to the same ongoing training requirements as Authorized Child Care Professionals. License-exempt family child care home Authorized Child Care Professionals participating in the Child Care Payment Assistance/Certificate Program are required by the Lead Agency to complete at least six (6) hours of training in CCDBG health and safety training topics annually. The Lead Agency recommends Authorized Child Care Professionals complete a cycle of training in each CCDBG health and safety training topic every three (3) years.**

5.7 Comprehensive Background Checks

Lead Agencies must conduct comprehensive background checks for all child care staff members (including prospective staff members) of all child care providers that are (1) licensed, regulated, or registered under State/Territory law, regardless of whether they receive CCDF funds; or (2) all other child care providers eligible to deliver CCDF services (e.g., license-exempt CCDF eligible child care providers). Family child care home providers must also submit background check requests for all household members age 18 or older.

A comprehensive background check must include: three in-state checks, two national checks, and three interstate checks if the individual resided in another State or Territory in the preceding 5 years. The background check components must be completed at least once every five years.

All child care staff members must receive a qualifying result from either the FBI criminal background check or an in-state fingerprint criminal history check before working (under supervision) with or near children. Lead Agencies must apply a CCDF-specific list of disqualifying crimes for child care providers serving families participating in CCDF.

These background check requirements do not apply to individuals who are related to all children for whom child care services are provided. Exemptions for relative providers will be addressed in subsection 5.8.

5.7.1 In-state criminal history check with fingerprints

- a. Does the Lead Agency conduct in-state criminal history background checks with fingerprints for all child care staff members (including prospective staff members) of licensed, regulated, or registered child care providers, regardless of CCDF participation?

☒ Yes.

☐ No. If no, describe any categories of licensed, regulated, or registered child care providers for whom you do not conduct in-state criminal background checks with fingerprints.

- b. Does the Lead Agency conduct in-state criminal history background checks with fingerprints for all child care staff members (including prospective staff members) of all other child care providers eligible for CCDF participation (i.e., license-exempt providers) other than relative providers?

☒ Yes.

☐ No. If no, describe any categories of child care providers eligible for CCDF participation for whom you do not conduct in-state criminal background checks with fingerprints.

- c. Does the Lead Agency conduct the in-state criminal background check with fingerprints for all individuals age 18 or older who reside in a family child care home?

☒ Yes.

☐ No. If no, describe individuals age 18 or older who reside in a family child care home who do not receive an in-state criminal background check with fingerprints.

5.7.2 National Federal Bureau of Investigation (FBI) criminal history check with fingerprints

- a. Does the Lead Agency conduct FBI criminal history background checks with fingerprints

for all child care staff members (including prospective staff members) of licensed, regulated, or registered child care providers, regardless of CCDF participation?

☒ Yes.

☐ No. If no, describe any categories of licensed, regulated, or registered child care providers for whom you do not conduct FBI criminal background checks with fingerprints.

- b. Does the Lead Agency conduct FBI criminal history background checks with fingerprints for all child care staff members (including prospective staff members) of all other child care providers eligible for CCDF participation (i.e., license-exempt providers)?

☒ Yes.

☐ No. If no, describe any categories of child care providers eligible for CCDF participation for whom you do not conduct FBI criminal background checks.

- c. Does the Lead Agency conduct the FBI criminal background check with fingerprints for all individuals age 18 or older who reside in a family child care home?

☒ Yes.

☐ No. If no, describe individuals age 18 or older who reside in a family child care home who do not receive an FBI criminal background check with fingerprints.

5.7.3 National Crime Information Center (NCIC) National Sex Offender Registry (NSOR) name-based check

The majority of NCIC NSOR records are fingerprint records and are automatically included in the FBI fingerprint criminal background check. But a small percentage of NCIC NSOR records are only name-based records and must be accessed through the required name-based search of the NCIC NSOR.

- a. Does the Lead Agency conduct NCIC NSOR name-based background checks for all child care staff members (including prospective staff members) of licensed, regulated, or registered child care providers, regardless of CCDF participation?

☒ Yes.

☐ No. If no, describe any categories of licensed, regulated, or registered child care providers for whom you do not conduct NCIC NSOR name-based background checks.

- b. Does the Lead Agency conduct NCIC NSOR name-based background checks for all child care staff members (including prospective staff members) of all other child care providers eligible for CCDF participation (i.e., license-exempt providers)?

☒ Yes.

☐ No. If no, describe any categories of child care providers eligible for CCDF participation for whom you do not conduct NCIC NSOR name-based background checks.

- c. Does the Lead Agency conduct the NCIC NSOR name-based background check for all individuals age 18 or older who reside in a family child care home?

☒ Yes.

☐ No. If no, describe individuals age 18 or older who reside in a family child care home who do not receive a NCIC NSOR name-based background check.

5.7.4 In-state sex offender registry (SOR) check

- a. Does the Lead Agency conduct in-state SOR checks for all child care staff members (including prospective staff members) of licensed, regulated, or registered child care providers, regardless of CCDF participation?

☒ Yes.

☐ No. If no, describe any categories of licensed, regulated, or registered child care providers for whom you do not conduct in-state SOR background checks.

- b. Does the Lead Agency conduct in-state SOR background checks for all child care staff members (including prospective staff members) of all other child care providers eligible for CCDF participation (i.e., license-exempt providers)?

☒ Yes.

☐ No. If no, describe any categories of child care providers eligible for CCDF participation for whom you do not conduct in-state SOR background checks.

- c. Does the Lead Agency conduct the in-state SOR background check for all individuals age 18 or older who reside in a family child care home?

☒ Yes.

☐ No. If no, describe individuals age 18 or older who reside in a family child care home who do not receive an in-state SOR background check.

5.7.5 In-state child abuse and neglect (CAN) registry check

- a. Does the Lead Agency conduct CAN registry checks for all child care staff members (including prospective staff members) of licensed, regulated, or registered child care providers, regardless of CCDF participation?

☒ Yes.

☐ No. If no, describe any categories of licensed, regulated, or registered child care providers for whom you do not conduct CAN registry checks.

- b. Does the Lead Agency conduct CAN registry checks for all child care staff members (including prospective staff members) of all other child care providers eligible for CCDF participation (i.e., license-exempt providers)?

☒ Yes.

☐ No. If no, describe any categories of child care providers eligible for CCDF participation for whom you do not conduct CAN registry checks.

- c. Does the Lead Agency conduct the CAN registry check for all individuals age 18 or older who reside in a family child care home?

☒ Yes.

☐ No. If no, describe individuals age 18 or older who reside in a family child care home who do not receive a CAN registry check.

5.7.6 Interstate criminal history check

These questions refer to requirements for a Lead Agency to conduct an interstate check for a child care staff member (including prospective child care staff members) who currently lives in their State or Territory but has lived in another State, Territory, or Tribal land within the previous 5 years.

- a. Does the Lead Agency conduct interstate criminal history background checks for any staff member (or prospective staff member) who resided in other state(s) in the past 5 years of licensed, regulated, or registered child care providers, regardless of CCDF participation?

☒ Yes.

☐ No. If no, describe any categories of licensed, regulated, or registered child care providers for whom you do not conduct interstate criminal history background checks.

- b. Does the Lead Agency conduct interstate criminal history background checks for any staff member (or prospective staff member) who resided in other state(s) in the past 5 years eligible for CCDF participation (i.e., license-exempt providers)?

☒ Yes.

☐ No. If no, describe any categories of child care providers eligible for CCDF participation for whom you do not conduct interstate criminal history background checks.

- c. Does the Lead Agency conduct interstate criminal history background checks for all individuals age 18 or older who reside in a family child care home and resided in other state(s) in the past 5 years.

☒ Yes.

☐ No. If no, describe why individuals age 18 or older that resided in other state(s) in the past 5 years who reside in a family child care home that do not receive an interstate criminal history background check.

5.7.7 Interstate Sex Offender Registry (SOR) check

These questions refer to requirements for a Lead Agency to conduct an interstate check for a child care staff member (including prospective child care staff members) who currently lives in their State or Territory but has lived in another State, Territory, or Tribal land within the previous 5 years.

- a. Does the Lead Agency conduct interstate SOR checks for any staff member (or prospective staff member) who resided in other state(s) in the past 5 years of licensed, regulated, or registered child care providers, regardless of CCDF participation?

☒ Yes.

☐ No. If no, describe any categories of licensed, regulated, or registered child care providers for whom you do not conduct interstate SOR checks.

- b. Does the Lead Agency conduct interstate SOR checks for any staff member (or prospective staff member) who resided in other state(s) in the past 5 years eligible for CCDF participation (i.e., license-exempt providers)?

☒ Yes.

☐ No. If no, describe any categories of child care providers eligible for CCDF participation for whom you do not conduct interstate SOR checks.

- c. Does the Lead Agency conduct the interstate SOR checks for all individuals age 18 or older who resided in other state(s) in the past 5 years who reside in a family child care home?

☒ Yes.

☐ No. If no, describe individuals age 18 or older that resided in other state(s) in the past 5 years who reside in a family child care home that do not receive an interstate SOR check.

5.7.8 Interstate child abuse and neglect (CAN) registry check

These questions refer to requirements for a Lead Agency to conduct an interstate check for a child care staff member (including prospective child care staff members) who currently lives in their State or Territory but has lived in another State, Territory, or Tribal land within the previous 5 years.

- a. Does the Lead Agency conduct interstate CAN registry checks for any staff member (or prospective staff member) that resided in other state(s) in the past 5 years of licensed, regulated, or registered child care providers, regardless of CCDF participation?

☒ Yes.

☐ No. If no, describe any categories of licensed, regulated, or registered child care providers for whom you do not conduct interstate CAN registry checks.

- b. Does the Lead Agency conduct interstate CAN registry checks for any staff member (or prospective staff member) who resided in other state(s) in the past 5 years eligible for CCDF participation (i.e., license-exempt providers)?

☒ Yes.

☐ No. If no, describe any categories of child care providers eligible for CCDF participation for whom you do not conduct interstate CAN registry checks.

- c. Does the Lead Agency conduct the interstate CAN registry checks for all individuals age 18 or older who resided in other state(s) in the past 5 years who reside in a family child care home?

☒ Yes.

☐ No. If no, describe individuals age 18 or older that resided in other state(s) in the past 5 years who reside in a family child care home that do not receive interstate CAN registry checks.

5.7.9 Disqualifications for child care employment

The Lead Agency must prohibit employment of individuals with child care providers receiving CCDF subsidy payment if they meet any of the following disqualifying criteria:

- Refused to consent to a background check.
- Knowingly made materially false statements in connection with the background check.
- Are registered, or are required to be registered, on the State/Territory sex offender

registry or repository or the National Sex Offender Registry.

- Have been convicted of a felony consisting of murder, child abuse or neglect, crimes against children (including child pornography), spousal abuse, crimes involving rape or sexual assault, kidnapping, arson, physical assault, or battery.
 - Have a violent misdemeanor committed as an adult against a child, including the following crimes: child abuse, child endangerment, sexual assault, or any misdemeanor involving child pornography.
 - Convicted of a felony consisting of a drug-related offense committed during the preceding 5 years.
- a. Does the Lead Agency disqualify the employment of child care staff members (including prospective staff members) by child care providers receiving CCDF subsidy payment for CCDF-identified disqualifying criteria?
- ☒ Yes.
- ☐ No. If no, describe the disqualifying criteria:
- b. Does the Lead Agency use the same criteria for licensed, regulated, and registered child care providers regardless of CCDF participation?
- ☒ Yes.
- ☐ No. If no, describe any disqualifying criteria used for licensed, regulated, and registered child care providers:
- c. How does the Lead Agency use results from the in-state child abuse and neglect registry check?
- ☐ Does not use them to disqualify employment.
- ☒ Uses them to disqualify employment. If checked, describe: **The Lead Agency disqualifies and excludes child care staff (including prospective child care staff) from access to child care based on a listing on a state registry as required at Tenn. Comp. R. & Regs 1240-04-01-.07(4):**
- (a) No person shall be employed, be a licensee or operator, provide substitute services, reside, or have any access to children in a child care agency if the results of the state registry review identify the person as being:
1. Listed on the Vulnerable Persons Registry;
 2. Listed on the Sexual Offender Registry; or
 3. Substantiated in the records of the Department of Children's Services as a perpetrator of abuse or neglect of a child.
- d. How does the Lead Agency use results from the interstate child abuse and neglect registry check?
- ☐ Does not use them to disqualify employment.
- ☒ Uses them to disqualify employment. If checked, describe: **The Lead Agency disqualifies and excludes child care staff (including prospective child care staff) from access to child care based on a listing on a state registry as required at Tenn. Comp. R. & Regs 1240-04-01-.07(4):**
- (b) No person shall be employed, be a licensee or operator, provide substitute

services, reside, or have any access to children in a child care agency if the results of the state registry review identify the person as being:

1. Listed on the Vulnerable Persons Registry;
2. Listed on the Sexual Offender Registry; or
3. Substantiated in the records of the Department of Children's Services as a perpetrator of abuse or neglect of a child.

5.7.10 Privacy

Lead Agencies must ensure the privacy of a prospective staff member by notifying child care providers of the individual's eligibility or ineligibility for child care employment based on the results of the comprehensive background check without revealing any documentation of criminal history or disqualifying crimes or other related information regarding the individual.

Does the Lead Agency certify they ensure the privacy of child care staff members (including prospective child care staff member) when providing the results of the comprehensive background check?

☒ Yes.

☐ No. If no, describe the current process of notification:

5.7.11 Appeals processes for background checks

Lead Agencies must provide for a process that allows child care provider staff members (and prospective staff members) to appeal the results of a background check to challenge the accuracy or completeness of the information contained in the individual's background check report.

Does the appeals process:

- i. Provide the affected individual with information related to each disqualifying crime in a report, along with information/notice on the opportunity to appeal.

☒ Yes.

☐ No. Describe:

- ii. Provide the affected individual with clear instructions about how to complete the appeals process for each background check component if they wish to challenge the accuracy or completeness of the information contained in such individual's background report.

☒ Yes.

☐ No. Describe:

- iii. Ensure the Lead Agency attempts to verify the accuracy of the information challenged by the individual, including making an effort to locate any missing disposition information related to the disqualifying crime.

☒ Yes.

☐ No. Describe:

- iv. Get completed in a timely manner.

☒ Yes.

☐ No. Describe:

- v. Ensure the affected individual receives written notice of the decision. In the case of a negative determination, the decision must indicate (1) the Lead Agency's efforts to verify the accuracy of information challenged by the individual, (2) any additional appeals rights available to the individual, and (3) information on how the individual can correct the federal or State records at issue in the case.

☒ Yes.

☐ No. Describe:

- vi. Facilitate coordination between the Lead Agency and other agencies in charge of background check information and results (such as the Child Welfare office and the State Identification Bureau), to ensure the appeals process is conducted in accordance with the Act.

☒ Yes.

☐ No. Describe:

5.7.12 Provisional hiring of prospective staff members

Lead Agencies must at least complete and receive a qualifying result for either the FBI criminal background check or a fingerprint-based in-state criminal background check where the individual resides before prospective staff members may provide services or be in the vicinity of children.

Until all the background check components have been completed, the prospective staff member must be supervised at all times by someone who has already received a qualifying result on a background check within the past five years.

Check all background checks for which the Lead Agency requires a qualifying result before a prospective child care staff member begins work with children.

- a. FBI criminal background check.

☒ Yes.

☐ No. If no, describe:

- b. In-state criminal background check with fingerprints.

☒ Yes.

☐ No. If no, describe:

- c. In-state Sex Offender Registry.

☒ Yes.

☐ No. If no, describe:

- d. In-state child abuse and neglect registry.

☒ Yes.

☐ No. If no, describe:

- e. Name-based national Sex Offender Registry (NCIC NSOR).

☒ Yes.

☐ No. If no, describe:

- f. Interstate criminal background check, as applicable.

☐ Yes.

☒ No. If no, describe: **Applicants are permitted by the Lead Agency to begin employment on a provisional basis pending completion of all the background check components once the applicant clears the FBI fingerprint check, the TBI state criminal history check, the sex offender registries, the vulnerable persons registry, and the in-state child abuse and neglect registry. Provisionally employed applicants must be supervised at all times.**

The Lead Agency website includes instructions and information about any necessary forms/documentation required by each state for completing the interstate child abuse and neglect registry checks. Interstate checks of the child abuse and neglect registry are processed by the background check unit within the Lead Agency.

- g. Interstate Sex Offender Registry check, as applicable.

☐ Yes.

☒ No. If no, describe: **Applicants are permitted by the Lead Agency to begin employment on a provisional basis pending completion of all the background check components once the applicant clears the FBI fingerprint check, the TBI state criminal history check, the sex offender registries, the vulnerable persons registry, and the in-state child abuse and neglect registry. Provisionally employed applicants must be supervised at all times.**

The Lead Agency website includes instructions and information about any necessary forms/documentation required by each state for completing the interstate child abuse and neglect registry checks. Interstate checks of the child abuse and neglect registry are processed by the background check unit within the Lead Agency.

- h. Interstate child abuse and neglect registry check, as applicable.

☐ Yes.

☒ No. If no, describe: **Applicants are permitted by the Lead Agency to begin employment on a provisional basis pending completion of all the background check components once the applicant clears the FBI fingerprint check, the TBI state criminal history check, the sex offender registries, the vulnerable persons registry, and the in-state child abuse and neglect registry. Provisionally employed applicants must be supervised at all times.**

The Lead Agency website includes instructions and information about any necessary forms/documentation required by each state for completing the interstate child abuse and neglect registry checks. Interstate checks of the child abuse and neglect registry are processed by the background check unit within the Lead Agency.

- i. Does the Lead Agency require provisional hires to be supervised by a staff member who received a qualifying result on the comprehensive background check while awaiting results from the provisional hire's full comprehensive background check?

☒ Yes.

☐ No. If no, describe:

5.7.13 Completing the criminal background check within a 45-day timeframe

The Lead Agency must carry out a request from a child care provider for a criminal background check as expeditiously as possible, and no more than 45 days after the date on which the provider submitted the request

- a. Does the Lead Agency ensure background checks are completed within 45 days (after the date on which the provider submits the request)?

☐ Yes.

☒ No. If no, describe the timeline for completion for categories of providers, including which background check components take more than 45 days. **Responses from other states are variable and may exceed 45 calendar days; and some states may or will not provide information in response to Lead Agency requests. If the result(s) of registry check(s) are not received timely, an applicant is cleared by the Lead Agency after 45 calendar days and a conditional approval is changed to a full clearance. Results that arrive after 45 calendar days are noted by the Lead Agency in its BacTrak system and appropriate action is taken, if necessary, to exclude an individual.**

- b. Does the Lead Agency ensure child care staff receive a comprehensive background check when they work in your State but reside in a different State?

☒ Yes.

☐ No. If no, describe the current policy:

5.7.14 Responses to interstate background check requests

Lead Agencies must respond as expeditiously as possible to requests for interstate background checks from other States/Territories/Tribes in order to meet the 45-day timeframe.

- a. Does your State participate in the National Crime Prevention and Privacy Compact or National Fingerprint File programs?

☒ Yes.

☐ No.

- b. Describe how the State/Territory responds to interstate criminal history, Sex Offender Registry, and Child Abuse and Neglect Registry background check requests from another state. **The Lead Agency maintains a dedicated website page with information about how to request the criminal history check to facilitate the process for other states. The Tennessee Bureau of Investigation (TBI) is the central repository for criminal history information for Tennessee. TBI allows the general public to obtain a Tennessee adult criminal history on any individual. The process may be completed online or by mail. There are no laws or policies that prevent the state from releasing the results of the criminal history to an out of state entity for the purposes of determining child care employment eligibility. The Lead Agency responds to inquiries by directing applicants to information on the dedicated web page where it outlines what they must do to request a criminal history check from Tennessee which must go through TBI. The website may be found at available**

at

<https://www.tn.gov/content/tn/humanservices/for-families/child-care-services/background-checks-for-child-care-employees/child-care-out-of-state-registry-check0/out-of-state-registry-check--if-you-work-for-a-child-care-outside-of-tn-.html>.

The Lead Agency maintains a dedicated website page with information about how to locate the public facing Sex Offender Registry (SOR) search option that is maintained at the TBI website to facilitate the process for other states. The SOR may be searched by name, city, county, zip code, TID Number, and includes a secondary residential search feature. The Lead Agency responds to inquiries by directing applicants to the information on the dedicated web page where it outlines what they must do to complete a check of the Tennessee SOR. The website may be found at available at <https://www.tn.gov/content/tn/humanservices/for-families/child-care-services/background-checks-for-child-care-employees/child-care-out-of-state-registry-check0/out-of-state-registry-check--if-you-work-for-a-child-care-outside-of-tn-.html>.

Lead Agency maintains a dedicated website page with information about how to request a Child Abuse and Neglect (CAN) registry check to facilitate the process for other states. The Tennessee Department of Children's Services (TDCS) is the repository for this information. Requests are initiated by submitting a specified form to a dedicated email mailbox. There are no laws or policies that prevent the state from releasing the results of the criminal history to an out of state entity for the purposes of determining child care employment eligibility. The Lead Agency responds to inquiries by directing applicants to the information on the dedicated web page where it outlines what they must do to request a CAN check from TDCS. The website may be found at available at <https://www.tn.gov/content/tn/humanservices/for-families/child-care-services/background-checks-for-child-care-employees/child-care-out-of-state-registry-check0/out-of-state-registry-check--if-you-work-for-a-child-care-outside-of-tn-.html>.

- c. Does your State/Territory have a law or policy that prevents a response to CCDF interstate background check requests from other States/Territories/Tribes?

☐ Yes. If yes, describe the current policy.

☒ No.

5.7.15 Consumer education website links to interstate background check processes

Lead Agencies must include on their consumer education website and the website of local Lead Agencies if the CCDF program is county-run, the policies and procedures related to comprehensive background checks. This includes the process by which a child care provider or other State or Territory may submit a background check request.

- a. Provide the direct URL/website link that contains instructions on how child care providers and other States and Territories should initiate background check requests for prospective and current child care staff members: <https://www.tn.gov/humanservices/for-families/child-care-services/background-checks-for-child-care-employees.html>

Check to certify that the required elements are included on the Lead Agency's consumer and provider education website for each interstate background check component.

- b. Interstate criminal background check:
- i. ☒ Agency name
 - ii. ☒ Address
 - iii. ☒ Phone number
 - iv. ☒ Email
 - v. ☒ Website
 - vi. ☒ Instructions
 - vii. ☒ Forms
 - viii. ☒ Fees
 - ix. ☒ Is the State a National Fingerprint File (NFF) State?
 - x. ☒ Is the State a National Crime Prevention and Privacy Compact State?
 - xi. If not all boxes above are checked, describe:
- c. Interstate sex offender registry (SOR) check:
- i. ☒ Agency name
 - ii. ☒ Address
 - iii. ☒ Phone number
 - iv. ☒ Email
 - v. ☒ Website
 - vi. ☒ Instructions
 - vii. ☒ Forms
 - viii. ☒ Fees
 - ix. If not all boxes above are checked, describe:
- d. Interstate child abuse and neglect (CAN) registry check:
- i. ☒ Agency name
 - ii. ☒ Is the CAN check conducted through a county administered registry or centralized registry?
 - iii. ☒ Address
 - iv. ☒ Phone number
 - v. ☒ Email
 - vi. ☒ Website
 - vii. ☒ Instructions
 - viii. ☒ Forms
 - ix. ☒ Fees

x. If not all boxes above are checked, describe:

5.7.16 Background check fees

The Lead Agency must ensure that fees charged for completing the background checks do not exceed the actual cost of processing and administration.

Does the Lead Agency certify that background check fees do not exceed the actual cost of processing and administering the background checks?

☒ Yes.

☐ No. If no, describe what is currently in place and what elements still need to be implemented:

5.7.17 Renewal of the comprehensive background check

Does the Lead Agency conduct the background check at least every 5 years for all components?

☒ Yes.

☐ No. If no, what is the frequency for renewing each component?

5.8 Exemptions for Relative Providers

Lead Agencies may exempt relatives (defined in CCDF regulations as grandparents, great-grandparents, siblings if living in a separate residence, aunts, and uncles) from certain health and safety requirements. This exception applies only if the individual cares only for relative children.

5.8.1 Exemptions for relative providers

Does the Lead Agency exempt any federally defined relative providers from licensing requirements, the CCDF health and safety standards, preservice/orientation training, ongoing training, inspections, or background checks?

☐ No.

☒ Yes. If yes, which type of relatives do you exempt, and from what requirements (licensing requirements, CCDF health and safety standards, preservice/orientation training, ongoing training, inspections, and/or background checks) do you exempt them?
The Lead Agency only permits relative care in circumstances when the child in care resides in the provider's home, i.e., a child or grandchild. The Lead Agency makes available in-home care for non-relatives in the child's home when the child requires special accommodations to meet individual needs. In such instances, these situations would be monitored using the protocols established for Authorized Child Care Professionals.

The Lead Agency identifies Authorized Child Care Professionals as CCDF-eligible license-exempt family child care providers, individuals who may care for up to six (6) children (four (4) not related to the individual and up to two (2) additional related children) and who are contracted with the Lead Agency to participate in the Child Care Payment Assistance/Certificate Program as a result of parental choice. A maximum of four children approved through the Certificate Program may be enrolled to an Authorized Child Care Professional.

6 Support for a Skilled, Qualified, and Compensated Child Care Workforce

A skilled child care workforce with adequate wages and benefits underpins a stable high-quality child care system that is accessible and reliable for working parents and that meets their needs and promotes equal access. Positive interactions between children and caregivers provide the cornerstone of quality child care experiences. Responsive caregiving and rich interactions support healthy socio-emotional, cognitive, and physical development in children. Strategies that successfully support the child care workforce address key challenges, including low wages, poor benefits, and difficult job conditions. Lead Agencies can help mitigate some of these challenges through various CCDF policies, including through ongoing professional development and supports for all provider types and embedded in the payment policies and practices covered in Section 4. Lead Agencies must have a framework for training, professional development, and post-secondary education. They must also incorporate health and safety training into their professional development. Lead Agencies should also implement policies that focus on improving wages and access to benefits for the child care workforce. When implemented as a cohesive approach, the initiatives support the recruitment and retention of a qualified and effective child care workforce, and improve opportunities for caregivers, teachers, and directors to advance on their progression of training, professional development, and postsecondary education.

This section addresses Lead Agency efforts to support the child care workforce, the components and implementation of the professional development framework, and early learning and developmental guidelines.

6.1 Supporting the Child Care Workforce

Lead Agencies have broad flexibility to implement policies and practices to support the child care workforce.

6.1.1 Strategies to improve recruitment, retention, compensation, and well-being

- a. Identify any Lead Agency activities related to strengthening workforce recruitment and retention of child care providers. Check all that apply:
 - i. ☐ Providing program-level grants to support investments in staff compensation.
 - ii. ☒ Providing bonuses or stipends paid directly to staff, like sign-on or retention bonuses.
 - iii. ☐ Connecting family child care providers and center-based child care staff to health insurance or supporting premiums in the Marketplace.
 - iv. ☐ Subsidizing family child care provider and center-based child care staff retirement benefits.
 - v. ☐ Providing paid sick, personal, and parental leave for family child care providers and center-based child care staff.
 - vi. ☐ Providing student loan debt relief or loan repayment for family child care providers and center-based child care staff.
 - vii. ☒ Providing scholarships or tuition support for center-based child care staff and family child care providers.

viii. [] Other. Describe:

- b. Describe any Lead Agency ongoing efforts and future plans to assess and improve the compensation of the child care workforce in the State or Territory, including increasing wages, bonuses, and stipends. **The Lead Agency will continue to implement the Child Care WAGES® Tennessee education-based salary program to further support the early care and education workforce by providing biannual salary supplement incentives based upon education achievement and retention to encourage educational advancement and reduce turnover. This program provides eligible educators who work in child care providers licensed by the Lead Agency an annual incentive, issued in two parts, based on specific qualifications that include working at least six (6) months in the same child care program with children birth to five years for at least 10 hours a week. The Lead Agency evaluates these quality programs and services at least annually to better meet these and other needs of the child care workforce.**
- c. Describe any Lead Agency ongoing efforts and future plans to expand access to benefits, including health insurance, paid sick, personal, and parental leave, and retirement benefits. **The Lead Agency is exploring strategies, partnerships, and supports that may expand access to benefits for the child care workforce in Tennessee.**
- d. Describe any Lead Agency ongoing efforts and future plans to support the mental health and well-being of the child care workforce. **The Lead Agency works with the Association of Infant Mental Health in Tennessee (AIMHITN), Tennessee Early Childhood Training Alliance, Tennessee Child Care Resource and Referral Network (CCR&R), and other CCDF Quality Child Care Partners to promote social emotional and behavioral health supports for early childhood educators as well as families and children. The Lead Agency also partners with AIMHITN to administer the Tennessee Infant and Early Childhood Mental Health Warmline, a virtual support to the early care and education and other professionals who may be seeking professional consultation around mental health concerns. More details about the Warmline may be found at <https://www.aimhitn.org/tn-iecmmh-warmline>. The Lead Agency evaluates these quality programs and services at least annually to better meet these and other needs of the child care workforce.**
- e. Describe any other strategies the Lead Agency is developing and/or implementing to support providers' recruitment and retention of the child care workforce. **The Lead Agency is implementing a statewide strategy leveraging a Registered Apprenticeship Program (RAP) model developed by the Tennessee Early Childhood Training Alliance (TECTA) to increase the supply and capacity of early childhood education, improve child care program quality, and support early care and education professionals and employers. The TECTA Early Childhood Apprenticeship Program (TECAP) is a paid RAP designed to increase education and training opportunities for current and emerging child care workforce. This career pathway is defined by the Workforce Innovation Opportunity Act (WIOA). Child care programs licensed by the Lead Agency that meet the RAP requirements are eligible to participate. Each apprentice is assigned an experienced mentor teacher who has the same or higher education certification/degree. The mentor must complete training, meet with the apprentice for an hour each week, attend coaching meetings, document the apprentice's progress, and serve as a role model to help connect theory to practice on the job.**

6.1.2 Strategies to support provider business practices

- a. Describe other strategies that the Lead Agency is developing and/or implementing to strengthen child care providers' business management and administrative practices. **Each Tennessee Early Childhood Program Administrator Credential Academy consists often (10) two-hour sessions of instruction. The sessions are comprised of direct instruction, interactive assignments, and participation in online discussion boards. Child Care Resource and Referral also works closely with providers through the development of continuous Quality Improvement Plans that will target specific areas to strengthen a provider's level of quality, business practices, accessibility and availability impact to supply, and the general improvement of child care services. CCR&R also conducts Small Business Academies that promote best practices and strengthen business operations for child care agencies. The focus of the academies include: Budgets, Projections, and Planning; Financial Reports and Internal Controls; Marketing for Child Care Programs; and Staff Recruitment and Retention for Center-based Child Care Programs.**
- b. Check the topics addressed in the Lead Agency's strategies for strengthening child care providers' administrative business practices. Check all that apply:
 - i. ☒ Fiscal management.
 - ii. ☒ Budgeting.
 - iii. ☒ Recordkeeping.
 - iv. ☒ Hiring, developing, and retaining qualified staff.
 - v. ☒ Risk management.
 - vi. ☒ Community relationships.
 - vii. ☒ Marketing and public relations.
 - viii. ☒ Parent-provider communications.
 - ix. ☒ Use of technology in business administration.
 - x. ☐ Compliance with employment and labor laws.
 - xi. ☐ Other. Describe any other efforts to strengthen providers' administrative business:

6.1.3 Strategies to support provider participation

Lead Agencies must facilitate participation of child care providers and staff with limited English proficiency and disabilities in the child care subsidy system. Describe how the Lead Agency will facilitate this participation, including engagement with providers to identify barriers and specific strategies used to support their participation:

- a. Providers and staff with limited English proficiency: **The Lead Agency ensures translations of licensing and child care payment assistance documents are available in languages other than English, including Spanish, Somali, and Arabic, on the basis of demand. The Lead Agency's Pre-Licensure Unit works with individual development districts through the Tennessee Department of Economic and Community Development to engage potential child care providers, including non-English speaking communities to encourage capacity building to meet individualized family needs.**
- b. Providers and staff who have disabilities: **The Lead Agency seeks guidance from its**

Division of Rehabilitation Services on recruitment, engagement, and accommodation efforts for persons who have disabilities or may require assistive technology and other form of accommodation support. The Tennessee Rehabilitation Center, administered by the Division of Rehabilitation Services in Smyrna, Tennessee, has implemented child care educator curriculum and a combination of lecture classes and clinical experience for persons who have disabilities.

6.2 Professional Development Framework

A Lead Agency must have a professional development framework for training, professional development, and post-secondary education for caregivers, teachers, and directors in child care programs that serve children of all ages. The framework must include these components:

(1) professional standards and competencies, (2) career pathways, (3) advisory structures, (4) articulation, (5) workforce information, and (6) financing. CCDF provides Lead Agencies flexibility on the strategies, breadth, and depth of the framework. The professional development framework must be developed in consultation with the State Advisory Council on Early Childhood Education and Care or a similar coordinating body.

6.2.1 Updates and consultation

- a. Did the Lead Agency make any updates to the professional development framework since the FFY 2022-2024 CCDF Plan was submitted?

[x] Yes. If yes, describe the elements of the framework that were updated and describe if and how the State Advisory Council on Early Childhood Education and Care (if applicable) or similar coordinating body was consulted: **TECTA is responsible for curricula development and participates in and consults the Tennessee Young Child Wellness Council (TNYCWC), the State Advisory Council on Early Childhood Education and Care. The Tennessee Early Childhood Training Alliance (TECTA) solicits input and suggestions from instructors and TECTA coordinators as TECTA Orientation curricula may be revised. TECTA conducts focus groups comprised of TECTA management and coordinators, child care providers, early childhood professionals, and consultants as needed to review proposed revisions. Suggestions and recommendations by focus group participants are reviewed by the TECTA Curriculum Coordinator before a final review by TECTA staff and original authors. All revisions resulting from this process are incorporated into TECTA curriculum statewide. When revisions to the Tennessee Early Childhood Program Administrator Credential (TECPAC) curricula are identified, the TECPAC Program Manager coordinates a review following NAEYC Standards and Guidelines for Professional Development and finalizes curricula in collaboration with TECTA management.**

During the 2022-24 CCDF Plan cycle, elements of the framework were revised to align with Lead Agency licensure rules at Tenn. Comp. R. & Regs. 1240-04-01 effective June 28, 2022, including content updates to all TECTA orientation trainings and select trainings available at the Tennessee Child Care Online Training System (TCCOTS) powered by ProSolutions Training. TCCOTS trainings were systematically reviewed to strengthen alignment with CCDBG health and safety training topics resulting in updates to Before You Begin: New Educator and Before You Begin: New Educator (School-Age); Emergency Preparedness and Response Planning; Preventing Shaken Baby Syndrome, Abusive Head Trauma, and Child Maltreatment; and Sudden Infant Death Syndrome (SIDS) and Safety Risks for Infants. The

TECPAC Academy was also updated to incorporate changes made by the McCormick Center for Early Childhood Leadership in the 3rd editions of the Program Administration Scale (PAS) and Business Administration Scale for Family Child Care (BAS).

☐ No.

- b. Did the Lead Agency consult with other key groups in the development of their professional development framework?

☒ Yes. If yes, identify the other key groups: **Please see response at 6.2.1.a.**

☐ No.

6.2.2 Description of the professional development framework

- a. Describe how the Lead Agency's framework for training and professional development addresses the following required elements:

- i. Professional standards and competencies. For example, Lead Agencies can include information about which roles in early childhood education are included (such as teachers, directors, infant and toddler specialists, mental health consultants, coaches, licensors, QIS assessors, family service workers, home visitors). **Tennessee Early Childhood Training Alliance (TECTA), the early care and education professional development hub for the Lead Agency, is a statewide training and professional recognition system based on the belief that early childhood educators should have professional knowledge and skills to provide appropriate and high-quality care and education for young children. The TECTA Professional Development System utilizes the National Association for the Education of Young Children (NAEYC) Standards for Professional Preparation as its framework for curriculum and training design, including:**
- Promoting child development and learning.
 - Building family and community relationships.
 - Observing, documenting, and assessing.
 - Using developmentally effective approaches to connect with children and families.
 - Using content knowledge to build meaningful curriculum; and
 - Becoming a professional.

TECTA administers TrainTN, the official clearinghouse for early childhood trainings recognized as approved by the Lead Agency and a companion to the state's training and professional development workforce registry, Tennessee Professional Archive of Learning (TNPAL). TrainTN includes a core training and competency review team of subject matter experts from the Lead Agency, other state agencies, Tennessee Child Care Resource & Referral Network (CCR&R), and other CCDF Quality Child Care Partners who ensure training content and training delivery partners align with federal and state requirements, national standards of practice, and the state professional development framework.

The Lead Agency is committed to recognizing research/evidenced-based training and professional development that aligns with CCDBG and other standards and

practices.

The TrainTN Catalog accommodates individual, institutional, and event-based training, and is organized by Child Care and Development Block Grant (CCDBG) requirements, Tennessee Licensure Rules for Child Care Agencies, and the Lead Agency's professional development framework aligned with NAEYC Standards for Professional Preparation.

TECTA administers Tennessee Child Care Online Training System (TCCOTS) powered by ProSolutions Training, a free online learning management system supporting early childhood professionals and high-quality child care services in Tennessee. TCCOTS offers web-based trainings which may be completed at any time to accommodate the schedules of early childhood professionals.

TCCOTS trainings are organized by core competency and offer an online option for early childhood professional and child care providers to access training content at any time, including preservice and health and safety trainings. TCCOTS trainings meet Lead Agency licensing and CCDBG training and professional development requirements.

TECTA Orientations offer curriculum as a series of 10 three-hour modules offered in five specializations: Center-Based, Child Care Administrator, Family Child Care, Infant/Toddler, and School-Age. Course content modules include: Professionalism, Developmentally Appropriate Practice, Family Relationships, Child Development, Observation and Assessment, Learning Environment, Health and Safety, Guidance, and Individual and Cultural Diversity.

TECTA also offers two (2) advanced Orientations as intensive trainings designed to provide in-depth instruction and study of Building Strong Brains: Adverse Childhood Experiences (ACEs) and Early Literacy: Books and Beyond. These Orientations may be offered biannually based upon demand and are available online only through the e-Learn system at Tennessee State University. All TECTA Orientations offered are 30-clock hour non-credit bearing courses.

Curriculum is designed for TECTA trainers with backgrounds in child care and early education to deliver training through active hands-on instruction activities that include opportunities for relationship building between participants and instructors. Journal writing is encouraged with each module facilitating participant reflection, understanding of the module topic, and feedback from the instructor. Journals are used by instructors to evaluate participant understanding, clarify meaning, and engage in technical assistance.

Pre- and Post-Assessments of Learning are administered for each TECTA Orientation offered including live, hybrid, and online classes. Each Orientation has a specific assessment based upon the information shared within the orientation, one question per module. The correct number of answers from the pre-assessment is then compared to the correct number of answers from the post-assessment and is represented through a percentage of change. Orientation pre-/post-assessment results for all orientations combined during the period indicate an approximate gain.

Tennessee Early Childhood Administrator Credential (TECPAC) is awarded by TECTA to early childhood directors who have demonstrate specific competencies for effective leadership and management through academics, experience, and a portfolio assessment using a framework designed around the NAEYC Standards for Professional Preparation.

These competencies are documented and measured as identified in the Program Administration Scale® Measuring Early Childhood Leadership and Management or Business Administration Scale® for Family Child Care from the McCormick Tribune Center for Early Childhood Leadership specifically designed for directors.

TECTA offers continued support through its TECPAC team for Early Childhood Program Accreditation on topics including staffing, retaining quality educators, and decreasing turnover while maintaining an overall quality child care program. The TECPAC team offers coaching training in addition supports for accreditation fees and materials to mitigate financial barriers to seeking accreditation for child care providers licensed by the Lead Agency through the Nashville Area Association for the Education of Young Children (NAAEYC) supporting NAEYC accreditation, and the Tennessee Association for Children’s Early Learning (TACEE) supporting National Early Childhood Program Accreditation (NECPA).

TECTA offers The Director’s Pathway to Success training series is designed to offer training to early childhood administrators on relevant topics commensurate with experience:

- Strive to Thrive, early childhood administrators having fewer than five years of experience;
- Go Getters, early childhood administrators having between 5-10 years of experience; and
- Pacesetters, early childhood administrators with 10+ years of experience.

TECTA administers the Tennessee Infant Toddler Credential professional development pathway for infant and toddler early childhood educators. The Tennessee Infant Toddler Credential is awarded upon completion of the Infant Toddler Credential Academy facilitated by TECTA instructors, featuring course content, reflective discussions, and cohort activities supplemented by Tennessee Child Care Resource and Referral Network (CCR&R) specialists, technical assistance, and training and professional development that emphasize core competencies related to the Tennessee Quality Rating Improvement System (QRIS). The Tennessee Infant Toddler Credential is delivered online through the e-Learn system at the Center of Excellence for Learning Sciences at Tennessee State University.

- ii. Career pathways. For example, Lead Agencies can include information about professional development registries, career ladders, and levels. **TECTA Orientation trainings offer a gateway to accessing academic tuition support and career advancement from associate’s degree through graduate degrees, including earning the Tennessee Early Childhood Administrator Credential (TECPAC) for**

administrators and the Tennessee Infant and Toddler Credential. The academic pathway for earning the CDA® is a key first stepping stone on the career advancement lattice and fully articulates into the Early Childhood Education Associate of Applied Science (A.A.S.) or Associate of Science (A.S.) degree at Tennessee Board of Regents (TBR) institutions of higher education statewide. State credentials also include academic preparation that articulates into academic technical certificates and degrees statewide. The TBR Early Childhood Education AAS programs are accredited by National Association for the Education of Young Children (NAEYC)/Council for the Accreditation of Educator Preparation (CAEP). Regional articulated pathways toward earning an Early Childhood Education or Child Development Bachelor of Science (BS) degree are in place at some institutions and additional articulation pathways are in development.

The TECTA Early Childhood Apprenticeship Program (TECAP) is a paid Registration Apprenticeship Program (RAP) designed to increase education and training opportunities for current and emerging child care workforce. This career pathway is defined by the Workforce Innovation Opportunity Act (WIOA). Child care programs licensed by the Lead Agency that meet the RAP requirements are eligible to participate. Each apprentice is assigned an experienced mentor teacher who has the same or higher education certification/degree. The mentor must complete training, meet with the apprentice for an hour each week, attend coaching meetings, document the apprentice's progress, and serve as a role model to help connect theory to practice on the job.

- iii. **Advisory structure.** For example, Lead Agencies can include information about how the professional development advisory structure interacts with the State Advisory Council on Early Childhood Education and Care. **The TECTA advisory structure is designed by the Tennessee State University Center of Excellence for Learning Sciences and comprised of various academic, state government, professional agency, and community-based stakeholders, some of whom sit on the Tennessee Young Child Wellness Council. TECTA forms select subcommittees as needed for purposeful strategic planning and implementation of services.**
- iv. **Articulation.** For example, Lead Agencies can include information about articulation agreements, and collaborative agreements that support progress in degree acquisition. **TECTA provides leadership in the development and revision of courses within the Early Childhood Education Associate of Applied Science (A.A.S.) degree as well as ongoing evaluation and effectiveness of curriculum including textbook adoption for the academic courses used for CDA® qualifications. TECTA convenes no fewer than two Higher Education Institutes annually to facilitated coordination and collaboration between and among Early Childhood Education/Child Development (ECED) programs of universities, community colleges, and/or colleges of applied technology to promote coursework for ECED credentials, certificate programs, and degrees. Based upon new research, state initiatives and/or new federal guidelines these faculty institutes provide for continuing infusions of new best practices and updating course alignments. TECTA also convenes a Summer Research Institute annually featuring research-based content on relevant ECED topics as well as a School-Age Summer Research Conference in collaboration with the Tennessee Afterschool**

Network emphasizing School-Age Development and quality program standards. TECTA staff at the two-year academic institutions provide statewide academic advisement for students.

- v. Workforce information. For example, Lead Agencies can include information about workforce demographics, educator well-being, retention/turnover surveys, actual wage scales, and/or access to benefits. **The Lead Agency uses the Tennessee Professional Archive of Learning (TNPAL), a training and workforce registry for early childhood education in Tennessee, as its official system of record for qualifications, training, and professional development for licensed child care providers. TNPAL is designed to support the training and professional development needs of educators, child care providers, and the Lead Agency and its CCDF Quality Child Care Partners, including the Tennessee Early Childhood Training Alliance (TECTA), to strengthen quality child care services.**

TNPAL builds upon existing data systems with extensive information about the early care and education workforce in child care providers licensed by the Lead Agency. TECTA uses individualized professional development plans for educators to further empower educators to identify and pursue professional development and continuing education opportunities. This feature is also available for educators through TNPAL. To strengthen the value of individualized professional development plans, the Tennessee Child Care Resource and Referral Network (CCR&R) will work with child care providers, the Lead Agency, and other CCDF Quality Child Care Partners to further strengthen quality child care services through the implementation of enhanced quality improvement plans designed to identify achieve provider program goals, potential deficiencies, or apply corrective action.

The Lead Agency also coordinates closely with the University of Tennessee Social Work Office of Research and Public Service (SWORPS) in areas of applied research and data analytics, survey design and research, data collection, and technical assistance to identify characteristics, training and professional development needs, and other provider-focused topics to ensure supports are relevant and promote high-quality the early care and education workforce.

- vi. Financing. For example, Lead Agencies can include information about strategies including scholarships, apprenticeships, wage enhancements, etc. **The Lead Agency ensures financial assistance is available for post-secondary students through the Tennessee Early Childhood Training Alliance (TECTA). To qualify, a student must meet the following requirements:**

- Meet eligibility requirements for in-state tuition.
- Be currently employed or volunteer on a consistent basis at a child care provider licensed by the Lead Agency.
- Applicants must provide proof of employment or consistent volunteer time to support their application.
- Have either completed a TECTA Orientation course, received a TECTA Orientation certificate via the High School Equivalency Program, or be a declared major in an Early Childhood Education ECE, Child Development, or related degree

program, and have earned 3 credits of ECE coursework with a minimum grade of C.

- Be admitted to a college or university and be enrolled in a required academic course leading to a credential or degree in Early Childhood Education or Child Development.

- Have completed and submitted the appropriate TECTA application forms, including a signed "Release of Academic Information" form, permitting the college or university to release the student's grades at the end of the semester to TECTA.

TECTA offers financial assistance to eligible students enrolled in academic courses leading to CDA® preparation and academic credentials or degrees in Early Childhood Education/Child Development. This financial assistance may include full or partial in-state tuition costs.

Based on availability of annual grant funds, TECTA Management will determine the percentage of financial assistance to be awarded for CDA preparation, academic credentials, and degrees. TECTA offers scholarships to individuals seeking the CDA® credential. The scholarship pays for the application fee and assessment due to the Council for Professional Recognition upon application. TECTA identifies stipends or incentive awards for each student completing the CDA® credential, TECPAC, or other identified credential incentives contingent on funding availability. Textbooks for CDA® preparation courses may be borrowed from TECTA sites as funding allows.

The amount of financial assistance an individual may receive per semester each academic year subject to funding availability. Funding consideration may also be given to students whose program of study is designed to meet early childhood professional career goals of a student when an early childhood education major is not available/accessible. Student tuition is paid directly to the institution of credit through a tuition-only contractual agreement with TECTA and the Center of Excellence for Learning Sciences at Tennessee State University. TECTA and institutions of higher education collaborate to verify student eligibility. Students must request financial assistance from the local TECTA contract institution. Students are not eligible to receive financial support from multiple TECTA contract institutions within a given semester.

b. Does the Lead Agency use additional elements?

☒ Yes.

If yes, describe the element(s). Check all that apply.

- i. ☒ Continuing education unit trainings and credit-bearing professional development. Describe: **Placement of Tennessee Early Childhood Training Alliance (TECTA) sites within institutions of higher education and relationships with the Tennessee Board of Regents, Locally Governed institutions (LGIs), and Tennessee Department of Education enable and support strengthened partnerships with professional development organizations to align with post-secondary education credit-bearing opportunities. The career lattice framework of TECTA allows for implementing comprehensive pathways and multiyear timelines for transitioning**

to a bachelor's degree and beyond. TECTA coordinating institutions, which may change as local needs and other factors change, include Austin Peay State University, Chattanooga State Community College, Dyersburg State Community College, East Tennessee State University, Roane State Community College, Southwest Tennessee Community College, Tennessee State University, and Tennessee Technological University.

- ii. ☒ Engagement of training and professional development providers, including higher education, in aligning training and educational opportunities with the Lead Agency's framework. Describe: **TECTA convenes no fewer than two Higher Education Institutes annually to facilitated coordination and collaboration between and among Early Childhood Education/Child Development (ECED) programs of universities, community colleges, and/or colleges of applied technology to promote coursework for ECED credentials, certificate programs, and degrees. Based upon new research, state initiatives and/or new federal guidelines these faculty institutes provide for continuing infusions of new best practices and updating course alignments. TECTA also convenes a Summer Research Institute annually featuring research-based content on relevant ECED topics as well as a School-Age Summer Research Conference in collaboration with the Tennessee Afterschool Network emphasizing School-Age Development and quality program standards.**
- iii. ☐ Other. Describe:
- ☐ No.

6.2.3 Impact of the Professional Development Framework

Describe how the framework improves the quality, diversity, stability, and retention of caregivers, teachers, and directors and identify what data are available to assess the impact.

- a. Professional standards and competencies. For example, do the professional standards and competencies reflect the diversity of providers across role, child care setting, or age of children served? **Tennessee Early Childhood Training Alliance (TECTA), the early care and education professional development hub for the Lead Agency, is a statewide training and professional recognition system based on the belief that early childhood educators should have professional knowledge and skills to provide appropriate and high-quality care and education for young children. The TECTA Professional Development System utilizes the National Association for the Education of Young Children (NAEYC) Standards for Professional Preparation as its framework for curriculum and training design, including: Promoting child development and learning; Building family and community relationships; Observing, documenting; and assessing; Using developmentally effective approaches to connect with children and families; Using content knowledge to build meaningful curriculum; and Becoming a professional.**
- b. Career pathways. For example, has the Lead Agency developed a wage ladder that provides progressively higher wages as early educators gain more experience and credentials? What types of child care settings and staff roles are addressed in career pathways, such as licensed centers and family child care homes? **Placement of Tennessee Early Childhood Training Alliance (TECTA) sites within institutions of higher education and relationships with the Tennessee Board of Regents, Locally Governed institutions (LGIs),**

and Tennessee Department of Education enable and support strengthened partnerships with professional development organizations to align with post-secondary education credit-bearing opportunities. The career lattice framework of TECTA allows for implementing comprehensive pathways and multiyear timelines for transitioning to a bachelor's degree and beyond. TECTA coordinating institutions, which may change as local needs and other factors change, include Austin Peay State University, Chattanooga State Community College, Dyersburg State Community College, East Tennessee State University, Roane State Community College, Southwest Tennessee Community College, Tennessee State University, and Tennessee Technological University.

- c. Advisory structure. For example, has the advisory structure identified goals for child care workforce compensation, including types of staff and target compensation levels? Does the Lead Agency have a Preschool Development Birth-to-Five grant and is part of its scope of work child care compensation activities? Are they represented in the advisory structure? **The Tennessee Child Care Workforce was created by Public Chapter N. 474 to help improve the quality, affordability, and access of child care in Tennessee. The final report of the task force in December 2022 recommended strategies that included investing in apprenticeship models with partner state agencies, expanding financial support for early childhood educators through bonuses or other public benefit eligibility options, establishing an early educator target compensation scale, promoting pathway progression, and ongoing collaborative partnerships to further support rebuilding the workforce and ensuring families accessibility to child care.**
- d. Articulation. For example, how does the advisory structure include training and professional development for providers, including higher education, to assist in aligning training and education opportunities? **The Tennessee Early Childhood Training Alliance (TECTA), a statewide training and professional recognition system administered by the Tennessee State University Center of Excellence for Learning Sciences, serves as the Lead Agency's early care and education professional development hub. TECTA provides leadership in the development and revision of courses within the Early Childhood Education Associate of Applied Science (A.A.S.) degree as well as ongoing evaluation and effectiveness of curriculum including textbook adoption for the academic courses used for CDA® qualifications. TECTA convenes no fewer than two (2) Higher Education Institutes annually to facilitated coordination and collaboration between and among Early Childhood Education/Child Development (ECED) programs of universities, community colleges, and/or colleges of applied technology to promote coursework for ECED credentials, certificate programs, and degrees. Based upon new research, state initiatives and/or new federal guidelines these faculty institutes provide for continuing infusions of new best practices and updating course alignments. The Lead Agency additionally collaborates through its partnerships with universities, community colleges, and colleges of applied technology as institutions of higher education coordinated by the Tennessee Higher Education Commission to facilitate the development of articulation and accreditation planning to support the early childhood workforce in Tennessee.**
- e. Workforce information. For example, does the Lead Agency have data on the existing wages and benefits available to the child care workforce? Do any partners such as the Quality Improvement System, child care resource and referral agencies, Bureau of Labor Statistics, and universities and research organizations collect compensation and benefits data? Does the Lead Agency monitor child care workforce wages and access to benefits

through ongoing data collection and evaluation? Can the data identify any disparities in the existing compensation and benefits (by geography, role, child care setting, race, ethnicity, gender, or age of children served)? **The Lead Agency does not directly collect wage and benefits information from the early care and education workforce in Tennessee. Limited applicant data is available only from participants in the Child Care WAGES® Tennessee program. The Lead Agency is exploring opportunities to identify data and engagement opportunities for use with research and analysis of workforce compensation and benefits.**

- f. Financing. For example, has the Lead Agency set a minimum or living wage as a floor for all child care staff? Do Lead Agency-provider subsidy agreements contain requirements for staff compensation levels? Do Lead Agencies provide program-level compensation grants to support staff base salaries and benefits? Does the Lead Agency administer bonuses or stipends directly to workers? **N/A.**

6.3 Ongoing Training and Professional Development

6.3.1 Required hours of ongoing training

Provide the number of hours of ongoing training required annually for CCDF-eligible providers in the following settings:

- a. Licensed child care centers: **Tenn. Comp. R. & Regs. 1240-04-01 requires licensed child care center directors to have at least 24 hours of training annually; licensed child care center assistant directors to have at least 18 hours of training annually; and licensed child care center educators to have at least 12 hours of training annually.**
- b. License-exempt child care centers: **Directors, assistant directors, teachers, and assistant teachers in centers regulated by the Tennessee Department of Education are required to have 30 hours of professional development annually. License-exempt providers that participate in the Child Care Payment Assistance/Certificate Program are required to have at least six (6) hours of training annually in CCDBG health and safety topics.**
- c. Licensed family child care homes: **Tenn. Comp. R. & Regs. 1240-04-01 requires licensed family home and group home primary educators to have at least 18 hours of training annually; and licensed family home and group home educators to have at least 12 hours of training annually.**
- d. License-exempt family child care homes: **License-exempt home providers that participate in the Child Care Payment Assistance/Certificate Program are required to have at least six (6) hours of training annually in CCDBG health and safety topics.**
- e. Regulated or registered in-home child care: **In-home care is limited to circumstances where a child resides in the home of a child care provider and that child is related to the provider, e.g., a child or grandchild. The Lead Agency only allows in-home care under these circumstances and such providers are required to have at least six (6) hours of training annually in CCDBG health and safety topics.**
- f. Non-regulated or registered in-home child care: **N/A.**

6.3.2 Accessibility of professional development for Tribal organizations

Describe how the Lead Agency's training and professional development are accessible to providers supported through Indian tribes or Tribal organizations receiving CCDF funds (as applicable). **N/A.**

6.3.3 Professional development appropriate for the diversity of children, families, and child care providers

Describe how the Lead Agency's training and professional development requirements reflect the diversity of children, families, and child care providers participating in CCDF. To the extent practicable, how does professional development include specialized training or credentials for providers who care for infants or school-age children; individuals with limited English proficiency; children who are bilingual; children with developmental delays or disabilities; and/or Native Americans, including Indians, as the term is defined in Section 900.6 in subpart B of the Indian Self-Determination and Education Assistance Act (including Alaska Natives) and Native Hawaiians?

The Lead Agency requires all staff caring for infants to complete Sudden Infant Death Syndrome (SIDS) and Safe Sleep and Preventing Shaken Baby Syndrome, Abusive Head Trauma, and Child Maltreatment training trauma prior to contact with children. The Lead Agency requires all staff caring for infants to complete age-appropriate CPR/First Aid within 90 days of employment and at least every three (3) years thereafter. The Lead Agency also requires staff to complete training in the Tennessee Early Learning Development Standards (TN-ELDS) during the first 120 of employment providing a developmentally appropriate framework for parents and caregivers to work together to provide meaningful interactions and activities. The Lead promotes completion of age appropriate First Aid and CPR certification, the Tennessee Infant Toddler Credential, Tennessee Child Care Resource & Referral Network (CCR&R) Infant Toddler Care Specialization (ITCS), and Infant/Early Childhood Mental Health Endorsement® among best practices.

Generally, child care providers receive training on developmental monitoring and screening as part of broader topics, including inclusion and children with special needs. Although there is not a single training on the specific subject within Tennessee Child Care Online Training System (TCCOTS) powered by ProSolutions Training, child developmental screenings are referenced in various trainings, e.g., Children with Disabilities: Working with Children and Families (Tennessee). This training includes references to the Tennessee Early Intervention System (TEIS) and the importance of observation and assessment for developmental milestones (with screening being the first step in developmental monitoring and observation). TECTA Orientations all refer child care providers to Child Care Tennessee website where assessment tools and technology help are provided. Tennessee Early Childhood Program Administrator Credential (TECPAC) Academy has a module on Screening and Assessment that includes screening and Identification as well as Assessment in Support of Learning.

Child care providers may receive training, coaching, technical assistance, and following classroom observations on developmental monitoring and screening through specialized teams of infant and toddler quality coaches and inclusion quality coaches with the CCR&R. Training and professional development are available to child care providers through the CCR&R professional development training calendar. CCR&R Inclusion Quality Coaches liaise within local communities and school systems to collect and make available developmental screening tools and resources, and share information about Learn the Signs, Act Early to child care providers.

CCR&R promotes and offers support for child care providers with program inclusion for children with disabilities or on-site consultation problem-solving child care and other health issues, including evaluation for adaptive equipment and/or technology needs. Through on-site coaching, CCR&R works with child care providers to ensure children with disabilities receive safe, high-quality care and appropriate accommodations through the use of Inclusion Coaching Plans,

individualized blueprints for educators to follow that further ensure children in the classroom have sufficient learning opportunities, activities, and materials. Inclusion Coaching Plans identify strategies for providing meaningful care and education and are opportunities for educators and families to work together in support of all children participating in activities and building relationships with their peers. Through its team of Family Engagement Quality Coaches, CCR&R offer resources to families and incorporates diverse family backgrounds into early childhood classrooms through parent advisory groups, parent meetings, and family conferences which can also include support for developmental concerns. CCR&R also implements Language Environment Analysis (LENA) when recommending bilingual book choices and family activities.

The Association of Infant Mental Health in Tennessee (AIMHITN) strives to make training and resources accessible to all families and early childhood education professionals by offering language interpretation, closed captioning, and methods to strengthen accessibility. AIMHITN also offers Coffee, Culture, and Connection community of practice trainings as opportunities to discuss the diverse needs of community, such as migrant families, language support, and other topics. AIMHITN offers training for early childhood professionals to enhance their knowledge and skills in supporting children and families with differing abilities. AIMHITN offers training related to supporting the assessment of the developmental needs of children for early childhood educators and provides access for educators to refer children and families to TEIS for early intervention services. AIMHITN offers a pathway for child care providers to assess their programs and develop high-quality inclusion practices and recognizes high-quality inclusion care among early childhood programs that offer exemplary services to children with differing abilities through its Belonging Awards. AIMHITN also refers early childhood educators to CCR&R for support with assessment and referring children for appropriate services.

The Lead Agency and its CCDF Quality Child Care Partners also offer or make available assistance through translation or interpretation services. Access to shared resources for all child care providers licensed by the Lead Agency is facilitated by the Community Foundation of Middle Tennessee (CFMT) through its online ChildcareTennessee.com platform.

Staff of child care centers and family and group child care homes licensed by the Lead Agency are required to complete at least three (3) hours of training annually in pre-literacy and literacy skills and education implementation, which includes building English language skills and implementing English language learning strategies in the classroom; however, the Lead Agency does not have a more specific training or professional development requirement to care for children who are bilingual or limited English proficient.

6.3.4 Child developmental screening

Describe how all providers receive, through training and professional development, information about: (1) existing resources and services the State/Territory can make available in conducting developmental screenings and providing referrals to services when appropriate for children who receive assistance under this part, including the coordinated use of the Early and Periodic Screening, Diagnosis, and Treatment program (42 U.S.C. 1396 et seq.) and developmental screening services available under section 619 and part C of the Individuals with Disabilities Education Act (20 U.S.C. 1419, 1431 et seq.); and (2) how child care providers may utilize these resources and services to obtain developmental screenings for children who receive assistance and who may be at risk for cognitive or other developmental delays, which may include social, emotional, physical, or linguistic delays: **Child care providers may receive training, coaching, technical assistance, and following classroom observations on developmental monitoring and**

screening through specialized teams of infant and toddler quality coaches and inclusion quality coaches with the Tennessee Child Care Resource & Referral Network (CCR&R). Training and professional development are available to providers through the CCR&R professional development training calendar. CCR&R Inclusion quality coaches liaise within local communities and school systems to collect, make available developmental screening tools and resources, and share information about Learn the Signs, Act Early to child care providers. Access to shared resources for all child care providers licensed by the Lead Agency are facilitated by the Community Foundation of Middle Tennessee (CFMT) through its online ChildcareTennessee.com platform.

Generally, child care providers receive training on developmental monitoring and screening as part of broader topics, including inclusion and children with special needs. Although there is not a single training on the specific subject within Tennessee Child Care Online Training System (TCCOTS) powered by ProSolutions Training, child developmental screenings are referenced in various trainings, e.g., Children with Disabilities: Working with Children and Families (Tennessee). This training includes references to the Tennessee Early Intervention System (TEIS) and the importance of observation and assessment for developmental milestones (with screening being the first step in developmental monitoring and observation). TECTA Orientations all refer child care providers to Child Care Tennessee website where assessment tools and technology help are provided. Tennessee Early Childhood Program Administrator Credential (TECPAC) Academy has a module on Screening and Assessment that includes screening and Identification as well as Assessment in Support of Learning.

AIMHITN offers training for early childhood professionals to enhance their knowledge and skills in supporting children and families with differing abilities. AIMHITN offers training related to supporting the assessment of the developmental needs of children for early childhood educators and provides access for educators to refer children and families to TEIS for early intervention services. AIMHITN offers a pathway for child care providers to assess their programs and develop high-quality inclusion practices and recognizes high-quality inclusion care among early childhood programs that offer exemplary services to children with differing abilities through its Belonging Awards. AIMHITN also refers early childhood educators to CCR&R for support with assessment and referring children for appropriate services. Information on child developmental screenings may also be made available when screenings are offered in a community.

6.4 Early Learning and Developmental Guidelines

Lead Agencies must develop, maintain, or implement early learning and developmental guidelines appropriate for children from birth to kindergarten entry. Early learning and developmental guidelines should describe what children should know and be able to do at different ages and cover the essential domains of early childhood development, which at a minimum includes cognition, including language arts and mathematics; social, emotional, and physical development; and approaches toward learning.

6.4.1 Early learning and developmental guidelines

- a. Check the boxes below to certify the Lead Agency's early learning and developmental guidelines are:
 - i. ☒ Research-based.

- ii. ☒ Developmentally appropriate.
 - iii. ☒ Culturally and linguistically appropriate.
 - iv. ☒ Aligned with kindergarten entry.
 - v. ☒ Appropriate for all children from birth to kindergarten entry.
 - vi. ☒ Implemented in consultation with the educational agency and the State Advisory Council on Early Childhood Education and Care or similar coordinating body.
 - vii. If any components above are not checked, describe:
- b. Check the boxes below to certify that the required domains are included in the Lead Agency's early learning and developmental guidelines.
- i. ☒ Cognition, including language arts and mathematics.
 - ii. ☒ Social development.
 - iii. ☒ Emotional development.
 - iv. ☒ Physical development.
 - v. ☒ Approaches toward learning.
 - vi. ☒ Other optional domains. Describe any optional domains: **N/A.**
 - vii. If any components above are not checked, describe:
- c. When were the Lead Agency's early learning and developmental guidelines most recently updated and for what reason? **The Lead Agency collaborates with the Tennessee Department of Education (TDOE) and other early care and education partners in the development of Tennessee Early Childhood Education Early Learning Developmental Standards (TN-ELDS), the early learning and developmental guidelines adopted by the Tennessee State Board of Education, last updated in January 2018 to better align early learning and K-12 standards.**
- d. Provide the Web link to the Lead Agency's early learning and developmental guidelines.
<https://www.tn.gov/education/districts/academic-standards/early-learning-development-standards.html>

6.4.2 Use of early learning and developmental guidelines

- a. Describe how the Lead Agency uses its early learning and developmental guidelines. **The Lead Agency enmeshes early learning and development guidelines in a variety of approaches in the preparation of and ongoing professional development for the child care workforce as well as in classroom practice. Early learning and development guidelines content is included in training, coaching, and technical assistance available from the Tennessee Child Care Resource and Referral Network (CCR&R) and Tennessee Early Childhood Training Alliance (TECTA) and included among higher education coursework benefiting early care and education practitioners, classroom instruction, and strengthening support for continuous quality improvement of child care services.**
- b. Check the boxes below to certify that CCDF funds are not used to develop or implement an assessment for children that:

- i. **[x]** Will be the primary or sole basis to determine a child care provider ineligible to participate in the CCDF.
- ii. **[x]** Will be used as the primary or sole basis to provide a reward or sanction for an individual provider.
- iii. **[x]** Will be used as the primary or sole method for assessing program effectiveness.
- iv. **[x]** Will be used to deny children eligibility to participate in CCDF.
- v. If any components above are not checked, describe:

7 Quality Improvement Activities

The quality of child care directly affects children’s safety and healthy development while in care settings, and high-quality child care can be foundational across the lifespan. Lead Agencies may use CCDF for quality improvement activities for all children in care, not just those receiving child care subsidies. OCC will collect the most detailed Lead Agency information about quality improvement activities in annual reports instead of this Plan.

Lead Agencies must report on CCDF child care quality improvement investments in three ways:

1. In this Plan, Lead Agencies will describe the types of activities supported by quality investments over the 3-year period.
2. An annual expenditure report (the ACF-696). Lead Agencies will provide data on how much CCDF funding is spent on quality activities. This report will be used to determine compliance with the required quality and infant and toddler spending requirements.
3. An annual Quality Progress Report (the ACF-218). Lead Agencies will provide a description of activities funded by quality expenditures, the measures used to evaluate its progress in improving the quality of child care programs and services within the State/Territory, and progress or barriers encountered on those measures.

In this section of the Plan, Lead Agencies will describe their quality activities needs assessment and identify the types of quality improvement activities where CCDF investments are being made using quality set-aside funds.

7.1 Quality Activities Needs Assessment

7.1.1 Needs assessment process and findings

- a. Describe the Lead Agency needs assessment process for expending CCDF funds on activities to improve the quality of child care, including the frequency of assessment, how a diverse range of parents and providers were consulted, and how their views are incorporated: **The Lead Agency conducts needs assessment utilizing methodologies that include annual and periodic analyses by institutions of higher education, research studies that focus on the impact of the Quality Rating Improvement System (QRIS), market rate and supply and demand studies, review of contracts and services, and public focus groups**

and information sessions with stakeholders, including government and community partners, consumers, child care providers, and the early care and education workforce. These methods of engagement are integral to the Lead Agency's continuous quality improvement.

A statutorily mandated child care task force was convened to collect information and develop a strategic action plan for increasing the availability of high quality, affordable, and accessible child care in this state, for building partnerships between government and the business sector, and to identify resources across state government departments that could be streamlined, coordinated, and more effectively utilized to address child care challenges. The Tennessee Child Care Task Force issued its Final Report in December 2022 which may found at https://www.tn.gov/content/dam/tn/human-services/documents/TN%20CCTF%20Final%20Report_12.15.22.pdf.

- b. Describe the findings of the assessment, including any findings related to needs of different populations and types of providers, and if any overarching goals for quality improvement were identified: **The Lead Agency engaged a national policy consultant to develop high-level recommendations to redesign Tennessee's Quality Rating Improvement System (QRIS) with a goal to streamline and integrate licensing and quality measurements into a system that is simple and clear, and focused on improving child outcomes, and measuring meaningful indicators of quality early childhood education.** The consultant conducted an analysis of quality assessment systems used by other states and a literature review of best practices. The consultant also conducted regional focus groups to engage child care providers, community partners, and Lead Agency staff to further identify and discuss key components of a redesigned system. After receiving recommendations from the consultant group, the Lead Agency held focus groups with Lead Agency staff and community-based events across the state to collect information/comments about the current process.

In January 2019, the Lead Agency convened approximately 300 stakeholders to discuss the Child Care Payment Assistance/Certificate Program and subsidy rates. In February 2019, a town hall was conducted with child care providers to discuss strengths and opportunities within the existing quality assessment and rating program, and a survey of child care providers and partners was conducting about their interest in small business training. CCDF Quality Child Care Partners were also included in focus groups to give specific feedback about big ideas for the QRIS redesign. Stakeholders generally agreed it was time for Tennessee to again be a leader in innovation. Through those conversations, the Lead Agency recognized a general desire to redesign the current QRIS. When it launched in 2001, Tennessee's Star Quality Program was one of the first child care quality rating programs in the country. Over the years, the Star Quality Program has significantly helped to raise awareness about the importance of quality child care and assisted many agencies with improving their early care and education programs.

The Lead Agency began using an interim assessment tool in combination with other report card components to conduct evaluations/measure effective practice in July 2020 in response to the COVID-19 public health crisis. The interim tool was developed in partnership with the Tennessee Child Care Resource and Referral Network (CCR&R) and

used until the new QRIS redesign was fully implemented in 2022. The Lead Agency has completed legislation necessary to transition to the new QRIS and has engaged providers and partners in committees to revise the current child care rules to support these changes to the system. The Lead Agency also reorganized staff in its Division of Child Care and Community Services to support implementation of the redesigned QRIS and improve delivery of services within the broader framework of the Tennessee' early child care education professional development framework. The new QRIS is weighted towards teacher-child interactions and evaluates this element along with designated health and safety practices during multiple visits each year. In February 2020, Lead Agency child care staff traveled to a peer state to review their recently redesigned QRIS and compare ideas and lessons learned.

The Lead Agency implemented the newly redesigned QRIS in October 2022. The new system takes a holistic approach to evaluating quality that is a more streamlined process through ongoing engagement that supports a more a picture of quality. There was a full transition year from October 01, 2022 through September 30, 2023 to allow for a period of adoption, understanding, any necessary modifications. The new QRIS was fully implemented October 01, 2023, and the new scores will post immediately following the end of the annual cycle that runs through September 30, 2024.

7.2 Use of Quality Set-Aside Funds

Lead Agencies must use a portion of their CCDF expenditures for activities designed to improve the quality of child care services and to increase parental options for and access to high-quality child care. They must use the quality set-aside funds on at least one of 10 activities described in CCDF and the quality activities must be aligned with a Statewide or Territory-wide assessment of the State's or Territory's need to carry out such services and care.

7.2.1 Quality improvement activities

- a. Describe how the Lead Agency will make its Quality Progress Report (ACF – 218) and expenditure reports, available to the public. Provide a link if available. **The Lead Agency posts the ACF-218 Quality Progress Report, expenditure reporting, and annual aggregate data for Tennessee to its website at <https://www.tn.gov/humanservices/information-and-resources/tdhs-reports-and-information.html>.**
- b. Identify Lead Agency plans, if any, to spend CCDF funds for each of the following quality improvement activities. If an activity is checked "yes", describe the Lead Agency's current and/or future plans for this activity.
 - i. Supporting the training and professional development of the child care workforce, including birth to five and school-age providers.

☐ No plans to spend in this category of activities at this time.

☒ Yes. If yes, describe current and future investments. **The Lead Agency continues investments described at 6.2.2 and 6.2.3 in the Tennessee Early Childhood Training Alliance (TECTA), a statewide training and professional recognition system administered by the Tennessee State University Center of Excellence for Learning Sciences that serves as the Lead Agency's early care and education professional development hub. The TECTA Professional Development**

System utilizes the National Association for the Education of Young Children (NAEYC) Standards for Professional Preparation as its framework for curriculum and training design.

The Lead Agency is implementing a statewide strategy leveraging a Registered Apprenticeship Program (RAP) model developed by TECTA to increase the supply and capacity of early childhood education, improve child care program quality, and support early care and education professionals and employers. The TECTA Early Childhood Apprenticeship Program (TECAP) is a paid RAP designed to increase education and training opportunities for current and emerging child care workforce. This career pathway is defined by the Workforce Innovation Opportunity Act (WIOA). Child care programs licensed by the Lead Agency that meet the RAP requirements are eligible to participate. Each apprentice is assigned an experienced mentor teacher who has the same or higher education certification/degree. The mentor must complete training, meet with the apprentice for an hour each week, attend coaching meetings, document the apprentice's progress, and serve as a role model to help connect theory to practice on the job.

The Lead agency is continuing investments in training and professional development through programs and services delivered by the Tennessee Child Care Resource and Referral Network (CCR&R) as described at 8.3.1.

The Lead Agency continues to enhance training and professional development for the early care and education workforce with the Association of Infant Mental Health in Tennessee (AIMHITN), supporting the Lead Agency and other CCDF Quality Child Care Partners through professional development and technical assistance in reflective practices, belonging, and professional pathways training. AIMHITN collaboratively supports the Tennessee Infant and Toddler Credential, ITCS, and other professional development opportunities by infusing training content with Infant and Early Childhood Mental Health (IECMH) standards, i.e., behavior awareness, disability awareness, etc. AIMHITN offers the Infant and Early Childhood Mental Health Endorsement® pathways.

The Lead Agency continues to offer the Child Care WAGE\$® Tennessee, an education-based salary supplement program for early care and education professionals employed by child care providers licensed by the Lead Agency. The program provides eligible educators an annual award, issued in two parts, based on specific qualifications and employment retention criteria.

- ii. Developing, maintaining, or implementing early learning and developmental guidelines.

☐ No plans to spend in this category of activities at this time.

☒ Yes. If yes, describe current and future investments. **The Lead Agency collaborates with the Tennessee Department of Education (TDOE) and other early care and education partners in the development of Tennessee Early Childhood Education Early Learning Developmental Standards (TN-ELDS), the early learning**

and developmental guidelines adopted by the Tennessee State Board of Education. TN-ELDS are embedded in a variety of approaches to preparation, classroom practice, and ongoing training and professional development for the early care and education workforce. The Lead Agency and its CCDF Quality Child Care Partners, including the Tennessee Early Childhood Training Alliance (TECTA) and Tennessee Child Care Resource and Referral Network (CCR&R), ensure TN-ELDS are included in higher education coursework, training, technical assistance services delivered to early care and education practitioners, classroom instruction, and quality improvement supports.

- iii. Developing, implementing, or enhancing a quality improvement system.

☐ No plans to spend in this category of activities at this time.

☒ Yes. If yes, describe current and future investments. **The Lead Agency is implementing and may make enhancements to its new Quality Rating Improvement System (QRIS) ensuring families and child care providers experience a streamlined and integrated system that is both simple and clear, focused on improving child outcomes, and measuring meaningful indicators of quality early childhood education.**

- iv. Improving the supply and quality of child care services for infants and toddlers.

☐ No plans to spend in this category of activities at this time.

☒ Yes. If yes, describe current and future investments. **The Lead Agency is continuing to provide support for this category of activities through partnership initiatives with our CCDF Quality Child Care Partners. Tennessee Early Childhood Training Alliance (TECTA) offers the Tennessee Infant and Toddler Credential as a professional development pathway for infant and toddler early childhood professionals. The Tennessee Infant and Toddler Credential is awarded upon completion of the Infant Toddler Credential Academy facilitated by TECTA instructors and features course content, reflective discussions, and cohort activities supplemented by Tennessee Child Care Resources and Referral Network (CCR&R) coaches, technical assistance, and training and professional development.**

TECTA also provides training and professional development support for early childhood educators and administrators focusing on strengthening program quality while increasing capacity for infant and toddler programs and services through the center-based Infant-Toddler Child Development Associate® (CDA) Credential.

CCR&R provides the Infant and Toddler Care Specialization (ITCS), an additional pathway to quality professional development for educators who want to deepen their knowledge but either are not ready for college coursework or do not qualify for the Tennessee Infant and Toddler Credential. The specialization is a series of formal and informal training opportunities, classroom materials to support topics and improve practices, and academic resources to help increase the knowledge base of educators. CCR&R identifies select child care centers that are established and demonstrate high-quality practices and care for infants and toddlers as Infant

Toddler Demonstration Sites, which are used by educators who complete ITCS to observe classroom and center-based infant and toddler group care practices. CCR&R will continue delivering training, technical assistance, and intensive coaching through its statewide team of specialized Infant and Toddler Quality Coaches.

The Association of Infant Mental Health in Tennessee (AIMHITN) supports the Lead Agency and other CCDF Quality Child Care Partners through professional development and technical assistance in reflective practices, belonging, and professional pathways training. AIMHITN collaboratively supports the Tennessee Infant and Toddler Credential, ITCS, and other professional development opportunities by infusing training content with Infant and Early Childhood Mental Health (IECMH) standards, i.e., behavior awareness, inclusion, reflective practice, self-regulation, etc. AIMHITN has developed training and tools that contribute to the well-being of children, families, and the early care and education workforce, i.e., multi-lingual emergency response toolkits that promote trauma-informed care when responding and recovering from disasters. AIMHITN also offers Infant and Early Childhood Mental Health Endorsement® pathways and Reflective Supervision and Consultation supports for the early care and education workforce as well as Lead Agency and CCDF Quality Child Care Partners staff.

The Community Foundation of Middle Tennessee (CFMT) administers support and enhancement grant funds for providers whose educators complete ITCS. Grant funds may be used to purchase equipment and program enhancements that would improve their infant and toddler classrooms and programs.

The Lead Agency is exploring potential opportunities for partnership and supports in this category of activities.

- v. Establishing or expanding a statewide system of CCR&R services.

☐ No plans to spend in this category of activities at this time.

☒ Yes. If yes, describe current and future investments. **The Lead Agency is broadening supports available from the Tennessee Child Care Resource and Referral Network (CCR&R) for programs and services to families, child care providers, and the early care and education workforce. Additional targeted investments to strengthen support for child care providers have introduced the creation of Literacy coaches, Language Support quality coaches and Quality Rating and Improvement quality coaches.**

To further strengthen business practices and improve supports available to new and potential child care providers during the Lead Agency's pre-licensure process, CCR&R has expanded the number of Small Business Support Specialists and introduced an Administration Specialization pathway to quality professional development for child care owners, administrators, and directors who want to deepen their knowledge but either are not ready for college coursework or do not qualify for the Tennessee Early Childhood Program Administrator Credential. The specialization is a series of formal and informal training opportunities supported

by resources to and improve administrative practice and business resources to help increase the knowledge base of owners, administrators, and directors.

CCR&R has also expanded services supporting child care provider emergency preparedness and response planning, including the introduction of new trainings aligned with CCDBG requirements, review of child care providers emergency preparedness and response plans, and participation in cross-sector initiatives with other CCDF Quality Child Care Partners, e.g., Tennessee Children in Disaster Task Force, AIMHITN Social Emotional Emergency Response Team (SEER), etc. CCR&R will continue delivering Tech Goes Home Tennessee, a program designed to reduce the digital divide and support a system of high-quality early care and education through training, technical assistance, and technology incentives and services. Previously funded with ARP funds, Tech Goes Home Tennessee will continue to be offered using CCDF funds.

CCR&R administers the Tennessee Family Child Care Network (TFCCN), a statewide network providing supports for family and group home child care providers. TFCCN leverages training, technical assistance, and intensive coaching and peer-to-peer mentoring to assure successful application of skills and knowledge and delivery of high-quality child care. TFCCN coaches also provide support family and group home child care providers with meeting requirements for the non-academic Family Child Care Child Development Associate® (CDA) Credential.

CCR&R will support the Lead Agency with initiatives improving the supply and quality of child care programs, including initiatives to expand access.

- vi. Facilitating compliance with Lead Agency child care licensing, monitoring, inspection and health and safety standards.

☐ No plans to spend in this category of activities at this time.

☒ Yes. If yes, describe current and future investments. **The Lead Agency supports compliance with standards by covering the costs of such necessary health and safety components as background checks, fire inspections, environmental inspections, and immunization audits.**

Additionally, the Lead Agency provides access to free training, technical assistance, coaching, and peer mentoring through grants and contracts with its CCDF Quality Child Care Partners to further support and empower providers with achieving and maintaining compliance.

To promote safe environments for children, both training and certification in pediatric and age appropriate First Aid and CPR is available to staff of child care providers licensed by the Lead Agency at no cost through the Tennessee Child Care Resource and Referral Network (CCR&R).

The Lead Agency also implements grant initiatives administered by the Community Foundation of Middle Tennessee to provide support and

enhancement grants that seek to increase capacity, strengthen quality, and/or promote compliance with Lead Agency licensing standards for child care providers. Grants support such items as equipment, program enhancements, including supplies, and consultant and coaching services.

- vii. Evaluating and assessing the quality and effectiveness of child care services within the State/Territory.

☐ No plans to spend in this category of activities at this time.

☒ Yes. If yes, describe current and future investments. **The Lead Agency is implementing and may make enhancements to its new Quality Rating Improvement System (QRIS) ensuring families and child care providers experience a streamlined and integrated system that is both simple and clear, focused on improving child outcomes, and measuring meaningful indicators of quality early childhood education. The Lead Agency continually evaluates indicators and measurements related to quality and evaluates efficacy of programs and services delivered by its CCDF Quality Child Care Partners that support quality, e.g., training, technical assistance, intensive coaching, etc., in addition to evaluating Lead Agency workload distribution and resource allocation.**

- viii. Accreditation support.

☐ No plans to spend in this category of activities at this time.

☒ Yes. If yes, describe current and future investments. **The Lead Agency is continuing to provide accreditation support for child care providers through partnership initiatives with our CCDF Quality Child Care Partners. The Tennessee Early Childhood Training Alliance (TECTA) at Tennessee State University offers the Tennessee Early Childhood Program Administrator Credential to early childhood directors who demonstrate specific competencies for effective leadership and management through academics, experience, and a portfolio assessment using a framework designed around NAEYC Standards for Professional Development. TECTA offers training, coaching, and support for accreditation fees and materials to mitigate financial barriers to providers seeking national accreditation.**

Tennessee Child Care Resource and Referral Network (CCR&R), which administers the Tennessee Family Child Care Network (TFCCN), similarly offers training, coaching, and support for accreditation fees and materials for family and group providers licensed by the Lead Agency seeking national accreditation.

The Community Foundation of Middle Tennessee (CFMT) administers support and enhancement grant funds for providers purchasing classroom items helping in the pursuit of national accreditation. The Lead Agency is exploring potential opportunities for partnership and supports in this category of activities.

- ix. Supporting State/Territory or local efforts to develop high-quality program standards relating to health, mental health, nutrition, physical activity, and physical development.

☐ No plans to spend in this category of activities at this time.

☒ Yes. If yes, describe current and future investments. **he Lead Agency works collaboratively with the Tennessee Department of Health (TDH), CCDF Quality Child Care Partners, and other organizations to strengthen training in support of high-quality program standards relating to health, mental health, nutrition, physical activity, and physical development. The Lead Agency established standards that promote the health, safety, development, and overall well-being of children in its most recent promulgation of licensure rules in June 2022. Tennessee ranked first on high-impact obesity prevention standards in the Achieving a State of Health Weight 2022 Annual Report by the University of Colorado College of Nursing published in 2023.**

- x. Other activities determined by the Lead Agency to improve the quality of child care services and the measurement of outcomes related to improved provider preparedness, child safety, child well-being, or kindergarten entry.

☐ No plans to spend in this category of activities at this time.

☒ Yes. If yes, describe current and future investments. **The Lead Agency collaborates with the Tennessee Department of Education (TDOE) and other early care and education partners in the development of Tennessee Early Childhood Education Early Learning Developmental Standards (TN-ELDS), the early learning and developmental guidelines adopted by the Tennessee State Board of Education. TN-ELDS are embedded in a variety of approaches to preparation, classroom practice, and ongoing training and professional development for the early care and education workforce. The Lead Agency and its CCDF Quality Child Care Partners, including the Tennessee Early Childhood Training Alliance (TECTA) and Tennessee Child Care Resource and Referral Network (CCR&R), ensure TN-ELDS are included in higher education coursework, training, technical assistance services delivered to early care and education practitioners, classroom instruction, and quality improvement supports.**

8 Lead Agency Coordination and Partnerships to Support Service Delivery

Coordination and partnerships help ensure that the Lead Agency's efforts accomplish CCDF goals effectively, leverage other resources, and avoid duplication of effort. Such coordination and partnerships can help families better access child care, can assist in providing consumer education to parents, and can be used to improve child care quality and the stability of child care providers. Such coordination can also be particularly helpful in the aftermath of disasters when the provision of emergency child care services and the rebuilding and restoring of child care infrastructure are an essential part of ensuring the well-being of children and families in recovering communities.

This section identifies who the Lead Agency collaborates with to implement services, how match and maintenance-of-effort (MOE) funds are used, coordination with child care resource and referral (CCR&R) systems, and efforts for disaster preparedness and response plans to support continuity of operations in response to emergencies.

8.1 Coordination with Partners to Expand Accessibility and Continuity of Care

Lead Agencies must coordinate child care services supported by CCDF with other federal, State/Territory, and local level programs. This includes programs for the benefit of Indian

children, infants and toddlers, children with disabilities, children experiencing homelessness, and children in foster care.

8.1.1 Coordination with required and optional partners

Describe how the Lead Agency coordinates and the results of this coordination of the provision of child care services with the organizations and agencies to expand accessibility and continuity of care and to assist children enrolled in early childhood programs in receiving full-day services that meet the needs of working families.

The Lead Agency must coordinate with the following agencies:

- a. State Advisory Council on Early Childhood Education and Care or similar coordinating body (pursuant to 642B(b)(1)(A)(i) of the Head Start Act). Describe the coordination and results of the coordination: **The CCDF Co-Administrator is the Lead Agency representative to the Tennessee Young Child Wellness Council (TNYCWC), the designated state advisory council on early childhood care and education for Tennessee, regularly attends scheduled TNYCWC meetings, and serves on the TNYCWC steering committee to coordinate statewide CCDF early care and education services. Coordination with TNYCWC supports and facilitates the continuity of care for a child, enabling a child to remain in a stable environment, which will lead to positive child development outcomes and better preparation them for school and ongoing educational success. Stable child care is critical to strengthening the ability of parents and caregivers to go to work, improve their prospects in the job market, and increase earning potential crucial to self-sufficiency.**

The TNYCWC includes representatives from across sectors, such as education, health, child welfare, advocacy, higher education, Head Start and other state and nonprofit organizations. Through the TNYCWC, the Lead Agency is able to gather valuable and diverse perspectives to inform policy and resource allocation decisions to improve continuity of care and accessibility.

The Child Care Services Program within the Tennessee Department of Human Services (TDHS) as CCDF Lead Agency is committed to promoting early childhood environments that are safe, healthy, and educationally rich. In 2019, TDHS embarked on transformation activities to revolutionize the child care industry with a focus on improving quality, increasing access, and creating opportunities that make doing business with the State of Tennessee an easier process. Understanding the needs of the community and those who are directly impacted, TDHS engaged all stakeholders, inclusive of advisory councils, child care providers, families, partner State agencies and advocacy groups in defining priorities as development of strategies to achieve these goals were implemented. Initiatives are organized into three categories:

- Supporting families through access to child care payment assistance, with a focus on family-friendly policies and strengthened communication for consumer education.
- Strengthening child care providers through financial stabilization, business tools, quality supports and resources for sustainability, and increased professional development opportunities.

- Growing capacity of child care providers statewide through strategic partnerships, grant opportunities, and technical assistance. TDHS is focused on engaging Tennessee employers to invest in their workforce through innovative child care strategies.

- b. Indian Tribe(s) and/or Tribal organization(s), at the option of the Tribe or Tribal organization. Describe the coordination and results of the coordination, including which Tribe(s) was (were) involved:

☒ Not applicable. Check here if there are no Indian Tribes and/or Tribal organizations in the State/Territory.

- c. State/Territory agency(ies) responsible for programs for children with disabilities, including early intervention programs authorized under the Individuals with Disabilities Education Act. Describe the coordination and results of the coordination: **The Lead Agency regularly meets with representatives from the Tennessee Department of Education (TDOE), the agency that administers the Individuals with Disabilities Education Act (IDEA) for Tennessee. These meetings provide a platform for coordination, brainstorming, and assessment of current and opportunities for potential services needed to support children’s early learning and development.**

The CCDF Co-Administrator also serves on the State Interagency Coordinating Council (SICC) for the Tennessee Early Intervention System (TEIS), a voluntary program that offers therapy and other services to infants and young children with development delays or disabilities. The SICC for TEIS has established a guiding vision to support the Tennessee Department of Disability and Aging (TDDA) through a statewide comprehensive, coordinated, multidisciplinary, interagency system of early intervention services for infants and toddlers with disabilities and their families in Tennessee. This council is statutorily created and required by law.

Through partnerships with TDOE and TDDA, the Lead Agency is able to gather valuable and diverse perspectives to inform policy and resource allocation decisions to improve continuity of care and accessibility for children with disabilities in inclusive settings.

Coordination of these activities supports transformation of the child care industry with a focus on improving quality, increasing access, and creating opportunities that make doing business with the State of Tennessee an easier process. Understanding the needs of the community and those who are directly impacted, TDHS engaged all stakeholders, inclusive of advisory councils, child care providers, families, partner State agencies and advocacy groups in defining priorities as development of strategies to achieve these goals were implemented. Initiatives are organized into three categories:

- Supporting families through access to child care payment assistance, with a focus on family-friendly policies and strengthened communication for consumer education.
- Strengthening child care providers through financial stabilization, business tools, quality supports and resources for sustainability, and increased professional development opportunities.
- Growing capacity of child care providers statewide through strategic partnerships, grant

opportunities, and technical assistance. TDHS is focused on engaging Tennessee employers to invest in their workforce through innovative child care strategies.

- d. State/Territory office/director for Head Start State collaboration. Describe the coordination and results of the coordination: **The Lead Agency is committed to promoting early childhood environments that are safe, healthy, and educationally rich. The CCDF Co-Administrator is the Lead Agency representative who regularly engage with and attends meetings of the Head Start State Collaboration Office at the Tennessee Department of Education (TDOE) for information sharing and consultation to strengthen the quality of and accessibility to child care services.**

Through quarterly engagements with the Head Start Collaboration Office and the Tennessee Head Start Association, the Lead Agency is able to gather valuable and diverse perspectives to inform policy and resource allocation decisions to improve continuity of care and accessibility for children with disabilities in inclusive settings and support transformation activities and initiatives organized into three categories:

- Supporting families through access to child care payment assistance, with a focus on family-friendly policies and strengthened communication for consumer education.
- Strengthening child care providers through financial stabilization, business tools, quality supports and resources for sustainability, and increased professional development opportunities.
- Growing capacity of child care providers statewide through strategic partnerships, grant opportunities, and technical assistance. TDHS is focused on engaging Tennessee employers to invest in their workforce through innovative child care strategies.

- e. State/Territory agency responsible for public health, including the agency responsible for immunizations. Describe the coordination and results of the coordination: **The Child Care Services Program within the Tennessee Department of Human Services (TDHS) as CCDF Lead Agency is committed to promoting early childhood environments that are safe, healthy, and educationally rich. In 2019, TDHS embarked on transformation activities to revolutionize the child care industry with a focus on improving quality, increasing access, and creating opportunities that make doing business with the State of Tennessee an easier process. Understanding the needs of the community and those who are directly impacted, TDHS engaged all stakeholders, inclusive of advisory councils, child care providers, families, partner State agencies and advocacy groups in defining priorities as development of strategies to achieve these goals were implemented. Initiatives are organized into three categories:**

- Supporting families through access to child care payment assistance, with a focus on family-friendly policies and strengthened communication for consumer education.
- Strengthening child care providers through financial stabilization, business tools, quality supports and resources for sustainability, and increased professional development opportunities.
- Growing capacity of child care providers statewide through strategic partnerships, grant

opportunities, and technical assistance. TDHS is focused on engaging Tennessee employers to invest in their workforce through innovative child care strategies.

The Lead Agency contracts with the Tennessee Department of Health (TDH) to conduct environmental inspections of child care providers licensed or subject to licensure by the Lead Agency as defined at Tenn. Comp. R. & Regs. 1240-04-01. The Lead Agency also contracts with TDH and six (6) regional public health departments with responsibility for immunizations to conduct immunization record audits for child care providers licensed or subject to licensure by the Lead Agency as defined at Tenn. Comp. R. & Regs. 1240-04-01 consistent with statutory and/or regulatory requirements and recommendations by the Centers for Disease Control and Prevention and applicable Tennessee laws.

- f. State/Territory agency responsible for employment services/workforce development. Describe the coordination and results of the coordination: **The Lead Agency maintains strong working relationships with state and local entities responsible for employment services and workforce development. The CCDF Co-Administrator participates in the Workforce Development council. The Lead Agency also participates in the State Workforce Development Board (SWDB). Under the direction of the State Workforce Development Board (SWDB) and in consultation with the Operations Committee, the American Job Centers (AJC) Job Seeker workgroup seeks to ensure an integrated, viable, physically and programmatically accessible workforce system for Tennesseans regardless of an individual's point of entry. To ensure accessibility and access for ALL Tennesseans, this workgroup is instituting a whole family approach, leveraging public-private partnerships and support from community and faith-based organizations, and state and local government.**

Tennessee has fully integrated child care services for low-income families enrolled and in compliance with the Supplemental Nutrition Assistance Program Employment and Training (SNAP E&T) Program through a collaboration with Child Care Services, SNAP, and the Tennessee Department of Labor and Workforce Development (TDLWD). These partners designed and managed a plan to maximize the delivery and availability of safe and stable child care services that assist families seeking to become independent from public assistance while parent(s) are either working or attending job training or educational programs in order to achieve self-sufficiency. This Two-Generation initiative seeks to redesign child care service delivery to better meet the needs of families and children and help access opportunities to increase their financial security, education and skills, social capital, and health and well-being. Families First, the state's Temporary Assistance for Needy Families (TANF) program, is a workforce development and employment program under the Lead Agency. It is temporary and has a primary focus for gaining self-sufficiency through employment. The Families First program supports participants achieving this goal by providing transportation, child care payment assistance, education, job training, employment activities, and other support services. Temporary cash assistance is also provided to families with dependent children when at least one parent is incapacitated, unemployed, deceased, or absent from the home, and the family is unable to pay for essential living expenses. By providing continuity of care for a child, we are enabling that child to remain in a stable environment, which will better prepare them for school and ongoing educational success. Stable child care is critical to strengthening the ability of parents and caregivers to go to work, improve their prospects in the job

market, and increase earning potential crucial to self-sufficiency.

The Lead Agency established the Smart Steps Child Care Payment Assistance program to offer support and access to quality child care for working families and those pursuing post-secondary educational goals allowing the Lead Agency to apply Two-Generation approaches in alignment with its commitment to creating cycles of success. Smart Steps aligns with Office of Child Care priorities for increasing access to quality child care services. This supports eligible families with child care financial assistance to foster self-sufficiency and promote children's learning and development in quality early care and educational programs.

In January 2022, the Lead Agency implemented the Re-Employment Services and Eligibility Assessment (RESEA) child care assistance category of care in partnership with TDLWD to support participants who referred by TDLWD and currently unemployed and actively engaged in job search activities.

- g. State/Territory agency responsible for public education, including pre-Kindergarten. Describe the coordination and results of the coordination: **The Lead Agency regularly meets with the Tennessee Department of Education (TDOE) to strengthen supports for children and families and alignment of early learning and Pre-K and Kindergarten standards.**

Engagement between TDOE and the Lead Agency offer opportunities for discussion, brainstorming, and coordination for potential services that may be needed to support children's early learning and development. This collaboration strengthens early care and education by cultivating a system of understanding and communication that connects quality child care programs, school readiness, and positive outcomes.

Coordination with TDOE supports transformation activities by the Lead Agency to revolutionize the child care industry with a focus on improving quality, increasing access, and creating opportunities that make doing business with the State of Tennessee an easier process. Understanding the needs of the community and those who are directly impacted, TDHS engaged all stakeholders, inclusive of advisory councils, child care providers, families, partner State agencies and advocacy groups in defining priorities as development of strategies to achieve these goals were implemented. Initiatives are organized into three categories:

- Supporting families through access to child care payment assistance, with a focus on family-friendly policies and strengthened communication for consumer education.
- Strengthening child care providers through financial stabilization, business tools, quality supports and resources for sustainability, and increased professional development opportunities.
- Growing capacity of child care providers statewide through strategic partnerships, grant opportunities, and technical assistance. TDHS is focused on engaging Tennessee employers to invest in their workforce through innovative child care strategies.

- h. State/Territory agency responsible for child care licensing. Describe the coordination and

results of the coordination: **The Lead Agency is responsible for licensing child care provider in Tennessee.**

- i. State/Territory agency responsible for the Child and Adult Care Food Program (CACFP) and other relevant nutrition programs. Describe the coordination and results of the coordination: **The Tennessee Department of Human Services (TDHS), as CCDF Lead Agency, also administers the Child and Adult Care Food Program (CACFP), Summer Food Service Program (SFSP), and Supplemental Nutrition Assistance Program (SNAP). Tennessee has fully integrated child care services for low-income families enrolled and in compliance with the Supplemental Nutrition Assistance Program Employment and Training (SNAP E&T) Program through a collaboration with the Lead Agency Child Care Payment Assistance/Certificate Program, SNAP, and the Tennessee Department of Labor and Workforce Development (TDLWD).**

Lead Agency program management partners with CACFP and SFSP to provide a bridge for child care providers that offer afterschool snack and meal options for children from at-risk environments. The Lead Agency promotes good nutrition and physical activity among child care providers, including those enrolled in CACFP, and encourages participation among eligible child care providers as a demonstration of its commitment to promoting early childhood environments that are safe, health, and educationally rich.

Coordination with CACFP, SFSP, SNAP, and TDLWD supports transformation activities by the Lead Agency to revolutionize the child care industry with a focus on improving quality, increasing access, and creating opportunities that make doing business with the State of Tennessee an easier process. Understanding the needs of the community and those who are directly impacted, TDHS engaged all stakeholders, inclusive of advisory councils, child care providers, families, partner State agencies and advocacy groups in defining priorities as development of strategies to achieve these goals were implemented. Initiatives are organized into three categories:

- Supporting families through access to child care payment assistance, with a focus on family-friendly policies and strengthened communication for consumer education.
- Strengthening child care providers through financial stabilization, business tools, quality supports and resources for sustainability, and increased professional development opportunities.
- Growing capacity of child care providers statewide through strategic partnerships, grant opportunities, and technical assistance. TDHS is focused on engaging Tennessee employers to invest in their workforce through innovative child care strategies.

- j. McKinney-Vento State coordinators for homeless education and other agencies providing services for children experiencing homelessness and, to the extent practicable, local McKinney-Vento liaisons. Describe the coordination and results of the coordination: **The Tennessee Department of Human Services (TDHS), as CCDF Lead Agency, administers the Community Services Block Grant (CSBG) through a network of 20 local Community Action Agencies (CAAs) that outreach to all 95 counties in Tennessee. The Tennessee Department of Education (TDOE) administers the McKinney-Vento Homeless Education Grant Program and the state's liaison to the National Center for Homeless Education.**

The Lead Agency engages and coordinates with TDOE and CAAs through the Tennessee Association of Community Action (TACA) to collect and share data on families with children (ages birth to 5 years) experiencing homelessness as defined at section 725 of Subtitle VII-B of the McKinney-Vento Act (42 U.S.C. 11434a). CAAs assess community needs and resources, establish priorities, determine strategies to address local poverty issues, and in partnership with community organizations, deliver a broad range of comprehensive services to create economic opportunity and have a measurable impact in the lives of those in our communities.

The Lead Agency also leverages Family Engagement Quality Coaches from the Tennessee Child Care Resource & Referral Network (CCR&R) to provide outreach services to families experiencing homelessness by implementing strategies to increase networks for families through supportive cross-sector collaborations.

Coordination with CSBG, its network of CAAs, TACA, and TDOE supports transformation activities by the Lead Agency to revolutionize the child care industry with a focus on improving quality, increasing access, and creating opportunities that make doing business with the State of Tennessee an easier process. Understanding the needs of the community and those who are directly impacted, TDHS engaged all stakeholders, inclusive of advisory councils, child care providers, families, partner State agencies and advocacy groups in defining priorities as development of strategies to achieve these goals were implemented. Initiatives are organized into three categories:

- Supporting families through access to child care payment assistance, with a focus on family-friendly policies and strengthened communication for consumer education.
- Strengthening child care providers through financial stabilization, business tools, quality supports and resources for sustainability, and increased professional development opportunities.
- Growing capacity of child care providers statewide through strategic partnerships, grant opportunities, and technical assistance. TDHS is focused on engaging Tennessee employers to invest in their workforce through innovative child care strategies.

- k. State/Territory agency responsible for the TANF program. Describe the coordination and results of the coordination: **The Lead Agency also administers TANF with a goal to improve service delivery and provide consumer education to TANF recipients. Lead Agency Child Care Payment Assistance/Certificate Program and Family Assistance staff working in local Lead Agency offices administer child care services for eligible families.**
- l. State/Territory agency responsible for Medicaid and the State Children’s Health Insurance Program. Describe the coordination and results of the coordination: **The Lead Agency engages and consults with TennCare, the state agency that administers both TennCare, the state’s Medicaid program, and CoverKids, the state’s Child Care Health Insurance program to ensure current information and resources are available for families, child care providers, and the general public at the Lead Agency website.**

The Lead Agency shares and makes available information about CoverKids to families and

children receiving child care services and through the Child Care Payment Assistance/Certificate Program. Consumer education services are provided by the Lead Agency and its CCDF Quality Child Care Partners, including the Tennessee Child Care Resource and Referral Network (CCR&R), community outreach, family engagement, and consumer education publications and websites.

This coordination supports transformation activities by the Lead Agency to revolutionize the child care industry with a focus on improving quality, increasing access, and creating opportunities that make doing business with the State of Tennessee an easier process. Understanding the needs of the community and those who are directly impacted, TDHS engaged all stakeholders, inclusive of advisory councils, child care providers, families, partner State agencies and advocacy groups in defining priorities as development of strategies to achieve these goals were implemented. Initiatives are organized into three categories:

- Supporting families through access to child care payment assistance, with a focus on family-friendly policies and strengthened communication for consumer education.
- Strengthening child care providers through financial stabilization, business tools, quality supports and resources for sustainability, and increased professional development opportunities.
- Growing capacity of child care providers statewide through strategic partnerships, grant opportunities, and technical assistance. TDHS is focused on engaging Tennessee employers to invest in their workforce through innovative child care strategies.

- m. State/Territory agency responsible for mental health services. Describe the coordination and results of the coordination: **The Lead Agency is among a collaborative network of participants working with the Tennessee Commission on Children and Youth (TCCY) to support specific goals through the Resilient Tennessee Collaborative: Building Strong Brains which continues the Building Strong Foundations for Families project originally funded through a grant from ZERO TO THREE focusing on infant and early childhood mental health practices, strengthening Tennessee’s comprehensive early childhood system, and connecting families to services.**

This coordination with the network of agencies and organizations collaborating with TCCY supports transformation activities by the Lead Agency to revolutionize the child care industry with a focus on improving quality, increasing access, and creating opportunities that make doing business with the State of Tennessee an easier process. Understanding the needs of the community and those who are directly impacted, TDHS engaged all stakeholders, inclusive of advisory councils, child care providers, families, partner State agencies and advocacy groups in defining priorities as development of strategies to achieve these goals were implemented. Initiatives are organized into three categories:

- Supporting families through access to child care payment assistance, with a focus on family-friendly policies and strengthened communication for consumer education.
- Strengthening child care providers through financial stabilization, business tools, quality

supports and resources for sustainability, and increased professional development opportunities.

- Growing capacity of child care providers statewide through strategic partnerships, grant opportunities, and technical assistance. TDHS is focused on engaging Tennessee employers to invest in their workforce through innovative child care strategies

Through its CCDF Quality Child Care Partners, the Lead Agency promotes the goals of the collaborative network of TCCY among the early care and education workforce through classroom modeling best practices and use of such resources as the Pyramid Model developed by the Center on Social and Emotional Foundations for Early Learning, Conscious Discipline, and Building Strong Brains, Adverse Childhood Experiences (ACEs), and Trauma-Informed Care.

Information and supports relating to social emotional and behavioral health with families, the general public, and child care providers are shared by the Lead Agency and through programs and services delivered through its CCDF Quality Child Care Partners, including the Tennessee Child Care Resource & Referral Network (CCR&R) and the Association of Infant Mental Health Tennessee (AIMHITN). CCR&R also liaises with and facilitates connections and referrals to the Tennessee Early Intervention System (TEIS) and Tennessee Department of Disability and Aging (TDDA) for children up to age three (3) to expedite assessments and home-based therapies; and to the Tennessee Department of Education (TDOE) for children ages three (3) through five (5) to support smooth transitions between early care and kindergarten.

- n. Child care resource and referral agencies, child care consumer education organizations, and providers of early childhood education training and professional development. Describe the coordination and results of the coordination: **The Lead Agency coordinates early care and education programs and services statewide in collaboration with its CCDF Quality Child Care Partners, including the Association of Infant Mental Health in Tennessee (AIMHITN), Community Foundation of Middle Tennessee (CFMT), Tennessee Child Care Resource & Referral Network (CCR&R), Tennessee Early Childhood Training Alliance (TECTA), and University of Tennessee Social Work Office of Research and Public Services (SWORPS) to improve the quality of child care services for families, children, and the child care workforce.**

Coordination with CCR&R and the CCDF Quality Child Care Partners supports transformation activities by the Lead Agency to revolutionize the child care industry with a focus on improving quality, increasing access, and creating opportunities that make doing business with the State of Tennessee an easier process. Understanding the needs of the community and those who are directly impacted, TDHS engaged all stakeholders, inclusive of advisory councils, child care providers, families, partner State agencies and advocacy groups in defining priorities as development of strategies to achieve these goals were implemented. Initiatives are organized into three categories:

- Supporting families through access to child care payment assistance, with a focus on family-friendly policies and strengthened communication for consumer education.

- Strengthening child care providers through financial stabilization, business tools, quality supports and resources for sustainability, and increased professional development opportunities.

- Growing capacity of child care providers statewide through strategic partnerships, grant opportunities, and technical assistance. TDHS is focused on engaging Tennessee employers to invest in their workforce through innovative child care strategies.

- o. Statewide afterschool network or other coordinating entity for out-of-school time care (if applicable). Describe the coordination and results of the coordination: **The Lead Agency coordinates early care and education services statewide for school-age children in collaboration with the Child and Adult Food Program (CACFP), Summer Food Service Program (SFSP), and Tennessee Afterschool Network to improve the quality of child care services for families, children, and the child care workforce. The Lead Agency also maintains working relationships with several child care provider groups to coordinate services to support families with out-of-school care, including the Tennessee Head Start Association, Tennessee Association for Children’s Early Education, and ChildCareNashville.com. Tennessee Early Childhood Training Alliance (TECTA) at Tennessee State University convenes a Summer Research Institute annually featuring research-based content on relevant Early Childhood Education/Child Development topics as well as a School-Age Summer Research Conference in collaboration with the Tennessee Afterschool Network emphasizing School-Age Development and quality program standards.**

Coordination with Tennessee Afterschool Network, CACFP, SFSP, and other working partnerships supports transformation activities by the Lead Agency to revolutionize the child care industry with a focus on improving quality, increasing access, and creating opportunities that make doing business with the State of Tennessee an easier process. Understanding the needs of the community and those who are directly impacted, TDHS engaged all stakeholders, inclusive of advisory councils, child care providers, families, partner State agencies and advocacy groups in defining priorities as development of strategies to achieve these goals were implemented. Initiatives are organized into three categories:

- Supporting families through access to child care payment assistance, with a focus on family-friendly policies and strengthened communication for consumer education.

- Strengthening child care providers through financial stabilization, business tools, quality supports and resources for sustainability, and increased professional development opportunities.

- Growing capacity of child care providers statewide through strategic partnerships, grant opportunities, and technical assistance. TDHS is focused on engaging Tennessee employers to invest in their workforce through innovative child care strategies.

- p. Agency responsible for emergency management and response. Describe the coordination and results of the coordination: **The Lead Agency coordinates statewide emergency responses and communications for early care and education in collaboration with the Tennessee Emergency Management Agency (TEMA) in support of the Tennessee**

Comprehensive Emergency Management Plan. The Lead Agency coordinates support for child care providers and assures the provision of safe and healthy child care alternatives for families during and after a disaster or emergency.

The Lead Agency developed its Child Care Services Emergency Preparedness Plan in consultation with TEMA and the Tennessee Young Child Wellness Council (TNYCWC), the designated state advisory council on early childhood care and education, to mitigate the impact of an emergency, develop capacity to respond to disasters, and assist families and child care programs with returning to a normalcy during recovery. The Lead Agency also participates in the Tennessee Children in Disaster Task Force, including TEMA, the Tennessee Department of Health (TDH), Tennessee Department of Education (TDOE), Association of Infant Mental Health in Tennessee (AIMHITN), Tennessee Child Care Resource & Referral Network (CCR&R), Tennessee Early Childhood Training Alliance (TECTA), and other public, nonprofit, and institutional partners to provide emergency preparedness and response training and awareness for child care providers statewide.

Close coordination critically supports and facilitates the continuity of care for a child, in preparation for, during, and in response and recovery to a disaster or emergency enabling a child to remain in a safe and healthy environment. These relationships support transformation activities by the Lead Agency to revolutionize the child care industry with a focus on improving quality, increasing access, and creating opportunities that make doing business with the State of Tennessee an easier process. Understanding the needs of the community and those who are directly impacted, TDHS engaged all stakeholders, inclusive of advisory councils, child care providers, families, partner State agencies and advocacy groups in defining priorities as development of strategies to achieve these goals were implemented. Initiatives are organized into three categories:

- Supporting families through access to child care payment assistance, with a focus on family-friendly policies and strengthened communication for consumer education.
- Strengthening child care providers through financial stabilization, business tools, quality supports and resources for sustainability, and increased professional development opportunities.
- Growing capacity of child care providers statewide through strategic partnerships, grant opportunities, and technical assistance. TDHS is focused on engaging Tennessee employers to invest in their workforce through innovative child care strategies.

q. The following are examples of optional partners a Lead Agency might coordinate with to provide services. Check which optional partners the Lead Agency coordinates with and describe the coordination and results of the coordination.

- i. ☒ State/Territory/local agencies with Early Head Start – Child Care Partnership grants. Describe: **The Lead Agency coordinates early care and education services through multiple Early Head Start Child Care Partnership statewide. As required by Early Head Start Child Care Partnership grant guidelines, the Lead Agency provides support by maintaining 25% subsidized slots for each approved Early Head Start classroom. Reimbursement rates are based on each provider’s Quality Rating Improvement System annual score card. The Lead Agency also maintains a**

relationship and coordinates activities with the Tennessee Head Start Association.

- ii. ☒ State/Territory institutions for higher education, including community colleges. Describe: **The Lead Agency maintains extensive partnership with Tennessee State University (TSU) and the University of Tennessee to support early care and education services for children and families statewide, including the introduction of a Registered Apprenticeship Program administered by TSU. The Lead Agency provides financial assistance for students enrolled in early childhood education programs at institutions of higher education that compliment other state initiatives, e.g., TNPromise and TNReconnect. The Lead Agency additionally collaborates through its partnerships with universities, community colleges, and colleges of applied technology as institutions of higher education coordinated by the Tennessee Higher Education Commission to facilitate the development of articulation and accreditation planning to support the early childhood workforce in Tennessee.**
- iii. ☐ Other federal, State, local, and/or private agencies providing early childhood and school-age/youth-serving developmental services. Describe:
- iv. ☒ State/Territory agency responsible for implementing the Maternal, Infant, and Early Childhood Home Visiting (MIECHV) programs grant. Describe: **The Lead Agency maintains multiple collaborative partnerships with the Tennessee Department of Health (TDH), the state agency responsible for implementing MIECHV, to explore opportunities to cross promote priority initiatives of the Lead Agency and TDH.**
- v. ☒ Agency responsible for Early and Periodic Screening, Diagnostic, and Treatment Program. Describe: **The Lead Agency maintains multiple collaborative partnerships with the Tennessee Department of Health (TDH), the state agency responsible for Early and Periodic Screening, Diagnostic, and Treatment Program. Lead Agency and TDH staff participate in recurring meetings to coordinate, brainstorm, and assess current and potential service need to strengthen support of children's early learning and development and implementation of Building a Thriving Tennessee: A Two-Generation (2Gen) Approach to family supports.**
- vi. ☒ State/Territory agency responsible for child welfare. Describe: **The Lead Agency coordinates with the Tennessee Department of Children's Services (TDCS) allowing TDCS to make direct arrangements with the Lead Agency for child care payment assistance for children in foster care or protective services. The Lead Agency is granted limited access to the Child Abuse Registry maintained by TDCS for purposes of completing in-state abuse registry checks on prospective child care staff. TDCS and the Lead Agency also work collaboratively to investigate reports of imminent risk or allegations of child abuse and/or neglect, including serious injuries and/or fatalities.**
- vii. ☒ Child care provider groups or associations. Describe: **The Lead Agency coordinates with the Tennessee Department of Children's Services (TDCS) allowing TDCS to make direct arrangements with the Lead Agency for child care payment assistance for children in foster care or protective services. The Lead Agency is granted limited access to the Child Abuse Registry maintained by TDCS for purposes of completing in-state abuse registry checks on prospective child**

care staff. TDCS and the Lead Agency also work collaboratively to investigate reports of imminent risk or allegations of child abuse and/or neglect, including serious injuries and/or fatalities.

- viii. ☐ Parent groups or organizations. Describe:
- ix. ☐ Title IV B 21st Century Community Learning Center Coordinators. Describe:
- x. ☒ Other. Describe: **The Lead Agency also serves on the State Interagency Coordinating Council (SICC) for the Tennessee Early Intervention System (TEIS), a voluntary program that offers therapy and other services to infants and young children with development delays or disabilities. The SICC for TEIS has established a guiding vision to support the Tennessee Department of Disability and Aging (TDDA) through a statewide comprehensive, coordinated, multidisciplinary, interagency system of early intervention services for infants and toddlers with disabilities and their families in Tennessee. This council is statutorily created and required by law.**

8.2 Optional Use of Combined Funds, CCDF Matching, and Maintenance-of-Effort Funds

Lead Agencies may combine CCDF funds with other Federal, State, and local child care and early childhood development programs, including those in 8.1.1. These programs include preschool programs, Tribal child care programs, and other early childhood programs, including those serving infants and toddlers with disabilities, children experiencing homelessness, and children in foster care.

Combining funds may include blending multiple funding streams, pooling funds, or layering funds from multiple funding streams to expand and/or enhance services for infants, toddlers, preschoolers, and school-age children and families to allow for the delivery of comprehensive quality care that meets the needs of children and families. For example, Lead Agencies may use multiple funding sources to offer grants or contracts to programs to deliver services; a Lead Agency may allow a county/local government to use coordinated funding streams; or policies may be in place that allow local programs to layer CCDF funds with additional funding sources to pay for full-day, full-year child care that meets Early Head Start/Head Start Program Performance Standards or State/Territory pre-Kindergarten requirements in addition to State/Territory child care licensing requirements.

As a reminder, CCDF funds may be used in collaborative efforts with Head Start and Early Head Start programs to provide comprehensive child care and development services for children who are eligible for both programs.

8.2.1 Combining funding for CCDF services

Does the Lead Agency combine funding for CCDF services with Title XX of the Social Services Block Grant (SSBG), Title IV B 21st Century Community Learning Center Funds, State-only child care funds, TANF direct funds for child care not transferred into CCDF, Title IV-B, IV-E funds, or other federal or State programs?

☐ No. (If no, skip to question 8.2.2)

☒ Yes.

- i. If yes, describe which funds you will combine. Combined funds may include, but

are not limited to:

☐ Title XX (Social Services Block Grant, SSBG)

☐ Title IV B 21st Century Community Learning Center Funds (Every Student Succeeds Act)

☐ State- or Territory-only child care funds

☐ TANF direct funds for child care not transferred into CCDF

☐ Title IV-B funds (Social Security Act)

☐ Title IV-E funds (Social Security Act)

☒ Other. Describe: **The Lead Agency leverages pooling to strengthen support for the early care and education system in Tennessee by combining Lead Agency funds with Maintenance of Effort (MOE) funds from the Tennessee Department of Education (TDOE) to further care for Pre-K children by offering wrap around child care support for working families.**

- ii. If yes, what does the Lead Agency use combined funds to support, such as extending the day or year of services available (i.e., full-day, full-year programming for working families), smoothing transitions for children, enhancing and aligning quality of services, linking comprehensive services to children in child care, or developing the supply of child care for vulnerable populations? **Please see response at 8.2.1.i.**

8.2.2 Funds used to meet CCDF matching and MOE requirements

Lead Agencies may use public funds and donated funds to meet CCDF match and maintenance of effort (matching MOE) requirements.

Note: Lead Agencies that use State pre-Kindergarten funds to meet matching requirements must check State pre-Kindergarten funds and public and/or private funds.

Use of private funds for match or maintenance-of-effort: Donated funds do not need to be under the administrative control of the Lead Agency to qualify as an expenditure for federal match. However, Lead Agencies must identify and designate in the State/Territory CCDF Plan the donated funds given to public or private entities to implement the CCDF child care program.

☐ Not applicable. The Lead Agency is a Territory (skip to 8.3.1).

- a. Does the Lead Agency use public funds to meet match requirements?

☒ Yes. If yes, describe which funds are used: **State General Fund and lottery funds.**

☐ No.

- b. Does the Lead Agency use donated funds to meet match requirements?

☐ Yes. If yes, identify the entity(ies) designated to receive donated funds:

- i. ☐ Donated directly to the state.

- ii. ☐ Donated to a separate entity(ies) designated to receive donated funds. If checked, identify the name, address, contact, and type of entities designated to receive private donated funds:

☒ No.

- c. Does the Lead Agency certify that, if State expenditures for pre-Kindergarten programs are used to meet the MOE requirements, the following is true:

- The Lead Agency did not reduce its level of effort in full-day/full-year child care services.
- The Lead Agency ensures that pre-Kindergarten programs meet the needs of working parents.
- The estimated percentage of the MOE requirement that will be met with pre-Kindergarten expenditures (does not to exceed 20 percent).
- If the percentage is more than 10 percent of the MOE requirement, the State will coordinate its pre-Kindergarten and child care services to expand the availability of child care.

Public pre-Kindergarten funds may also serve as MOE funds as long as the State can describe how it will coordinate pre-Kindergarten and child care services to expand the availability of child care while using public pre-Kindergarten funds as no more than 20 percent of the State's MOE or 30 percent of its matching funds in a single fiscal year.

If expenditures for pre-Kindergarten services are used to meet the MOE requirement, does the Lead Agency certify that the State or Territory has not reduced its level of effort in full-day/full-year child care services?

☒ Yes.

☐ No. If no, describe:

8.3 Coordination with Child Care Resource and Referral Systems

Lead Agencies may use CCDF funds to establish or support a system or network of local or regional child care resource and referral (CCR&R) organizations that is coordinated, to the extent determined by the Lead Agency, by a statewide public or private non-profit, community-based or regionally based, lead child care resource and referral organization (such as a statewide CCR&R network).

If Lead Agencies use CCDF funds for local CCR&R organizations, the local or regional CCR&R organizations supported by those funds must, at the direction of the Lead Agency:

- Provide parents in the State with consumer education information concerning the full range of child care options (including faith-based and community-based child care providers), analyzed by provider, including child care provided during non-traditional hours and through emergency child care centers, in their area.
- To the extent practicable, work directly with families who receive assistance to offer the families support and assistance to make an informed decision about which child care providers they will use to ensure that the families are enrolling their children in the most appropriate child care setting that suits their needs and one that is of high quality (as determined by the Lead Agency).
- Collect data and provide information on the coordination of services and supports, including services under Part B, Section 619 and Part C of the Individuals with Disabilities Education Act.

- Collect data and provide information on the supply of and demand for child care services in areas of the State and submit the information to the Lead Agency.
- Work to establish partnerships with public agencies and private entities, including faith-based and community-based child care providers, to increase the supply and quality of child care services in the State and, as appropriate, coordinate their activities with the activities of the Lead Agency and local agencies that administer funds made available through CCDF.

8.3.1 Funding a system or network of CCR&R organization(s)

Does the Lead Agency fund a system or network of local or regional CCR&R organization(s)?

☐ No. The Lead Agency does not fund a system or network of local or regional CCR&R organization(s) and has no plans to establish one.

☐ No, but the Lead Agency has plans to develop a system or network of local or regional CCR&R organization(s).

☒ Yes. The Lead Agency funds a system or network of local or regional CCR&R organization(s) with all the responsibilities outlined above. If yes, describe the activities outlined above carried out by the CCR&R organization(s), as directed by the Lead Agency: **The Lead Agency partners with Signal Centers, Inc. to manage the Tennessee Child Care Resource and Referral Network (CCR&R), a network of child care resource and referral agencies serving Tennessee across eight (8) geographic areas and offering free services to families, the early care and education workforce, child care providers licensed by the Lead Agency, and child care providers participating in the Child Care Payment Assistance/Certificate Program.**

Through its statement team of quality coaches, CCR&R offers and implements a scope of services to improve the overall quality of child care, strengthen the training and technical assistance system for the state, and assure quality and consistent practices through the provision of services by quality coaches who directly support families and child care providers. CCR&R quality coaches maintain a specialization in one or more of many areas, including:

- Early Childhood
- Early Language and Literacy
- Emergency Preparedness and Response
- Family Child Care
- Family Engagement
- Health, Safety, and Supervision
- Inclusion
- Infant and Toddler Care
- Quality Rating and Improvement
- Small Business
- Technology

As directed by the Lead Agency, CCR&R offers families consumer information to identify and better understand the components of high-quality child care as well as answer questions about child care providers in their geographic areas. CCR&R assists families, especially those among vulnerable and underserved populations, with identifying and

accessing local services and collaborates with local community-based organizations to engage with and support the education of families and the general community about high-quality child care. CCR&R works closely with the Lead Agency to identify and implement strategies to increase outreach and services benefiting homeless populations.

CCR&R works with families who receive child care payment assistance with making informed decisions when selecting a child care provider.

CCR&R offers child care providers licensed by the Lead Agency coaching and technical assistance, training, consultation, and supporting materials and resources on topics that include developmentally appropriate practices, health and safety issues, parent engagement, social emotional and behavioral health, and best practices across related themes.

CCR&R coordinates with the Lead Agency to establish criteria and an intake system that may determine eligibility for potential Child Care Payment Assistance/Certificate Program bonus payment rates and incentives. CCR&R assists parents and families as may be requested by the Lead Agency with navigating available resources and services as well as strengthening the understanding of parents and families of rights and advocacy for the needs of their children. Referral lists of child care providers by geographic service area that enroll children with disabilities by CCR&R to better assist families seeking child care specific to a child's needs. CCR&R also promotes and offers support for child care providers with program inclusion for children with disabilities or on-site consultation problem-solving child care and other health issues, including evaluation for adaptive equipment and/or technology needs. Through on-site coaching, CCR&R works with child care providers to ensure children with disabilities receive safe, high-quality care and appropriate accommodations through the use of Inclusion Coaching Plans, individualized blueprints for educators to follow that further ensure children in the classroom have sufficient learning opportunities, activities, and materials. Inclusion Coaching Plans identify strategies for providing meaningful care and education and are opportunities for educators and families to work together in support of all children participating in activities and building relationships with their peers.

The Lead Agency coordinates with its CCDF Quality Child Care Partners, including CCR&R, to strengthen and improve data to ensure adequate supply of child care exists to sufficiently satisfy demand. CCR&R conducts or participates in outreach and awareness initiatives in collaboration with the Lead Agency and other partners on such topics as quality child care, accessibility, etc.

CCR&R supports a system of high-quality early care and education for children in Tennessee as directed by the Lead Agency, and providing quality resources, consistent practices, and support for child care agencies that include expertise, training, and technical assistance. CCR&R delivers prioritized targeted coaching in response to referrals from the Lead Agency and partnering CCDF Quality Child Care Partners and supports the development of continuous quality improvement plans by child care providers. Creating small business academies to support, strengthen, and improve small business practices among child care providers is a key strategy to develop relationships and establish partnerships across Tennessee communities.

CCR&R emphasizes maintaining consistency in services in the areas of health and safety; infant/toddler best practices; family and group child care; center-based childcare; and school-age child care. Services must reflect developmentally appropriate practices around core areas such as: supervision, child guidance, parent engagement/child care consumer education information, child outcomes and kindergarten readiness. Continuous Quality Improvement Plans form the frame work for technical assistance to agencies requiring identification of agency needs, resources needed, assignment of CCR&R staff and other resources within a timeline and required support from the administration of the child care provider.

CCR&R maintains a Tennessee Child Care Provider Training (TN-CCPT) course catalog of over 200 trainings recognized as approved through TrainTN, the Lead Agency's official clearinghouse for early childhood trainings. Examples of TN-CCPT training titles include:

- Building Brains: The Brain Architecture Game
- Conscious Discipline: Using Encouragement
- Creating Interest Areas in the Preschool Classroom
- Emergency Preparedness (Survival Preparation for Fire, Earthquake, Severe Storm/Tornado, Nuclear Accident/Bomb Threat/Terrorist Act, Evacuation Drills, When to Call an Ambulance, First Aid Kits H&S Modules)
- Infectious Disease Control - Understanding the Spread of Infectious Disease in Child Care
- Frugal Finds for Engaging Minds: STEM in Action
- Kindergarten Here We Come
- Pillars of Positive Solutions For Families: Preventing Challenging Behaviors
- Putting the "A" in STEM: How Creative Art produces STEAM learning
- Ramps and Pathways: Physical Science
- Reading Books w/ Infants & Toddlers
- Sudden Infant Death Syndrome (Promoting Healthy and Safe Sleep in Child Care. First Candle, Healthy Child Care America Training Manual H&S Modules)
- Understanding Free Play

The Tennessee Family Child Care Network (TFCCN), a statewide network that provides a system of supports for family and group home providers subject to licensure by the Lead Agency, is also administered by CCR&R. TFCCN continues to strengthen the effectiveness of peer-to-peer mentoring through continued relationship-building and coaching to assure success in the application of knowledge and skills. TFCCN advocates for continuing education and professional development that further empowers and supports licensed family child care providers delivery of high-quality care. TFCCN supports family child care providers with meeting requirements for the Family Child Care Child Development Associate® (CDA) Credential. Early childhood professionals may receive guidance observation visits of demonstration sites facilitated by CCR&R where standards and best practices may be observed in practice.

8.4 Public-Private Partnerships

Lead Agencies must demonstrate how they encourage partnerships among other public agencies, Tribal organizations, private entities, faith-based organizations, businesses, or organizations that promote business involvement, and/or community-based organizations to leverage existing

service delivery (i.e., cooperative agreement among providers to pool resources to pay for shared fixed costs and operation) to leverage existing child care and early education service delivery systems and to increase the supply and quality of child care services for children younger than age 13.

8.4.1 Lead Agency public-private partnerships

Identify and describe any public-private partnerships encouraged by the Lead Agency to leverage public and private resources to further the goals of CCDF: **The Lead Agency partners with The Community Foundation of Middle Tennessee (CFMT) to identify, cultivate, and facilitate national, state, and local business partners and suppliers to offer negotiated price reductions and competitive pricing for resources meaningful to the operation of high-quality child care services. The Lead Agency recognizes that these and other opportunities enable child care providers to realize greater cost savings on products and services regularly used to deliver high-quality child care. CFMT also administers a voluntary registration process for providers of substitute educator services on behalf of the Lead Agency, to facilitate and strengthen the availability of qualified substitute educators for child care providers licensed by the Lead Agency.**

The Lead Agency is implementing pilot partnerships with public/government and non-profit organizations to develop and establish locally managed child care administrative hubs that support a network of newly licensed child care providers through its Community Child Care Hub Grants pilot program. This pilot program is intended to increase licensed capacity in child care deserts and for historically underserved populations; low administrative costs to lessen financial burdens on families; and deliver care that is safe, health, and educationally rich. Current partners with the Lead Agency include Chambliss Center for Children, Porter-Leath, and St. Mary Villa Child Development Center.

The Lead Agency is investing state dollars to grow child care capacity and access in Tennessee through its Non-Profit/Employer Workforce (NEW) Care Partnership Grant pilot program. The pilot program supports partnerships between non-profit organizations and private employers to design and implement strategies that create child care access and capacity to serve the employer's workforce. The NEW Care Partnership pilot seeks to increase licensed capacity particularly in child care deserts and for historically underserved populations; improve financial sustainability of child care providers by leveraging private partnerships; and promote care that is safe, healthy, and educationally rich.

The Lead Agency also serves on the State Interagency Coordinating Council (SICC) for the Tennessee Early Intervention System (TEIS), a voluntary program that offers therapy and other services to infants and young children with development delays or disabilities. The SICC for TEIS has established a guiding vision to support the Tennessee Department of Disability and Aging (TDDA) through a statewide comprehensive, coordinated, multidisciplinary, interagency system of early intervention services for infants and toddlers with disabilities and their families in Tennessee. This council is statutorily created and required by law.

The Lead Agency coordinates with the Tennessee Department of Children's Services (TDCS) allowing TDCS to make direct arrangements with the Lead Agency for child care payment assistance for children in foster care or protective services. The Lead Agency is granted limited access to the Child Abuse Registry maintained by TDCS for purposes of completing in-state abuse

registry checks on prospective child care staff. The Lead Agency serves on Tennessee's Community-Based Child Abuse Prevention (CBCAP) board administered by TDCS.

The Lead Agency partners with the Tennessee Department of Economic and Community Development (TNECD) to support improving and expanding child care services licensed by the Lead Agency with emphasis on early care and education and industry partnerships. The Lead Agency is focused on engaging Tennessee employers to invest in their workforce through innovative care strategies. These strategies include a web of resources and supports that can be tailored to fit the diverse needs of employers interested in establishing child care incentives for their employees. Child care partnerships between the public and private sectors can take many forms to best meet the needs of employers, employees, and communities, and the Lead Agency is facilitating its support for employer-led efforts that bolster and expand Tennessee's child care system.

The Lead Agency continues implementing relationship-building and engagement through activities that include community stakeholder meetings, informational sessions, marketing and communications materials, and participation in local child care task forces. Since July 2021, the Lead Agency has engaged in outreach activities with over 200 organizations, including employers, local governments, chambers of commerce, other state agencies, and economic development districts.

The Lead Agency facilitates access for Tennessee Department of Education (TDOE) staff to the eLicensing documentation system to record data about child care providers regulated by TDOE. This partnership enables information about these providers to be available for parents and the general public through the Lead Agency's Child Care Locator at <https://www.tn.gov/humanservices/for-families/child-care-services/find-child-care.html>.

The Lead Agency collaborates with the Tennessee Department of Health (TDH) regarding provider, parent, and general consumer education focused on safe sleep practices and preventing SIDS. Raising awareness of parents and providers about safe sleep practices aligns with the Office of Child Care priorities to support child health and safety and aligns with a focus on enhancing the quality of services available for infant populations.

8.5 Disaster Preparedness and Response Plan

Lead Agencies must establish a Statewide Child Care Disaster Plan and demonstrate how they will address the needs of children—including the need for safe child care before, during, and after a state of emergency declared by the Governor or a major disaster or emergency (as defined by Section 102 of the Robert T. Stafford Disaster Relief and Emergency Assistance Act, 42 U.S.C. 5122)—through a Statewide Disaster Plan.

8.5.1 Statewide Disaster Plan updates

- a. When was the Lead Agency's Child Care Disaster Plan most recently updated and for what reason? **The Lead Agency revised its Child Care Services Emergency Preparedness Plan to reflect changes to staff reorganization, information systems modernization, and supporting resources in December 2023. The Lead Agency reviews its Child Care Services Emergency Preparedness Plan on a triennial basis.**
- b. Please certify compliance by checking the required elements the Lead Agency includes in

the current State Disaster Preparedness and Response Plan.

- i. The plan was developed in collaboration with the following required entities:
 - ☒ State human services agency.
 - ☒ State emergency management agency.
 - ☒ State licensing agency.
 - ☒ State health department or public health department.
 - ☒ Local and State child care resource and referral agencies.
 - ☒ State Advisory Council on Early Childhood Education and Care or similar coordinating body.
- ii. ☒ The plan includes guidelines for the continuation of child care subsidies.
- iii. ☒ The plan includes guidelines for the continuation of child care services.
- iv. ☒ The plan includes procedures for the coordination of post-disaster recovery of child care services.
- v. The plan contains requirements for all CCDF providers (both licensed and license-exempt) to have in place:
 - ☒ Procedures for evacuation.
 - ☒ Procedures for relocation.
 - ☒ Procedures for shelter-in-place.
 - ☒ Procedures for communication and reunification with families.
 - ☒ Procedures for continuity of operations.
 - ☒ Procedures for accommodations of infants and toddlers.
 - ☒ Procedures for accommodations of children with disabilities.
 - ☒ Procedures for accommodations of children with chronic medical conditions.
- vi. ☒ The plan contains procedures for staff and volunteer emergency preparedness training.
- vii. ☒ The plan contains procedures for staff and volunteer practice drills.
- viii. If any of the above are not checked, describe:
- ix. If available, provide the direct URL/website link to the website where the Statewide Child Care Disaster Plan is posted:
<https://www.tn.gov/humanservices/for-families/child-care-services/child-care-resources-for-providers/child-care-emergency-preparedness.html>

9 Family Outreach and Consumer Education

CCDF consumer education requirements facilitate parental choice in child care arrangements, support parents as child care consumers who need information to make informed choices regarding the services that best suit their family's needs, and the delivery of resources that can

support child development and well-being. Lead Agency consumer education activities must provide information for parents receiving CCDF assistance, the general public, and, when appropriate, child care providers. Lead Agencies should use targeted strategies for each group to ensure tailored consumer education information and take steps to ensure they are effectively reaching all individuals, including those with limited English proficiency and those with disabilities.

In this section, Lead Agencies address their consumer education practices, including details about their child care consumer education website, and the process for collecting and maintaining a record of parental complaints.

9.1 Parental Complaint Process

Lead Agencies must maintain a record of substantiated parental complaints against child care providers and make information regarding such complaints available to the public on request. Lead Agencies must also provide a detailed description of the hotline or similar reporting process for parents to submit complaints about child care providers; the process for substantiating complaints; the manner in which the Lead Agency maintains a record of substantiated parental complaints; and ways that the Lead Agency makes information on such parental complaints available to the public on request. Lead Agencies are not required to limit the complaint process to parents.

9.1.1 Parental complaint process

- a. Describe the Lead Agency’s hotline or similar reporting process through which parents can submit complaints about child care providers, including a link if it is a Web-based process: **Parents and the general public may submit complaints or report suspected licensing violations or illegal child operations to the Lead Agency by contacting the Tennessee Child Care Complaint Hotline by telephone at (800) 462-8261 or email at ChildCareHotline.DHS@tn.gov. Complaints may also be made in person at Lead Agency office locations.**

Complaints are typically received by the Lead Agency via dedicated sources, such as the Lead Agency’s Tennessee Child Care Complaint Hotline, Customer Service, Office of Inspector General, or other programs; and other state agencies, such as the Tennessee Department of Children’s Services (TDCS). The Lead Agency also accepts complaints from other sources. The Lead Agency receives complaints for CCDF and non-CCDF child care providers.

Lead Agency staff receiving the complaint will collect as much information as is available. A complainant will be asked for their name and contact information should additional information be needed; however, a complainant may choose to remain anonymous. The following information is desired, at a minimum: a) name and address of the child care provider; b) specific circumstances and details of the complaint; c) date and time of the alleged incident; d) full names of all staff and children involved; and e) the location of the alleged incident.

Lead Agency processes for screening, substantiating, and responding to complaints are defined by Tennessee Department of Human Services Policy 13.03 Receiving and Investigating Complaints at Child Care Agencies. All complaints received against child care

providers alleging violation of licensure rules and/or statute must be investigated for conclusion within 30 business days and in accordance with the determined risk level. Joint investigations with external agencies, e.g., Tennessee Department of Children's Services (TDCS), may require more than thirty business days to investigate. Additional detail may be found at 9.1.1.d.

- b. Describe how the parental complaint process ensures broad access to services for families that speak languages other than English: **The Lead Agency offers assistance through translation or interpretation services. The Lead Agency website features an interactive virtual agent configured to accommodate Arabic, Somali, and Spanish speakers. Customers may contact the Lead Agency through its One DHS telephone number at (833) 772-8347 (TDHS) and/or the TTY number at 711. Following a recorded message, customers will reach an operator who can facilitate an interpreter. Customer may also receive assistance at any local Lead Agency office. The Lead Agency hours of operation are Monday–Friday, from 8am to 4:30pm Central Time. Interpretation, translation, and disability services are free.**
- c. Describe how the parental complaint process ensures broad access to services for persons with disabilities: **The Lead Agency offers assistance through disability services. Customers may contact the Lead Agency through its One DHS telephone number at (833) 772-8347 (TDHS) and/or the TTY number at 711. Following a recorded message, customers will reach an operator who can facilitate additional support services. Customer may also receive assistance at any local Lead Agency office. The Lead Agency hours of operation are Monday–Friday, from 8am to 4:30pm Central Time. Interpretation, translation, and disability services are free.**
- d. For complaints about providers, including CCDF providers and non-CCDF providers, does the Lead Agency have a process and timeline for screening, substantiating, and responding to complaints, including information about whether the process includes monitoring?
[x] Yes. If yes, describe: Lead Agency processes for screening, substantiating, and responding to complaints are defined by Tennessee Department of Human Services Policy 13.03 Receiving and Investigating Complaints at Child Care Agencies. All complaints received against child care providers alleging violation of licensure rules and/or statute must be investigated within 30 business days and in accordance with the determined risk level. Joint investigations with external agencies, e.g., Tennessee Department of Children's Services (TDCS), may require more than thirty business days to investigate.

Complaints received for child care providers licensed by the Lead Agency are automatically assigned through eLicensing, the Lead Agency's case management system. Upon receipt of a complaint, assigned Lead Agency staff consult with supervisors to determine if additional information is needed to develop an appropriate investigative strategy, including timeframes for the investigation. An investigative work plan, when appropriate, may be completed to support the investigative strategy. All complaints alleging violation of Lead Agency licensure rules at Tenn. Comp. R. & Regs. 1240-04-01 require investigation.

- **Complaints alleging a fatality, imminent risk, actual harm or injury must be investigated the same day or within 24 hours and no later than the next business day. Complaints alleging abuse, neglect, or maltreatment as well as improper supervision, inappropriate**

discipline, or injury to a child are also referred to TDCS and may require the Lead Agency to implement a safety plan.

- Complaints alleging unlicensed and/or illegal operations must be investigated within 24 hours.
- Complaints alleging major rule violations or potential for future risk of harm must be investigated within five (5) business days.
- Complaints alleging minor licensing violations must be investigated within 10 business days.
- Complaint allegations determined not to be a violation of statute and/or rule are screened out.

Complaints received for license-exempt child care providers regulated by the Tennessee Department of Education (TDOE), including those that may participate in the Child Care Payment Assistance/Certificate Program, require investigation be initiated by TDOE no later than the next business day and investigation be completed within 10 business days. TDOE requires that complaint allegations relating to infants and toddlers are investigated within 24 hours. Joint investigation between TDOE and TDCS may require more than thirty (30) business days to investigate complaints alleging abuse, neglect, maltreatment, or serious injury.

Complaints alleging potential waste, fraud, or abuse by child care providers licensed by the Lead Agency and license-exempt providers participating in the Child Care Payment Assistance/Certificate Program are reviewed by the Lead Agency's Child Care Program Reliability and Compliance team to determine if a referral to the Office of Inspector General for investigation is necessary.

[] No.

- e. For substantiated parental complaints, who maintains the record for CCDF and non-CCDF providers? **The Lead Agency maintains an internal record of all complaints received for CCDF and non-CCDF providers, including those regulated by the Tennessee Department of Education (TDOE), in its electronic eLicensing documentation system.**
- f. Describe how information about substantiated parental complaints is made available to the public; this information can include the consumer education website discussed in subsection 9.2: **Monitoring visit results of child care providers regulated by the Tennessee Department of Education (TDOE) and Lead Agency staff are posted to the Lead Agency's consumer website, including monitoring that may be associated with a complaint, including observations of non-compliance and corrective action. The Lead Agency maintains an internal record of all complaints in its electronic eLicensing documentation system. Parents and/or the general public may inquire about complaints by telephone or email directly from the Lead Agency or Tennessee Department of Education (TDOE) staff with monitoring responsibility for a child care provider. Lead Agency or TDOE staff may provide a verbal account of the electronic record about the number of complaints, the type(s) of complaint, or whether a complaint was validated. There is no fee associated with making an inquiry. A more extensive public records request may also be requested in writing from TDOE or the Lead Agency's Public Information and Legislative Office (PILO). In this context, extensive generally refers to requests for entire case records, or requests for**

records for all programs in a specified county or region. In instances where the entire case record is requested, steps must be taken to ensure that any protected information is appropriately redacted.

9.2 Consumer Education Website

Lead Agencies must provide information to parents, the general public, and child care providers through a State or Territory website, which is consumer-friendly and easily accessible for families who speak languages other than English and persons with disabilities. The website must:

- Include information to assist families in understanding the Lead Agency's policies and procedures, including licensing child care providers;
- Include monitoring and inspection reports for each provider and, if available, the quality of each provider;
- Provide the aggregate number of deaths, serious injuries, and the number of cases of substantiated child abuse that have occurred in child care settings;
- Include contact information for local CCR&R organizations to help families access additional information on finding child care; and
- Include information on how parents can contact the Lead Agency and other organizations to better understand the information on the website.

9.2.1 Consumer-friendly website

Does the Lead Agency ensure that its consumer education website is consumer-friendly and easily accessible?

- Provide the URL for the Lead Agency's consumer education website homepage:
https://www.tn.gov/content/dam/tn/human-services/documents/Consumer_Education_Statement_4-24-21.pdf.
- Does the Lead Agency certify that the consumer education website ensures broad access to services for families who speak languages other than English?
[x] Yes.
[] No. If no, describe:
- Does the Lead Agency certify that the consumer education website ensures broad access to services for persons with disabilities?
[x] Yes.
[] No. If no, describe:

9.2.2 Additional consumer education website links

Provide the direct URL/website link for the following:

- Provide the direct URL/website link to how the Lead Agency licenses child care providers: **<https://www.tn.gov/humanservices/for-families/child-care-services/how-to-become-a-licensed-child-care-provider.html>**
- Provide the direct URL/website link to the processes for conducting monitoring

and inspections of child care providers:: <https://www.tn.gov/humanservices/for-families/child-care-services/child-care-resources-for-providers/child-care-provider-monitoring-and-inspections.html>

- iii. Provide the direct URL/website link to the policies and procedures related to criminal background checks for staff members of child care providers: <https://www.tn.gov/humanservices/for-families/child-care-services/background-checks-for-child-care-employees.html>
- iv. Provide the direct URL/website link to the offenses that prevent individuals from being employed by a child care provider: <https://www.tn.gov/humanservices/for-families/child-care-services/background-checks-for-child-care-employees/law--policy-and-excludable-charges.html>

9.2.3 Searchable list of providers

- a. The consumer education website must include a list of all licensed providers searchable by ZIP code.
 - i. Does the Lead Agency certify that the consumer education website includes a list of all licensed providers searchable by ZIP code?
 - ☒ Yes.
 - ☐ No. If no, describe:
 - ii. Provide the direct URL/website link to the list of child care providers searchable by ZIP code: https://onedhs.tn.gov/csp?id=tn_cc_prv_maps%20
 - iii. In addition to the licensed child care providers that must be included in the searchable list, are there additional providers included in the Lead Agency's searchable list of child care providers? Check all that apply:
 - ☒ License-exempt center-based CCDF providers.
 - ☐ License-exempt family child care CCDF providers.
 - ☐ License-exempt non-CCDF providers.
 - ☐ Relative CCDF child care providers.
 - ☐ Other (e.g., summer camps, public pre-Kindergarten). Describe:
- b. Identify what additional (optional) information, if any, is available in the searchable results by ZIP code. Check the box when information is provided.

Provider Information Available in Searchable Results					
	All licensed providers	License-exempt CCDF center-based providers	License-exempt CCDF family child care home providers	License-exempt non-CCDF providers	Relative CCDF providers

Contact information	☒	☒	☐	☒	☐
Enrollment capacity	☒	☒	☐	☒	☐
Hours, days, and months of operation	☒	☒	☐	☐	☐
Provider education and training	☒	☐	☐	☐	☐
Languages spoken by the caregiver	☐	☐	☐	☐	☐
Quality information	☒	☒	☐	☐	☐
Monitoring reports	☒	☒	☐	☐	☐
Willingness to accept CCDF certificates	☒	☒	☐	☒	☐
Ages of children served	☒	☒	☐	☒	☐
Specialization or training for certain populations	☐	☐	☐	☐	☐
Care provided during nontraditional hours	☒	☒	☐	☐	☐

- c. Identify any other information searchable on the consumer education website for the child care provider type listed below and then, if checked, describe the searchable information included on the website.
- i. ☒ All licensed providers. Describe: **In addition to the items identified at 9.2.3.b., consumers may also use the Lead Agency’s Child Care Locator to search by county, provider name, or location proximity. Searching by location proximity further allows consumers additional search options including by radius (in miles), type(s) of child care type (centers, drop-in centers, family or group homes), day(s) and hours of operation, quality rating, and if providers are wheelchair accessible, provide transportation, or participate in CCDF.**
 - ii. ☒ License-exempt CCDF center-based providers. Describe: **In addition to the items identified at 9.2.3.b., consumers may also use the Lead Agency’s Child Care Locator to search by county, provider name, or location proximity. Searching by location proximity further allows consumers additional search options including by radius (in miles), type(s) of child care type (centers, drop-in centers, family or group homes), day(s) and hours of operation, quality rating, and if providers are wheelchair accessible, provide transportation, or participate in CCDF.**
 - iii. ☐ License-exempt CCDF family child care providers. Describe:
 - iv. ☐ License-exempt, non-CCDF providers. Describe:
 - v. ☐ Relative CCDF providers. Describe:
 - vi. ☐ Other. Describe:

9.2.4 Provider-specific quality information

Lead Agencies must identify specific quality information on each child care provider for whom they have this information. Provider-specific quality information must only be posted on the consumer education website if it is available for the individual child care provider.

- a. What specific quality information does the Lead Agency provide on the website?
 - i. ☒ Quality improvement system.
 - ii. ☐ National accreditation.
 - iii. ☐ Enhanced licensing system.
 - iv. ☐ Meeting Head Start/Early Head Start Program Performance Standards.
 - v. ☐ Meeting pre-Kindergarten quality requirements.
 - vi. ☐ School-age standards.
 - vii. ☐ Quality framework or quality improvement system.
 - viii. ☐ Other. Describe:
- b. For what types of child care providers is quality information available?
 - i. ☒ Licensed CCDF providers. Describe the quality information: **All child care providers licensed by the Lead Agency must undergo quarterly evaluations annually and post a score card of the results, which is available and searchable at the Lead Agency's consumer website.**
 - ii. ☒ Licensed non-CCDF providers. Describe the quality information: **All child care providers licensed by the Lead Agency must undergo quarterly evaluations annually and post a score card of the results, which is available and searchable at the Lead Agency's consumer website.**
 - iii. ☐ License-exempt center-based CCDF providers. Describe the quality information:
 - iv. ☐ License-exempt FCC CCDF providers. Describe the quality information:
 - v. ☐ License-exempt non-CCDF providers. Describe the quality information:
 - vi. ☐ Relative child care providers. Describe the quality information:
 - vii. ☐ Other. Describe:

9.2.5 Aggregate data on serious injuries, deaths, and substantiated abuse

Lead Agencies must post aggregate data on serious injuries, deaths, and substantiated cases of child abuse that have occurred in child care settings each year on the consumer education website. This aggregate data must include information about any child in the care of a provider eligible to receive CCDF, not just children receiving subsidies.

This aggregate information on serious injuries and deaths must be separated by category of care (e.g., centers, family child care homes, and in-home care) and licensing status (i.e., licensed or license-exempt) for all eligible CCDF child care providers in the State/Territory. The information on instances of substantiated child abuse does not have to be organized by category of care or licensing status. Information must also include the total number of children in care by provider

type and licensing status, so that families can better understand the data presented on serious injuries, deaths, and substantiated cases of abuse.

- a. Certify by checking below that the required elements are included in the Aggregate Data Report on serious incident data that have occurred in child care settings each year.
 - i. ☒ The total number of serious injuries of children in care by provider category and licensing status.
 - ii. ☒ The total number of deaths of children in care by provider category and licensing status.
 - iii. ☒ The total number of substantiated instances of child abuse in child care settings.
 - iv. ☒ The total number of children in care by provider category and licensing status.
 - v. If any of the above elements are not included, describe:
- b. Certify by providing:
 - i. The designated entity to which child care providers must submit reports of any serious injuries or deaths of children occurring in child care and describe how the Lead Agency obtains the aggregate data from the entity: **Lead Agency licensure rules at Tenn. Comp. R. & Regs. 1240-04-01-.09 require all child care providers to notify the Lead Agency on the same day of any serious incident, including serious injuries, fatalities and reports made to the Tennessee Department of Children's Services (TDCS) as described at Section 9.1.1.d. Allegations of child abuse, neglect, or maltreatment are investigated by the Tennessee Department of Children's Services (TDCS). The Lead Agency receives an investigation summary from TDCS related to any allegations in licensed child care settings. Lead Agency documentation and documentation received from TDCS indicating cases of substantiated abuse, neglect, or maltreatment are reviewed and verified, and reported in aggregate annually at the Lead Agency website.**
 - ii. The definition of "substantiated child abuse" used by the Lead Agency for this requirement: **The Lead Agency uses definitions found at Tenn. Comp. R. & Regs. 0250-07-09-.01 for the Tennessee Department of Children's Services (TDCS) Child Protective Services, including:**

(1) "Abuse" exists when a child victim is suffering from, has sustained, or may be in immediate danger of suffering from or sustaining a wound, injury, disability or physical or mental condition caused by brutality, neglect or other actions or inactions of a parent, relative, guardian or caregiver.

(10) "Neglect" means the actions or omissions of a parent, relative, guardian, or caregiver which subject a child victim to actual or threatened harm, including, but not limited to, conduct which leads to a child suffering from any of the conditions listed in the definition of "dependent and neglected child" set out at T.C.A. § 37-1-102(b)(13) (2016 and as amended).

(13) "Substantiated" means the classification assigned to an individual determined to be a perpetrator of abuse, severe child abuse, child sexual abuse,

or neglect. The term substantiated also encompasses synonymous terms set out in rules, policy, and statute, including, but not limited to, **“indicated,” “founded,” or other terms signifying the individual was determined to be the perpetrator of child abuse or neglect.**

- iii. The definition of “serious injury” used by the Lead Agency for this requirement: **The Lead Agency uses the definition of “serious injury” found at Tenn. Comp. R. & Regs 1240-04-01-.02: “An injury that requires treatment from an outside medical professional or facility such as an emergency medical technician, physician, health clinic, or hospital.” If a medical professional determines that no injury occurred or treatment is unnecessary, such an incident is not considered a serious injury.**

- c. Provide the direct URL/website link to the page where the aggregate number of serious injuries, deaths, and substantiated child abuse, and the total number of children in care by provider category and licensing status are posted:
<https://www.tn.gov/humanservices/information-and-resources/tdhs-reports-and-information.html>

9.2.6 Contact information on referrals to local child care resource and referral organizations

The Lead Agency consumer education website must include contact information on referrals to local CCR&R organizations.

- a. Does the consumer education website include contact information on referrals to local CCR&R organizations?
☒ Yes.
☐ No.
☐ Not applicable. The Lead Agency does not have local CCR&R organizations.
- b. Provide the direct URL/website link to this information:
<https://www.tn.gov/humanservices/for-families/child-care-services.html> and <https://www.tn.gov/humanservices/for-families/child-care-services/child-care-resources-for-providers/child-care-resource-referral-centers.html>

9.2.7 Lead Agency contact information for parents

The Lead Agency consumer and provider education website must include information on how parents can contact the Lead Agency or its designee and other programs that can help the parent understand information included on the website.

- a. Does the website provide directions on how parents can contact the Lead Agency or its designee and other programs to help them understand information included on the website?
☒ Yes.
☐ No.
- b. Provide the direct URL/website link to this information:
<https://www.tn.gov/humanservices/for-families/child-care-services/resources-for-parents.html>

9.2.8 Posting sliding fee scale, co-payment amount, and policies for waiving co-payments

The consumer education website must include the sliding fee scale for parent co-payments, including the co-payment amount a family may expect to pay and policies for waiving co-payments.

- a. Does the Lead Agency certify that their consumer education website includes the sliding fee scale for parent co-payments, including the co-payment amount a family may expect to pay and policies for waiving co-payments?

☒ Yes.

☐ No.

- b. Provide the direct URL/website link to the sliding fee scale.

<https://www.tn.gov/humanservices/for-families/child-care-services/child-care-payment-assistance.html>

9.3 Increasing Engagement and Access to Information

Lead Agencies must collect and disseminate information about the full range of child care services to promote parental choice to parents of children eligible for CCDF, the general public, and child care providers.

9.3.1 Information about CCDF availability and eligibility

Describe how the Lead Agency shares information with eligible parents, the general public, and child care providers about the availability of child care services provided through CCDF and other programs for which the family may be eligible. The description should include, at a minimum, what is provided (e.g., written materials, the website, and direct communications) and what approaches are used to tailor information to parents, the general public, and child care providers. **The Lead Agency website features information and resources, including the Child Care Payment Assistance/Certificate Program, appropriate for parents and the general public as well as for child care providers. These resources offer an overview of eligibility information for different categories of care, the application process and documentation requirements, general co-payment estimates, and finding child care options.**

The Tennessee Department of Human Services (TDHS), CCDF Lead Agency, utilizes its One DHS Customer Portal to share information about the availability of other programs and services for which families may be eligible. The One DHS Customer Portal is a self-service website that helps customer to connect to an array of support services aimed at building and empowering strong Tennessee Families in one convenient online location.

Through the Lead Agency's One DHS Customer Portal, families may apply for, access, and maintain services administered by the Lead Agency for: Child Care Payment Assistance/Certificate Program, Child Support, Families First (TANF), Supplemental Nutrition Assistance Program (SNAP), and Disaster/Relief Assistance (D-SNAP, Emergency Cash Assistance, Pandemic-EBT, etc.). One DHS Portal empowers customers to:

- Apply for benefits
- Upload, submit, and view documents related to services
- Upload household and contact information

- Check your case status
- Review notifications about your case
- File appeals
- Learning about programs, services, and find answers to frequently asked questions.

The One DHS Customer Portal may be found at <https://www.tn.gov/humanservices/apply-online-page/one-dhs-customer-portal.html>.

Lead Agency staff and Tennessee Child Care Resource and Referral (CCR&R) Family Engagement Quality Coaches share information and resources, i.e., brochures, flyers, and contact and website details, with families and the general public about programs and services, including:

- Child Care Payment Assistance/Certificate Program
 - o <https://www.tn.gov/humanservices/for-families/child-care-services/child-care-payment-assistance.html>
 - o <https://www.tn.gov/humanservices/for-families/child-care-services/resources-for-parents.html>
- Families First (TANF)
 - o <https://www.tn.gov/humanservices/for-families/families-first-tanf.html>
- Children's Health Insurance Program (CoverKids)
 - o <https://www.tn.gov/coverkids.html>
- Child and Adult Care Food Program (CACFP) and Summer Food Service Program (SFSP)
 - o <https://www.tn.gov/humanservices/children/dhs-nutrition-programs/child-and-adult-care-food-program.html>
 - o <https://www.tn.gov/humanservices/children/dhs-nutrition-programs/learn-about-the-summer-food-service-program.html>
- SNAP
 - o <https://www.tn.gov/humanservices/for-families/supplemental-nutrition-assistance-program-snap.html>
- Head Start/Early Head Start
 - o <https://www.kidcentraltn.com/program/early-head-start-ehs.html>
 - o <https://www.kidcentraltn.com/education/preschool/head-start.html>
- Children's Health Insurance Program (CoverKids)
 - o <https://www.tn.gov/coverkids.html>
- Low Income Home Energy Assistance Program (LIHEAP)
 - o <https://www.kidcentraltn.com/program/low-income-home-energy-assistance-program--liheap-.html>
- Women, Infants, and Children (WIC)
 - o <https://www.tn.gov/health/health-program-areas/fhw/for-pregnant-postpartum/wic.html>
- Medicaid (TennCare)
 - o <https://www.tn.gov/tenncare/members-applicants/eligibility/tenncare-medicare.html>
- Individuals with Disabilities Education Act (IDEA)
 - o <https://www.tn.gov/education/districts/federal-programs-and-oversight/idea.html>
 - o <https://www.tn.gov/education/families/student-support/special-education.html>
 - o <https://www.tn.gov/education/families/student-support/special-education/special-education-section-619.html>

9.3.2 Information about child care and other services available for parents

Does the Lead Agency certify that it provides information described in 9.3.1 for the following required programs?

- Temporary Assistance for Needy Families (TANF) program.
- Head Start and Early Head Start programs.
- Low Income Home Energy Assistance Program (LIHEAP)
- Supplemental Nutrition Assistance Program (SNAP).
- Women, Infants, and Children Program (WIC) program.
- Child and Adult Care Food Program (CACFP).
- Medicaid and Children's Health Insurance Program (CHIP).
- Programs carried out under IDEA Part B, Section 619 and Part C.

☒ Yes.

☐ No. If no, describe:

9.3.3 Consumer statement for parents receiving CCDF services

Lead Agencies must provide parents receiving CCDF services with a consumer statement in hard copy or electronically that contains general information about the CCDF program and specific information about the child care provider they select.

Please certify if the Lead Agency provides parents receiving CCDF services a consumer statement that contains the following 8 requirements:

1. Health and safety requirements met by the provider
2. Licensing or regulatory requirements met by the provider
3. Date the provider was last inspected
4. Any history of violations of these requirements
5. Any voluntary quality standards met by the provider
6. How CCDF subsidies are designed to promote equal access
7. How to submit a complaint through the hotline
8. How to contact a local resource and referral agency or other community-based organization to receive assistance in finding and enrolling in quality child care

Does the Lead Agency provide to families, either in hard copy or electronically, a consumer statement that contains the required information about the provider they have selected, including the eight required elements above?

☒ Yes.

☐ No. If no, describe:

9.3.4 Informing families about best practices on child development

Describe how the Lead Agency makes information available to parents, providers, and the general public on research and best practices concerning children’s development, including physical health and development, and information about successful parent and family engagement. At a minimum, the description should include what information is provided; how the information is provided; any distinct activities for sharing this information with parents, providers, the general public; and any partners in providing this information. **In addition to its consumer website, The Lead Agency maintains KidCentralTN, an online one-stop shop for Tennessee families to raise healthy and happy kids, that serves as a statewide clearinghouse for multiple state agencies sharing information for families, providers, and the general public. KidCentralTN is designed as a resource for parents, child care providers, child advocates, and entities that work with children, or child advocates. Content and resources at KidCentralTN are organized according to four areas: development, education, health, and support. KidCentralTN visitors may also customize their search for resources by child age across a wide array of content topics, including:**

- o Safety, nutrition, physical activity, checkups, oral health, when kids get sick, insurance, pregnancy, and social emotional and behavior health**
- o Preschool, community & after school care, special needs, reading, school readiness, K-12, and higher education**
- o Child development according to the age of the child**
- o Crisis services for children, full family support, basic needs, child care, child support, life skills, adoption and foster parenting, and features of other State programs**

9.3.5 Unlimited parental access to their children

Does the Lead Agency have procedures to ensure that parents have unlimited access to their children whenever their children are in the care of a provider who receives CCDF funds:

☒ Yes.

☐ No. If no, describe:

9.3.6 Informing families about best practices in social and emotional health

Describe how the Lead Agency shares information with families, providers, and the general public regarding the social-emotional and behavioral and mental health of young children, including positive behavioral intervention and support models based on research and best practices for those from birth to school age: **Information and supports relating to social emotional and behavioral health with families, the general public, and child care providers are shared by the Lead Agency and through programs and services delivered through its CCDF Quality Child Care Partners, including the Tennessee Child Care Resource & Referral Network (CCR&R) and the Association of Infant Mental Health Tennessee (AIMHITN).**

CCDF Quality Child Care Partners share with child care providers and the early care and education workforce through training and professional development that support social and emotional development in the classroom modeling best practices and using such resources as the Pyramid Model developed by the Center on Social and Emotional Foundations for Early Learning, Conscious Discipline, and Building Strong Brains, Adverse Childhood Experiences (ACEs), and Trauma-Informed Care.

Inclusion Quality Coaches with CCR&R who specialize in working with young children with

disabilities and have education and experience in early childhood special education or related fields work closely with the Lead Agency to deliver supports promoting quality inclusive early childhood education including accommodations and strategies for inclusion.

Inclusion Quality Coaches provide coaching to the early care and education workforce and child care providers on challenging behaviors, developmental delays, and medically identified disabilities. Through on-site coaching, CCR&R helps children with disabilities receive safe, high-quality care and appropriate accommodations utilizing tools and resources like an Inclusion Coaching Plan developed with child care providers. CCR&R also provides these and other resources for parents/caregivers and families for providing meaningful care and education in early child care settings in areas that include:

- Autism
- Communication needs
- Co-occurring disorders
- Developmental delays
- Medical conditions
- Neonatal abstinence syndrome
- Physical disabilities of all types
- Significant behavior disorders

CCR&R also liaises with and facilitates connections and referrals to the Tennessee Early Intervention System (TEIS) and Tennessee Department of Disability and Aging (TDDA) for children up to age three (3) to expedite assessments and home-based therapies; and to the Tennessee Department of Education (TDOE) for children ages three (3) through five (5) to support smooth transitions between early care and kindergarten.

AIMHITN offers training and professional development opportunities to the early care and education workforce seeking to educate families and implement inclusion practices for children. AIMHITN also offers supports centered on infant and early childhood mental health principles that strengthen high-quality service and positive outcomes for children and families, including Infant and Early Childhood Mental Health Endorsement® pathways and Reflective Supervision and Consultation supports for the early care and education workforce as well as Lead Agency and CCDF Quality Child Care Partners staff. CCDF Quality Child Care Partners also collaboratively develop and deliver emergency preparedness and response training, consultation, training, and technical assistance with Lead Agency staff emphasizing Trauma-Informed Care and Infant and Early Childhood Mental Health (IECMH) practices for early childhood educators and child care agencies.

The Tennessee Early Learning Developmental Standards (TN-ELDS) and other trainings offered through CCDF Quality Child Care Partners provide content and support for social and emotional and behavioral health and development as well as health and safety requirements. Information and resources about social emotional and behavioral health is shared with or made available by the Lead Agency for families and the general public through its consumer education website at <https://www.tn.gov/humanservices/for-families/child-care-services.html>. These online resources are frequently shared through the Lead Agency's consumer education statement, provider communications, and during family engagement opportunities.

The Lead Agency also maintains KidCentralTN, a one-stop shop for Tennessee families to raise healthy and happy kids located at <https://www.kidcentraltn.com>. In addition to many other

helpful resources, KidCentralTN offers resources on social emotional and behavioral health and infant and early childhood mental health of young children, including:

- Positive Action Prevention Program, an evidence-based substance abuse prevention program that addresses social, behavioral, and academic performance, and core risk factors related to self-esteem, self-efficacy and overall risk-related behaviors of children and adolescents.
- Early Connections Network (ECN), a system of care for children from birth to 5 years of age with social, emotional and behavioral needs and for their families. ECN brings together families with child care providers and other stakeholders to improve access to quality care for those with mental health challenges and to prepare children for school and for life. ECN has a special focus on working with the children and families of military service members and veterans.

The Lead Agency uses the Keeping Kids Safe Curriculum designed to assist child care providers with providing the most effective program possible—one that children will enjoy and understand. Research has established that children can be given the tools and knowledge to be safer. Because of this, the purpose of this safety curriculum is to improve the knowledge, self-confidence, and assertiveness skills of children thereby:

- Promoting disclosure of victimization
- Enhancing communication between parents and children about personal safety
- Reinforcing adult supervision and protection
- Assisting children in learning to identify adults they can trust who can help them with problems too big for them to handle alone.

The Keeping Kids Safe Curriculum may found on the Lead Agency website at <https://www.tn.gov/content/dam/tn/human-services/documents/Keeping%20Kids%20Safe%20Curriculum.pdf>

Tennessee Voices for Children, Inc. is a statewide and national source of referral, support, and advocacy for families and the systems that serve them. Through the Statewide Family Network and its other ten main programs, Tennessee Voices informs, supports, and assists parents and providers statewide.

The Lead Agency partners with Tennessee Voices and other public and nonprofit organizations under the Tennessee Educator Acceleration Model (TEAM-TN) to support early childhood mental health services and programs for early care and child care providers about social emotional and behavioral health and well-being. More information about TEAM-TN may be found at <https://team-tn.org/>.

9.3.7 Policies on the prevention of the suspension and expulsion of children

- a. The Lead Agency must have policies to prevent the suspension and expulsion of children from birth to age 5 in child care and other early childhood programs receiving CCDF funds. Describe those policies and how those policies are shared with families, providers, and the general public: **Child care providers licensed by the Lead Agency are required to have a written expulsion policy as defined at Tenn. Comp. R. & Regs. 1240-04-01-.05:**

(13) The child care agency shall have a written expulsion policy.

(a) The policy shall be:

1. Clearly articulated to staff and parents;
2. Developmentally appropriate and consistent; and

3. Non-discriminatory in practice and impact

(b) Other options shall be considered prior to expulsion, such as but not limited to reducing the number of days or amount of time the child may attend, or if applicable, referrals to a behavioral health program or other appropriate supporting program

(c) Procedures shall be developed to allow for a planned transition of a child to another program if expulsion must occur.

(d) Aggregate data that includes reasons for expulsions shall be maintained and reported to the Department on a Department-approved form when such expulsions take place and as requested.

The Lead Agency provides the Tennessee Department of Human Services Early Childhood Expulsion and Suspension Policy Statement, a resource for all child care providers licensed by the Lead Agency and license-exempt providers participating in the Child Care Payment Assistance/Certificate Program, available on the Lead Agency website at <https://www.tn.gov/content/dam/tn/human-services/documents/Policy%20Statement%20Early%20Childhood%20Expulsion%20%20Suspension%20Policy%20Statement%20Final.pdf>.

The Lead Agency also provides a Sample Early Childhood Expulsion and Suspension Policy template resource for child care providers to use or reference when developing their program-specific policy. This resource is available on the Lead Agency website at <https://www.tn.gov/content/dam/tn/human-services/documents/Sample%20Early%20Childhood%20Expulsion%20and%20Suspension-%20Final.pdf>.

The Lead Agency leverages its CCDF Quality Child Care Partners, including the Tennessee Child Care Resource and Referral Network (CCR&R), to support child care providers with understanding and implementing expulsion and suspension policies. The Lead Agency promotes social emotional and behavioral health supports for children, families, and early childhood educators through the Association of Infant Mental Health in Tennessee (AIMHiTN), Tennessee Child Care Resource and Referral Network (CCR&R), Tennessee Early Childhood Training Alliance (TECTA), and other CCDF Quality Child Care Partners. CCR&R offers child care providers coaching and technical assistance, training, consultation, and supporting materials and resources on related topics that include developmentally appropriate practices, health and safety issues, parent engagement, social emotional and behavioral health, and best practices across related themes. AIMHiTN supports the early care and early education workforce in Tennessee by strengthening competencies in infant and early childhood mental health (IECMH) and embedding IECMH principles into the daily practice of all professionals in an effort to enhance overall quality in child care programs, with a particular focus on infant/toddler quality of care.

- b. Describe what policies, if any, the Lead Agency has to prevent the suspension and expulsion of school-age children from child or youth care settings receiving CCDF funds: Please see response at 9.3.7.a. for child care providers licensed by the Lead Agency. License-exempt child care providers participating in the Child Care Payment Assistance/Certificate Program and regulated by the Tennessee Department of Education are required by the terms and conditions of the Lead Agency contract to have a written

suspension and expulsion policy. License-exempt Boys and Girls Clubs child care programs participating in the Child Care Payment Assistance/Certificate Program are required by the terms and conditions of the Lead Agency contract to have a written suspension and expulsion policy.

9.4 Providing Information on Developmental Screenings

Lead Agencies must provide information on developmental screenings to parents as part of the intake process for families participating in CCDF and to child care providers through training and education. This information must include:

- Existing resources and services that the State can make available in conducting developmental screenings and providing referrals to services when appropriate for children who receive child care assistance, including the coordinated use of the Early and Periodic Screening, Diagnosis, and Treatment program under the Medicaid program carried out under Title XIX of the Social Security Act and developmental screening services available under IDEA Part B, Section 619 and Part C; and,
- A description of how a family or child care provider can use these resources and services to obtain developmental screenings for children who receive subsidies and who might be at risk of cognitive or other developmental delays, which can include social, emotional, physical, or linguistic delays.

Information on developmental screenings, as in other consumer education information, must be accessible for individuals with limited English proficiency and individuals with disabilities.

9.4.1 Developmental screenings

Does the Lead Agency collect and disseminate information on the following:

- a. Existing resources and services available for obtaining developmental screening for parents receiving CCDF, the general public, and child care providers.
☒ Yes.
☐ No. If no, describe:
- b. Early and Periodic Screening, Diagnosis, and Treatment program under the Medicaid program—carried out under Title XIX of the Social Security Act (42 U.S.C. 1396 et seq.)—and developmental screening services available under Part B, Section 619 and Part C of the Individuals with Disabilities Education Act (20 U.S.C. 1419, 1431 et seq.).
☒ Yes.
☐ No. If no, describe:
- c. Developmental screenings to parents receiving a subsidy as part of the intake process.
☒ Yes. If yes, include the information provided, ways it is provided, and any partners in this work: **Parents/Caregivers are provided a resources list and informed about the Lead Agency website during the child care eligibility and redetermination processes by Child Care Payment Assistance/Certificate Program Specialists. Families are also given brochures that provide information on the requirements, services, and contact information for accessing and scheduling developmental screenings. Families may also be**

referred for to the Tennessee Child Care Resource & Referral Network (CCR&R) family engagement quality coaches for additional information and support.

☐ No. If no, describe:

- d. How families receiving CCDF services or child care providers receiving CCDF can use the available resources and services to obtain developmental screenings for children at risk for cognitive or other developmental delays.

☒ Yes.

☐ No. If no, describe:

10 Program Integrity and Accountability

Program integrity and accountability activities are integral to the effective administration of the CCDF program. As stewards of federal funds, Lead Agencies must ensure strong and effective internal controls to prevent fraud and maintain continuity of services to meet the needs of children and families. In order to operate and maintain a strong CCDF program, regular evaluation of the program's internal controls as well as comprehensive training for all entities involved in the administration of the program are imperative. In this section, Lead Agencies will describe their internal controls and how those internal controls effectively ensure integrity and accountability. These accountability measures should address reducing fraud, waste, and abuse, including program violations and administrative errors and should apply to all CCDF funds.

10.1 Effective Internal Controls

Lead Agencies must ensure the integrity of the use of CCDF funds through effective fiscal management and must ensure that financial practices are in place. Lead Agencies must have effective fiscal management practices in place for all CCDF expenditures.

10.1.1 Organizational structure to support integrity and internal controls

Describe how the Lead Agency's organizational structure ensures the oversight and implementation of effective internal controls that promote and support program integrity and accountability. Describe: **Under the authority of Tenn. Code Ann. § 4-4-124, the Office of Inspector General (OIG) includes oversight of the Lead Agency's independent monitoring of programs, and includes internal audit, program monitoring, claims management, background checks, and investigations functions. The activity's purposes, authority, and responsibility of the Division of Audit Services is defined and established through the Office of Inspector General Division of Audit Services Charter. OIG investigates referrals of potential fraud, waste, and abuse, and handles adjudication. OIG partners with other state and federal agencies and law enforcement entities as necessary on investigations.**

The Division of Audit Services External Program Review (EPR) includes Grants and Contracts Monitoring and Food Program Monitoring, providing independent and objective monitoring and consultation services to programs administered by TDHS, including the Lead Agency CCDF Program. The Division of Audit Services Internal Audit Division (Internal Audit) assists the Lead Agency in complying with federal, state, and Lead Agency laws, regulations, and rules by conducting regularly scheduled and random audits of various programs administered by TDHS, including the Lead Agency CCDF Program.

The Office of Inspector General, Division of Audit Services EPR assists the CAE with preparing an annual subrecipient monitoring plan based on prior activities and current risk assessments. Auditing and monitoring are secluded and performed annually based on risk analysis.

Internal Audit activities are performed in accordance with the Global Internal Audit Standards (GIAS). The CAE ensures each engagement of the Internal Audit plan is executed, including the establishment of objective and scope, assignment of appropriate and adequately supervised resources, documentation of work programs and testing results, and appropriate communication of engagement results with applicable conclusions and recommendations.

The Lead Agency's Fiscal Services, staffed by the Tennessee Department of Finance and Administration, performs accounting services for the Lead Agency and ensure expenditures are recorded in the state's accounting system of record accurately and timely. Lead Agency program management, Budget, and Fiscal Services management communicate frequently, and routinely meet to review budget vs. actual reports to ensure costs are reasonable and allowable.

The Director of Audit Services is the Lead Agency's designated Chief Audit Executive (CAE), reporting directly to the TDHS Commissioner, administratively to the Inspector General (IG), and indirectly to the Executive Internal Auditor (EIA) appointed by the Governor.

The CAE ensures the principles of integrity, objectivity, confidentiality, and competency are applied and upheld.

Internal Auditors are required to avoid conflicts of interest by having no direct operational responsibility or authority over any of the activities audited. The CAE ensures Internal Audit remains free from conditions that may threaten the ability of auditors to carry out responsibilities in an unbiased manner, including matters of audit selection, scope, procedure, frequency, timing, and content. EPR Directors must remain free from personal or organizational influence that would interfere with professional objectivity and independence and do not implement internal controls, develop procedures, or prepare records. EPR Directors are required to provide assurances of the objectivity and independence of monitoring activities and freedom from any conflicts of interest that may impair the judgment of EPR audit or monitoring staff.

The Office of Inspector General, Division of Audit Services and Division of Program Integrity conduct investigations regarding waste, fraud, or abuse of contracts or subrecipients. Internal Audit prepares and submits its Audit Plan to the state's Office of the Comptroller of the Treasury annually.

Internal Audit serves as a point of contact and coordinates the Lead Agency's responses to external audits. Internal Audit helps identify areas that may require increased monitoring and support and is the Lead Agency lead unit for compilation of the Lead Agency annual Financial Integrity Act Risk Assessment.

Include the following elements in your description:

1. Assignment of authority and responsibilities related to program integrity.
2. Delegation of duties.

3. Coordination of activities.
4. Communication between fiscal and program staff.
5. Segregation of duties.
6. Establishment of checks and balances to identify potential fraud risks.
7. Other activities that support program integrity.

10.1.2 Fiscal management practices

Describe how the Lead Agency ensures effective fiscal management practices for all CCDF expenditures, including:

- a. Fiscal oversight of CCDF funds, including grants and contracts. Describe: **Fiscal oversight of the Lead Agency's CCDF-funded grants and contracts includes multiple levels of review and approval from inception to execution. The Lead Agency follows an agency-wide reimbursement request policy to ensure fiscal accountability for sub-recipients. Sub-recipient reimbursement requests and supporting documentation are reviewed by Lead Agency program staff for accuracy and allowability prior to submission to Fiscal Services for payment. Fiscal Services reviews and enters invoices for proper recording of expenditures in the state's accounting system. Invoice submissions for contracts are also reviewed and approved by Lead Agency program management with direct oversight for a contractor's scope of services to ensure allowable use of funds. Lead Agency program staff track payments against maximum liability of the grants or contracts for monitoring purposes to ensure grantees and contractors are paid timely and within contract terms.**

For child care providers that contract with the Lead Agency to participate in the Child Care Payment Assistance/Certificate Program, the terms and conditions of the provider agreement detail requirements a contractor must meet, including vendor registration, time and attendance reporting, documentation, audit and repayment requirements, administrative review dispute resolution process, and CCDBG requirements. Subsidy payments are generated using child care provider enrollment records which represent a child care provider's invoice for reimbursement for direct child care services. Child Care Payment Assistance/Certificate Program payments must complete a series of reviews by Lead Agency program staff and Fiscal Services offering multiple layers to mitigate payment errors and ensure appropriate documentation before disbursement.

- b. Tracking systems that ensure reasonable and allowable costs and allow for tracing of funds to a level of expenditure adequate to establish that such funds have not been used in violation of the provision of this part. Describe: **Fiscal Services uses Edison, the state's ERP system of record, to record transactions and assist the Lead Agency with the fiscal management of grants. Edison has mechanisms to track grant costs and expenditures, house reimbursement request supporting documentation and grant contract status and budget availability.**

Lead Agency program staff review and approve reimbursement requests for reasonableness and allowability of quality expenditures, including identifying earmarking requirements. Once reimbursement requests are reviewed and approved by Lead Agency program staff, invoices are submitted to Fiscal Services for payment processing in Edison. Fiscal Services routinely provides earmarking reports to Lead Agency program

management for monitoring purposes to ensure compliance with CCDF earmarking requirements. Lead Agency program, Budget, and Fiscal Services management routinely meet to review budget vs. actual reports to ensure costs are reasonable and allowable. If a discrepancy is noted during a review meeting, Lead Agency program management notifies Fiscal Services and provides support of the needed correction which is recorded in Edison by Fiscal Services.

- c. Processes and procedures to prepare and submit required state and federal fiscal reporting. Describe: **State and federal fiscal reports for the Lead Agency are prepared by Fiscal Services and subject to review by the CCDF Administrator, Co-Administrator, or designated Lead Agency staff. State and federal fiscal reports are prepared based on Edison, the State's authoritative system of record, to ensure accurate submission of expenditure reports. Fiscal reports are reviewed by Lead Agency program and management submitted by Fiscal Services. The CCDF Administrator, CCDF Co-Administrator, and designated Lead Agency staff may leverage routine or ad hoc reporting mechanisms to monitor additional information that may be required for state and federal reporting.**
- d. Other. Describe: **N/A.**

10.1.3 Effectiveness of fiscal management practices

Describe how the Lead Agency knows there are effective fiscal management practices in place for all CCDF expenditures, including:

- a. How the Lead Agency defines effective fiscal management practices. Describe: **The Lead Agency defines effective fiscal management by monitoring its established fiscal procedures. State budgets are created annually and compared against costs routinely by Lead Agency and Fiscal Services management. Fiscal Services monitors grant cash management requirements. CCDF budget and fiscal reports are prepared and reviewed with Lead Agency management to ensure compliance and accuracy of federal grant requirements.**
- b. How the Lead Agency measures and tracks results of their fiscal management practices. Describe: **The Lead Agency sets policies and provides support on fiscal practices. Through internal audit processes, compliance with internal procedures is monitored and reported to Lead Agency management annually. Monitoring procedures include reviewing the process of monthly reimbursement submissions as well as site visits to ensure fiscal accountability. The Lead Agency's Fiscal Services, staffed by the Tennessee Department of Finance and Administration, performs accounting services for the Lead Agency and ensure expenditures are recorded in the state's accounting system of record accurately and timely. Lead Agency management routinely review cost items recorded to CCDF, along with budget to actual trends period over period. Fiscal Services provides expenditure and earmarking reports to Lead Agency management to ensure reasonableness and accuracy of recorded costs. Lead Agency program and Fiscal Services staff participate in internal, performance, and single audit review processes. Audit results are reviewed by Lead Agency and Fiscal Services management to evaluate practices and identify opportunities to strengthen internal controls, reduce risks, and implement continuous quality improvement.**

- c. How the results inform implementation. Describe: **Lead Agency and its Fiscal Services management, staffed by the Tennessee Department of Finance and Administration, develop and implement coordinated strategies that strengthen fiscal management practices as needed.**
- d. Other. Describe: **N/A.**

10.1.4 Identifying risk

Describe the processes the Lead Agency uses to identify risk in the CCDF program including:

- a. Each process used by the Lead Agency to identify risk (including entities responsible for implementing each process). Describe: **The Lead Agency conducts an annual risk assessment of the CCDF Program in consultation with its Office Inspector General. The annual risk assessment of the CCDF Program uses the COSO Enterprise Risk Management Framework adopted by the Tennessee Department of Finance and Administration (TDF&A) for risk identification, risk assessment, risk response, control activities, and monitoring. The Lead Agency includes CCDF program requirements with this annual process including but not limited to children and families, child care providers, quality activities, and internal performance management, compliance, and quality assurance. The Lead Agency also conducts an annual business impact analysis focusing on business processes, recovery time, recovery point objective with TDF&A Strategic Technology Solutions across financial, operational, regulatory, and reputation areas. Strategies to mitigate risk are continuously incorporated into policies, procedures, and program design elements.**
- b. The frequency of each risk assessment. Describe: **The Lead Agency conducts a risk assessment and a business impact analysis annually in collaboration with its Office of Inspector General and Tennessee Department of Finance and Administration (TDF&A) Strategic Technology Solutions, respectively. The Lead Agency identifies, monitors, and implements mitigation strategies as practices of continuous quality improvement.**
- c. How the Lead Agency uses risk assessment results to inform program improvement. Describe: **Engagement by Lead Agency staff in the risk assessment process allows for a strategic and comprehensive evaluation of CCDF Program objectives, the identification of potential risk, assessment of inherent and residual risk impact and likelihood, and frequency and efficacy of control activities. The Lead Agency practices continuous quality improvement monitoring data to identify and mitigate risk, develop, or revise policies and procedures, and enhance program design elements on which staff receive training.**
- d. How the Lead Agency knows that the risk assessment processes utilized are effective. Describe: **Risk assessment and mitigation strategies implemented by the Lead Agency typically result in strengthened internal controls, reductions in actual or potential errors, and effective delivery of programs and services to children, families, and child care providers.**
- e. Other. Describe: **N/A.**

10.1.5 Processes to train about CCDF requirements and program integrity

Describe the processes the Lead Agency uses to train staff of the Lead Agency and other agencies engaged in the administration of CCDF, and child care providers about program requirements and integrity.

- a. Describe how the Lead Agency ensures that all staff who administer the CCDF program (including through MOUs, grants, and contracts) are informed and trained regarding program requirements and integrity.
 - i. Describe the training provided to staff members around CCDF program requirements and program integrity: **The Lead Agency integrates CCDF program requirements, continuous quality improvement, and program integrity content in its New Employee Academies for its Child Care Payment Assistance/Certificate Program and Child and Adult Care Licensing staff. Lead Agency management staff participate in Fundamentals of CCDF Administration training when available. Child Care Program Reliability and Compliance staff of the Lead Agency engage in consultation and technical assistance with the Lead Agency Office of Inspector General, Office of Procurement, and other internal divisions on compliance, policy, and best practices. Lead Agency staff attend and disseminate information and practices learned from national program integrity trainings and webinars facilitated by the Office of Child Care and technical assistance partners.**
 - ii. Describe how staff training is evaluated for effectiveness: **The Lead Agency's Quality Improvement and Strategic Solutions (QISS) Division performs eligibility reviews of cases annually and case reading results are disseminated to Child Care Payment Assistance/Certificate Program management for review. Child Care Program Reliability and Compliance staff of the Lead Agency collaborate with management teams from Child Care Payment Assistance/Certificate Program and Child and Adult Care Licensing to identify mechanisms to monitor program delivery and identify areas of improvement.**
 - iii. Describe how the Lead Agency uses program integrity data (e.g., error rate results, risk assessment data) to inform ongoing staff training needs: **The Lead Agency practices continuous quality improvement monitoring data to identify and mitigate risk, develop or revise policies and procedures, and enhance program design elements on which staff receive training.**
- b. Describe how the Lead Agency ensures all providers for children receiving CCDF funds are informed and trained regarding CCDF program requirements and program integrity:
 - i. Describe the training for providers around CCDF program requirements and program integrity: **The Lead Agency regularly communicates with child care providers information and training about CCDF program requirements and program integrity, including through its on-site monitoring visits, training and orientation, technical assistance, email newsletters, fiscal services reviews, audit reviews, and through engagement by CCDF Quality Child Care Partners. In addition to technical assistance and training provided to Lead Agency CCDF program management, the Office of Inspector General, Division of Audit Services provides CCDF Quality Child Care Partners with training specific to compliance state and federal requirements.**
 - ii. Describe how provider training is evaluated for effectiveness: **Compliance with**

state and federal requirements are monitored by the Lead Agency for trends to identify potential training areas that are less effective. Additionally, post-training evaluation surveys administered by the University of Tennessee Social Work Office of Research and Public Services (SWORPS) are collected from early childhood educators who complete trainings delivered by the Lead Agency or its CCDF Quality Child Care Partners. Surveys assist the Lead Agency with evaluating educator satisfaction, content accessibility, application of training, format and delivery, and desired content areas for future trainings.

The Tennessee Early Childhood Training Alliance (TECTA) administers TrainTN, the official clearinghouse for early childhood trainings recognized as approved by the Lead Agency and a companion to the state's training and professional development workforce registry, Tennessee Professional Archive of Learning (TNPAL). TrainTN includes a core training and competency review team of subject matter experts from the Lead Agency, other state agencies, Tennessee Child Care Resource & Referral Network (CCR&R), and other CCDF Quality Child Care Partners who ensure training content and training delivery partners align with federal and state requirements, national standards of practice, and the state professional development framework. Trainings are reevaluated as scheduled or as may be determined by the Lead Agency to ensure training is effective and aligns state and federal requirements, standards, and practices.

- iii. Describe how the Lead Agency uses program integrity data (e.g., error rate results, risk assessment data) to inform ongoing provider training needs: **The Lead Agency leverages its training and professional development workforce registry, Tennessee Professional Archive of Learning (TNPAL), to monitor the need for training, technical assistance, or intensive coaching. Lead Agency staff may make referrals to its CCDF Quality Child Care Partners for training or remediation using its Training and Technical Assistance Management System (TAM) administered by the University of Tennessee Social Work Office of Research and Public Services (SWORPS). The Tennessee Child Care Resource and Referral Network (CCR&R) utilizes an Enhanced Quality Improvement Plan (EQIP) developed in partnership with child care providers; alternatively, individualized Professional Development Plans (PDPs) may also be leveraged to coach and guide early childhood educators. The Lead Agency and its CCDF Quality Child Care Partners also use data to identify need for new training opportunities.**

10.1.6 Evaluate internal control activities

Describe how the Lead Agency uses the following to regularly evaluate the effectiveness of Lead Agency internal control activities for all CCDF expenditures.

- a. Error rate review triennial report results (if applicable). Describe who this information is shared with and how the Lead Agency uses the information to evaluate the effectiveness of its internal controls: **The Lead Agency's Quality Improvement and Strategic Solutions (QISS) Division conducts a modified review based on the ACF-403 criteria (used in the cohort 2 review) annually to monitor the error rate during years between formal ACF-404 submissions. Results of error rate reviews are disseminated to Lead Agency management and Child Care Payment Assistance/Certificate Program management to evaluate and**

strengthen internal controls, including potential enhancements of information systems, training, and revisions to the terms and conditions of the Lead Agency's Child Care Payment Assistance/Certificate Program contract to support requirements.

- b. Audit results. Describe who this information is shared with and how the Lead Agency uses the information to evaluate the effectiveness of its internal controls: **Audit results are reviewed by Lead Agency management to identify areas of opportunity to strengthen internal controls, reduce risks, and implement continuous quality improvement. Lead Agency program management participate in the audit review process and formulate plans for corrective action or remediation when necessary.**
- c. Other. Describe who this information is shared with and how the Lead Agency uses the information to evaluate the effectiveness of its internal controls: **N/A.**

10.1.7 Identified weaknesses in internal controls

Has the Lead Agency or other entity identified any weaknesses in its internal controls?

- a. ☐ No. If no, describe when and how it was most recently determined that there were no weaknesses in the Lead Agency's internal controls.
- b. ☒ Yes. If yes, what were the indicators? How did you use the information to strengthen your internal controls? **The Tennessee Comptroller of the Treasury's Single Audit Report for the State Fiscal Year 2023 (July 01, 2022 through June 30, 2023), published on March 26, 2024, found the Lead Agency overpaid child care payment assistance to 11 of 60 providers sampled for children who were absent for more than 20 consecutive days. The audit reported these overpayment errors occurred for providers under the Lead Agency's manual Electronic Attendance Verification (EAV) process. Beginning in April 2023, the Lead Agency replaced its manual EAV review process with implementation an automated EAV review process. The audit reported no overpayment errors were found for payments subject to the automated EAV review process. The Lead Agency continues its child care modernization as it replaces its legacy child care payment assistance system with technology solutions that strengthen internal controls and data quality through automation and mitigating such risks as manual data entry. The Lead Agency reviews internal controls as part of its annual evaluation of risk assessment.**

10.2 Fraud Investigation, Payment Recovery, and Sanctions

Lead Agencies must have the necessary controls to identify fraud and other program violations to ensure program integrity. Program violations can include both intentional and unintentional client and/or provider violations, as defined by the Lead Agency. These violations and errors, identified through the error-rate review process and other review processes, may result in payment or nonpayment (administrative) errors and may or may not be the result of fraud, based on the Lead Agency definition.

10.2.1 Strategies used to identify and prevent program violations

Check the activities the Lead Agency employs to ensure program integrity, and for each checked activity, identify what type of program violations the activity addresses, describe the activity and the results of these activities based on the most recent analysis.

- a. ☐ Share/match data from other programs (e.g., TANF program, Child and Adult Care Food

Program, Food and Nutrition Service (FNS), Medicaid) or other databases (e.g., State Directory of New Hires, Social Security Administration, Public Assistance Reporting Information System (PARIS)).

- i. ☐ Intentional program violations. Describe the activities, the results of these activities, and how they inform better practice:
- ii. ☐ Unintentional program violations. Describe the activities, the results of these activities, and how they inform better practice:
- iii. ☐ Agency errors. Describe the activities, the results of these activities, and how they inform better practice::
- b. ☐ Run system reports that flag errors (include types).
 - i. ☐ Intentional program violations. Describe the activities, the results of these activities, and how they inform better practice:
 - ii. ☐ Unintentional program violations. Describe the activities, the results of these activities, and how they inform better practice:
 - iii. ☐ Agency errors. Describe the activities, the results of these activities, and how they inform better practice:
- c. ☒ Review enrollment documents and attendance or billing records.
 - i. ☒ Intentional program violations. Describe the activities, the results of these activities, and how they inform better practice: **At least quarterly, Lead Agency staff compare child care provider daily attendance sign-in/out documentation with Electronic Attendance Verifications (EAV) reported by the provider using the Lead Agency's web-based provider portal to identify errors, intentional and unintentional, or potential fraud. The Lead Agency's provider portal is also capable of identifying anomalies in reported EAVs. Lead Agency program and Fiscal Services staff review EAV documentation submitted by child care providers contracting to participate in the Child Care Payment Assistance/Certificate Program each billing cycle consistent with Lead Agency Policy 11.35 Child Care Certificate Reimbursement. Review of EAV documentation may include indications of excessive absences, inconsistencies in enrollment status, lack of variation in attendance, and other indicators. If documentation is questionable, Lead Agency program staff coordinate with Fiscal Services to review and provide guidance before payment approval. Procedures are in place to automate enrollment terminations upon 20 days of absences upon a 48-hour notification/response to the participating family. The eligibility remains open for the family through the full 12-month period to allow for re-enrollment if needed. The Lead Agency also refers complaints to the Office of Inspector General, Division of Audit Services for follow up. During the period of July 1, 2023, through June 30, 2024, Division of Audit Services followed up on more than 20 referrals of child care providers.**
 - ii. ☒ Unintentional program violations. Describe the activities, the results of these activities, and how they inform better practice: **Lead Agency staff compare child care provider daily attendance sign-in/out documentation with Electronic**

Attendance Verifications (EAV) reported by the provider using the Lead Agency's web-based provider portal to identify errors, intentional and unintentional, or potential fraud. The Lead Agency's provider portal is also capable of identifying anomalies in reported EAVs. Lead Agency program and fiscal staff perform review EAV documentation submitted by child care providers contracting to participate in the Child Care Payment Assistance/Certificate Program each billing cycle consistent with Lead Agency Policy 11.35 Child Care Certificate Reimbursement. Review of EAV documentation may include indications of excessive absences, inconsistencies in enrollment status, lack of variation in attendance, and other indicators. If documentation is questionable, Lead Agency fiscal staff coordinate with program staff to review and provide guidance before payment approval.

A child care provider may be referred to or identified by the Lead Agency's Office of Inspector General, Division of Audit Services for review based on risk assessments, complaints, and/or Lead Agency recommendations. Audit reviews of provider records are conducted based upon random sampling or in response to specific complaints consistent with Lead Agency Policy 11.31 Child Care Certificate Program Questioned and Disallowed Cost Process. When an audit review is complete, Audit Services will provide an audit review report to Lead Agency Child Care Program Reliability and Compliance staff and the child care provider who must complete a Corrective Action Plan (CAP) based on any findings, observations, and identified questions costs. The Lead Agency will issue management decisions relating to costs determined to be disallowed.

During the period of July 01, 2023, through June 30, 2024, Lead Agency program staff received 25 audit reviews of child care providers that contract with the Lead Agency to participate in the Child Care Payment Assistance/Certificate Program from the Office of Inspector General, Division of Audit Services. Lead Agency program staff received and monitored 24 CAPs and issued 17 management decision letters identifying any disallowed costs.

- iii. **[x]** Agency errors. Describe the activities, the results of these activities, and how they inform better practice: **Lead Agency licensing staff review child provider records, including daily attendance sign-in/out documentation, during monitoring visits and refer anomalies to Child Care Program Reliability and Compliance and/or Audit Services. Examples of anomalies may include a child consistently reported as absent throughout but not 20 consecutive days, listed as full-time, but sign-in/out documentation indicates part-time. Lead Agency program management also provide payment guidelines to its Fiscal Services that uses EAVs to base payments. Adjustments may be made to payments based on these attendance logs. When questions arise, Fiscal Services consults Lead Agency program management for guidance prior to payment. During the period of July 01, 2023, through June 30, 2024, Lead Agency program staff identified 10 child care providers that contract to participate in the Child Care Payment Assistance/Certificate Program that received overpayments. Lead Agency program staff issued overpayment notifications identifying any recoverable costs.**

- d. **[x]** Conduct supervisory staff reviews or quality assurance reviews.

- i. ☐ Intentional program violations. Describe the activities, the results of these activities, and how they inform better practice:
 - ii. ☐ Unintentional program violations. Describe the activities, the results of these activities, and how they inform better practice:
 - iii. ☒ Agency errors. Describe the activities, the results of these activities, and how they inform better practice: **Case reading reviews are conducted monthly by Lead Agency Child Care Payment Assistance/Certificate Program supervisors to monitoring for accuracy when determining eligibility using a structured case reading tool and random sample of cases provided by Lead Agency management. Case reading review scores that do not meet the Lead Agency's standard are discussed as opportunities for improvement with individual staff and monitoring during staff monthly conference reviews. Additional corrective action may be taken if overall improvement is not demonstrated. Case reading reviews are integrated with Lead Agency performance management and included in the individual performance plan for each Child Care Payment Assistance/Certificate program supervisor assigned child care specialists who determine eligibility.**
- e. ☒ Audit provider records.
- i. ☒ Intentional program violations. Describe the activities, the results of these activities, and how they inform better practice: **A child care provider may be referred to or identified by the Lead Agency's Office of Inspector General, Division of Audit Services for review based on risk assessments, complaints, and/or Lead Agency recommendations. Child care providers that contract with the Lead Agency to participate in the Child Care Payment Assistance/Certificate Program are also randomly sampled for review by Audit Services to monitor for compliance. When an audit review is complete, Audit Services will provide an audit review report to Lead Agency Child Care Program Reliability and Compliance staff and the child care provider who must complete a Corrective Action Plan (CAP) based on any findings, observations, and identified questions costs. The Lead Agency will issue management decisions relating to costs determined to be disallowed. Audit Services also interviews appropriate staff to evaluate internal controls and the risk of fraud, waste, or abuse. The Lead Agency also refers complaints to the Office of Inspector General, Division of Audit Services for follow up. During the period of July 1, 2023, through June 30, 2024, Division of Audit Services followed up on more than 20 referrals of child care providers.**
 - ii. ☒ Unintentional program violations. Describe the activities, the results of these activities, and how they inform better practice: **A child care provider may be referred to or identified by the Lead Agency's Office of Inspector General, Division of Audit Services for review based on risk assessments, complaints, and/or Lead Agency recommendations. Child care providers that contract with the Lead Agency to participate in the Child Care Payment Assistance/Certificate Program are also randomly sampled for review by Audit Services to monitor for compliance. When an audit review is complete, Audit Services will provide an audit review report to Lead Agency Child Care Program Reliability and Compliance staff and the child care provider who must complete a Corrective Action Plan (CAP) based on any findings, observations, and identified questions costs. The**

Lead Agency will issue management decisions relating to costs determined to be disallowed. During the period of July 01, 2023, through June 30, 2024, Lead Agency program staff received 25 audit reviews of child care providers that contract with the Lead Agency to participate in the Child Care Payment Assistance/Certificate Program from the Office of Inspector General, Division of Audit Services. Lead Agency program staff received and monitored 24 CAPs and issued 17 management decision letters identifying any disallowed costs.

- iii. **[x]** Agency errors. Describe the activities, the results of these activities, and how they inform better practice: **A child care provider may be referred to or identified by the Lead Agency's Office of Inspector General, Division of Audit Services for review based on risk assessments, complaints, and/or Lead Agency recommendations. Child care providers that contract with the Lead Agency to participate in the Child Care Payment Assistance/Certificate Program are also randomly sampled for review by Audit Services to monitor for compliance. When an audit review is complete, Audit Services will provide an audit review report to Lead Agency Child Care Program Reliability and Compliance staff and the child care provider who must complete a Corrective Action Plan (CAP) based on any findings, observations, and identified questions costs. The Lead Agency will issue management decisions relating to costs determined to be disallowed. Audit Services also facilitates the Lead Agency's annual risk assessment review process.**
- f. **[x]** Train staff on policy and/or audits.
 - i. **[]** Intentional program violations. Describe the activities, the results of these activities, and how they inform better practice:
 - ii. **[]** Unintentional program violations. Describe the activities, the results of these activities, and how they inform better practice:
 - iii. **[x]** Agency errors. Describe the activities, the results of these activities, and how they inform better practice: **Lead Agency staff are provided training and/or guidance on changes to policies and procedures and in response to audit findings.**
- g. **[x]** Other. Describe the activity(ies): **Please see detailed activities at 10.2.1.g.i-iii.**
 - i. **[x]** Intentional program violations. Describe the activities, the results of these activities, and how they inform better practice: **The Lead Agency's Office of Inspector General investigates allegations of fraud and intentional program violations. Recovery of funds associated with fraud or intentional program violations is a joint effort between the Lead Agency's CCDF program, Fiscal Services, and Office of General Counsel in coordination with the State of Tennessee Attorney General's Office. During the period of July 01, 2023, through June 30, 2024, the Lead Agency referred two (2) child care providers that contracted to participate in the Child Care Payment Assistance/Certificate Program to the Tennessee Department of Human Services Office of General Counsel for collections.**
 - ii. **[x]** Unintentional program violations. Describe the activities, the results of these activities, and how they inform better practice: **The Lead Agency's Office of Inspector General, Division of Audit Services receives complaint referrals from multiple sources and may conduct audit reviews of child care providers following**

a complaint. During the period of July 01, 2023, through June 30, 2024, the Lead Agency referred two (2) child care providers that contracted to participate in the Child Care Payment Assistance/Certificate Program to the Tennessee Department of Human Services Office of General Counsel for collections.

- iii. **[x]** Agency errors. Describe the activities, the results of these activities, and how they inform better practice: **The Lead Agency's Quality Improvement and Strategic Solutions (QISS) Division conducts a modified review based on the ACF-403 criteria (used in the cohort 2 review) annually to monitor the error rate during years between the formal ACF-404 submissions. Results of error rate reviews are disseminated to Lead Agency management and Child Care Payment Assistance/Certificate Program management to evaluate and strengthen internal controls, including potential enhancements of information systems, training, and revisions to the terms and conditions of the Lead Agency's Child Care Payment Assistance/Certificate Program contract to support requirements.**

10.2.2 Identification and recovery of misspent funds

Lead Agencies must identify and recover misspent funds that are a result of fraud, and they have the option to recover any misspent funds that are a result of unintentional program violations or agency errors.

- a. Identify which agency is responsible for pursuing fraud and overpayments (e.g., State Office of the Inspector General, State Attorney): **The Tennessee Attorney General's Office is the state's debt collector which attempts collections only after a referral is made by the Lead Agency's Office of General Counsel and only after Lead Agency staff have made repeated unsuccessful attempts to collect. Only one case has resulted been determined as fraud by a court law, which established orders for restitution and amounts collected are remitted to the Lead Agency's Fiscal Services.**
- b. Check and describe all activities, including the results of such activity, that the Lead Agency uses to investigate and recover improper payments due to fraud. Consider in your response potential fraud committed by providers, clients, staff, vendors, and contractors. Include in the description how each activity assists in the investigation and recovery of improper payment due to fraud or intentional program violations. Activities can include, but are not limited to, the following:
 - i. **[]** Require recovery after a minimum dollar amount of an improper payment and identify the minimum dollar amount. Describe the activities and the results of these activities based on the most recent analysis:
 - ii. **[x]** Coordinate with and refer to the other State/Territory agencies (e.g., State/Territory collection agency, law enforcement agency). Describe the activities and the results of these activities based on the most recent analysis: **The Tennessee Attorney General's Office is the state's debt collector which attempts collections only after a referral is made by the Lead Agency's Office of General Counsel and only after Lead Agency staff have made repeated unsuccessful attempts to collect. Only one case has resulted been determined as fraud by a court law, which established orders for restitution and amounts collected are remitted to the Lead Agency's Fiscal Services.**
 - iii. **[x]** Recover through repayment plans. Describe the activities and the results of

these activities based on the most recent analysis: **Recovery of child care overpayments and establishment of repayment plans for providers and parents are conducted by the Lead Agency based on policies and procedures to send management decision letters, billing notices, negotiate repayment plans and, when necessary, pursue collection efforts if the prior actions are unsuccessful in cases determined not to be fraudulent. The Lead Agency may establish an installment plan repayment agreement with the contracting child care provider allows to repay funds over a defined time period consistent with the Child Care Payment Assistance/Certificate Program contract terms and conditions. Lead Agency Fiscal Services offsets future payment amounts on the basis of the installment plan repayment agreement. Lead Agency program and fiscal staff monitor the status of repayment plans and implements remedies for non-compliance should an installment plan repayment agreement be violated**

- iv. ☒ Reduce payments in subsequent months. Describe the activities and the results of these activities based on the most recent analysis: **Recovery of child care overpayments and establishment of repayment plans for providers and parents are conducted by the Lead Agency based on policies and procedures to send management decision letters, billing notices, negotiate repayment plans and, when necessary, pursue collection efforts if the prior actions are unsuccessful in cases determined not to be fraudulent. The Lead Agency may establish an installment plan repayment agreement with the contracting child care provider allows to repay funds over a defined time period consistent with the Child Care Payment Assistance/Certificate Program contract terms and conditions. Lead Agency Fiscal Services offsets future payment amounts on the basis of the installment plan repayment agreement. Lead Agency program and fiscal staff monitor the status of repayment plans and implements remedies for non-compliance should an installment plan repayment agreement be violated.**
 - v. ☐ Recover through State/Territory tax intercepts. Describe the activities and the results of these activities based on the most recent analysis:
 - vi. ☐ Recover through other means. Describe the activities and the results of these activities based on the most recent analysis:
 - vii. ☐ Establish a unit to investigate and collect improper payments and describe the composition of the unit. Describe the activities and the results of these activities based on the most recent analysis:
 - viii. ☒ Other. Describe the activities and the results of these activities: **The Lead Agency and its Office of Inspector General and Office of General Counsel determine consult to determine when engagement of U.S. Health and Human Services Administration of Children and Families Office of Inspector General and/or the Tennessee Comptroller of the Treasury in instances of potential waste, fraud, or abuse. These activities maximize the available options for recovering improper payment due to fraud and may serve as a deterrent to help prevent future fraud. These strategies have resulted in the recovery of identified improper payments, whether due to fraud or other circumstances.**
- c. Does the Lead Agency investigate and recover improper payments due to unintentional program violations?

☐ No.

☒ Yes.

If yes, check and describe below any activities that the Lead Agency will use to investigate and recover improper payments due to unintentional program violations. Include in the description how each activity assists in the investigation and recovery of improper payments due to unintentional program violations. Include a description of the results of such activity.

- i. ☐ Require recovery after a minimum dollar amount of an improper payment and identify the minimum dollar amount. Describe the activities and the results of these activities based on the most recent analysis:
- ii. ☒ Coordinate with and refer to the other State/Territory agencies (e.g., State/Territory collection agency, law enforcement agency). Describe the activities and the results of these activities based on the most recent analysis: **The Tennessee Attorney General's Office is the state's debt collector which attempts collections only after a referral is made by the Lead Agency's Office of General Counsel and only after Lead Agency staff have made repeated unsuccessful attempts to collect. Only one case has resulted been determined as fraud by a court law, which established orders for restitution and amounts collected are remitted to the Lead Agency's Fiscal Services.**
- iii. ☒ Recover through repayment plans. Describe the activities and the results of these activities based on the most recent analysis: **Recovery of child care overpayments and establishment of repayment plans for providers and parents are conducted by the Lead Agency based on policies and procedures to send management decision letters, billing notices, negotiate repayment plans and, when necessary, pursue collection efforts if the prior actions are unsuccessful in cases determined not to be fraudulent. The Lead Agency may establish an installment plan repayment agreement with the contracting child care provider allows to repay funds over a defined time period consistent with the Child Care Payment Assistance/Certificate Program contract terms and conditions. Lead Agency Fiscal Services offsets future payment amounts on the basis of the installment plan repayment agreement. Lead Agency program and fiscal staff monitor the status of repayment plans and implements remedies for non-compliance should an installment plan repayment agreement be violated.**
- iv. ☒ Reduce payments in subsequent months. Describe the activities and the results of these activities based on the most recent analysis: **Recovery of child care overpayments and establishment of repayment plans for providers and parents are conducted by the Lead Agency based on policies and procedures to send management decision letters, billing notices, negotiate repayment plans and, when necessary, pursue collection efforts if the prior actions are unsuccessful in cases determined not to be fraudulent. The Lead Agency may establish an installment plan repayment agreement with the contracting child care provider allows to repay funds over a defined time period consistent with the Child Care Payment Assistance/Certificate Program contract terms and conditions. Lead Agency Fiscal Services offsets future payment amounts on the basis of the installment plan repayment agreement. Lead Agency program and fiscal staff**

monitor the status of repayment plans and implements remedies for non-compliance should an installment plan repayment agreement be violated.

- v. ☐ Recover through State/Territory tax intercepts. Describe the activities and the results of these activities based on the most recent analysis:
- vi. ☐ Recover through other means. Describe the activities and the results of these activities based on the most recent analysis:
- vii. ☐ Establish a unit to investigate and collect improper payments and describe the composition of the unit. Describe the activities and the results of these activities based on the most recent analysis:
- viii. ☒ Other. Describe the activities and the results of these activities: **The Lead Agency and its Office of Inspector General and Office of General Counsel determine consult to determine when engagement of U.S. Health and Human Services Administration of Children and Families Office of Inspector General and/or the Tennessee Comptroller of the Treasury in instances of potential waste, fraud, or abuse. These activities maximize the available options for recovering improper payment due to fraud and may serve as a deterrent to help prevent future fraud. These strategies have resulted in the recovery of identified improper payments, whether due to fraud or other circumstances.**

d. Does the Lead Agency investigate and recover improper payments due to agency errors?

☐ No.

☒ Yes.

If yes, check and describe all activities that the Lead Agency will use to investigate and recover improper payments due to agency errors. Include in the description how each activity assists in the investigation and recovery of improper payments due to administrative errors. Include a description of the results of such activity.

- i. ☐ Require recovery after a minimum dollar amount of an improper payment and identify the minimum dollar amount. Describe the activities and the results of these activities based on the most recent analysis:
- ii. ☒ Coordinate with and refer to the other State/Territory agencies (e.g., State/Territory collection agency, law enforcement agency). Describe the activities and the results of these activities based on the most recent analysis: **The Tennessee Attorney General's Office is the state's debt collector which attempts collections only after a referral is made by the Lead Agency's Office of General Counsel and only after Lead Agency staff have made repeated unsuccessful attempts to collect. Only one case has resulted been determined as fraud by a court law, which established orders for restitution and amounts collected are remitted to the Lead Agency's Fiscal Services.**
- iii. ☒ Recover through repayment plans. Describe the activities and the results of these activities based on the most recent analysis: **Recovery of child care overpayments and establishment of repayment plans for providers and parents are conducted by the Lead Agency based on policies and procedures to send management decision letters, billing notices, negotiate repayment plans and, when necessary, pursue collection efforts if the prior actions are unsuccessful in**

cases determined not to be fraudulent. The Lead Agency may establish an installment plan repayment agreement with the contracting child care provider allows to repay funds over a defined time period consistent with the Child Care Payment Assistance/Certificate Program contract terms and conditions. Lead Agency Fiscal Services offsets future payment amounts on the basis of the installment plan repayment agreement. Lead Agency program and fiscal staff monitor the status of repayment plans and implements remedies for non-compliance should an installment plan repayment agreement be violated.

- iv. ☒ Reduce payments in subsequent months. Describe the activities and the results of these activities based on the most recent analysis: **Recovery of child care overpayments and establishment of repayment plans for providers and parents are conducted by the Lead Agency based on policies and procedures to send management decision letters, billing notices, negotiate repayment plans and, when necessary, pursue collection efforts if the prior actions are unsuccessful in cases determined not to be fraudulent. The Lead Agency may establish an installment plan repayment agreement with the contracting child care provider allows to repay funds over a defined time period consistent with the Child Care Payment Assistance/Certificate Program contract terms and conditions. Lead Agency Fiscal Services offsets future payment amounts on the basis of the installment plan repayment agreement. Lead Agency program and fiscal staff monitor the status of repayment plans and implements remedies for non-compliance should an installment plan repayment agreement be violated.**
- v. ☐ Recover through State/Territory tax intercepts. Describe the activities and the results of these activities based on the most recent analysis:
- vi. ☐ Recover through other means. Describe the activities and the results of these activities based on the most recent analysis:
- vii. ☐ Establish a unit to investigate and collect improper payments and describe the composition of the unit. Describe the activities and the results of these activities based on the most recent analysis:
- viii. ☒ Other. Describe the activities and the results of these activities: **The Lead Agency and its Office of Inspector General and Office of General Counsel determine consult to determine when engagement of U.S. Health and Human Services Administration of Children and Families Office of Inspector General and/or he Tennessee Comptroller of the Treasury in instances of potential waste, fraud, or abuse. These activities maximize the available options for recovering improper payment due to fraud and may serve as a deterrent to help prevent future fraud. These strategies have resulted in the recovery of identified improper payments, whether due to fraud or other circumstances.**
- e. What type of sanction will the Lead Agency place on clients and providers to help reduce improper payments due to intentional program violations or fraud? Check and describe all that apply:
 - i. ☒ Disqualify the client. Describe this process, including a description of the appeal process for clients who are disqualified. Describe the activities and the results of these activities based on the most recent analysis: **In instances where**

parents may no longer be eligible to participate in the Child Care Payment Assistance/Certificate Program, a client may appeal through the administrative hearing process with the Lead Agency's Division of Appeals and Hearings as defined at Lead Agency Policy 7.05 Smart Steps Child Care Payment Assistance Appeal Process and Policy 7.06 Child Care Payment Assistance Appeal Process.

- ii. ☒ Disqualify the provider. Describe this process, including a description of the appeal process for providers who are disqualified. Describe the activities and the results of these activities based on the most recent analysis: **The Lead Agency is the final decisionmaker of any payment disputes and can deny payments as defined in among the terms and conditions of the Lead Agency contract to participate in the Child Care Payment Assistance/Certificate Program.**

The Lead Agency offers a payment dispute resolution process allowing contacting child care providers to request an administrative review related to adverse administrative actions, i.e., disallowed costs, refused payments, or payment reductions, as defined in at Policy 11.36 Provider Requested Child Care Certificate Program Administrative Review. Requests for administrative review must be received in writing by the Lead Agency's Division of Appeals and Hearings no later than 15 calendar days after a date management decision notification is issued. The Division of Appeals and Hearings will acknowledge receipt of the request within five (5) business days. A child care provider has 20 calendar days to provide all supporting written documentation.

In instances where a provider may no longer be eligible to participate in the Child Care Payment Assistance/Certificate Program, e.g., if the circumstances associated with a case are egregious, the Lead Agency may terminate the provider's contract.

- iii. ☒ Prosecute criminally. Describe the activities and the results of these activities based on the most recent analysis: **The Lead Agency is the final decisionmaker of any payment disputes and can deny payments as defined in among the terms and conditions of the Lead Agency contract to participate in the Child Care Payment Assistance/Certificate Program.**

The Lead Agency offers a payment dispute resolution process allowing contacting child care providers to request an administrative review related to adverse administrative actions, i.e., disallowed costs, refused payments, or payment reductions, as defined in at Policy 11.36 Provider Requested Child Care Certificate Program Administrative Review. Requests for administrative review must be received in writing by the Lead Agency's Division of Appeals and Hearings no later than 15 calendar days after a date management decision notification is issued. The Division of Appeals and Hearings will acknowledge receipt of the request within five (5) business days. A child care provider has 20 calendar days to provide all supporting written documentation.

In instances where a provider may no longer be eligible to participate in the Child Care Payment Assistance/Certificate Program, e.g., if the circumstances associated with a case are egregious, the Lead Agency may terminate the provider's contract.

- iv. ☐ Other. Describe the activities and the results of these activities based on the most recent analysis:

Appendix 1: Lead Agency Implementation Plan

The Appendix will be available for Lead Agencies to use in CARS after the Plan approval letter is issued.

For each non-compliance, Lead Agencies must describe the following:

- **Action Steps:** List the action steps needed to correct the finding (e.g., update policy manual, legislative approval, IT system changes, etc.). For each action step list the:
 - ***Responsible Entity:*** Indicate the entity (e.g., agency, team, etc.) responsible for completing the action step.
 - ***Expected Completion Date:*** List the expected completion date for the action step.
- **Overall Target Date for Compliance:** List date Lead Agency anticipates completing implementation, achieving full compliance with all aspects of the findings. (Note: Compliance will not be determined until the FFY 2025-2027 CCDF Plan is amended and approved).

Appendix 1: Form

[Plan question with non-compliance and associated provision will pre-populate based on preliminary notice of non-compliance]

A. Action Steps for Implementation	B. Responsible Entity(ies)	C. Expected Completion Date
Step 1:		
Step 2 (as necessary):		
[Additional steps added as necessary]		
Overall Target Date for Compliance:		